

The Treatise on Law

Summa Theologiae I-II, Questions 90–108

Thomas Aquinas

Literally translated by Fathers of the English Dominican Province.

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General

The essence (90), various kinds (91), and effects (92) of law.

Question 90. The essence of law

1. Is law something pertaining to reason?
2. The end of law
3. Its cause
4. The promulgation of law

Article 1. Whether law is something pertaining to reason?

Objection 1. It would seem that law is not something pertaining to reason. For the Apostle says (Romans 7:23): “I see another law in my members,” etc. But nothing pertaining to reason is in the members; since the reason does not make use of a bodily organ. Therefore law is not something pertaining to reason.

Objection 2. Further, in the reason there is nothing else but power, habit, and act. But law is not the power itself of reason. In like manner, neither is it a habit of reason: because the habits of reason are the intellectual virtues of which we have spoken above (Article 57). Nor again is it an act of reason: because then law would cease, when the act of reason ceases, for instance, while we are asleep. Therefore law is nothing pertaining to reason.

Objection 3. Further, the law moves those who are subject to it to act aright. But it belongs properly to the will to move to act, as is evident from what has been said above (I-II:9:1). Therefore law pertains, not to the reason, but to the will; according to the words of the Jurist (Lib. i, ff., De Const. Prin. leg. i): “Whatsoever pleaseth the sovereign, has force of law.”

On the contrary, It belongs to the law to command and to forbid. But it belongs to reason to command, as stated above (I-II:17:1). Therefore law is something pertaining to reason.

I answer that, Law is a rule and measure of acts, whereby man is induced to act or is restrained from acting: for “lex” [law] is derived from “ligare” [to bind], because it binds one to act. Now the rule and measure of human acts is the reason, which is the first principle of human acts, as is evident from what has been stated above (I-II:1:1 ad 3); since it belongs to the reason to direct to the end, which is the first principle in all matters of action, according to the Philosopher (Phys. ii). Now that which is the principle in any genus, is the rule and measure of that genus: for instance, unity in the genus of numbers, and the first movement in the genus of movements. Consequently it follows that law is something pertaining to reason.

Reply to Objection 1. Since law is a kind of rule and measure, it may be in something in two ways. First, as in that which measures and rules: and since this is proper to reason, it follows that, in this way, law is in the reason alone. Secondly, as in that which is measured and ruled. In this way, law is in all those things that are inclined to something by reason of some law: so that any inclination arising from a law, may be called a law, not essentially but by participation as it were. And thus the inclination of the members to concupiscence is called “the law of the members.”

Reply to Objection 2. Just as, in external action, we may consider the work and the work done, for instance the work of building and the house built; so in the acts of reason, we may consider the act itself of reason, i.e. to understand and to reason, and something produced by this act. With regard to the speculative reason, this is first of all the definition; secondly, the proposition; thirdly,

the syllogism or argument. And since also the practical reason makes use of a syllogism in respect of the work to be done, as stated above (I-II:13:3; I-II:76:1) and since as the Philosopher teaches (Ethic. vii, 3); hence we find in the practical reason something that holds the same position in regard to operations, as, in the speculative intellect, the proposition holds in regard to conclusions. Such like universal propositions of the practical intellect that are directed to actions have the nature of law. And these propositions are sometimes under our actual consideration, while sometimes they are retained in the reason by means of a habit.

Reply to Objection 3. Reason has its power of moving from the will, as stated above (I-II:17:1): for it is due to the fact that one wills the end, that the reason issues its commands as regards things ordained to the end. But in order that the volition of what is commanded may have the nature of law, it needs to be in accord with some rule of reason. And in this sense is to be understood the saying that the will of the sovereign has the force of law; otherwise the sovereign's will would savor of lawlessness rather than of law.

Article 2. Whether the law is always something directed to the common good?

Objection 1. It would seem that the law is not always directed to the common good as to its end. For it belongs to law to command and to forbid. But commands are directed to certain individual goods. Therefore the end of the law is not always the common good.

Objection 2. Further, the law directs man in his actions. But human actions are concerned with particular matters. Therefore the law is directed to some particular good.

Objection 3. Further, Isidore says (Etym. v, 3): "If the law is based on reason, whatever is based on reason will be a law." But reason is the foundation not only of what is ordained to the common good, but also of that which is directed to private good. Therefore the law is not only directed to the good of all, but also to the private good of an individual.

On the contrary, Isidore says (Etym. v, 21) that "laws are enacted for no private profit, but for the common benefit of the citizens."

I answer that, As stated above (Article 1), the law belongs to that which is a principle of human acts, because it is their rule and measure. Now as reason is a principle of human acts, so in reason itself there is something which is the principle in respect of all the rest: wherefore to this principle chiefly and mainly law must needs be referred. Now the first principle in practical matters, which are the object of the practical reason, is the last end: and the last end of human life is bliss or happiness, as stated above (I-II:2:7; I-II:3:1). Consequently the law must needs regard principally the relationship to happiness. Moreover, since every part is ordained to the whole, as imperfect to perfect; and since one man is a part of the perfect community, the law must needs regard properly the relationship to universal happiness. Wherefore the Philosopher, in the above definition of legal matters mentions both happiness and the body politic: for he says (Ethic. v, 1) that we call those legal matters "just, which are adapted to produce and preserve happiness and its parts for the body politic": since the state is a perfect community, as he says in Polit. i, 1.

Now in every genus, that which belongs to it chiefly is the principle of the others, and the others belong to that genus in subordination to that thing: thus fire, which is chief among hot things, is the cause of heat in mixed bodies, and these are said to be hot in so far as they have a share of fire. Consequently, since the law is chiefly ordained to the common good, any other precept in regard to some individual work, must needs be devoid of the nature of a law, save in so far as it regards the common good. Therefore every law is ordained to the common good.

Reply to Objection 1. A command denotes an application of a law to matters regulated by the

law. Now the order to the common good, at which the law aims, is applicable to particular ends. And in this way commands are given even concerning particular matters.

Reply to Objection 2. Actions are indeed concerned with particular matters: but those particular matters are referable to the common good, not as to a common genus or species, but as to a common final cause, according as the common good is said to be the common end.

Reply to Objection 3. Just as nothing stands firm with regard to the speculative reason except that which is traced back to the first indemonstrable principles, so nothing stands firm with regard to the practical reason, unless it be directed to the last end which is the common good: and whatever stands to reason in this sense, has the nature of a law.

Article 3. Whether the reason of any man is competent to make laws?

Objection 1. It would seem that the reason of any man is competent to make laws. For the Apostle says (Romans 2:14) that “when the Gentiles, who have not the law, do by nature those things that are of the law, . . . they are a law to themselves.” Now he says this of all in general. Therefore anyone can make a law for himself.

Objection 2. Further, as the Philosopher says (*Ethic.* ii. 1), “the intention of the lawgiver is to lead men to virtue.” But every man can lead another to virtue. Therefore the reason of any man is competent to make laws.

Objection 3. Further, just as the sovereign of a state governs the state, so every father of a family governs his household. But the sovereign of a state can make laws for the state. Therefore every father of a family can make laws for his household.

On the contrary, Isidore says (*Etym.* v. 10): “A law is an ordinance of the people, whereby something is sanctioned by the Elders together with the Commonalty.”

I answer that, A law, properly speaking, regards first and foremost the order to the common good. Now to order anything to the common good, belongs either to the whole people, or to someone who is the viceregent of the whole people. And therefore the making of a law belongs either to the whole people or to a public personage who has care of the whole people: since in all other matters the directing of anything to the end concerns him to whom the end belongs.

Reply to Objection 1. As stated above (I-II:90:1 ad 1), a law is in a person not only as in one that rules, but also by participation as in one that is ruled. In the latter way each one is a law to himself, in so far as he shares the direction that he receives from one who rules him. Hence the same text goes on: “Who shows the work of the law written in their hearts.”

Reply to Objection 2. A private person cannot lead another to virtue efficaciously: for he can only advise, and if his advice be not taken, it has no coercive power, such as the law should have, in order to prove an efficacious inducement to virtue, as the Philosopher says (*Ethic.* x. 9). But this coercive power is vested in the whole people or in some public personage, to whom it belongs to inflict penalties, as we shall state further on (I-II:92:2 ad 3 and II-II:64:3). Wherefore the framing of laws belongs to him alone.

Reply to Objection 3. As one man is a part of the household, so a household is a part of the state: and the state is a perfect community, according to *Polit.* i. 1. And therefore, as the good of one man is not the last end, but is ordained to the common good; so too the good of one household is ordained to the good of a single state, which is a perfect community. Consequently he that governs a family, can indeed make certain commands or ordinances, but not such as to have properly the force of law.

Article 4. Whether promulgation is essential to a law?

Objection 1. It would seem that promulgation is not essential to a law. For the natural law above all has the character of law. But the natural law needs no promulgation. Therefore it is not essential to a law that it be promulgated.

Objection 2. Further, it belongs properly to a law to bind one to do or not to do something. But the obligation of fulfilling a law touches not only those in whose presence it is promulgated, but also others. Therefore promulgation is not essential to a law.

Objection 3. Further, the binding force of a law extends even to the future, since “laws are binding in matters of the future,” as the jurists say (Cod. 1, tit. De lege et constit. leg. vii). But promulgation concerns those who are present. Therefore it is not essential to a law.

On the contrary, It is laid down in the Decretals, dist. 4, that “laws are established when they are promulgated.”

I answer that, As stated above (Article 1), a law is imposed on others by way of a rule and measure. Now a rule or measure is imposed by being applied to those who are to be ruled and measured by it. Wherefore, in order that a law obtain the binding force which is proper to a law, it must needs be applied to the men who have to be ruled by it. Such application is made by its being notified to them by promulgation. Wherefore promulgation is necessary for the law to obtain its force.

Thus from the four preceding articles, the definition of law may be gathered; and it is nothing else than an ordinance of reason for the common good, made by him who has care of the community, and promulgated.

Reply to Objection 1. The natural law is promulgated by the very fact that God instilled it into man’s mind so as to be known by him naturally.

Reply to Objection 2. Those who are not present when a law is promulgated, are bound to observe the law, in so far as it is notified or can be notified to them by others, after it has been promulgated.

Reply to Objection 3. The promulgation that takes place now, extends to future time by reason of the durability of written characters, by which means it is continually promulgated. Hence Isidore says (Etym. v, 3; ii, 10) that “lex [law] is derived from legere [to read] because it is written.”

Question 91. The various kinds of law

1. Is there an eternal law?
2. Is there a natural law?
3. Is there a human law?
4. Is there a Divine law?
5. Is there one Divine law, or several?
6. Is there a law of sin?

Article 1. Whether there is an eternal law?

Objection 1. It would seem that there is no eternal law. Because every law is imposed on someone. But there was not someone from eternity on whom a law could be imposed: since God alone was from eternity. Therefore no law is eternal.

Objection 2. Further, promulgation is essential to law. But promulgation could not be from eternity: because there was no one to whom it could be promulgated from eternity. Therefore no law can be eternal.

Objection 3. Further, a law implies order to an end. But nothing ordained to an end is eternal: for the last end alone is eternal. Therefore no law is eternal.

On the contrary, Augustine says (De Lib. Arb. i, 6): “That Law which is the Supreme Reason cannot be understood to be otherwise than unchangeable and eternal.”

I answer that, As stated above (I-II:90:1 ad 2; I-II:91:3-4), a law is nothing else but a dictate of practical reason emanating from the ruler who governs a perfect community. Now it is evident, granted that the world is ruled by Divine Providence, as was stated in I:22:1 and I:22:2, that the whole community of the universe is governed by Divine Reason. Wherefore the very Idea of the government of things in God the Ruler of the universe, has the nature of a law. And since the Divine Reason’s conception of things is not subject to time but is eternal, according to Proverbs 8:23, therefore it is that this kind of law must be called eternal.

Reply to Objection 1. Those things that are not in themselves, exist with God, inasmuch as they are foreknown and preordained by Him, according to Romans 4:17: “Who calls those things that are not, as those that are.” Accordingly the eternal concept of the Divine law bears the character of an eternal law, in so far as it is ordained by God to the government of things foreknown by Him.

Reply to Objection 2. Promulgation is made by word of mouth or in writing; and in both ways the eternal law is promulgated: because both the Divine Word and the writing of the Book of Life are eternal. But the promulgation cannot be from eternity on the part of the creature that hears or reads.

Reply to Objection 3. The law implies order to the end actively, in so far as it directs certain things to the end; but not passively—that is to say, the law itself is not ordained to the end—except accidentally, in a governor whose end is extrinsic to him, and to which end his law must needs be ordained. But the end of the Divine government is God Himself, and His law is not distinct from Himself. Wherefore the eternal law is not ordained to another end.

Article 2. Whether there is in us a natural law?

Objection 1. It would seem that there is no natural law in us. Because man is governed sufficiently by the eternal law: for Augustine says (De Lib. Arb. i) that “the eternal law is that by which it is right that all things should be most orderly.” But nature does not abound in superfluities as neither does she fail in necessities. Therefore no law is natural to man.

Objection 2. Further, by the law man is directed, in his acts, to the end, as stated above (I-II:90:2). But the directing of human acts to their end is not a function of nature, as is the case in irrational creatures, which act for an end solely by their natural appetite; whereas man acts for an end by his reason and will. Therefore no law is natural to man.

Objection 3. Further, the more a man is free, the less is he under the law. But man is freer than all the animals, on account of his free-will, with which he is endowed above all other animals. Since therefore other animals are not subject to a natural law, neither is man subject to a natural law.

On the contrary, A gloss on Romans 2:14: “When the Gentiles, who have not the law, do by nature those things that are of the law,” comments as follows: “Although they have no written law, yet they have the natural law, whereby each one knows, and is conscious of, what is good and what is evil.”

I answer that, As stated above (I-II:90:1 ad 1), law, being a rule and measure, can be in a person

in two ways: in one way, as in him that rules and measures; in another way, as in that which is ruled and measured, since a thing is ruled and measured, in so far as it partakes of the rule or measure. Wherefore, since all things subject to Divine providence are ruled and measured by the eternal law, as was stated above (Article 1); it is evident that all things partake somewhat of the eternal law, in so far as, namely, from its being imprinted on them, they derive their respective inclinations to their proper acts and ends. Now among all others, the rational creature is subject to Divine providence in the most excellent way, in so far as it partakes of a share of providence, by being provident both for itself and for others. Wherefore it has a share of the Eternal Reason, whereby it has a natural inclination to its proper act and end: and this participation of the eternal law in the rational creature is called the natural law. Hence the Psalmist after saying (Psalm 4:6): "Offer up the sacrifice of justice," as though someone asked what the works of justice are, adds: "Many say, Who showeth us good things?" in answer to which question he says: "The light of Thy countenance, O Lord, is signed upon us": thus implying that the light of natural reason, whereby we discern what is good and what is evil, which is the function of the natural law, is nothing else than an imprint on us of the Divine light. It is therefore evident that the natural law is nothing else than the rational creature's participation of the eternal law.

Reply to Objection 1. This argument would hold, if the natural law were something different from the eternal law: whereas it is nothing but a participation thereof, as stated above.

Reply to Objection 2. Every act of reason and will in us is based on that which is according to nature, as stated above (I-II:10:1): for every act of reasoning is based on principles that are known naturally, and every act of appetite in respect of the means is derived from the natural appetite in respect of the last end. Accordingly the first direction of our acts to their end must needs be in virtue of the natural law.

Reply to Objection 3. Even irrational animals partake in their own way of the Eternal Reason, just as the rational creature does. But because the rational creature partakes thereof in an intellectual and rational manner, therefore the participation of the eternal law in the rational creature is properly called a law, since a law is something pertaining to reason, as stated above (I-II:90:1). Irrational creatures, however, do not partake thereof in a rational manner, wherefore there is no participation of the eternal law in them, except by way of similitude.

Article 3. Whether there is a human law?

Objection 1. It would seem that there is not a human law. For the natural law is a participation of the eternal law, as stated above (Article 2). Now through the eternal law "all things are most orderly," as Augustine states (De Lib. Arb. i, 6). Therefore the natural law suffices for the ordering of all human affairs. Consequently there is no need for a human law.

Objection 2. Further, a law bears the character of a measure, as stated above (I-II:90:1). But human reason is not a measure of things, but vice versa, as stated in Metaph. x, text. 5. Therefore no law can emanate from human reason.

Objection 3. Further, a measure should be most certain, as stated in Metaph. x, text. 3. But the dictates of human reason in matters of conduct are uncertain, according to Wisdom 9:14: "The thoughts of mortal men are fearful, and our counsels uncertain." Therefore no law can emanate from human reason.

On the contrary, Augustine (De Lib. Arb. i, 6) distinguishes two kinds of law, the one eternal, the other temporal, which he calls human.

I answer that, As stated above (I-II:90:1 ad 2), a law is a dictate of the practical reason. Now it is

to be observed that the same procedure takes place in the practical and in the speculative reason: for each proceeds from principles to conclusions, as stated above (De Lib. Arb. i, 6). Accordingly we conclude that just as, in the speculative reason, from naturally known indemonstrable principles, we draw the conclusions of the various sciences, the knowledge of which is not imparted to us by nature, but acquired by the efforts of reason, so too it is from the precepts of the natural law, as from general and indemonstrable principles, that the human reason needs to proceed to the more particular determination of certain matters. These particular determinations, devised by human reason, are called human laws, provided the other essential conditions of law be observed, as stated above (I-II:90:2-4). Wherefore Tully says in his Rhetoric (De Invent. Rhet. ii) that “justice has its source in nature; thence certain things came into custom by reason of their utility; afterwards these things which emanated from nature and were approved by custom, were sanctioned by fear and reverence for the law.”

Reply to Objection 1. The human reason cannot have a full participation of the dictate of the Divine Reason, but according to its own mode, and imperfectly. Consequently, as on the part of the speculative reason, by a natural participation of Divine Wisdom, there is in us the knowledge of certain general principles, but not proper knowledge of each single truth, such as that contained in the Divine Wisdom; so too, on the part of the practical reason, man has a natural participation of the eternal law, according to certain general principles, but not as regards the particular determinations of individual cases, which are, however, contained in the eternal law. Hence the need for human reason to proceed further to sanction them by law.

Reply to Objection 2. Human reason is not, of itself, the rule of things: but the principles impressed on it by nature, are general rules and measures of all things relating to human conduct, whereof the natural reason is the rule and measure, although it is not the measure of things that are from nature.

Reply to Objection 3. The practical reason is concerned with practical matters, which are singular and contingent: but not with necessary things, with which the speculative reason is concerned. Wherefore human laws cannot have that inerrancy that belongs to the demonstrated conclusions of sciences. Nor is it necessary for every measure to be altogether unerring and certain, but according as it is possible in its own particular genus.

Article 4. Whether there was any need for a Divine law?

Objection 1. It would seem that there was no need for a Divine law. Because, as stated above (Article 2), the natural law is a participation in us of the eternal law. But the eternal law is a Divine law, as stated above (Article 1). Therefore there was no need for a Divine law in addition to the natural law, and human laws derived therefrom.

Objection 2. Further, it is written (Sirach 15:14) that “God left man in the hand of his own counsel.” Now counsel is an act of reason, as stated above (I-II:14:1). Therefore man was left to the direction of his reason. But a dictate of human reason is a human law as stated above (Article 3). Therefore there is no need for man to be governed also by a Divine law.

Objection 3. Further, human nature is more self-sufficing than irrational creatures. But irrational creatures have no Divine law besides the natural inclination impressed on them. Much less, therefore, should the rational creature have a Divine law in addition to the natural law.

On the contrary, David prayed God to set His law before him, saying (Psalm 18:33): “Set before me for a law the way of Thy justifications, O Lord.”

I answer that, Besides the natural and the human law it was necessary for the directing of

human conduct to have a Divine law. And this for four reasons. First, because it is by law that man is directed how to perform his proper acts in view of his last end. And indeed if man were ordained to no other end than that which is proportionate to his natural faculty, there would be no need for man to have any further direction of the part of his reason, besides the natural law and human law which is derived from it. But since man is ordained to an end of eternal happiness which is inproportionate to man's natural faculty, as stated above (I-II:5:5), therefore it was necessary that, besides the natural and the human law, man should be directed to his end by a law given by God.

Secondly, because, on account of the uncertainty of human judgment, especially on contingent and particular matters, different people form different judgments on human acts; whence also different and contrary laws result. In order, therefore, that man may know without any doubt what he ought to do and what he ought to avoid, it was necessary for man to be directed in his proper acts by a law given by God, for it is certain that such a law cannot err.

Thirdly, because man can make laws in those matters of which he is competent to judge. But man is not competent to judge of interior movements, that are hidden, but only of exterior acts which appear: and yet for the perfection of virtue it is necessary for man to conduct himself aright in both kinds of acts. Consequently human law could not sufficiently curb and direct interior acts; and it was necessary for this purpose that a Divine law should supervene.

Fourthly, because, as Augustine says (De Lib. Arb. i, 5,6), human law cannot punish or forbid all evil deeds: since while aiming at doing away with all evils, it would do away with many good things, and would hinder the advance of the common good, which is necessary for human intercourse. In order, therefore, that no evil might remain unforbidden and unpunished, it was necessary for the Divine law to supervene, whereby all sins are forbidden.

And these four causes are touched upon in Psalm 118:8, where it is said: "The law of the Lord is unspotted," i.e. allowing no foulness of sin; "converting souls," because it directs not only exterior, but also interior acts; "the testimony of the Lord is faithful," because of the certainty of what is true and right; "giving wisdom to little ones," by directing man to an end supernatural and Divine.

Reply to Objection 1. By the natural law the eternal law is participated proportionately to the capacity of human nature. But to his supernatural end man needs to be directed in a yet higher way. Hence the additional law given by God, whereby man shares more perfectly in the eternal law.

Reply to Objection 2. Counsel is a kind of inquiry: hence it must proceed from some principles. Nor is it enough for it to proceed from principles imparted by nature, which are the precepts of the natural law, for the reasons given above: but there is need for certain additional principles, namely, the precepts of the Divine law.

Reply to Objection 3. Irrational creatures are not ordained to an end higher than that which is proportionate to their natural powers: consequently the comparison fails.

Article 5. Whether there is but one Divine law?

Objection 1. It would seem that there is but one Divine law. Because, where there is one king in one kingdom there is but one law. Now the whole of mankind is compared to God as to one king, according to Psalm 46:8: "God is the King of all the earth." Therefore there is but one Divine law.

Objection 2. Further, every law is directed to the end which the lawgiver intends for those for whom he makes the law. But God intends one and the same thing for all men; since according to 1 Timothy 2:4: "He will have all men to be saved, and to come to the knowledge of the truth." Therefore there is but one Divine law.

Objection 3. Further, the Divine law seems to be more akin to the eternal law, which is one, than

the natural law, according as the revelation of grace is of a higher order than natural knowledge. Therefore much more is the Divine law but one.

On the contrary, The Apostle says (Hebrews 7:12): “The priesthood being translated, it is necessary that a translation also be made of the law.” But the priesthood is twofold, as stated in the same passage, viz. the levitical priesthood, and the priesthood of Christ. Therefore the Divine law is twofold, namely the Old Law and the New Law.

I answer that, As stated in the I:30:3, distinction is the cause of number. Now things may be distinguished in two ways. First, as those things that are altogether specifically different, e.g. a horse and an ox. Secondly, as perfect and imperfect in the same species, e.g. a boy and a man: and in this way the Divine law is divided into Old and New. Hence the Apostle (Galatians 3:24-25) compares the state of man under the Old Law to that of a child “under a pedagogue”; but the state under the New Law, to that of a full grown man, who is “no longer under a pedagogue.”

Now the perfection and imperfection of these two laws is to be taken in connection with the three conditions pertaining to law, as stated above. For, in the first place, it belongs to law to be directed to the common good as to its end, as stated above (I-II:90:2). This good may be twofold. It may be a sensible and earthly good; and to this, man was directly ordained by the Old Law: wherefore, at the very outset of the law, the people were invited to the earthly kingdom of the Chananaeans (Exodus 3:8-17). Again it may be an intelligible and heavenly good: and to this, man is ordained by the New Law. Wherefore, at the very beginning of His preaching, Christ invited men to the kingdom of heaven, saying (Matthew 4:17): “Do penance, for the kingdom of heaven is at hand.” Hence Augustine says (Contra Faust. iv) that “promises of temporal goods are contained in the Old Testament, for which reason it is called old; but the promise of eternal life belongs to the New Testament.”

Secondly, it belongs to the law to direct human acts according to the order of righteousness (Article 4): wherein also the New Law surpasses the Old Law, since it directs our internal acts, according to Matthew 5:20: “Unless your justice abound more than that of the Scribes and Pharisees, you shall not enter into the kingdom of heaven.” Hence the saying that “the Old Law restrains the hand, but the New Law controls the mind” (Sentent. iii, D, xl).

Thirdly, it belongs to the law to induce men to observe its commandments. This the Old Law did by the fear of punishment: but the New Law, by love, which is poured into our hearts by the grace of Christ, bestowed in the New Law, but foreshadowed in the Old. Hence Augustine says (Contra Adimant. Manich. discip. xvii) that “there is little difference [The ‘little difference’ refers to the Latin words ‘timor’ and ‘amor’—‘fear’ and ‘love.’] between the Law and the Gospel—fear and love.”

Reply to Objection 1. As the father of a family issues different commands to the children and to the adults, so also the one King, God, in His one kingdom, gave one law to men, while they were yet imperfect, and another more perfect law, when, by the preceding law, they had been led to a greater capacity for Divine things.

Reply to Objection 2. The salvation of man could not be achieved otherwise than through Christ, according to Acts 4:12: “There is no other name . . . given to men, whereby we must be saved.” Consequently the law that brings all to salvation could not be given until after the coming of Christ. But before His coming it was necessary to give to the people, of whom Christ was to be born, a law containing certain rudiments of righteousness unto salvation, in order to prepare them to receive Him.

Reply to Objection 3. The natural law directs man by way of certain general precepts, common

to both the perfect and the imperfect: wherefore it is one and the same for all. But the Divine law directs man also in certain particular matters, to which the perfect and imperfect do not stand in the same relation. Hence the necessity for the Divine law to be twofold, as already explained.

Article 6. Whether there is a law in the fomes of sin?

Objection 1. It would seem that there is no law of the “fomes” of sin. For Isidore says (Etym. v) that the “law is based on reason.” But the “fomes” of sin is not based on reason, but deviates from it. Therefore the “fomes” has not the nature of a law.

Objection 2. Further, every law is binding, so that those who do not obey it are called transgressors. But man is not called a transgressor, from not following the instigations of the “fomes”; but rather from his following them. Therefore the “fomes” has not the nature of a law.

Objection 3. Further, the law is ordained to the common good, as stated above (I-II:90:2). But the “fomes” inclines us, not to the common, but to our own private good. Therefore the “fomes” has not the nature of sin.

On the contrary, The Apostle says (Romans 7:23): “I see another law in my members, fighting against the law of my mind.”

I answer that, As stated above (Article 2; I-II:90:1 ad 1), the law, as to its essence, resides in him that rules and measures; but, by way of participation, in that which is ruled and measured; so that every inclination or ordination which may be found in things subject to the law, is called a law by participation, as stated above (Article 2; I-II:90:1 ad 1). Now those who are subject to a law may receive a twofold inclination from the lawgiver. First, in so far as he directly inclines his subjects to something; sometimes indeed different subjects to different acts; in this way we may say that there is a military law and a mercantile law. Secondly, indirectly; thus by the very fact that a lawgiver deprives a subject of some dignity, the latter passes into another order, so as to be under another law, as it were: thus if a soldier be turned out of the army, he becomes a subject of rural or of mercantile legislation.

Accordingly under the Divine Lawgiver various creatures have various natural inclinations, so that what is, as it were, a law for one, is against the law for another: thus I might say that fierceness is, in a way, the law of a dog, but against the law of a sheep or another meek animal. And so the law of man, which, by the Divine ordinance, is allotted to him, according to his proper natural condition, is that he should act in accordance with reason: and this law was so effective in the primitive state, that nothing either beside or against reason could take man unawares. But when man turned his back on God, he fell under the influence of his sensual impulses: in fact this happens to each one individually, the more he deviates from the path of reason, so that, after a fashion, he is likened to the beasts that are led by the impulse of sensuality, according to Psalm 48:21: “Man, when he was in honor, did not understand: he hath been compared to senseless beasts, and made like to them.”

So, then, this very inclination of sensuality which is called the “fomes,” in other animals has simply the nature of a law (yet only in so far as a law may be said to be in such things), by reason of a direct inclination. But in man, it has not the nature of law in this way, rather is it a deviation from the law of reason. But since, by the just sentence of God, man is destitute of original justice, and his reason bereft of its vigor, this impulse of sensuality, whereby he is led, in so far as it is a penalty following from the Divine law depriving man of his proper dignity, has the nature of a law.

Reply to Objection 1. This argument considers the “fomes” in itself, as an incentive to evil. It is not thus that it has the nature of a law, as stated above, but according as it results from the justice

of the Divine law: it is as though we were to say that the law allows a nobleman to be condemned to hard labor for some misdeed.

Reply to Objection 2. This argument considers law in the light of a rule or measure: for it is in this sense that those who deviate from the law become transgressors. But the “fomes” is not a law in this respect, but by a kind of participation, as stated above.

Reply to Objection 3. This argument considers the “fomes” as to its proper inclination, and not as to its origin. And yet if the inclination of sensuality be considered as it is in other animals, thus it is ordained to the common good, namely, to the preservation of nature in the species or in the individual. And this is in man also, in so far as sensuality is subject to reason. But it is called “fomes” in so far as it strays from the order of reason.

Question 92. The effects of law

1. Is an effect of law to make men good?
2. Are the effects of law to command, to forbid, to permit, and to punish, as the Jurist states?

Article 1. Whether an effect of law is to make men good?

Objection 1. It seems that it is not an effect of law to make men good. For men are good through virtue, since virtue, as stated in Ethic. ii, 6 is “that which makes its subject good.” But virtue is in man from God alone, because He it is Who “works it in us without us,” as we stated above (I-II:55:4) in giving the definition of virtue. Therefore the law does not make men good.

Objection 2. Further, Law does not profit a man unless he obeys it. But the very fact that a man obeys a law is due to his being good. Therefore in man goodness is presupposed to the law. Therefore the law does not make men good.

Objection 3. Further, Law is ordained to the common good, as stated above (I-II:90:2). But some behave well in things regarding the community, who behave ill in things regarding themselves. Therefore it is not the business of the law to make men good.

Objection 4. Further, some laws are tyrannical, as the Philosopher says (Polit. iii, 6). But a tyrant does not intend the good of his subjects, but considers only his own profit. Therefore law does not make men good.

On the contrary, The Philosopher says (Ethic. ii, 1) that the “intention of every lawgiver is to make good citizens.”

I answer that, as stated above (I-II:90:1 ad 2; Answers 3 and 4), a law is nothing else than a dictate of reason in the ruler by whom his subjects are governed. Now the virtue of any subordinate thing consists in its being well subordinated to that by which it is regulated: thus we see that the virtue of the irascible and concupiscible faculties consists in their being obedient to reason; and accordingly “the virtue of every subject consists in his being well subjected to his ruler,” as the Philosopher says (Polit. i). But every law aims at being obeyed by those who are subject to it. Consequently it is evident that the proper effect of law is to lead its subjects to their proper virtue: and since virtue is “that which makes its subject good,” it follows that the proper effect of law is to make those to whom it is given, good, either simply or in some particular respect. For if the intention of the lawgiver is fixed on true good, which is the common good regulated according to Divine justice, it follows that the effect of the law is to make men good simply. If, however, the intention of the lawgiver is fixed on that which is not simply good, but useful or pleasurable to himself, or in opposition to Divine justice; then the law does not make men good simply, but in

respect to that particular government. In this way good is found even in things that are bad of themselves: thus a man is called a good robber, because he works in a way that is adapted to his end.

Reply to Objection 1. Virtue is twofold, as explained above (I-II:63:2), viz. acquired and infused. Now the fact of being accustomed to an action contributes to both, but in different ways; for it causes the acquired virtue; while it disposes to infused virtue, and preserves and fosters it when it already exists. And since law is given for the purpose of directing human acts; as far as human acts conduce to virtue, so far does law make men good. Wherefore the Philosopher says in the second book of the Politics (Ethic. ii) that “lawgivers make men good by habituating them to good works.”

Reply to Objection 2. It is not always through perfect goodness of virtue that one obeys the law, but sometimes it is through fear of punishment, and sometimes from the mere dictates of reason, which is a beginning of virtue, as stated above (I-II:63:1).

Reply to Objection 3. The goodness of any part is considered in comparison with the whole; hence Augustine says (Confess. iii) that “unseemly is the part that harmonizes not with the whole.” Since then every man is a part of the state, it is impossible that a man be good, unless he be well proportionate to the common good: nor can the whole be well consistent unless its parts be proportionate to it. Consequently the common good of the state cannot flourish, unless the citizens be virtuous, at least those whose business it is to govern. But it is enough for the good of the community, that the other citizens be so far virtuous that they obey the commands of their rulers. Hence the Philosopher says (Polit. ii, 2) that “the virtue of a sovereign is the same as that of a good man, but the virtue of any common citizen is not the same as that of a good man.”

Reply to Objection 4. A tyrannical law, through not being according to reason, is not a law, absolutely speaking, but rather a perversion of law; and yet in so far as it is something in the nature of a law, it aims at the citizens’ being good. For all it has in the nature of a law consists in its being an ordinance made by a superior to his subjects, and aims at being obeyed by them, which is to make them good, not simply, but with respect to that particular government.

Article 2. Whether the acts of law are suitably assigned?

Objection 1. It would seem that the acts of law are not suitably assigned as consisting in “command,” “prohibition,” “permission” and “punishment.” For “every law is a general precept,” as the jurist states. But command and precept are the same. Therefore the other three are superfluous.

Objection 2. Further, the effect of a law is to induce its subjects to be good, as stated above (Article 1). But counsel aims at a higher good than a command does. Therefore it belongs to law to counsel rather than to command.

Objection 3. Further, just as punishment stirs a man to good deeds, so does reward. Therefore if to punish is reckoned an effect of law, so also is to reward.

Objection 4. Further, the intention of a lawgiver is to make men good, as stated above (Article 1). But he that obeys the law, merely through fear of being punished, is not good: because “although a good deed may be done through servile fear, i.e. fear of punishment, it is not done well,” as Augustine says (Contra duas Epist. Pelag. ii). Therefore punishment is not a proper effect of law.

On the contrary, Isidore says (Etym. v, 19): “Every law either permits something, as: ‘A brave man may demand his reward’: or forbids something, as: ‘No man may ask a consecrated virgin in marriage’: or punishes, as: ‘Let him that commits a murder be put to death.’”

I answer that, Just as an assertion is a dictate of reason asserting something, so is a law a dictate of reason, commanding something. Now it is proper to reason to lead from one thing to another.

Wherefore just as, in demonstrative sciences, the reason leads us from certain principles to assent to the conclusion, so it induces us by some means to assent to the precept of the law.

Now the precepts of law are concerned with human acts, in which the law directs, as stated above (Question 90, Articles 1 and 2; I-II:91:4). Again there are three kinds of human acts: for, as stated above (I-II:18:8), some acts are good generically, viz. acts of virtue; and in respect of these the act of the law is a precept or command, for “the law commands all acts of virtue” (Ethic. v, 1). Some acts are evil generically, viz. acts of vice, and in respect of these the law forbids. Some acts are generically indifferent, and in respect of these the law permits; and all acts that are either not distinctly good or not distinctly bad may be called indifferent. And it is the fear of punishment that law makes use of in order to ensure obedience: in which respect punishment is an effect of law.

Reply to Objection 1. Just as to cease from evil is a kind of good, so a prohibition is a kind of precept: and accordingly, taking precept in a wide sense, every law is a kind of precept.

Reply to Objection 2. To advise is not a proper act of law, but may be within the competency even of a private person, who cannot make a law. Wherefore too the Apostle, after giving a certain counsel (1 Corinthians 7:12) says: “I speak, not the Lord.” Consequently it is not reckoned as an effect of law.

Reply to Objection 3. To reward may also pertain to anyone: but to punish pertains to none but the framer of the law, by whose authority the pain is inflicted. Wherefore to reward is not reckoned an effect of law, but only to punish.

Reply to Objection 4. From becoming accustomed to avoid evil and fulfill what is good, through fear of punishment, one is sometimes led on to do so likewise, with delight and of one’s own accord. Accordingly, law, even by punishing, leads men on to being good.

The Eternal Law

The eternal law (93).

Question 93. The eternal law

1. What is the eternal law?
2. Is it known to all?
3. Is every law is derived from it?
4. Are necessary things subject to the eternal law?
5. Are natural contingencies subject to the eternal law?
6. Are all human things subject to it?

Article 1. Whether the eternal law is a sovereign type [ratio] existing in God?

Objection 1. It would seem that the eternal law is not a sovereign type existing in God. For there is only one eternal law. But there are many types of things in the Divine mind; for Augustine says (Qq. lxxxiii, qu. 46) that God “made each thing according to its type.” Therefore the eternal law does not seem to be a type existing in the Divine mind.

Objection 2. Further, it is essential to a law that it be promulgated by word, as stated above (I-II:90:4). But Word is a Personal name in God, as stated in the I:34:1: whereas type refers to the Essence. Therefore the eternal law is not the same as a Divine type.

Objection 3. Further, Augustine says (De Vera Relig. xxx): “We see a law above our minds, which is called truth.” But the law which is above our minds is the eternal law. Therefore truth is the eternal law. But the idea of truth is not the same as the idea of a type. Therefore the eternal law is not the same as the sovereign type.

On the contrary, Augustine says (De Lib. Arb. i, 6) that “the eternal law is the sovereign type, to which we must always conform.”

I answer that, Just as in every artificer there pre-exists a type of the things that are made by his art, so too in every governor there must pre-exist the type of the order of those things that are to be done by those who are subject to his government. And just as the type of the things yet to be made by an art is called the art or exemplar of the products of that art, so too the type in him who governs the acts of his subjects, bears the character of a law, provided the other conditions be present which we have mentioned above (Article 90). Now God, by His wisdom, is the Creator of all things in relation to which He stands as the artificer to the products of his art, as stated in the I:14:8. Moreover He governs all the acts and movements that are to be found in each single creature, as was also stated in the I:103:5. Wherefore as the type of the Divine Wisdom, inasmuch as by It all things are created, has the character of art, exemplar or idea; so the type of Divine Wisdom, as moving all things to their due end, bears the character of law. Accordingly the eternal law is nothing else than the type of Divine Wisdom, as directing all actions and movements.

Reply to Objection 1. Augustine is speaking in that passage of the ideal types which regard the proper nature of each single thing; and consequently in them there is a certain distinction and plurality, according to their different relations to things, as stated in the I:15:2. But law is said to direct human acts by ordaining them to the common good, as stated above (I-II:90:2). And things, which are in themselves different, may be considered as one, according as they are ordained to one common thing. Wherefore the eternal law is one since it is the type of this order.

Reply to Objection 2. With regard to any sort of word, two points may be considered: viz. the word itself, and that which is expressed by the word. For the spoken word is something uttered by the mouth of man, and expresses that which is signified by the human word. The same applies to the human mental word, which is nothing else than something conceived by the mind, by which man expresses his thoughts mentally. So then in God the Word conceived by the intellect of the Father is the name of a Person: but all things that are in the Father's knowledge, whether they refer to the Essence or to the Persons, or to the works of God, are expressed by this Word, as Augustine declares (*De Trin.* xv, 14). And among other things expressed by this Word, the eternal law itself is expressed thereby. Nor does it follow that the eternal law is a Personal name in God: yet it is appropriated to the Son, on account of the kinship between type and word.

Reply to Objection 3. The types of the Divine intellect do not stand in the same relation to things, as the types of the human intellect. For the human intellect is measured by things, so that a human concept is not true by reason of itself, but by reason of its being consonant with things, since "an opinion is true or false according as it answers to the reality." But the Divine intellect is the measure of things: since each thing has so far truth in it, as it represents the Divine intellect, as was stated in the I:16:1. Consequently the Divine intellect is true in itself; and its type is truth itself.

Article 2. Whether the eternal law is known to all?

Objection 1. It would seem that the eternal law is not known to all. Because, as the Apostle says (1 Corinthians 2:11), "the things that are of God no man knoweth, but the Spirit of God." But the eternal law is a type existing in the Divine mind. Therefore it is unknown to all save God alone.

Objection 2. Further, as Augustine says (*De Lib. Arb.* i, 6) "the eternal law is that by which it is right that all things should be most orderly." But all do not know how all things are most orderly. Therefore all do not know the eternal law.

Objection 3. Further, Augustine says (*De Vera Relig.* xxxi) that "the eternal law is not subject to the judgment of man." But according to *Ethic.* i, "any man can judge well of what he knows." Therefore the eternal law is not known to us.

On the contrary, Augustine says (*De Lib. Arb.* i, 6) that "knowledge of the eternal law is imprinted on us."

I answer that, A thing may be known in two ways: first, in itself; secondly, in its effect, wherein some likeness of that thing is found: thus someone not seeing the sun in its substance, may know it by its rays. So then no one can know the eternal law, as it is in itself, except the blessed who see God in His Essence. But every rational creature knows it in its reflection, greater or less. For every knowledge of truth is a kind of reflection and participation of the eternal law, which is the unchangeable truth, as Augustine says (*De Vera Relig.* xxxi). Now all men know the truth to a certain extent, at least as to the common principles of the natural law: and as to the others, they partake of the knowledge of truth, some more, some less; and in this respect are more or less cognizant of the eternal law.

Reply to Objection 1. We cannot know the things that are of God, as they are in themselves; but they are made known to us in their effects, according to Romans 1:20: "The invisible things of God . . . are clearly seen, being understood by the things that are made."

Reply to Objection 2. Although each one knows the eternal law according to his own capacity, in the way explained above, yet none can comprehend it: for it cannot be made perfectly known by its effects. Therefore it does not follow that anyone who knows the eternal law in the way aforesaid, knows also the whole order of things, whereby they are most orderly.

Reply to Objection 3. To judge a thing may be understood in two ways. First, as when a cognitive power judges of its proper object, according to Job 12:11: "Doth not the ear discern words, and the palate of him that eateth, the taste?" It is to this kind of judgment that the Philosopher alludes when he says that "anyone can judge well of what he knows," by judging, namely, whether what is put forward is true. In another way we speak of a superior judging of a subordinate by a kind of practical judgment, as to whether he should be such and such or not. And thus none can judge of the eternal law.

Article 3. Whether every law is derived from the eternal law?

Objection 1. It would seem that not every law is derived from the eternal law. For there is a law of the "fomes," as stated above (I-II:91:6), which is not derived from that Divine law which is the eternal law, since thereunto pertains the "prudence of the flesh," of which the Apostle says (Romans 8:7), that "it cannot be subject to the law of God." Therefore not every law is derived from the eternal law.

Objection 2. Further, nothing unjust can be derived from the eternal law, because, as stated above (Article 2, Objection 2), "the eternal law is that, according to which it is right that all things should be most orderly." But some laws are unjust, according to Isaiah 10:1: "Woe to them that make wicked laws." Therefore not every law is derived from the eternal law.

Objection 3. Further, Augustine says (De Lib. Arb. i, 5) that "the law which is framed for ruling the people, rightly permits many things which are punished by Divine providence." But the type of Divine providence is the eternal law, as stated above (Article 1). Therefore not even every good law is derived from the eternal law.

On the contrary, Divine Wisdom says (Proverbs 8:15): "By Me kings reign, and lawgivers decree just things." But the type of Divine Wisdom is the eternal law, as stated above (Article 1). Therefore all laws proceed from the eternal law.

I answer that, As stated above (Question 90, Articles 1 and 2), the law denotes a kind of plan directing acts towards an end. Now wherever there are movers ordained to one another, the power of the second mover must needs be derived from the power of the first mover; since the second mover does not move except in so far as it is moved by the first. Wherefore we observe the same in all those who govern, so that the plan of government is derived by secondary governors from the governor in chief; thus the plan of what is to be done in a state flows from the king's command to his inferior administrators: and again in things of art the plan of whatever is to be done by art flows from the chief craftsman to the under-crafts-men, who work with their hands. Since then the eternal law is the plan of government in the Chief Governor, all the plans of government in the inferior governors must be derived from the eternal law. But these plans of inferior governors are all other laws besides the eternal law. Therefore all laws, in so far as they partake of right reason, are derived from the eternal law. Hence Augustine says (De Lib. Arb. i, 6) that "in temporal law there is nothing just and lawful, but what man has drawn from the eternal law."

Reply to Objection 1. The "fomes" has the nature of law in man, in so far as it is a punishment resulting from Divine justice; and in this respect it is evident that it is derived from the eternal law. But in so far as it denotes a proneness to sin, it is contrary to the Divine law, and has not the nature of law, as stated above (I-II:91:6).

Reply to Objection 2. Human law has the nature of law in so far as it partakes of right reason; and it is clear that, in this respect, it is derived from the eternal law. But in so far as it deviates from reason, it is called an unjust law, and has the nature, not of law but of violence. Nevertheless even

an unjust law, in so far as it retains some appearance of law, though being framed by one who is in power, is derived from the eternal law; since all power is from the Lord God, according to Romans 13:1.

Reply to Objection 3. Human law is said to permit certain things, not as approving them, but as being unable to direct them. And many things are directed by the Divine law, which human law is unable to direct, because more things are subject to a higher than to a lower cause. Hence the very fact that human law does not meddle with matters it cannot direct, comes under the ordination of the eternal law. It would be different, were human law to sanction what the eternal law condemns. Consequently it does not follow that human law is not derived from the eternal law, but that it is not on a perfect equality with it.

Article 4. Whether necessary and eternal things are subject to the eternal law?

Objection 1. It would seem that necessary and eternal things are subject to the eternal law. For whatever is reasonable is subject to reason. But the Divine will is reasonable, for it is just. Therefore it is subject to (the Divine) reason. But the eternal law is the Divine reason. Therefore God's will is subject to the eternal law. But God's will is eternal. Therefore eternal and necessary things are subject to the eternal law.

Objection 2. Further, whatever is subject to the King, is subject to the King's law. Now the Son, according to 1 Corinthians 15:28-29, "shall be subject . . . to God and the Father . . . when He shall have delivered up the Kingdom to Him." Therefore the Son, Who is eternal, is subject to the eternal law.

Objection 3. Further, the eternal law is Divine providence as a type. But many necessary things are subject to Divine providence: for instance, the stability of incorporeal substances and of the heavenly bodies. Therefore even necessary things are subject to the eternal law.

On the contrary, Things that are necessary cannot be otherwise, and consequently need no restraining. But laws are imposed on men, in order to restrain them from evil, as explained above (I-II:92:2). Therefore necessary things are not subject to the eternal law.

I answer that, As stated above (Article 1), the eternal law is the type of the Divine government. Consequently whatever is subject to the Divine government, is subject to the eternal law: while if anything is not subject to the Divine government, neither is it subject to the eternal law. The application of this distinction may be gathered by looking around us. For those things are subject to human government, which can be done by man; but what pertains to the nature of man is not subject to human government; for instance, that he should have a soul, hands, or feet. Accordingly all that is in things created by God, whether it be contingent or necessary, is subject to the eternal law: while things pertaining to the Divine Nature or Essence are not subject to the eternal law, but are the eternal law itself.

Reply to Objection 1. We may speak of God's will in two ways. First, as to the will itself: and thus, since God's will is His very Essence, it is subject neither to the Divine government, nor to the eternal law, but is the same thing as the eternal law. Secondly, we may speak of God's will, as to the things themselves that God wills about creatures; which things are subject to the eternal law, in so far as they are planned by Divine Wisdom. In reference to these things God's will is said to be reasonable [rationalis]: though regarded in itself it should rather be called their type [ratio].

Reply to Objection 2. God the Son was not made by God, but was naturally born of God. Consequently He is not subject to Divine providence or to the eternal law: but rather is Himself the eternal law by a kind of appropriation, as Augustine explains (De Vera Relig. xxxi). But He is said

to be subject to the Father by reason of His human nature, in respect of which also the Father is said to be greater than He.

The third objection we grant, because it deals with those necessary things that are created.

Reply to Objection 4. As the Philosopher says (Metaph. v, text. 6), some necessary things have a cause of their necessity: and thus they derive from something else the fact that they cannot be otherwise. And this is in itself a most effective restraint; for whatever is restrained, is said to be restrained in so far as it cannot do otherwise than it is allowed to.

Article 5. Whether natural contingents are subject to the eternal law?

Objection 1. It would seem that natural contingents are not subject to the eternal law. Because promulgation is essential to law, as stated above (I-II:90:4). But a law cannot be promulgated except to rational creatures, to whom it is possible to make an announcement. Therefore none but rational creatures are subject to the eternal law; and consequently natural contingents are not.

Objection 2. Further, "Whatever obeys reason partakes somewhat of reason," as stated in Ethic. i. But the eternal law, is the supreme type, as stated above (Article 1). Since then natural contingents do not partake of reason in any way, but are altogether void of reason, it seems that they are not subject to the eternal law.

Objection 3. Further, the eternal law is most efficient. But in natural contingents defects occur. Therefore they are not subject to the eternal law.

On the contrary, It is written (Proverbs 8:29): "When He compassed the sea with its bounds, and set a law to the waters, that they should not pass their limits."

I answer that, We must speak otherwise of the law of man, than of the eternal law which is the law of God. For the law of man extends only to rational creatures subject to man. The reason of this is because law directs the actions of those that are subject to the government of someone: wherefore, properly speaking, none imposes a law on his own actions. Now whatever is done regarding the use of irrational things subject to man, is done by the act of man himself moving those things, for these irrational creatures do not move themselves, but are moved by others, as stated above (I-II:1:2). Consequently man cannot impose laws on irrational beings, however much they may be subject to him. But he can impose laws on rational beings subject to him, in so far as by his command or pronouncement of any kind, he imprints on their minds a rule which is a principle of action.

Now just as man, by such pronouncement, impresses a kind of inward principle of action on the man that is subject to him, so God imprints on the whole of nature the principles of its proper actions. And so, in this way, God is said to command the whole of nature, according to Psalm 148:6: "He hath made a decree, and it shall not pass away." And thus all actions and movements of the whole of nature are subject to the eternal law. Consequently irrational creatures are subject to the eternal law, through being moved by Divine providence; but not, as rational creatures are, through understanding the Divine commandment.

Reply to Objection 1. The impression of an inward active principle is to natural things, what the promulgation of law is to men: because law, by being promulgated, imprints on man a directive principle of human actions, as stated above.

Reply to Objection 2. Irrational creatures neither partake of nor are obedient to human reason: whereas they do partake of the Divine Reason by obeying it; because the power of Divine Reason extends over more things than human reason does. And as the members of the human body are moved at the command of reason, and yet do not partake of reason, since they have no apprehension

subordinate to reason; so too irrational creatures are moved by God, without, on that account, being rational.

Reply to Objection 3. Although the defects which occur in natural things are outside the order of particular causes, they are not outside the order of universal causes, especially of the First Cause, i.e. God, from Whose providence nothing can escape, as stated in the I:22:2. And since the eternal law is the type of Divine providence, as stated above (Article 1), hence the defects of natural things are subject to the eternal law.

Article 6. Whether all human affairs are subject to the eternal law?

Objection 1. It would seem that not all human affairs are subject to the eternal law. For the Apostle says (Galatians 5:18): "If you are led by the spirit you are not under the law." But the righteous who are the sons of God by adoption, are led by the spirit of God, according to Romans 8:14: "Whosoever are led by the spirit of God, they are the sons of God." Therefore not all men are under the eternal law.

Objection 2. Further, the Apostle says (Romans 8:7): "The prudence [Vulgate: 'wisdom'] of the flesh is an enemy to God: for it is not subject to the law of God." But many are those in whom the prudence of the flesh dominates. Therefore all men are not subject to the eternal law which is the law of God.

Objection 3. Further, Augustine says (De Lib. Arb. i, 6) that "the eternal law is that by which the wicked deserve misery, the good, a life of blessedness." But those who are already blessed, and those who are already lost, are not in the state of merit. Therefore they are not under the eternal law.

On the contrary, Augustine says (De Civ. Dei xix, 12): "Nothing evades the laws of the most high Creator and Governor, for by Him the peace of the universe is administered."

I answer that, There are two ways in which a thing is subject to the eternal law, as explained above (Article 5): first, by partaking of the eternal law by way of knowledge; secondly, by way of action and passion, i.e. by partaking of the eternal law by way of an inward motive principle: and in this second way, irrational creatures are subject to the eternal law, as stated above (Article 5). But since the rational nature, together with that which it has in common with all creatures, has something proper to itself inasmuch as it is rational, consequently it is subject to the eternal law in both ways; because while each rational creature has some knowledge of the eternal law, as stated above (Article 2), it also has a natural inclination to that which is in harmony with the eternal law; for "we are naturally adapted to the recipients of virtue" (Ethic. ii, 1).

Both ways, however, are imperfect, and to a certain extent destroyed, in the wicked; because in them the natural inclination to virtue is corrupted by vicious habits, and, moreover, the natural knowledge of good is darkened by passions and habits of sin. But in the good both ways are found more perfect: because in them, besides the natural knowledge of good, there is the added knowledge of faith and wisdom; and again, besides the natural inclination to good, there is the added motive of grace and virtue.

Accordingly, the good are perfectly subject to the eternal law, as always acting according to it: whereas the wicked are subject to the eternal law, imperfectly as to their actions, indeed, since both their knowledge of good, and their inclination thereto, are imperfect; but this imperfection on the part of action is supplied on the part of passion, in so far as they suffer what the eternal law decrees concerning them, according as they fail to act in harmony with that law. Hence Augustine says (De Lib. Arb. i, 15): "I esteem that the righteous act according to the eternal law; and (De Catech.

Rud. xviii): Out of the just misery of the souls which deserted Him, God knew how to furnish the inferior parts of His creation with most suitable laws."

Reply to Objection 1. This saying of the Apostle may be understood in two ways. First, so that a man is said to be under the law, through being pinned down thereby, against his will, as by a load. Hence, on the same passage a gloss says that "he is under the law, who refrains from evil deeds, through fear of punishment threatened by the law, and not from love of virtue." In this way the spiritual man is not under the law, because he fulfils the law willingly, through charity which is poured into his heart by the Holy Ghost. Secondly, it can be understood as meaning that the works of a man, who is led by the Holy Ghost, are the works of the Holy Ghost rather than his own. Therefore, since the Holy Ghost is not under the law, as neither is the Son, as stated above (Article 4, Reply to Objection 2); it follows that such works, in so far as they are of the Holy Ghost, are not under the law. The Apostle witnesses to this when he says (2 Corinthians 3:17): "Where the Spirit of the Lord is, there is liberty."

Reply to Objection 2. The prudence of the flesh cannot be subject to the law of God as regards action; since it inclines to actions contrary to the Divine law: yet it is subject to the law of God, as regards passion; since it deserves to suffer punishment according to the law of Divine justice. Nevertheless in no man does the prudence of the flesh dominate so far as to destroy the whole good of his nature: and consequently there remains in man the inclination to act in accordance with the eternal law. For we have seen above (I-II:85:2) that sin does not destroy entirely the good of nature.

Reply to Objection 3. A thing is maintained in the end and moved towards the end by one and the same cause: thus gravity which makes a heavy body rest in the lower place is also the cause of its being moved thither. We therefore reply that as it is according to the eternal law that some deserve happiness, others unhappiness, so is it by the eternal law that some are maintained in a happy state, others in an unhappy state. Accordingly both the blessed and the damned are under the eternal law.

The Natural Law

The natural law (94).

Question 94. The natural law

1. What is the natural law?
2. What are the precepts of the natural law?
3. Are all acts of virtue prescribed by the natural law?
4. Is the natural law the same in all?
5. Is it changeable?
6. Can it be abolished from the heart of man?

Article 1. Whether the natural law is a habit?

Objection 1. It would seem that the natural law is a habit. Because, as the Philosopher says (Ethic. ii, 5), “there are three things in the soul: power, habit, and passion.” But the natural law is not one of the soul’s powers: nor is it one of the passions; as we may see by going through them one by one. Therefore the natural law is a habit.

Objection 2. Further, Basil [Damascene, De Fide Orth. iv, 22] says that the conscience or “synderesis” is the “law of our mind”; which can only apply to the natural law. But the “synderesis” is a habit, as was shown in the I:79:12. Therefore the natural law is a habit.

Objection 3. Further, the natural law abides in man always, as will be shown further on (Article 6). But man’s reason, which the law regards, does not always think about the natural law. Therefore the natural law is not an act, but a habit.

On the contrary, Augustine says (De Bono Conjug. xxi) that “a habit is that whereby something is done when necessary.” But such is not the natural law: since it is in infants and in the damned who cannot act by it. Therefore the natural law is not a habit.

I answer that, A thing may be called a habit in two ways. First, properly and essentially: and thus the natural law is not a habit. For it has been stated above (I-II:90:1 ad 2) that the natural law is something appointed by reason, just as a proposition is a work of reason. Now that which a man does is not the same as that whereby he does it: for he makes a becoming speech by the habit of grammar. Since then a habit is that by which we act, a law cannot be a habit properly and essentially.

Secondly, the term habit may be applied to that which we hold by a habit: thus faith may mean that which we hold by faith. And accordingly, since the precepts of the natural law are sometimes considered by reason actually, while sometimes they are in the reason only habitually, in this way the natural law may be called a habit. Thus, in speculative matters, the indemonstrable principles are not the habit itself whereby we hold those principles, but are the principles the habit of which we possess.

Reply to Objection 1. The Philosopher proposes there to discover the genus of virtue; and since it is evident that virtue is a principle of action, he mentions only those things which are principles of human acts, viz. powers, habits and passions. But there are other things in the soul besides these three: there are acts; thus “to will” is in the one that wills; again, things known are in the knower; moreover its own natural properties are in the soul, such as immortality and the like.

Reply to Objection 2. “Synderesis” is said to be the law of our mind, because it is a habit containing the precepts of the natural law, which are the first principles of human actions.

Reply to Objection 3. This argument proves that the natural law is held habitually; and this is granted.

To the argument advanced in the contrary sense we reply that sometimes a man is unable to make use of that which is in him habitually, on account of some impediment: thus, on account of sleep, a man is unable to use the habit of science. In like manner, through the deficiency of his age, a child cannot use the habit of understanding of principles, or the natural law, which is in him habitually.

Article 2. Whether the natural law contains several precepts, or only one?

Objection 1. It would seem that the natural law contains, not several precepts, but one only. For law is a kind of precept, as stated above (I-II:92:2). If therefore there were many precepts of the natural law, it would follow that there are also many natural laws.

Objection 2. Further, the natural law is consequent to human nature. But human nature, as a whole, is one; though, as to its parts, it is manifold. Therefore, either there is but one precept of the law of nature, on account of the unity of nature as a whole; or there are many, by reason of the number of parts of human nature. The result would be that even things relating to the inclination of the concupiscible faculty belong to the natural law.

Objection 3. Further, law is something pertaining to reason, as stated above (I-II:90:1). Now reason is but one in man. Therefore there is only one precept of the natural law.

On the contrary, The precepts of the natural law in man stand in relation to practical matters, as the first principles to matters of demonstration. But there are several first indemonstrable principles. Therefore there are also several precepts of the natural law.

I answer that, As stated above (I-II:91:3), the precepts of the natural law are to the practical reason, what the first principles of demonstrations are to the speculative reason; because both are self-evident principles. Now a thing is said to be self-evident in two ways: first, in itself; secondly, in relation to us. Any proposition is said to be self-evident in itself, if its predicate is contained in the notion of the subject: although, to one who knows not the definition of the subject, it happens that such a proposition is not self-evident. For instance, this proposition, “Man is a rational being,” is, in its very nature, self-evident, since who says “man,” says “a rational being”: and yet to one who knows not what a man is, this proposition is not self-evident. Hence it is that, as Boethius says (De Hebdom.), certain axioms or propositions are universally self-evident to all; and such are those propositions whose terms are known to all, as, “Every whole is greater than its part,” and, “Things equal to one and the same are equal to one another.” But some propositions are self-evident only to the wise, who understand the meaning of the terms of such propositions: thus to one who understands that an angel is not a body, it is self-evident that an angel is not circumscriptively in a place: but this is not evident to the unlearned, for they cannot grasp it.

Now a certain order is to be found in those things that are apprehended universally. For that which, before aught else, falls under apprehension, is “being,” the notion of which is included in all things whatsoever a man apprehends. Wherefore the first indemonstrable principle is that “the same thing cannot be affirmed and denied at the same time,” which is based on the notion of “being” and “not-being”: and on this principle all others are based, as is stated in Metaph. iv, text. 9. Now as “being” is the first thing that falls under the apprehension simply, so “good” is the first thing that falls under the apprehension of the practical reason, which is directed to action:

since every agent acts for an end under the aspect of good. Consequently the first principle of practical reason is one founded on the notion of good, viz. that “good is that which all things seek after.” Hence this is the first precept of law, that “good is to be done and pursued, and evil is to be avoided.” All other precepts of the natural law are based upon this: so that whatever the practical reason naturally apprehends as man’s good (or evil) belongs to the precepts of the natural law as something to be done or avoided.

Since, however, good has the nature of an end, and evil, the nature of a contrary, hence it is that all those things to which man has a natural inclination, are naturally apprehended by reason as being good, and consequently as objects of pursuit, and their contraries as evil, and objects of avoidance. Wherefore according to the order of natural inclinations, is the order of the precepts of the natural law. Because in man there is first of all an inclination to good in accordance with the nature which he has in common with all substances: inasmuch as every substance seeks the preservation of its own being, according to its nature: and by reason of this inclination, whatever is a means of preserving human life, and of warding off its obstacles, belongs to the natural law. Secondly, there is in man an inclination to things that pertain to him more specially, according to that nature which he has in common with other animals: and in virtue of this inclination, those things are said to belong to the natural law, “which nature has taught to all animals” [Pandect. Just. I, tit. i], such as sexual intercourse, education of offspring and so forth. Thirdly, there is in man an inclination to good, according to the nature of his reason, which nature is proper to him: thus man has a natural inclination to know the truth about God, and to live in society: and in this respect, whatever pertains to this inclination belongs to the natural law; for instance, to shun ignorance, to avoid offending those among whom one has to live, and other such things regarding the above inclination.

Reply to Objection 1. All these precepts of the law of nature have the character of one natural law, inasmuch as they flow from one first precept.

Reply to Objection 2. All the inclinations of any parts whatsoever of human nature, e.g. of the concupiscible and irascible parts, in so far as they are ruled by reason, belong to the natural law, and are reduced to one first precept, as stated above: so that the precepts of the natural law are many in themselves, but are based on one common foundation.

Reply to Objection 3. Although reason is one in itself, yet it directs all things regarding man; so that whatever can be ruled by reason, is contained under the law of reason.

Article 3. Whether all acts of virtue are prescribed by the natural law?

Objection 1. It would seem that not all acts of virtue are prescribed by the natural law. Because, as stated above (I-II:90:2) it is essential to a law that it be ordained to the common good. But some acts of virtue are ordained to the private good of the individual, as is evident especially in regards to acts of temperance. Therefore not all acts of virtue are the subject of natural law.

Objection 2. Further, every sin is opposed to some virtuous act. If therefore all acts of virtue are prescribed by the natural law, it seems to follow that all sins are against nature: whereas this applies to certain special sins.

Objection 3. Further, those things which are according to nature are common to all. But acts of virtue are not common to all: since a thing is virtuous in one, and vicious in another. Therefore not all acts of virtue are prescribed by the natural law.

On the contrary, Damascene says (De Fide Orth. iii, 4) that “virtues are natural.” Therefore virtuous acts also are a subject of the natural law.

I answer that, We may speak of virtuous acts in two ways: first, under the aspect of virtuous; secondly, as such and such acts considered in their proper species. If then we speak of acts of virtue, considered as virtuous, thus all virtuous acts belong to the natural law. For it has been stated (Article 2) that to the natural law belongs everything to which a man is inclined according to his nature. Now each thing is inclined naturally to an operation that is suitable to it according to its form: thus fire is inclined to give heat. Wherefore, since the rational soul is the proper form of man, there is in every man a natural inclination to act according to reason: and this is to act according to virtue. Consequently, considered thus, all acts of virtue are prescribed by the natural law: since each one's reason naturally dictates to him to act virtuously. But if we speak of virtuous acts, considered in themselves, i.e. in their proper species, thus not all virtuous acts are prescribed by the natural law: for many things are done virtuously, to which nature does not incline at first; but which, through the inquiry of reason, have been found by men to be conducive to well-living.

Reply to Objection 1. Temperance is about the natural concupiscences of food, drink and sexual matters, which are indeed ordained to the natural common good, just as other matters of law are ordained to the moral common good.

Reply to Objection 2. By human nature we may mean either that which is proper to man—and in this sense all sins, as being against reason, are also against nature, as Damascene states (De Fide Orth. ii, 30): or we may mean that nature which is common to man and other animals; and in this sense, certain special sins are said to be against nature; thus contrary to sexual intercourse, which is natural to all animals, is unisexual lust, which has received the special name of the unnatural crime.

Reply to Objection 3. This argument considers acts in themselves. For it is owing to the various conditions of men, that certain acts are virtuous for some, as being proportionate and becoming to them, while they are vicious for others, as being out of proportion to them.

Article 4. Whether the natural law is the same in all men?

Objection 1. It would seem that the natural law is not the same in all. For it is stated in the Decretals (Dist. i) that “the natural law is that which is contained in the Law and the Gospel.” But this is not common to all men; because, as it is written (Romans 10:16), “all do not obey the gospel.” Therefore the natural law is not the same in all men.

Objection 2. Further, “Things which are according to the law are said to be just,” as stated in Ethic. v. But it is stated in the same book that nothing is so universally just as not to be subject to change in regard to some men. Therefore even the natural law is not the same in all men.

Objection 3. Further, as stated above (Article 2, Article 3), to the natural law belongs everything to which a man is inclined according to his nature. Now different men are naturally inclined to different things; some to the desire of pleasures, others to the desire of honors, and other men to other things. Therefore there is not one natural law for all.

On the contrary, Isidore says (Etym. v, 4): “The natural law is common to all nations.”

I answer that, As stated above (Article 2, Article 3), to the natural law belongs those things to which a man is inclined naturally: and among these it is proper to man to be inclined to act according to reason. Now the process of reason is from the common to the proper, as stated in Phys. i. The speculative reason, however, is differently situated in this matter, from the practical reason. For, since the speculative reason is busied chiefly with the necessary things, which cannot be otherwise than they are, its proper conclusions, like the universal principles, contain the truth without fail. The practical reason, on the other hand, is busied with contingent matters, about which human actions are concerned: and consequently, although there is necessity in the general

principles, the more we descend to matters of detail, the more frequently we encounter defects. Accordingly then in speculative matters truth is the same in all men, both as to principles and as to conclusions: although the truth is not known to all as regards the conclusions, but only as regards the principles which are called common notions. But in matters of action, truth or practical rectitude is not the same for all, as to matters of detail, but only as to the general principles: and where there is the same rectitude in matters of detail, it is not equally known to all.

It is therefore evident that, as regards the general principles whether of speculative or of practical reason, truth or rectitude is the same for all, and is equally known by all. As to the proper conclusions of the speculative reason, the truth is the same for all, but is not equally known to all: thus it is true for all that the three angles of a triangle are together equal to two right angles, although it is not known to all. But as to the proper conclusions of the practical reason, neither is the truth or rectitude the same for all, nor, where it is the same, is it equally known by all. Thus it is right and true for all to act according to reason: and from this principle it follows as a proper conclusion, that goods entrusted to another should be restored to their owner. Now this is true for the majority of cases: but it may happen in a particular case that it would be injurious, and therefore unreasonable, to restore goods held in trust; for instance, if they are claimed for the purpose of fighting against one's country. And this principle will be found to fail the more, according as we descend further into detail, e.g. if one were to say that goods held in trust should be restored with such and such a guarantee, or in such and such a way; because the greater the number of conditions added, the greater the number of ways in which the principle may fail, so that it be not right to restore or not to restore.

Consequently we must say that the natural law, as to general principles, is the same for all, both as to rectitude and as to knowledge. But as to certain matters of detail, which are conclusions, as it were, of those general principles, it is the same for all in the majority of cases, both as to rectitude and as to knowledge; and yet in some few cases it may fail, both as to rectitude, by reason of certain obstacles (just as natures subject to generation and corruption fail in some few cases on account of some obstacle), and as to knowledge, since in some the reason is perverted by passion, or evil habit, or an evil disposition of nature; thus formerly, theft, although it is expressly contrary to the natural law, was not considered wrong among the Germans, as Julius Caesar relates (*De Bello Gall.* vi).

Reply to Objection 1. The meaning of the sentence quoted is not that whatever is contained in the Law and the Gospel belongs to the natural law, since they contain many things that are above nature; but that whatever belongs to the natural law is fully contained in them. Wherefore Gratian, after saying that "the natural law is what is contained in the Law and the Gospel," adds at once, by way of example, "by which everyone is commanded to do to others as he would be done by."

Reply to Objection 2. The saying of the Philosopher is to be understood of things that are naturally just, not as general principles, but as conclusions drawn from them, having rectitude in the majority of cases, but failing in a few.

Reply to Objection 3. As, in man, reason rules and commands the other powers, so all the natural inclinations belonging to the other powers must needs be directed according to reason. Wherefore it is universally right for all men, that all their inclinations should be directed according to reason.

Article 5. Whether the natural law can be changed?

Objection 1. It would seem that the natural law can be changed. Because on Sirach 17:9, "He gave them instructions, and the law of life," the gloss says: "He wished the law of the letter to be

written, in order to correct the law of nature." But that which is corrected is changed. Therefore the natural law can be changed.

Objection 2. Further, the slaying of the innocent, adultery, and theft are against the natural law. But we find these things changed by God: as when God commanded Abraham to slay his innocent son (Genesis 22:2); and when he ordered the Jews to borrow and purloin the vessels of the Egyptians (Exodus 12:35); and when He commanded Osee to take to himself "a wife of fornications" (Hosea 1:2). Therefore the natural law can be changed.

Objection 3. Further, Isidore says (Etym. 5:4) that "the possession of all things in common, and universal freedom, are matters of natural law." But these things are seen to be changed by human laws. Therefore it seems that the natural law is subject to change.

On the contrary, It is said in the Decretals (Dist. v): "The natural law dates from the creation of the rational creature. It does not vary according to time, but remains unchangeable."

I answer that, A change in the natural law may be understood in two ways. First, by way of addition. In this sense nothing hinders the natural law from being changed: since many things for the benefit of human life have been added over and above the natural law, both by the Divine law and by human laws.

Secondly, a change in the natural law may be understood by way of subtraction, so that what previously was according to the natural law, ceases to be so. In this sense, the natural law is altogether unchangeable in its first principles: but in its secondary principles, which, as we have said (Article 4), are certain detailed proximate conclusions drawn from the first principles, the natural law is not changed so that what it prescribes be not right in most cases. But it may be changed in some particular cases of rare occurrence, through some special causes hindering the observance of such precepts, as stated above (Article 4).

Reply to Objection 1. The written law is said to be given for the correction of the natural law, either because it supplies what was wanting to the natural law; or because the natural law was perverted in the hearts of some men, as to certain matters, so that they esteemed those things good which are naturally evil; which perversion stood in need of correction.

Reply to Objection 2. All men alike, both guilty and innocent, die the death of nature: which death of nature is inflicted by the power of God on account of original sin, according to 1 Samuel 2:6: "The Lord killeth and maketh alive." Consequently, by the command of God, death can be inflicted on any man, guilty or innocent, without any injustice whatever. In like manner adultery is intercourse with another's wife; who is allotted to him by the law emanating from God. Consequently intercourse with any woman, by the command of God, is neither adultery nor fornication. The same applies to theft, which is the taking of another's property. For whatever is taken by the command of God, to Whom all things belong, is not taken against the will of its owner, whereas it is in this that theft consists. Nor is it only in human things, that whatever is commanded by God is right; but also in natural things, whatever is done by God, is, in some way, natural, as stated in the I:105:6 ad 1.

Reply to Objection 3. A thing is said to belong to the natural law in two ways. First, because nature inclines thereto: e.g. that one should not do harm to another. Secondly, because nature did not bring in the contrary: thus we might say that for man to be naked is of the natural law, because nature did not give him clothes, but art invented them. In this sense, "the possession of all things in common and universal freedom" are said to be of the natural law, because, to wit, the distinction of possessions and slavery were not brought in by nature, but devised by human reason for the benefit of human life. Accordingly the law of nature was not changed in this respect, except by

addition.

Article 6. Whether the law of nature can be abolished from the heart of man?

Objection 1. It would seem that the natural law can be abolished from the heart of man. Because on Romans 2:14, “When the Gentiles who have not the law,” etc. a gloss says that “the law of righteousness, which sin had blotted out, is graven on the heart of man when he is restored by grace.” But the law of righteousness is the law of nature. Therefore the law of nature can be blotted out.

Objection 2. Further, the law of grace is more efficacious than the law of nature. But the law of grace is blotted out by sin. Much more therefore can the law of nature be blotted out.

Objection 3. Further, that which is established by law is made just. But many things are enacted by men, which are contrary to the law of nature. Therefore the law of nature can be abolished from the heart of man.

On the contrary, Augustine says (Confess. ii): “Thy law is written in the hearts of men, which iniquity itself effaces not.” But the law which is written in men’s hearts is the natural law. Therefore the natural law cannot be blotted out.

I answer that, As stated above (Article 4, Article 5), there belong to the natural law, first, certain most general precepts, that are known to all; and secondly, certain secondary and more detailed precepts, which are, as it were, conclusions following closely from first principles. As to those general principles, the natural law, in the abstract, can nowise be blotted out from men’s hearts. But it is blotted out in the case of a particular action, in so far as reason is hindered from applying the general principle to a particular point of practice, on account of concupiscence or some other passion, as stated above (I-II:77:2). But as to the other, i.e. the secondary precepts, the natural law can be blotted out from the human heart, either by evil persuasions, just as in speculative matters errors occur in respect of necessary conclusions; or by vicious customs and corrupt habits, as among some men, theft, and even unnatural vices, as the Apostle states (Romans 1), were not esteemed sinful.

Reply to Objection 1. Sin blots out the law of nature in particular cases, not universally, except perchance in regard to the secondary precepts of the natural law, in the way stated above.

Reply to Objection 2. Although grace is more efficacious than nature, yet nature is more essential to man, and therefore more enduring.

Reply to Objection 3. This argument is true of the secondary precepts of the natural law, against which some legislators have framed certain enactments which are unjust.

Human Law

Human law (95) and its power (96) and mutability (97).

Question 95. Human law

1. Its utility
2. Its origin
3. Its quality
4. Its division

Article 1. Whether it was useful for laws to be framed by men?

Objection 1. It would seem that it was not useful for laws to be framed by men. Because the purpose of every law is that man be made good thereby, as stated above (I-II:92:1). But men are more to be induced to be good willingly by means of admonitions, than against their will, by means of laws. Therefore there was no need to frame laws.

Objection 2. Further, as the Philosopher says (Ethic. v, 4), “men have recourse to a judge as to animate justice.” But animate justice is better than inanimate justice, which contained in laws. Therefore it would have been better for the execution of justice to be entrusted to the decision of judges, than to frame laws in addition.

Objection 3. Further, every law is framed for the direction of human actions, as is evident from what has been stated above (Question 90, Articles 1 and 2). But since human actions are about singulars, which are infinite in number, matter pertaining to the direction of human actions cannot be taken into sufficient consideration except by a wise man, who looks into each one of them. Therefore it would have been better for human acts to be directed by the judgment of wise men, than by the framing of laws. Therefore there was no need of human laws.

On the contrary, Isidore says (Etym. v, 20): “Laws were made that in fear thereof human audacity might be held in check, that innocence might be safeguarded in the midst of wickedness, and that the dread of punishment might prevent the wicked from doing harm.” But these things are most necessary to mankind. Therefore it was necessary that human laws should be made.

I answer that, As stated above (I-II:63:1; I-II:94:3), man has a natural aptitude for virtue; but the perfection of virtue must be acquired by man by means of some kind of training. Thus we observe that man is helped by industry in his necessities, for instance, in food and clothing. Certain beginnings of these he has from nature, viz. his reason and his hands; but he has not the full complement, as other animals have, to whom nature has given sufficiency of clothing and food. Now it is difficult to see how man could suffice for himself in the matter of this training: since the perfection of virtue consists chiefly in withdrawing man from undue pleasures, to which above all man is inclined, and especially the young, who are more capable of being trained. Consequently a man needs to receive this training from another, whereby to arrive at the perfection of virtue. And as to those young people who are inclined to acts of virtue, by their good natural disposition, or by custom, or rather by the gift of God, paternal training suffices, which is by admonitions. But since some are found to be depraved, and prone to vice, and not easily amenable to words, it was necessary for such to be restrained from evil by force and fear, in order that, at least, they might desist from evil-doing, and leave others in peace, and that they themselves, by being habituated in this way, might be brought to do willingly what hitherto they did from fear, and thus become

virtuous. Now this kind of training, which compels through fear of punishment, is the discipline of laws. Therefore in order that man might have peace and virtue, it was necessary for laws to be framed: for, as the Philosopher says (Polit. i, 2), "as man is the most noble of animals if he be perfect in virtue, so is he the lowest of all, if he be severed from law and righteousness"; because man can use his reason to devise means of satisfying his lusts and evil passions, which other animals are unable to do.

Reply to Objection 1. Men who are well disposed are led willingly to virtue by being admonished better than by coercion: but men who are evilly disposed are not led to virtue unless they are compelled.

Reply to Objection 2. As the Philosopher says (Rhet. i, 1), "it is better that all things be regulated by law, than left to be decided by judges": and this for three reasons. First, because it is easier to find a few wise men competent to frame right laws, than to find the many who would be necessary to judge aright of each single case. Secondly, because those who make laws consider long beforehand what laws to make; whereas judgment on each single case has to be pronounced as soon as it arises: and it is easier for man to see what is right, by taking many instances into consideration, than by considering one solitary fact. Thirdly, because lawgivers judge in the abstract and of future events; whereas those who sit in judgment of things present, towards which they are affected by love, hatred, or some kind of cupidity; wherefore their judgment is perverted.

Since then the animated justice of the judge is not found in every man, and since it can be deflected, therefore it was necessary, whenever possible, for the law to determine how to judge, and for very few matters to be left to the decision of men.

Reply to Objection 3. Certain individual facts which cannot be covered by the law "have necessarily to be committed to judges," as the Philosopher says in the same passage: for instance, "concerning something that has happened or not happened," and the like.

Article 2. Whether every human law is derived from the natural law?

Objection 1. It would seem that not every human law is derived from the natural law. For the Philosopher says (Ethic. v, 7) that "the legal just is that which originally was a matter of indifference." But those things which arise from the natural law are not matters of indifference. Therefore the enactments of human laws are not derived from the natural law.

Objection 2. Further, positive law is contrasted with natural law, as stated by Isidore (Etym. v, 4) and the Philosopher (Ethic. v, 7). But those things which flow as conclusions from the general principles of the natural law belong to the natural law, as stated above (I-II:94:4). Therefore that which is established by human law does not belong to the natural law.

Objection 3. Further, the law of nature is the same for all; since the Philosopher says (Ethic. v, 7) that "the natural just is that which is equally valid everywhere." If therefore human laws were derived from the natural law, it would follow that they too are the same for all: which is clearly false.

Objection 4. Further, it is possible to give a reason for things which are derived from the natural law. But "it is not possible to give the reason for all the legal enactments of the lawgivers," as the jurist says [Pandect. Justin. lib. i, ff. tit. iii, v; De Leg. et Senat.]. Therefore not all human laws are derived from the natural law.

On the contrary, Tully says (Rhet. ii): "Things which emanated from nature and were approved by custom, were sanctioned by fear and reverence for the laws."

I answer that, As Augustine says (De Lib. Arb. i, 5) "that which is not just seems to be no law

at all”: wherefore the force of a law depends on the extent of its justice. Now in human affairs a thing is said to be just, from being right, according to the rule of reason. But the first rule of reason is the law of nature, as is clear from what has been stated above (I-II:91:2 ad 2). Consequently every human law has just so much of the nature of law, as it is derived from the law of nature. But if in any point it deflects from the law of nature, it is no longer a law but a perversion of law.

But it must be noted that something may be derived from the natural law in two ways: first, as a conclusion from premises, secondly, by way of determination of certain generalities. The first way is like to that by which, in sciences, demonstrated conclusions are drawn from the principles: while the second mode is likened to that whereby, in the arts, general forms are particularized as to details: thus the craftsman needs to determine the general form of a house to some particular shape. Some things are therefore derived from the general principles of the natural law, by way of conclusions; e.g. that “one must not kill” may be derived as a conclusion from the principle that “one should do harm to no man”: while some are derived therefrom by way of determination; e.g. the law of nature has it that the evil-doer should be punished; but that he be punished in this or that way, is a determination of the law of nature.

Accordingly both modes of derivation are found in the human law. But those things which are derived in the first way, are contained in human law not as emanating therefrom exclusively, but have some force from the natural law also. But those things which are derived in the second way, have no other force than that of human law.

Reply to Objection 1. The Philosopher is speaking of those enactments which are by way of determination or specification of the precepts of the natural law.

Reply to Objection 2. This argument avails for those things that are derived from the natural law, by way of conclusions.

Reply to Objection 3. The general principles of the natural law cannot be applied to all men in the same way on account of the great variety of human affairs: and hence arises the diversity of positive laws among various people.

Reply to Objection 4. These words of the Jurist are to be understood as referring to decisions of rulers in determining particular points of the natural law: on which determinations the judgment of expert and prudent men is based as on its principles; in so far, to wit, as they see at once what is the best thing to decide.

Hence the Philosopher says (Ethic. vi, 11) that in such matters, “we ought to pay as much attention to the undemonstrated sayings and opinions of persons who surpass us in experience, age and prudence, as to their demonstrations.”

Article 3. Whether Isidore’s description of the quality of positive law is appropriate?

Objection 1. It would seem that Isidore’s description of the quality of positive law is not appropriate, when he says (Etym. v, 21): “Law shall be virtuous, just, possible to nature, according to the custom of the country, suitable to place and time, necessary, useful; clearly expressed, lest by its obscurity it lead to misunderstanding; framed for no private benefit, but for the common good.” Because he had previously expressed the quality of law in three conditions, saying that “law is anything founded on reason, provided that it foster religion, be helpful to discipline, and further the common weal.” Therefore it was needless to add any further conditions to these.

Objection 2. Further, Justice is included in honesty, as Tully says (De Offic. vii). Therefore after saying “honest” it was superfluous to add “just.”

Objection 3. Further, written law is condivided with custom, according to Isidore (Etym. ii, 10).

Therefore it should not be stated in the definition of law that it is “according to the custom of the country.”

Objection 4. Further, a thing may be necessary in two ways. It may be necessary simply, because it cannot be otherwise: and that which is necessary in this way, is not subject to human judgment, wherefore human law is not concerned with necessity of this kind. Again a thing may be necessary for an end: and this necessity is the same as usefulness. Therefore it is superfluous to say both “necessary” and “useful.”

On the contrary, stands the authority of Isidore.

I answer that, Whenever a thing is for an end, its form must be determined proportionately to that end; as the form of a saw is such as to be suitable for cutting (Phys. ii, text. 88). Again, everything that is ruled and measured must have a form proportionate to its rule and measure. Now both these conditions are verified of human law: since it is both something ordained to an end; and is a rule or measure ruled or measured by a higher measure. And this higher measure is twofold, viz. the Divine law and the natural law, as explained above (Article 2; I-II:93:3). Now the end of human law is to be useful to man, as the jurist states [Pandect. Justin. lib. xxv, ff., tit. iii; De Leg. et Senat.]. Wherefore Isidore in determining the nature of law, lays down, at first, three conditions; viz. that it “foster religion,” inasmuch as it is proportionate to the Divine law; that it be “helpful to discipline,” inasmuch as it is proportionate to the nature law; and that it “further the common weal,” inasmuch as it is proportionate to the utility of mankind.

All the other conditions mentioned by him are reduced to these three. For it is called virtuous because it fosters religion. And when he goes on to say that it should be “just, possible to nature, according to the customs of the country, adapted to place and time,” he implies that it should be helpful to discipline. For human discipline depends on first on the order of reason, to which he refers by saying “just”: secondly, it depends on the ability of the agent; because discipline should be adapted to each one according to his ability, taking also into account the ability of nature (for the same burdens should be not laid on children as adults); and should be according to human customs; since man cannot live alone in society, paying no heed to others: thirdly, it depends on certain circumstances, in respect of which he says, “adapted to place and time.” The remaining words, “necessary, useful,” etc. mean that law should further the common weal: so that “necessity” refers to the removal of evils; “usefulness” to the attainment of good; “clearness of expression,” to the need of preventing any harm ensuing from the law itself. And since, as stated above (I-II:90:2), law is ordained to the common good, this is expressed in the last part of the description.

This suffices for the Replies to the Objections.

Article 4. Whether Isidore’s division of human laws is appropriate?

Objection 1. It would seem that Isidore wrongly divided human statutes or human law (Etym. v, 4, seqq.). For under this law he includes the “law of nations,” so called, because, as he says, “nearly all nations use it.” But as he says, “natural law is that which is common to all nations.” Therefore the law of nations is not contained under positive human law, but rather under natural law.

Objection 2. Further, those laws which have the same force, seem to differ not formally but only materially. But “statutes, decrees of the commonalty, senatorial decrees,” and the like which he mentions (Etym. v, 9), all have the same force. Therefore they do not differ, except materially. But art takes no notice of such a distinction: since it may go on to infinity. Therefore this division of human laws is not appropriate.

Objection 3. Further, just as, in the state, there are princes, priests and soldiers, so are there other human offices. Therefore it seems that, as this division includes “military law,” and “public law,” referring to priests and magistrates; so also it should include other laws pertaining to other offices of the state.

Objection 4. Further, those things that are accidental should be passed over. But it is accidental to law that it be framed by this or that man. Therefore it is unreasonable to divide laws according to the names of lawgivers, so that one be called the “Cornelian” law, another the “Falcidian” law, etc.

On the contrary, The authority of Isidore (Objection 1) suffices.

I answer that, A thing can of itself be divided in respect of something contained in the notion of that thing. Thus a soul either rational or irrational is contained in the notion of animal: and therefore animal is divided properly and of itself in respect of its being rational or irrational; but not in the point of its being white or black, which are entirely beside the notion of animal. Now, in the notion of human law, many things are contained, in respect of any of which human law can be divided properly and of itself. For in the first place it belongs to the notion of human law, to be derived from the law of nature, as explained above (Article 2). In this respect positive law is divided into the “law of nations” and “civil law”, according to the two ways in which something may be derived from the law of nature, as stated above (Article 2). Because, to the law of nations belong those things which are derived from the law of nature, as conclusions from premises, e.g. just buyings and sellings, and the like, without which men cannot live together, which is a point of the law of nature, since man is by nature a social animal, as is proved in *Polit.* i, 2. But those things which are derived from the law of nature by way of particular determination, belong to the civil law, according as each state decides on what is best for itself.

Secondly, it belongs to the notion of human law, to be ordained to the common good of the state. In this respect human law may be divided according to the different kinds of men who work in a special way for the common good: e.g. priests, by praying to God for the people; princes, by governing the people; soldiers, by fighting for the safety of the people. Wherefore certain special kinds of law are adapted to these men.

Thirdly, it belongs to the notion of human law, to be framed by that one who governs the community of the state, as shown above (I-II:90:3). In this respect, there are various human laws according to the various forms of government. Of these, according to the Philosopher (*Polit.* iii, 10) one is “monarchy,” i.e. when the state is governed by one; and then we have “Royal Ordinances.” Another form is “aristocracy,” i.e. government by the best men or men of highest rank; and then we have the “Authoritative legal opinions” [*Responsa Prudentum*] and “Decrees of the Senate” [*Senatus consulta*]. Another form is “oligarchy,” i.e. government by a few rich and powerful men; and then we have “Praetorian,” also called “Honorary,” law. Another form of government is that of the people, which is called “democracy,” and there we have “Decrees of the commonalty” [*Plebiscita*]. There is also tyrannical government, which is altogether corrupt, which, therefore, has no corresponding law. Finally, there is a form of government made up of all these, and which is the best: and in this respect we have law sanctioned by the “Lords and Commons,” as stated by Isidore (*Etym.* v, 4, seqq.).

Fourthly, it belongs to the notion of human law to direct human actions. In this respect, according to the various matters of which the law treats, there are various kinds of laws, which are sometimes named after their authors: thus we have the “Lex Julia” about adultery, the “Lex Cornelia” concerning assassins, and so on, differentiated in this way, not on account of the authors, but on account of the matters to which they refer.

Reply to Objection 1. The law of nations is indeed, in some way, natural to man, in so far as he is a reasonable being, because it is derived from the natural law by way of a conclusion that is not very remote from its premises. Wherefore men easily agreed thereto. Nevertheless it is distinct from the natural law, especially it is distinct from the natural law which is common to all animals.

The Replies to the other Objections are evident from what has been said.

Question 96. The power of human law

1. Should human law be framed for the community?
2. Should human law repress all vices?
3. Is human law competent to direct all acts of virtue?
4. Does it bind man in conscience?
5. Are all men subject to human law?
6. May those who are under the law act beside the letter of the law?

Article 1. Whether human law should be framed for the community rather than for the individual?

Objection 1. It would seem that human law should be framed not for the community, but rather for the individual. For the Philosopher says (*Ethic.* v, 7) that “the legal just . . . includes all particular acts of legislation . . . and all those matters which are the subject of decrees,” which are also individual matters, since decrees are framed about individual actions. Therefore law is framed not only for the community, but also for the individual.

Objection 2. Further, law is the director of human acts, as stated above (Question 90, Articles 1 and 2). But human acts are about individual matters. Therefore human laws should be framed, not for the community, but rather for the individual.

Objection 3. Further, law is a rule and measure of human acts, as stated above (Question 90, Articles 1 and 2). But a measure should be most certain, as stated in *Metaph.* x. Since therefore in human acts no general proposition can be so certain as not to fail in some individual cases, it seems that laws should be framed not in general but for individual cases.

On the contrary, The jurist says (*Pandect. Justin. lib. i, tit. iii, art. ii; De legibus, etc.*) that “laws should be made to suit the majority of instances; and they are not framed according to what may possibly happen in an individual case.”

I answer that, Whatever is for an end should be proportionate to that end. Now the end of law is the common good; because, as Isidore says (*Etym.* v, 21) that “law should be framed, not for any private benefit, but for the common good of all the citizens.” Hence human laws should be proportionate to the common good. Now the common good comprises many things. Wherefore law should take account of many things, as to persons, as to matters, and as to times. Because the community of the state is composed of many persons; and its good is procured by many actions; nor is it established to endure for only a short time, but to last for all time by the citizens succeeding one another, as Augustine says (*De Civ. Dei* ii, 21; xxii, 6).

Reply to Objection 1. The Philosopher (*Ethic.* v, 7) divides the legal just, i.e. positive law, into three parts. For some things are laid down simply in a general way: and these are the general laws. Of these he says that “the legal is that which originally was a matter of indifference, but which, when enacted, is so no longer”: as the fixing of the ransom of a captive. Some things

affect the community in one respect, and individuals in another. These are called “privileges,” i.e. “private laws,” as it were, because they regard private persons, although their power extends to many matters; and in regard to these, he adds, “and further, all particular acts of legislation.” Other matters are legal, not through being laws, but through being applications of general laws to particular cases: such are decrees which have the force of law; and in regard to these, he adds “all matters subject to decrees.”

Reply to Objection 2. A principle of direction should be applicable to many; wherefore (Metaph. x, text. 4) the Philosopher says that all things belonging to one genus, are measured by one, which is the principle in that genus. For if there were as many rules or measures as there are things measured or ruled, they would cease to be of use, since their use consists in being applicable to many things. Hence law would be of no use, if it did not extend further than to one single act. Because the decrees than to one single act. Because the decrees of prudent men are made for the purpose of directing individual actions; whereas law is a general precept, as stated above (I-II:92:2 Objection 2).

Reply to Objection 3. “We must not seek the same degree of certainty in all things” (Ethic. i, 3). Consequently in contingent matters, such as natural and human things, it is enough for a thing to be certain, as being true in the greater number of instances, though at times and less frequently it fail.

Article 2. Whether it belongs to the human law to repress all vices?

Objection 1. It would seem that it belongs to human law to repress all vices. For Isidore says (Etym. v, 20) that “laws were made in order that, in fear thereof, man’s audacity might be held in check.” But it would not be held in check sufficiently, unless all evils were repressed by law. Therefore human laws should repress all evils.

Objection 2. Further, the intention of the lawgiver is to make the citizens virtuous. But a man cannot be virtuous unless he forbear from all kinds of vice. Therefore it belongs to human law to repress all vices.

Objection 3. Further, human law is derived from the natural law, as stated above (I-II:95:2). But all vices are contrary to the law of nature. Therefore human law should repress all vices.

On the contrary, We read in De Lib. Arb. i, 5: “It seems to me that the law which is written for the governing of the people rightly permits these things, and that Divine providence punishes them.” But Divine providence punishes nothing but vices. Therefore human law rightly allows some vices, by not repressing them.

I answer that, As stated above (Question 90, Articles 1 and 2), law is framed as a rule or measure of human acts. Now a measure should be homogeneous with that which it measures, as stated in Metaph. x, text. 3,4, since different things are measured by different measures. Wherefore laws imposed on men should also be in keeping with their condition, for, as Isidore says (Etym. v, 21), law should be “possible both according to nature, and according to the customs of the country.” Now possibility or faculty of action is due to an interior habit or disposition: since the same thing is not possible to one who has not a virtuous habit, as is possible to one who has. Thus the same is not possible to a child as to a full-grown man: for which reason the law for children is not the same as for adults, since many things are permitted to children, which in an adult are punished by law or at any rate are open to blame. In like manner many things are permissible to men not perfect in virtue, which would be intolerable in a virtuous man.

Now human law is framed for a number of human beings, the majority of whom are not perfect

in virtue. Wherefore human laws do not forbid all vices, from which the virtuous abstain, but only the more grievous vices, from which it is possible for the majority to abstain; and chiefly those that are to the hurt of others, without the prohibition of which human society could not be maintained: thus human law prohibits murder, theft and such like.

Reply to Objection 1. Audacity seems to refer to the assailing of others. Consequently it belongs to those sins chiefly whereby one's neighbor is injured: and these sins are forbidden by human law, as stated.

Reply to Objection 2. The purpose of human law is to lead men to virtue, not suddenly, but gradually. Wherefore it does not lay upon the multitude of imperfect men the burdens of those who are already virtuous, viz. that they should abstain from all evil. Otherwise these imperfect ones, being unable to bear such precepts, would break out into yet greater evils: thus it is written (Proverbs 30:33): "He that violently bloweth his nose, bringeth out blood"; and (Matthew 9:17) that if "new wine," i.e. precepts of a perfect life, "is put into old bottles," i.e. into imperfect men, "the bottles break, and the wine runneth out," i.e. the precepts are despised, and those men, from contempt, break into evils worse still.

Reply to Objection 3. The natural law is a participation in us of the eternal law: while human law falls short of the eternal law. Now Augustine says (De Lib. Arb. i, 5): "The law which is framed for the government of states, allows and leaves unpunished many things that are punished by Divine providence. Nor, if this law does not attempt to do everything, is this a reason why it should be blamed for what it does." Wherefore, too, human law does not prohibit everything that is forbidden by the natural law.

Article 3. Whether human law prescribes acts of all the virtues?

Objection 1. It would seem that human law does not prescribe acts of all the virtues. For vicious acts are contrary to acts of virtue. But human law does not prohibit all vices, as stated above (Article 2). Therefore neither does it prescribe all acts of virtue.

Objection 2. Further, a virtuous act proceeds from a virtue. But virtue is the end of law; so that whatever is from a virtue, cannot come under a precept of law. Therefore human law does not prescribe all acts of virtue.

Objection 3. Further, law is ordained to the common good, as stated above (I-II:90:2). But some acts of virtue are ordained, not to the common good, but to private good. Therefore the law does not prescribe all acts of virtue.

On the contrary, The Philosopher says (Ethic. v, 1) that the law "prescribes the performance of the acts of a brave man . . . and the acts of the temperate man . . . and the acts of the meek man: and in like manner as regards the other virtues and vices, prescribing the former, forbidding the latter."

I answer that, The species of virtues are distinguished by their objects, as explained above (I-II:54:2; I-II:60:1; I-II:62:2). Now all the objects of virtues can be referred either to the private good of an individual, or to the common good of the multitude: thus matters of fortitude may be achieved either for the safety of the state, or for upholding the rights of a friend, and in like manner with the other virtues. But law, as stated above (I-II:90:2) is ordained to the common good. Wherefore there is no virtue whose acts cannot be prescribed by the law. Nevertheless human law does not prescribe concerning all the acts of every virtue: but only in regard to those that are ordainable to the common good—either immediately, as when certain things are done directly for the common good—or mediately, as when a lawgiver prescribes certain things pertaining to good

order, whereby the citizens are directed in the upholding of the common good of justice and peace.

Reply to Objection 1. Human law does not forbid all vicious acts, by the obligation of a precept, as neither does it prescribe all acts of virtue. But it forbids certain acts of each vice, just as it prescribes some acts of each virtue.

Reply to Objection 2. An act is said to be an act of virtue in two ways. First, from the fact that a man does something virtuous; thus the act of justice is to do what is right, and an act of fortitude is to do brave things: and in this way law prescribes certain acts of virtue. Secondly an act of virtue is when a man does a virtuous thing in a way in which a virtuous man does it. Such an act always proceeds from virtue: and it does not come under a precept of law, but is the end at which every lawgiver aims.

Reply to Objection 3. There is no virtue whose act is not ordainable to the common good, as stated above, either mediately or immediately.

Article 4. Whether human law binds a man in conscience?

Objection 1. It would seem that human law does not bind man in conscience. For an inferior power has no jurisdiction in a court of higher power. But the power of man, which frames human law, is beneath the Divine power. Therefore human law cannot impose its precept in a Divine court, such as is the court of conscience.

Objection 2. Further, the judgment of conscience depends chiefly on the commandments of God. But sometimes God's commandments are made void by human laws, according to Matthew 15:6: "You have made void the commandment of God for your tradition." Therefore human law does not bind a man in conscience.

Objection 3. Further, human laws often bring loss of character and injury on man, according to Isaiah 10:1 et seqq.: "Woe to them that make wicked laws, and when they write, write injustice; to oppress the poor in judgment, and do violence to the cause of the humble of My people." But it is lawful for anyone to avoid oppression and violence. Therefore human laws do not bind man in conscience.

On the contrary, It is written (1 Peter 2:19): "This is thankworthy, if for conscience . . . a man endure sorrows, suffering wrongfully."

I answer that, Laws framed by man are either just or unjust. If they be just, they have the power of binding in conscience, from the eternal law whence they are derived, according to Proverbs 8:15: "By Me kings reign, and lawgivers decree just things." Now laws are said to be just, both from the end, when, to wit, they are ordained to the common good—and from their author, that is to say, when the law that is made does not exceed the power of the lawgiver—and from their form, when, to wit, burdens are laid on the subjects, according to an equality of proportion and with a view to the common good. For, since one man is a part of the community, each man in all that he is and has, belongs to the community; just as a part, in all that it is, belongs to the whole; wherefore nature inflicts a loss on the part, in order to save the whole: so that on this account, such laws as these, which impose proportionate burdens, are just and binding in conscience, and are legal laws.

On the other hand laws may be unjust in two ways: first, by being contrary to human good, through being opposed to the things mentioned above—either in respect of the end, as when an authority imposes on his subjects burdensome laws, conducive, not to the common good, but rather to his own cupidity or vainglory—or in respect of the author, as when a man makes a law that goes beyond the power committed to him—or in respect of the form, as when burdens are imposed unequally on the community, although with a view to the common good. The like are acts

of violence rather than laws; because, as Augustine says (De Lib. Arb. i, 5), “a law that is not just, seems to be no law at all.” Wherefore such laws do not bind in conscience, except perhaps in order to avoid scandal or disturbance, for which cause a man should even yield his right, according to Matthew 5:40-41: “If a man . . . take away thy coat, let go thy cloak also unto him; and whosoever will force thee one mile, go with him other two.”

Secondly, laws may be unjust through being opposed to the Divine good: such are the laws of tyrants inducing to idolatry, or to anything else contrary to the Divine law: and laws of this kind must nowise be observed, because, as stated in Acts 5:29, “we ought to obey God rather than man.”

Reply to Objection 1. As the Apostle says (Romans 13:1-2), all human power is from God . . . “therefore he that resisteth the power,” in matters that are within its scope, “resisteth the ordinance of God”; so that he becomes guilty according to his conscience.

Reply to Objection 2. This argument is true of laws that are contrary to the commandments of God, which is beyond the scope of (human) power. Wherefore in such matters human law should not be obeyed.

Reply to Objection 3. This argument is true of a law that inflicts unjust hurt on its subjects. The power that man holds from God does not extend to this: wherefore neither in such matters is man bound to obey the law, provided he avoid giving scandal or inflicting a more grievous hurt.

Article 5. Whether all are subject to the law?

Objection 1. It would seem that not all are subject to the law. For those alone are subject to a law for whom a law is made. But the Apostle says (1 Timothy 1:9): “The law is not made for the just man.” Therefore the just are not subject to the law.

Objection 2. Further, Pope Urban says [Decretals. caus. xix, qu. 2]: “He that is guided by a private law need not for any reason be bound by the public law.” Now all spiritual men are led by the private law of the Holy Ghost, for they are the sons of God, of whom it is said (Romans 8:14): “Whosoever are led by the Spirit of God, they are the sons of God.” Therefore not all men are subject to human law.

Objection 3. Further, the jurist says [Pandect. Justin. i, ff., tit. 3, De Leg. et Senat.] that “the sovereign is exempt from the laws.” But he that is exempt from the law is not bound thereby. Therefore not all are subject to the law.

On the contrary, The Apostle says (Romans 13:1): “Let every soul be subject to the higher powers.” But subjection to a power seems to imply subjection to the laws framed by that power. Therefore all men should be subject to human law.

I answer that, As stated above (Question 90, Articles 1 and 2; Article 3, Reply to Objection 2), the notion of law contains two things: first, that it is a rule of human acts; secondly, that it has coercive power. Wherefore a man may be subject to law in two ways. First, as the regulated is subject to the regulator: and, in this way, whoever is subject to a power, is subject to the law framed by that power. But it may happen in two ways that one is not subject to a power. In one way, by being altogether free from its authority: hence the subjects of one city or kingdom are not bound by the laws of the sovereign of another city or kingdom, since they are not subject to his authority. In another way, by being under a yet higher law; thus the subject of a proconsul should be ruled by his command, but not in those matters in which the subject receives his orders from the emperor: for in these matters, he is not bound by the mandate of the lower authority, since he is directed by that of a higher. In this way, one who is simply subject to a law, may not be a subject thereto in certain matters, in respect of which he is ruled by a higher law.

Secondly, a man is said to be subject to a law as the coerced is subject to the coercer. In this way the virtuous and righteous are not subject to the law, but only the wicked. Because coercion and violence are contrary to the will: but the will of the good is in harmony with the law, whereas the will of the wicked is discordant from it. Wherefore in this sense the good are not subject to the law, but only the wicked.

Reply to Objection 1. This argument is true of subjection by way of coercion: for, in this way, “the law is not made for the just men”: because “they are a law to themselves,” since they “show the work of the law written in their hearts,” as the Apostle says (Romans 2:14-15). Consequently the law does not enforce itself upon them as it does on the wicked.

Reply to Objection 2. The law of the Holy Ghost is above all law framed by man: and therefore spiritual men, in so far as they are led by the law of the Holy Ghost, are not subject to the law in those matters that are inconsistent with the guidance of the Holy Ghost. Nevertheless the very fact that spiritual men are subject to law, is due to the leading of the Holy Ghost, according to 1 Peter 2:13: “Be ye subject . . . to every human creature for God’s sake.”

Reply to Objection 3. The sovereign is said to be “exempt from the law,” as to its coercive power; since, properly speaking, no man is coerced by himself, and law has no coercive power save from the authority of the sovereign. Thus then is the sovereign said to be exempt from the law, because none is competent to pass sentence on him, if he acts against the law. Wherefore on Psalm 50:6: “To Thee only have I sinned,” a gloss says that “there is no man who can judge the deeds of a king.” But as to the directive force of law, the sovereign is subject to the law by his own will, according to the statement (Extra, De Constit. cap. Cum omnes) that “whatever law a man makes for another, he should keep himself. And a wise authority [Dionysius Cato, Dist. de Moribus] says: ‘Obey the law that thou makest thyself.’” Moreover the Lord reproaches those who “say and do not”; and who “bind heavy burdens and lay them on men’s shoulders, but with a finger of their own they will not move them” (Matthew 23:3-4). Hence, in the judgment of God, the sovereign is not exempt from the law, as to its directive force; but he should fulfil it to his own free-will and not of constraint. Again the sovereign is above the law, in so far as, when it is expedient, he can change the law, and dispense in it according to time and place.

Article 6. Whether he who is under a law may act beside the letter of the law?

Objection 1. It seems that he who is subject to a law may not act beside the letter of the law. For Augustine says (De Vera Relig. 31): “Although men judge about temporal laws when they make them, yet when once they are made they must pass judgment not on them, but according to them.” But if anyone disregard the letter of the law, saying that he observes the intention of the lawgiver, he seems to pass judgment on the law. Therefore it is not right for one who is under the law to disregard the letter of the law, in order to observe the intention of the lawgiver.

Objection 2. Further, he alone is competent to interpret the law who can make the law. But those who are subject to the law cannot make the law. Therefore they have no right to interpret the intention of the lawgiver, but should always act according to the letter of the law.

Objection 3. Further, every wise man knows how to explain his intention by words. But those who framed the laws should be reckoned wise: for Wisdom says (Proverbs 8:15): “By Me kings reign, and lawgivers decree just things.” Therefore we should not judge of the intention of the lawgiver otherwise than by the words of the law.

On the contrary, Hilary says (De Trin. iv): “The meaning of what is said is according to the motive for saying it: because things are not subject to speech, but speech to things.” Therefore we

should take account of the motive of the lawgiver, rather than of his very words.

I answer that, As stated above (Article 4), every law is directed to the common weal of men, and derives the force and nature of law accordingly. Hence the jurist says [Pandect. Justin. lib. i, ff., tit. 3, De Leg. et Senat.]: “By no reason of law, or favor of equity, is it allowable for us to interpret harshly, and render burdensome, those useful measures which have been enacted for the welfare of man.” Now it happens often that the observance of some point of law conduces to the common weal in the majority of instances, and yet, in some cases, is very hurtful. Since then the lawgiver cannot have in view every single case, he shapes the law according to what happens most frequently, by directing his attention to the common good. Wherefore if a case arise wherein the observance of that law would be hurtful to the general welfare, it should not be observed. For instance, suppose that in a besieged city it be an established law that the gates of the city are to be kept closed, this is good for public welfare as a general rule: but, it were to happen that the enemy are in pursuit of certain citizens, who are defenders of the city, it would be a great loss to the city, if the gates were not opened to them: and so in that case the gates ought to be opened, contrary to the letter of the law, in order to maintain the common weal, which the lawgiver had in view.

Nevertheless it must be noted, that if the observance of the law according to the letter does not involve any sudden risk needing instant remedy, it is not competent for everyone to expound what is useful and what is not useful to the state: those alone can do this who are in authority, and who, on account of such like cases, have the power to dispense from the laws. If, however, the peril be so sudden as not to allow of the delay involved by referring the matter to authority, the mere necessity brings with it a dispensation, since necessity knows no law.

Reply to Objection 1. He who in a case of necessity acts beside the letter of the law, does not judge the law; but of a particular case in which he sees that the letter of the law is not to be observed.

Reply to Objection 2. He who follows the intention of the lawgiver, does not interpret the law simply; but in a case in which it is evident, by reason of the manifest harm, that the lawgiver intended otherwise. For if it be a matter of doubt, he must either act according to the letter of the law, or consult those in power.

Reply to Objection 3. No man is so wise as to be able to take account of every single case; wherefore he is not able sufficiently to express in words all those things that are suitable for the end he has in view. And even if a lawgiver were able to take all the cases into consideration, he ought not to mention them all, in order to avoid confusion: but should frame the law according to that which is of most common occurrence.

Question 97. Change in laws

1. Is human law changeable?
2. Should it be always changed, whenever anything better occurs?
3. Is it abolished by custom, and does custom obtain the force of law?
4. Should the application of human law be changed by dispensation of those in authority?

Article 1. Whether human law should be changed in any way?

Objection 1. It would seem that human law should not be changed in any way at all. Because human law is derived from the natural law, as stated above (I-II:95:2). But the natural law endures unchangeably. Therefore human law should also remain without any change.

Objection 2. Further, as the Philosopher says (*Ethic.* v, 5), a measure should be absolutely stable. But human law is the measure of human acts, as stated above (Question 90, Articles 1 and 2). Therefore it should remain without change.

Objection 3. Further, it is of the essence of law to be just and right, as stated above (I-II:95:2). But that which is right once is right always. Therefore that which is law once, should be always law.

On the contrary, Augustine says (*De Lib. Arb.* i, 6): “A temporal law, however just, may be justly changed in course of time.”

I answer that, As stated above (I-II:91:3), human law is a dictate of reason, whereby human acts are directed. Thus there may be two causes for the just change of human law: one on the part of reason; the other on the part of man whose acts are regulated by law. The cause on the part of reason is that it seems natural to human reason to advance gradually from the imperfect to the perfect. Hence, in speculative sciences, we see that the teaching of the early philosophers was imperfect, and that it was afterwards perfected by those who succeeded them. So also in practical matters: for those who first endeavored to discover something useful for the human community, not being able by themselves to take everything into consideration, set up certain institutions which were deficient in many ways; and these were changed by subsequent lawgivers who made institutions that might prove less frequently deficient in respect of the common weal.

On the part of man, whose acts are regulated by law, the law can be rightly changed on account of the changed condition of man, to whom different things are expedient according to the difference of his condition. An example is proposed by Augustine (*De Lib. Arb.* i, 6): “If the people have a sense of moderation and responsibility, and are most careful guardians of the common weal, it is right to enact a law allowing such a people to choose their own magistrates for the government of the commonwealth. But if, as time goes on, the same people become so corrupt as to sell their votes, and entrust the government to scoundrels and criminals; then the right of appointing their public officials is rightly forfeit to such a people, and the choice devolves to a few good men.”

Reply to Objection 1. The natural law is a participation of the eternal law, as stated above (I-II:91:2), and therefore endures without change, owing to the unchangeableness and perfection of the Divine Reason, the Author of nature. But the reason of man is changeable and imperfect: wherefore his law is subject to change. Moreover the natural law contains certain universal precepts, which are everlasting: whereas human law contains certain particular precepts, according to various emergencies.

Reply to Objection 2. A measure should be as enduring as possible. But nothing can be absolutely unchangeable in things that are subject to change. And therefore human law cannot be altogether unchangeable.

Reply to Objection 3. In corporal things, right is predicated absolutely: and therefore, as far as itself is concerned, always remains right. But right is predicated of law with reference to the common weal, to which one and the same thing is not always adapted, as stated above: wherefore rectitude of this kind is subject to change.

Article 2. Whether human law should always be changed, whenever something better occurs?

Objection 1. It would seem that human law should be changed, whenever something better occurs. Because human laws are devised by human reason, like other arts. But in the other arts, the tenets of former times give place to others, if something better occurs. Therefore the same should apply to human laws.

Objection 2. Further, by taking note of the past we can provide for the future. Now unless human laws had been changed when it was found possible to improve them, considerable inconvenience would have ensued; because the laws of old were crude in many points. Therefore it seems that laws should be changed, whenever anything better occurs to be enacted.

Objection 3. Further, human laws are enacted about single acts of man. But we cannot acquire perfect knowledge in singular matters, except by experience, which “requires time,” as stated in Ethic. ii. Therefore it seems that as time goes on it is possible for something better to occur for legislation.

On the contrary, It is stated in the Decretals (Dist. xii, 5): “It is absurd, and a detestable shame, that we should suffer those traditions to be changed which we have received from the fathers of old.”

I answer that, As stated above (Article 1), human law is rightly changed, in so far as such change is conducive to the common weal. But, to a certain extent, the mere change of law is of itself prejudicial to the common good: because custom avails much for the observance of laws, seeing that what is done contrary to general custom, even in slight matters, is looked upon as grave. Consequently, when a law is changed, the binding power of the law is diminished, in so far as custom is abolished. Wherefore human law should never be changed, unless, in some way or other, the common weal be compensated according to the extent of the harm done in this respect. Such compensation may arise either from some very great and every evident benefit conferred by the new enactment; or from the extreme urgency of the case, due to the fact that either the existing law is clearly unjust, or its observance extremely harmful. Wherefore the jurist says [Pandect. Justin. lib. i, ff., tit. 4, De Constit. Princip.] that “in establishing new laws, there should be evidence of the benefit to be derived, before departing from a law which has long been considered just.”

Reply to Objection 1. Rules of art derive their force from reason alone: and therefore whenever something better occurs, the rule followed hitherto should be changed. But “laws derive very great force from custom,” as the Philosopher states (Polit. ii, 5): consequently they should not be quickly changed.

Reply to Objection 2. This argument proves that laws ought to be changed: not in view of any improvement, but for the sake of a great benefit or in a case of great urgency, as stated above. This answer applies also to the Third Objection.

Article 3. Whether custom can obtain force of law?

Objection 1. It would seem that custom cannot obtain force of law, nor abolish a law. Because human law is derived from the natural law and from the Divine law, as stated above (I-II:93:3; I-II:95:2). But human custom cannot change either the law of nature or the Divine law. Therefore neither can it change human law.

Objection 2. Further, many evils cannot make one good. But he who first acted against the law, did evil. Therefore by multiplying such acts, nothing good is the result. Now a law is something good; since it is a rule of human acts. Therefore law is not abolished by custom, so that the mere custom should obtain force of law.

Objection 3. Further, the framing of laws belongs to those public men whose business it is to govern the community; wherefore private individuals cannot make laws. But custom grows by the acts of private individuals. Therefore custom cannot obtain force of law, so as to abolish the law.

On the contrary, Augustine says (Ep. ad Casulan. xxxvi): “The customs of God’s people and the institutions of our ancestors are to be considered as laws. And those who throw contempt on the customs of the Church ought to be punished as those who disobey the law of God.”

I answer that, All law proceeds from the reason and will of the lawgiver; the Divine and natural laws from the reasonable will of God; the human law from the will of man, regulated by reason. Now just as human reason and will, in practical matters, may be made manifest by speech, so may they be made known by deeds: since seemingly a man chooses as good that which he carries into execution. But it is evident that by human speech, law can be both changed and expounded, in so far as it manifests the interior movement and thought of human reason. Wherefore by actions also, especially if they be repeated, so as to make a custom, law can be changed and expounded; and also something can be established which obtains force of law, in so far as by repeated external actions, the inward movement of the will, and concepts of reason are most effectually declared; for when a thing is done again and again, it seems to proceed from a deliberate judgment of reason. Accordingly, custom has the force of a law, abolishes law, and is the interpreter of law.

Reply to Objection 1. The natural and Divine laws proceed from the Divine will, as stated above. Wherefore they cannot be changed by a custom proceeding from the will of man, but only by Divine authority. Hence it is that no custom can prevail over the Divine or natural laws: for Isidore says (Synon. ii, 16): “Let custom yield to authority: evil customs should be eradicated by law and reason.”

Reply to Objection 2. As stated above (I-II:96:6), human laws fail in some cases: wherefore it is possible sometimes to act beside the law; namely, in a case where the law fails; yet the act will not be evil. And when such cases are multiplied, by reason of some change in man, then custom shows that the law is no longer useful: just as it might be declared by the verbal promulgation of a law to the contrary. If, however, the same reason remains, for which the law was useful hitherto, then it is not the custom that prevails against the law, but the law that overcomes the custom: unless perhaps the sole reason for the law seeming useless, be that it is not “possible according to the custom of the country” [I-II:95:3], which has been stated to be one of the conditions of law. For it is not easy to set aside the custom of a whole people.

Reply to Objection 3. The people among whom a custom is introduced may be of two conditions. For if they are free, and able to make their own laws, the consent of the whole people expressed by a custom counts far more in favor of a particular observance, than does the authority of the sovereign, who has not the power to frame laws, except as representing the people. Wherefore although each individual cannot make laws, yet the whole people can. If however the people have not the free power to make their own laws, or to abolish a law made by a higher authority; nevertheless with such a people a prevailing custom obtains force of law, in so far as it is tolerated by those to whom it belongs to make laws for that people: because by the very fact that they tolerate it they seem to approve of that which is introduced by custom.

Article 4. Whether the rulers of the people can dispense from human laws?

Objection 1. It would seem that the rulers of the people cannot dispense from human laws. For the law is established for the “common weal,” as Isidore says (Etym. v, 21). But the common good should not be set aside for the private convenience of an individual: because, as the Philosopher

says (Ethic. i, 2), "the good of the nation is more godlike than the good of one man." Therefore it seems that a man should not be dispensed from acting in compliance with the general law.

Objection 2. Further, those who are placed over others are commanded as follows (Deuteronomy 1:17): "You shall hear the little as well as the great; neither shall you respect any man's person, because it is the judgment of God." But to allow one man to do that which is equally forbidden to all, seems to be respect of persons. Therefore the rulers of a community cannot grant such dispensations, since this is against a precept of the Divine law.

Objection 3. Further, human law, in order to be just, should accord with the natural and Divine laws: else it would not "foster religion," nor be "helpful to discipline," which is requisite to the nature of law, as laid down by Isidore (Etym. v, 3). But no man can dispense from the Divine and natural laws. Neither, therefore, can he dispense from the human law.

On the contrary, The Apostle says (1 Corinthians 9:17): "A dispensation is committed to me."

I answer that, Dispensation, properly speaking, denotes a measuring out to individuals of some common goods: thus the head of a household is called a dispenser, because to each member of the household he distributes work and necessities of life in due weight and measure. Accordingly in every community a man is said to dispense, from the very fact that he directs how some general precept is to be fulfilled by each individual. Now it happens at times that a precept, which is conducive to the common weal as a general rule, is not good for a particular individual, or in some particular case, either because it would hinder some greater good, or because it would be the occasion of some evil, as explained above (I-II:96:6). But it would be dangerous to leave this to the discretion of each individual, except perhaps by reason of an evident and sudden emergency, as stated above (I-II:96:6). Consequently he who is placed over a community is empowered to dispense in a human law that rests upon his authority, so that, when the law fails in its application to persons or circumstances, he may allow the precept of the law not to be observed. If however he grant this permission without any such reason, and of his mere will, he will be an unfaithful or an imprudent dispenser: unfaithful, if he has not the common good in view; imprudent, if he ignores the reasons for granting dispensations. Hence Our Lord says (Luke 12:42): "Who, thinkest thou, is the faithful and wise dispenser [Douay: steward], whom his lord setteth over his family?"

Reply to Objection 1. When a person is dispensed from observing the general law, this should not be done to the prejudice of, but with the intention of benefiting, the common good.

Reply to Objection 2. It is not respect of persons if unequal measures are served out to those who are themselves unequal. Wherefore when the condition of any person requires that he should reasonably receive special treatment, it is not respect of persons if he be the object of special favor.

Reply to Objection 3. Natural law, so far as it contains general precepts, which never fail, does not allow of dispensations. In other precepts, however, which are as conclusions of the general precepts, man sometimes grants a dispensation: for instance, that a loan should not be paid back to the betrayer of his country, or something similar. But to the Divine law each man stands as a private person to the public law to which he is subject. Wherefore just as none can dispense from public human law, except the man from whom the law derives its authority, or his delegate; so, in the precepts of the Divine law, which are from God, none can dispense but God, or the man to whom He may give special power for that purpose.

The Old Law

The old law (98) and its precepts (99): moral (100), ceremonial (101) and judicial (104). The causes (102) and duration (103) of the ceremonial precepts. The reason (105) for the judicial precepts.

Question 98. The old law

1. Was the Old Law good?
2. Was it from God?
3. Did it come from Him through the angels?
4. Was it given to all?
5. Was it binding on all?
6. Was it given at a suitable time?

Article 1. Whether the Old Law was good?

Objection 1. It would seem that the Old Law was not good. For it is written (Ezekiel 20:25): “I gave them statutes that were not good, and judgments in which they shall not live.” But a law is not said to be good except on account of the goodness of the precepts that it contains. Therefore the Old Law was not good.

Objection 2. Further, it belongs to the goodness of a law that it conduce to the common welfare, as Isidore says (Etym. v, 3). But the Old Law was not salutary; rather was it deadly and hurtful. For the Apostle says (Romans 7:8, seq.): “Without the law sin was dead. And I lived some time without the law. But when the commandment came sin revived; and I died.” Again he says (Romans 5:20): “Law entered in that sin might abound.” Therefore the Old Law was not good.

Objection 3. Further, it belongs to the goodness of the law that it should be possible to obey it, both according to nature, and according to human custom. But such the Old Law was not: since Peter said (Acts 15:10): “Why tempt you (God) to put a yoke on the necks of the disciples, which neither our fathers nor we have been able to bear?” Therefore it seems that the Old Law was not good.

On the contrary, The Apostle says (Romans 7:12): “Wherefore the law indeed is holy, and the commandment holy, and just, and good.”

I answer that, Without any doubt, the Old Law was good. For just as a doctrine is shown to be good by the fact that it accords with right reason, so is a law proved to be good if it accords with reason. Now the Old Law was in accordance with reason. Because it repressed concupiscence which is in conflict with reason, as evidenced by the commandment, “Thou shalt not covet thy neighbor’s goods” (Exodus 20:17). Moreover the same law forbade all kinds of sin; and these too are contrary to reason. Consequently it is evident that it was a good law. The Apostle argues in the same way (Romans 7): “I am delighted,” says he (verse 22), “with the law of God, according to the inward man”: and again (verse 16): “I consent to the law, that is good.”

But it must be noted that the good has various degrees, as Dionysius states (Div. Nom. iv): for there is a perfect good, and an imperfect good. In things ordained to an end, there is perfect goodness when a thing is such that it is sufficient in itself to conduce to the end: while there is imperfect goodness when a thing is of some assistance in attaining the end, but is not sufficient for the realization thereof. Thus a medicine is perfectly good, if it gives health to a man; but it is

imperfect, if it helps to cure him, without being able to bring him back to health. Again it must be observed that the end of human law is different from the end of Divine law. For the end of human law is the temporal tranquillity of the state, which end law effects by directing external actions, as regards those evils which might disturb the peaceful condition of the state. On the other hand, the end of the Divine law is to bring man to that end which is everlasting happiness; which end is hindered by any sin, not only of external, but also of internal action. Consequently that which suffices for the perfection of human law, viz. the prohibition and punishment of sin, does not suffice for the perfection of the Divine law: but it is requisite that it should make man altogether fit to partake of everlasting happiness. Now this cannot be done save by the grace of the Holy Ghost, whereby "charity" which filleth the law . . . "is spread abroad in our hearts" (Romans 5:5): since "the grace of God is life everlasting" (Romans 6:23). But the Old Law could not confer this grace, for this was reserved to Christ; because, as it is written (John 1:17), the law was given "by Moses, grace and truth came by Jesus Christ." Consequently the Old Law was good indeed, but imperfect, according to Hebrews 7:19: "The law brought nothing to perfection."

Reply to Objection 1. The Lord refers there to the ceremonial precepts; which are said not to be good, because they did not confer grace unto the remission of sins, although by fulfilling these precepts man confessed himself a sinner. Hence it is said pointedly, "and judgments in which they shall not live"; i.e. whereby they are unable to obtain life; and so the text goes on: "And I polluted them," i.e. showed them to be polluted, "in their own gifts, when they offered all that opened the womb, for their offenses."

Reply to Objection 2. The law is said to have been deadly, as being not the cause, but the occasion of death, on account of its imperfection: in so far as it did not confer grace enabling man to fulfil what is prescribed, and to avoid what it forbade. Hence this occasion was not given to men, but taken by them. Wherefore the Apostle says (Romans 5:11): "Sin, taking occasion by the commandment, seduced me, and by it killed me." In the same sense when it is said that "the law entered in that sin might abound," the conjunction "that" must be taken as consecutive and not final: in so far as men, taking occasion from the law, sinned all the more, both because a sin became more grievous after law had forbidden it, and because concupiscence increased, since we desire a thing the more from its being forbidden.

Reply to Objection 3. The yoke of the law could not be borne without the help of grace, which the law did not confer: for it is written (Romans 9:16): "It is not him that willeth, nor of him that runneth," viz. that he wills and runs in the commandments of God, "but of God that showeth mercy." Wherefore it is written (Psalm 118:32): "I have run the way of Thy commandments, when Thou didst enlarge my heart," i.e. by giving me grace and charity.

Article 2. Whether the Old Law was from God?

Objection 1. It would seem that the Old Law was not from God. For it is written (Deuteronomy 32:4): "The works of God are perfect." But the Law was imperfect, as stated above (Article 1). Therefore the Old Law was not from God.

Objection 2. Further, it is written (Ecclesiastes 3:14): "I have learned that all the works which God hath made continue for ever." But the Old Law does not continue for ever: since the Apostle says (Hebrews 7:18): "There is indeed a setting aside of the former commandment, because of the weakness and unprofitableness thereof." Therefore the Old Law was not from God.

Objection 3. Further, a wise lawgiver should remove, not only evil, but also the occasions of evil. But the Old Law was an occasion of sin, as stated above (Article 1, Reply to Objection 2).

Therefore the giving of such a law does not pertain to God, to Whom “none is like among the lawgivers” (Job 36:22).

Objection 4. Further, it is written (1 Timothy 2:4) that God “will have all men to be saved.” But the Old Law did not suffice to save man, as stated above (Article 1). Therefore the giving of such a law did not appertain to God. Therefore the Old Law was not from God.

On the contrary, Our Lord said (Matthew 15:6) while speaking to the Jews, to whom the Law was given: “You have made void the commandment of God for your tradition.” And shortly before (verse 4) He had said: “Honor thy father and mother,” which is contained expressly in the Old Law (Exodus 20:12; Deuteronomy 5:16). Therefore the Old Law was from God.

I answer that, The Old Law was given by the good God, Who is the Father of Our Lord Jesus Christ. For the Old Law ordained men to Christ in two ways. First by bearing witness to Christ; wherefore He Himself says (Luke 24:44): “All things must needs be fulfilled, which are written in the law . . . and in the prophets, and in the psalms, concerning Me”: and (John 5:46): “If you did believe Moses, you would perhaps believe Me also; for he wrote of Me.” Secondly, as a kind of disposition, since by withdrawing men from idolatrous worship, it enclosed [concludebat] them in the worship of one God, by Whom the human race was to be saved through Christ. Wherefore the Apostle says (Galatians 3:23): “Before the faith came, we were kept under the law shut up [conclusi], unto that faith which was to be revealed.” Now it is evident that the same thing it is, which gives a disposition to the end, and which brings to the end; and when I say “the same,” I mean that it does so either by itself or through its subjects. For the devil would not make a law whereby men would be led to Christ, Who was to cast him out, according to Matthew 12:26: “If Satan cast out Satan, his kingdom is divided” [Vulgate: ‘he is divided against himself’]. Therefore the Old Law was given by the same God, from Whom came salvation to man, through the grace of Christ.

Reply to Objection 1. Nothing prevents a thing being not perfect simply, and yet perfect in respect of time: thus a boy is said to be perfect, not simply, but with regard to the condition of time. So, too, precepts that are given to children are perfect in comparison with the condition of those to whom they are given, although they are not perfect simply. Hence the Apostle says (Galatians 3:24): “The law was our pedagogue in Christ.”

Reply to Objection 2. Those works of God endure for ever which God so made that they would endure for ever; and these are His perfect works. But the Old Law was set aside when there came the perfection of grace; not as though it were evil, but as being weak and useless for this time; because, as the Apostle goes on to say, “the law brought nothing to perfection”: hence he says (Galatians 3:25): “After the faith is come, we are no longer under a pedagogue.”

Reply to Objection 3. As stated above (I-II:79:4), God sometimes permits certain ones to fall into sin, that they may thereby be humbled. So also did He wish to give such a law as men by their own forces could not fulfill, so that, while presuming on their own powers, they might find themselves to be sinners, and being humbled might have recourse to the help of grace.

Reply to Objection 4. Although the Old Law did not suffice to save man, yet another help from God besides the Law was available for man, viz. faith in the Mediator, by which the fathers of old were justified even as we were. Accordingly God did not fail man by giving him insufficient aids to salvation.

Article 3. Whether the Old Law was given through the angels?

Objection 1. It seems that the Old Law was not given through the angels, but immediately by God. For an angel means a “messenger”; so that the word “angel” denotes ministry, not lordship, according to Psalm 102:20-21: “Bless the Lord, all ye His Angels . . . you ministers of His.” But the Old Law is related to have been given by the Lord: for it is written (Exodus 20:1): “And the Lord spoke . . . these words,” and further on: “I am the Lord Thy God.” Moreover the same expression is often repeated in Exodus, and the later books of the Law. Therefore the Law was given by God immediately.

Objection 2. Further, according to John 1:17, “the Law was given by Moses.” But Moses received it from God immediately: for it is written (Exodus 33:11): “The Lord spoke to Moses face to face, as a man is wont to speak to his friend.” Therefore the Old Law was given by God immediately.

Objection 3. Further, it belongs to the sovereign alone to make a law, as stated above (I-II:90:3). But God alone is Sovereign as regards the salvation of souls: while the angels are the “ministering spirits,” as stated in Hebrews 1:14. Therefore it was not meet for the Law to be given through the angels, since it is ordained to the salvation of souls.

On the contrary, The Apostle said (Galatians 3:19) that the Law was “given [Vulgate: ‘ordained’] by angels in the hand of a Mediator.” And Stephen said (Acts 7:53): “(Who) have received the Law by the disposition of angels.”

I answer that, The Law was given by God through the angels. And besides the general reason given by Dionysius (Coel. Hier. iv), viz. that “the gifts of God should be brought to men by means of the angels,” there is a special reason why the Old Law should have been given through them. For it has been stated (Articles 1 and 2) that the Old Law was imperfect, and yet disposed man to that perfect salvation of the human race, which was to come through Christ. Now it is to be observed that wherever there is an order of powers or arts, he that holds the highest place, himself exercises the principal and perfect acts; while those things which dispose to the ultimate perfection are effected by him through his subordinates: thus the ship-builder himself rivets the planks together, but prepares the material by means of the workmen who assist him under his direction. Consequently it was fitting that the perfect law of the New Testament should be given by the incarnate God immediately; but that the Old Law should be given to men by the ministers of God, i.e. by the angels. It is thus that the Apostle at the beginning of his epistle to the Hebrews (1:2) proves the excellence of the New Law over the Old; because in the New Testament “God . . . hath spoken to us by His Son,” whereas in the Old Testament “the word was spoken by angels” (Hebrews 2:2).

Reply to Objection 1. As Gregory says at the beginning of his *Morals* (Praef. chap. i), “the angel who is described to have appeared to Moses, is sometimes mentioned as an angel, sometimes as the Lord: an angel, in truth, in respect of that which was subservient to the external delivery; and the Lord, because He was the Director within, Who supported the effectual power of speaking.” Hence also it is that the angel spoke as personating the Lord.

Reply to Objection 2. As Augustine says (Gen. ad lit. xii, 27), it is stated in Exodus that “the Lord spoke to Moses face to face”; and shortly afterwards we read, “Show me Thy glory. Therefore He perceived what he saw and he desired what he saw not.” Hence he did not see the very Essence of God; and consequently he was not taught by Him immediately. Accordingly when Scripture states that “He spoke to him face to face,” this is to be understood as expressing the opinion of the people, who thought that Moses was speaking with God mouth to mouth, when God spoke and

appeared to him, by means of a subordinate creature, i.e. an angel and a cloud. Again we may say that this vision "face to face" means some kind of sublime and familiar contemplation, inferior to the vision of the Divine Essence.

Reply to Objection 3. It is for the sovereign alone to make a law by his own authority; but sometimes after making a law, he promulgates it through others. Thus God made the Law by His own authority, but He promulgated it through the angels.

Article 4. Whether the Old Law should have been given to the Jews alone?

Objection 1. It would seem that the Old Law should not have been given to the Jews alone. For the Old Law disposed men for the salvation which was to come through Christ, as stated above (Article 2, Article 3). But that salvation was to come not to the Jews alone but to all nations, according to Isaiah 49:6: "It is a small thing that thou shouldst be my servant to raise up the tribes of Jacob, and to convert the dregs of Israel. Behold I have given thee to be the light of the Gentiles, that thou mayest be My salvation, even to the farthest part of the earth." Therefore the Old Law should have been given to all nations, and not to one people only.

Objection 2. Further, according to Acts 10:34-35, "God is not a respecter of persons: but in every nation, he that feareth Him, and worketh justice, is acceptable to Him." Therefore the way of salvation should not have been opened to one people more than to another.

Objection 3. Further, the law was given through the angels, as stated above (Article 3). But God always vouchsafed the ministrations of the angels not to the Jews alone, but to all nations: for it is written (Sirach 17:14): "Over every nation He set a ruler." Also on all nations He bestows temporal goods, which are of less account with God than spiritual goods. Therefore He should have given the Law also to all peoples.

On the contrary, It is written (Romans 3:1-2): "What advantage then hath the Jew? . . . Much every way. First indeed, because the words of God were committed to them": and (Psalm 147:9): "He hath not done in like manner to every nation: and His judgments He hath not made manifest unto them."

I answer that, It might be assigned as a reason for the Law being given to the Jews rather than to other peoples, that the Jewish people alone remained faithful to the worship of one God, while the others turned away to idolatry; wherefore the latter were unworthy to receive the Law, lest a holy thing should be given to dogs.

But this reason does not seem fitting: because that people turned to idolatry, even after the Law had been made, which was more grievous, as is clear from Exodus 32 and from Amos 5:25-26: "Did you offer victims and sacrifices to Me in the desert for forty years, O house of Israel? But you carried a tabernacle for your Moloch, and the image of your idols, the star of your god, which you made to yourselves." Moreover it is stated expressly (Deuteronomy 9:6): "Know therefore that the Lord thy God giveth thee not this excellent land in possession for thy justices, for thou art a very stiff-necked people": but the real reason is given in the preceding verse: "That the Lord might accomplish His word, which He promised by oath to thy fathers Abraham, Isaac, and Jacob."

What this promise was is shown by the Apostle, who says (Galatians 3:16) that "to Abraham were the promises made and to his seed. He saith not, 'And to his seeds,' as of many: but as of one, 'And to thy seed,' which is Christ." And so God vouchsafed both the Law and other special boons to that people, on account of the promised made to their fathers that Christ should be born of them. For it was fitting that the people, of whom Christ was to be born, should be signalized by a special sanctification, according to the words of Leviticus 19:2: "Be ye holy, because I . . . am holy." Nor

again was it on account of the merit of Abraham himself that this promise was made to him, viz. that Christ should be born of his seed: but of gratuitous election and vocation. Hence it is written (Isaiah 41:2): "Who hath raised up the just one from the east, hath called him to follow him?"

It is therefore evident that it was merely from gratuitous election that the patriarchs received the promise, and that the people sprung from them received the law; according to Deuteronomy 4:36-37: "Ye did [Vulgate: 'Thou didst'] hear His words out of the midst of the fire, because He loved thy fathers, and chose their seed after them." And if again it asked why He chose this people, and not another, that Christ might be born thereof; a fitting answer is given by Augustine (Tract. super Joan. xxvi): "Why He draweth one and draweth not another, seek not thou to judge, if thou wish not to err."

Reply to Objection 1. Although the salvation, which was to come through Christ, was prepared for all nations, yet it was necessary that Christ should be born of one people, which, for this reason, was privileged above other peoples; according to Romans 9:4: "To whom," namely the Jews, "belongeth the adoption as of children (of God) . . . and the testament, and the giving of the Law . . . whose are the fathers, and of whom is Christ according to the flesh."

Reply to Objection 2. Respect of persons takes place in those things which are given according to due; but it has no place in those things which are bestowed gratuitously. Because he who, out of generosity, gives of his own to one and not to another, is not a respecter of persons: but if he were a dispenser of goods held in common, and were not to distribute them according to personal merits, he would be a respecter of persons. Now God bestows the benefits of salvation on the human race gratuitously: wherefore He is not a respecter of persons, if He gives them to some rather than to others. Hence Augustine says (De Praedest. Sanct. viii): "All whom God teaches, he teaches out of pity; but whom He teaches not, out of justice He teaches not": for this is due to the condemnation of the human race for the sin of the first parent.

Reply to Objection 3. The benefits of grace are forfeited by man on account of sin: but not the benefits of nature. Among the latter are the ministries of the angels, which the very order of various natures demands, viz. that the lowest beings be governed through the intermediate beings: and also bodily aids, which God vouchsafes not only to men, but also to beasts, according to Psalm 35:7: "Men and beasts Thou wilt preserve, O Lord."

Article 5. Whether all men were bound to observe the Old Law?

Objection 1. It would seem that all men were bound to observe the Old Law. Because whoever is subject to the king, must needs be subject to his law. But the Old Law was given by God, Who is "King of all the earth" (Psalm 46:8). Therefore all the inhabitants of the earth were bound to observe the Law.

Objection 2. Further, the Jews could not be saved without observing the Old Law: for it is written (Deuteronomy 27:26): "Cursed be he that abideth not in the words of this law, and fulfilleth them not in work." If therefore other men could be saved without the observance of the Old Law, the Jews would be in a worse plight than other men.

Objection 3. Further, the Gentiles were admitted to the Jewish ritual and to the observances of the Law: for it is written (Exodus 12:48): "If any stranger be willing to dwell among you, and to keep the Phase of the Lord, all his males shall first be circumcised, and then shall he celebrate it according to the manner; and he shall be as he that is born in the land." But it would have been useless to admit strangers to the legal observances according to Divine ordinance, if they could have been saved without the observance of the Law. Therefore none could be saved without

observing the Law.

On the contrary, Dionysius says (Coel. Hier. ix) that many of the Gentiles were brought back to God by the angels. But it is clear that the Gentiles did not observe the Law. Therefore some could be saved without observing the Law.

I answer that, The Old Law showed forth the precepts of the natural law, and added certain precepts of its own. Accordingly, as to those precepts of the natural law contained in the Old Law, all were bound to observe the Old Law; not because they belonged to the Old Law, but because they belonged to the natural law. But as to those precepts which were added by the Old Law, they were not binding on save the Jewish people alone.

The reason of this is because the Old Law, as stated above (Article 4), was given to the Jewish people, that it might receive a prerogative of holiness, in reverence for Christ Who was to be born of that people. Now whatever laws are enacted for the special sanctification of certain ones, are binding on them alone: thus clerics who are set aside for the service of God are bound to certain obligations to which the laity are not bound; likewise religious are bound by their profession to certain works of perfection, to which people living in the world are not bound. In like manner this people was bound to certain special observances, to which other peoples were not bound. Wherefore it is written (Deuteronomy 18:13): "Thou shalt be perfect and without spot before the Lord thy God": and for this reason they used a kind of form of profession, as appears from Deuteronomy 26:3: "I profess this day before the Lord thy God," etc.

Reply to Objection 1. Whoever are subject to a king, are bound to observe his law which he makes for all in general. But if he orders certain things to be observed by the servants of his household, others are not bound thereto.

Reply to Objection 2. The more a man is united to God, the better his state becomes: wherefore the more the Jewish people were bound to the worship of God, the greater their excellence over other peoples. Hence it is written (Deuteronomy 4:8): "What other nation is there so renowned that hath ceremonies and just judgments, and all the law?" In like manner, from this point of view, the state of clerics is better than that of the laity, and the state of religious than that of folk living in the world.

Reply to Objection 3. The Gentiles obtained salvation more perfectly and more securely under the observances of the Law than under the mere natural law: and for this reason they were admitted to them. So too the laity are now admitted to the ranks of the clergy, and secular persons to those of the religious, although they can be saved without this.

Article 6. Whether the Old Law was suitably given at the time of Moses?

Objection 1. It would seem that the Old Law was not suitably given at the time of Moses. Because the Old Law disposed man for the salvation which was to come through Christ, as stated above (Article 2, Article 3). But man needed this salutary remedy immediately after he had sinned. Therefore the Law should have been given immediately after sin.

Objection 2. Further, the Old Law was given for the sanctification of those from whom Christ was to be born. Now the promise concerning the "seed, which is Christ" (Galatians 3:16) was first made to Abraham, as related in Genesis 12:7. Therefore the Law should have been given at once at the time of Abraham.

Objection 3. Further, as Christ was born of those alone who descended from Noah through Abraham, to whom the promise was made; so was He born of no other of the descendants of Abraham but David, to whom the promise was renewed, according to 2 Samuel 23:1: "The man to

whom it was appointed concerning the Christ of the God of Jacob . . . said." Therefore the Old Law should have been given after David, just as it was given after Abraham.

On the contrary, The Apostle says (Galatians 3:19) that the Law "was set because of transgressions, until the seed should come, to whom He made the promise, being ordained by angels in the hand of a Mediator": ordained, i.e. "given in orderly fashion," as the gloss explains. Therefore it was fitting that the Old Law should be given in this order of time.

I answer that, It was most fitting for the Law to be given at the time of Moses. The reason for this may be taken from two things in respect of which every law is imposed on two kinds of men. Because it is imposed on some men who are hard-hearted and proud, whom the law restrains and tames: and it is imposed on good men, who, through being instructed by the law, are helped to fulfil what they desire to do. Hence it was fitting that the Law should be given at such a time as would be appropriate for the overcoming of man's pride. For man was proud of two things, viz. of knowledge and of power. He was proud of his knowledge, as though his natural reason could suffice him for salvation: and accordingly, in order that his pride might be overcome in this matter, man was left to the guidance of his reason without the help of a written law: and man was able to learn from experience that his reason was deficient, since about the time of Abraham man had fallen headlong into idolatry and the most shameful vices. Wherefore, after those times, it was necessary for a written law to be given as a remedy for human ignorance: because "by the Law is the knowledge of sin" (Romans 3:20). But, after man had been instructed by the Law, his pride was convinced of his weakness, through his being unable to fulfil what he knew. Hence, as the Apostle concludes (Romans 8:3-4), "what the Law could not do in that it was weak through the flesh, God sent [Vulgate: 'sending'] His own Son . . . that the justification of the Law might be fulfilled in us."

With regard to good men, the Law was given to them as a help; which was most needed by the people, at the time when the natural law began to be obscured on account of the exuberance of sin: for it was fitting that this help should be bestowed on men in an orderly manner, so that they might be led from imperfection to perfection; wherefore it was becoming that the Old Law should be given between the law of nature and the law of grace.

Reply to Objection 1. It was not fitting for the Old Law to be given at once after the sin of the first man: both because man was so confident in his own reason, that he did not acknowledge his need of the Old Law; because as yet the dictate of the natural law was not darkened by habitual sinning.

Reply to Objection 2. A law should not be given save to the people, since it is a general precept, as stated above (Question 90, Articles 2 and 3); wherefore at the time of Abraham God gave men certain familiar, and, as it were, household precepts: but when Abraham's descendants had multiplied, so as to form a people, and when they had been freed from slavery, it was fitting that they should be given a law; for "slaves are not that part of the people or state to which it is fitting for the law to be directed," as the Philosopher says (Polit. iii, 2,4,5).

Reply to Objection 3. Since the Law had to be given to the people, not only those, of whom Christ was born, received the Law, but the whole people, who were marked with the seal of circumcision, which was the sign of the promise made to Abraham, and in which he believed, according to Romans 4:11: hence even before David, the Law had to be given to that people as soon as they were collected together.

Question 99. The precepts of the old law

1. Does the Old Law contain several precepts or only one?
2. Does the Old Law contain any moral precepts?
3. Does it contain ceremonial precepts in addition to the moral precepts?
4. Besides these, does it contain judicial precepts?
5. Does it contain any others besides these?
6. How the Old Law induced men to keep its precepts

Article 1. Whether the Old Law contains only one precept?

Objection 1. It would seem that the Old Law contains but one precept. Because a law is nothing else than a precept, as stated above (Question 90, Articles 2 and 3). Now there is but one Old Law. Therefore it contains but one precept.

Objection 2. Further, the Apostle says (Romans 13:9): "If there be any other commandment, it is comprised in this word: Thou shalt love thy neighbor as thyself." But this is only one commandment. Therefore the Old Law contained but one commandment.

Objection 3. Further, it is written (Matthew 7:12): "All things . . . whatsoever you would that men should do to you, do you also to them. For this is the Law and the prophets." But the whole of the Old Law is comprised in the Law and the prophets. Therefore the whole of the Old Law contains but one commandment.

On the contrary, The Apostle says (Ephesians 2:15): "Making void the Law of commandments contained in decrees": where he is referring to the Old Law, as the gloss comments, on the passage. Therefore the Old Law comprises many commandments.

I answer that, Since a precept of law is binding, it is about something which must be done: and, that a thing must be done, arises from the necessity of some end. Hence it is evident that a precept implies, in its very idea, relation to an end, in so far as a thing is commanded as being necessary or expedient to an end. Now many things may happen to be necessary or expedient to an end; and, accordingly, precepts may be given about various things as being ordained to one end. Consequently we must say that all the precepts of the Old Law are one in respect of their relation to one end: and yet they are many in respect of the diversity of those things that are ordained to that end.

Reply to Objection 1. The Old Law is said to be one as being ordained to one end: yet it comprises various precepts, according to the diversity of the things which it directs to the end. Thus also the art of building is one according to the unity of its end, because it aims at the building of a house: and yet it contains various rules, according to the variety of acts ordained thereto.

Reply to Objection 2. As the Apostle says (1 Timothy 1:5), "the end of the commandment is charity"; since every law aims at establishing friendship, either between man and man, or between man and God. Wherefore the whole Law is comprised in this one commandment, "Thou shalt love thy neighbor as thyself," as expressing the end of all commandments: because love of one's neighbor includes love of God, when we love our neighbor for God's sake. Hence the Apostle put this commandment in place of the two which are about the love of God and of one's neighbor, and of which Our Lord said (Matthew 22:40): "On these two commandments dependeth the whole Law and the prophets."

Reply to Objection 3. As stated in Ethic. ix, 8, “friendship towards another arises from friendship towards oneself,” in so far as man looks on another as on himself. Hence when it is said, “All things whatsoever you would that men should do to you, do you also to them,” this is an explanation of the rule of neighborly love contained implicitly in the words, “Thou shalt love thy neighbor as thyself”: so that it is an explanation of this commandment.

Article 2. Whether the Old Law contains moral precepts?

Objection 1. It would seem that the Old Law contains no moral precepts. For the Old Law is distinct from the law of nature, as stated above (Question 91, Articles 4 and 5; I-II:98:5). But the moral precepts belong to the law of nature. Therefore they do not belong to the Old Law.

Objection 2. Further, the Divine Law should have come to man’s assistance where human reason fails him: as is evident in regard to things that are of faith, which are above reason. But man’s reason seems to suffice for the moral precepts. Therefore the moral precepts do not belong to the Old Law, which is a Divine law.

Objection 3. Further, the Old Law is said to be “the letter that killeth” (2 Corinthians 3:6). But the moral precepts do not kill, but quicken, according to Psalm 118:93: “Thy justifications I will never forget, for by them Thou hast given me life.” Therefore the moral precepts do not belong to the Old Law.

On the contrary, It is written (Sirach 17:9): “Moreover, He gave them discipline [Douay: ‘instructions’] and the law of life for an inheritance.” Now discipline belongs to morals; for this gloss on Hebrews 12:11: “Now all chastisement [disciplina],” etc., says: “Discipline is an exercise in morals by means of difficulties.” Therefore the Law which was given by God comprised moral precepts.

I answer that, The Old Law contained some moral precepts; as is evident from Exodus 20:13-15: “Thou shalt not kill, Thou shalt not steal.” This was reasonable: because, just as the principal intention of human law is to create friendship between man and man; so the chief intention of the Divine law is to establish man in friendship with God. Now since likeness is the reason of love, according to Sirach 13:19: “Every beast loveth its like”; there cannot possibly be any friendship of man to God, Who is supremely good, unless man become good: wherefore it is written (Leviticus 19:2; 11:45): “You shall be holy, for I am holy.” But the goodness of man is virtue, which “makes its possessor good” (Ethic. ii, 6). Therefore it was necessary for the Old Law to include precepts about acts of virtue: and these are the moral precepts of the Law.

Reply to Objection 1. The Old Law is distinct from the natural law, not as being altogether different from it, but as something added thereto. For just as grace presupposes nature, so must the Divine law presuppose the natural law.

Reply to Objection 2. It was fitting that the Divine law should come to man’s assistance not only in those things for which reason is insufficient, but also in those things in which human reason may happen to be impeded. Now human reason could not go astray in the abstract, as to the universal principles of the natural law; but through being habituated to sin, it became obscured in the point of things to be done in detail. But with regard to the other moral precepts, which are like conclusions drawn from the universal principles of the natural law, the reason of many men went astray, to the extent of judging to be lawful, things that are evil in themselves. Hence there was need for the authority of the Divine law to rescue man from both these defects. Thus among the articles of faith not only are those things set forth to which reason cannot reach, such as the Trinity of the Godhead; but also those to which right reason can attain, such as the Unity of the Godhead;

in order to remove the manifold errors to which reason is liable.

Reply to Objection 3. As Augustine proves (*De Spiritu et Litera* xiv), even the letter of the law is said to be the occasion of death, as to the moral precepts; in so far as, to wit, it prescribes what is good, without furnishing the aid of grace for its fulfilment.

Article 3. Whether the Old Law comprises ceremonial, besides moral, precepts?

Objection 1. It would seem that the Old Law does not comprise ceremonial, besides moral, precepts. For every law that is given to man is for the purpose of directing human actions. Now human actions are called moral, as stated above (I-II:1:3). Therefore it seems that the Old Law given to men should not comprise other than moral precepts.

Objection 2. Further, those precepts that are styled ceremonial seem to refer to the Divine worship. But Divine worship is the act of a virtue, viz. religion, which, as Tully says (*De Invent.* ii) “offers worship and ceremony to the Godhead.” Since, then, the moral precepts are about acts of virtue, as stated above (Article 2), it seems that the ceremonial precepts should not be distinct from the moral.

Objection 3. Further, the ceremonial precepts seem to be those which signify something figuratively. But, as Augustine observes (*De Doctr. Christ.* ii, 3,4), “of all signs employed by men words hold the first place.” Therefore there is no need for the Law to contain ceremonial precepts about certain figurative actions.

On the contrary, It is written (Deuteronomy 4:13-14): “Ten words . . . He wrote in two tables of stone; and He commanded me at that time that I should teach you the ceremonies and judgments which you shall do.” But the ten commandments of the Law are moral precepts. Therefore besides the moral precepts there are others which are ceremonial.

I answer that, As stated above (Article 2), the Divine law is instituted chiefly in order to direct men to God; while human law is instituted chiefly in order to direct men in relation to one another. Hence human laws have not concerned themselves with the institution of anything relating to Divine worship except as affecting the common good of mankind: and for this reason they have devised many institutions relating to Divine matters, according as it seemed expedient for the formation of human morals; as may be seen in the rites of the Gentiles. On the other hand the Divine law directed men to one another according to the demands of that order whereby man is directed to God, which order was the chief aim of that law. Now man is directed to God not only by the interior acts of the mind, which are faith, hope, and love, but also by certain external works, whereby man makes profession of his subjection to God: and it is these works that are said to belong to the Divine worship. This worship is called “ceremony” [the *munia*, i.e. gifts] of Ceres (who was the goddess of fruits), as some say: because, at first, offerings were made to God from the fruits: or because, as Valerius Maximus states [*Fact. et Dict. Memor.* i, 1, the word “ceremony” was introduced among the Latins, to signify the Divine worship, being derived from a town near Rome called “Caere”: since, when Rome was taken by the Gauls, the sacred chattels of the Romans were taken thither and most carefully preserved. Accordingly those precepts of the Law which refer to the Divine worship are specially called ceremonial.

Reply to Objection 1. Human acts extend also to the Divine worship: and therefore the Old Law given to man contains precepts about these matters also.

Reply to Objection 2. As stated above (I-II:91:3), the precepts of the natural law are general, and require to be determined: and they are determined both by human law and by Divine law. And just as these very determinations which are made by human law are said to be, not of natural, but

of positive law; so the determinations of the precepts of the natural law, effected by the Divine law, are distinct from the moral precepts which belong to the natural law. Wherefore to worship God, since it is an act of virtue, belongs to a moral precept; but the determination of this precept, namely that He is to be worshipped by such and such sacrifices, and such and such offerings, belongs to the ceremonial precepts. Consequently the ceremonial precepts are distinct from the moral precepts.

Reply to Objection 3. As Dionysius says (Coel. Hier. i), the things of God cannot be manifested to men except by means of sensible similitudes. Now these similitudes move the soul more when they are not only expressed in words, but also offered to the senses. Wherefore the things of God are set forth in the Scriptures not only by similitudes expressed in words, as in the case of metaphorical expressions; but also by similitudes of things set before the eyes, which pertains to the ceremonial precepts.

Article 4. Whether, besides the moral and ceremonial precepts, there are also judicial precepts?

Objection 1. It would seem that there are no judicial precepts in addition to the moral and ceremonial precepts in the Old Law. For Augustine says (Contra Faust. vi, 2) that in the Old Law there are “precepts concerning the life we have to lead, and precepts regarding the life that is foreshadowed.” Now the precepts of the life we have to lead are moral precepts; and the precepts of the life that is foreshadowed are ceremonial. Therefore besides these two kinds of precepts we should not put any judicial precepts in the Law.

Objection 2. Further, a gloss on Psalm 118:102, “I have not declined from Thy judgments,” says, i.e. “from the rule of life Thou hast set for me.” But a rule of life belongs to the moral precepts. Therefore the judicial precepts should not be considered as distinct from the moral precepts.

Objection 3. Further, judgment seems to be an act of justice, according to Psalm 93:15: “Until justice be turned into judgment.” But acts of justice, like the acts of other virtues, belong to the moral precepts. Therefore the moral precepts include the judicial precepts, and consequently should not be held as distinct from them.

On the contrary, It is written (Deuteronomy 6:1): “These are the precepts and ceremonies, and judgments”: where “precepts” stands for “moral precepts” antonomastically. Therefore there are judicial precepts besides moral and ceremonial precepts.

I answer that, As stated above (Article 2, Article 3), it belongs to the Divine law to direct men to one another and to God. Now each of these belongs in the abstract to the dictates of the natural law, to which dictates the moral precepts are to be referred: yet each of them has to be determined by Divine or human law, because naturally known principles are universal, both in speculative and in practical matters. Accordingly just as the determination of the universal principle about Divine worship is effected by the ceremonial precepts, so the determination of the general precepts of that justice which is to be observed among men is effected by the judicial precepts.

We must therefore distinguish three kinds of precept in the Old Law; viz. “moral” precepts, which are dictated by the natural law; “ceremonial” precepts, which are determinations of the Divine worship; and “judicial” precepts, which are determinations of the justice to be maintained among men. Wherefore the Apostle (Romans 7:12) after saying that the “Law is holy,” adds that “the commandment is just, and holy, and good”: “just,” in respect of the judicial precepts; “holy,” with regard to the ceremonial precepts (since the word “sanctus”—“holy”—is applied to that which is consecrated to God); and “good,” i.e. conducive to virtue, as to the moral precepts.

Reply to Objection 1. Both the moral and the judicial precepts aim at the ordering of human life: and consequently they are both comprised under one of the heads mentioned by Augustine,

viz. under the precepts of the life we have to lead.

Reply to Objection 2. Judgment denotes execution of justice, by an application of the reason to individual cases in a determinate way. Hence the judicial precepts have something in common with the moral precepts, in that they are derived from reason; and something in common with the ceremonial precepts, in that they are determinations of general precepts. This explains why sometimes “judgments” comprise both judicial and moral precepts, as in Deuteronomy 5:1: “Hear, O Israel, the ceremonies and judgments”; and sometimes judicial and ceremonial precepts, as in Leviticus 18:4: “You shall do My judgments, and shall observe My precepts,” where “precepts” denotes moral precepts, while “judgments” refers to judicial and ceremonial precepts.

Reply to Objection 3. The act of justice, in general, belongs to the moral precepts; but its determination to some special kind of act belongs to the judicial precepts.

Article 5. Whether the Old Law contains any others besides the moral, judicial, and ceremonial precepts?

Objection 1. It would seem that the Old Law contains others besides the moral, judicial, and ceremonial precepts. Because the judicial precepts belong to the act of justice, which is between man and man; while the ceremonial precepts belong to the act of religion, whereby God is worshipped. Now besides these there are many other virtues, viz. temperance, fortitude, liberality, and several others, as stated above (I-II:60:5). Therefore besides the aforesaid precepts, the Old Law should comprise others.

Objection 2. Further, it is written (Deuteronomy 11:1): “Love the Lord thy God, and observe His precepts and ceremonies, His judgments and commandments.” Now precepts concern moral matters, as stated above (Article 4). Therefore besides the moral, judicial and ceremonial precepts, the Law contains others which are called “commandments.” [The “commandments” (*mandata*) spoken of here and in the body of this article are not to be confused with the Commandments (*praecepta*) in the ordinary acceptance of the word.]

Objection 3. Further, it is written (Deuteronomy 6:17): “Keep the precepts of the Lord thy God, and the testimonies and ceremonies which I have [Vulgate: ‘He hath’] commanded thee.” Therefore in addition to the above, the Law comprises “testimonies.”

Objection 4. Further, it is written (Psalm 118:93): “Thy justifications (i.e. “Thy Law,” according to a gloss) I will never forget.” Therefore in the Old Law there are not only moral, ceremonial and judicial precepts, but also others, called “justifications.”

On the contrary, It is written (Deuteronomy 6:1): “These are the precepts and ceremonies and judgments which the Lord your God commanded . . . you.” And these words are placed at the beginning of the Law. Therefore all the precepts of the Law are included under them.

I answer that, Some things are included in the Law by way of precept; other things, as being ordained to the fulfilment of the precepts. Now the precepts refer to things which have to be done: and to their fulfilment man is induced by two considerations, viz. the authority of the lawgiver, and the benefit derived from the fulfilment, which benefit consists in the attainment of some good, useful, pleasurable or virtuous, or in the avoidance of some contrary evil. Hence it was necessary that in the Old Law certain things should be set forth to indicate the authority of God the lawgiver: e.g. Deuteronomy 6:4: “Hear, O Israel, the Lord our God is one Lord”; and Genesis 1:1: “In the beginning God created heaven and earth”: and these are called “testimonies.” Again it was necessary that in the Law certain rewards should be appointed for those who observe the Law, and punishments for those who transgress; as it may be seen in Deuteronomy 28: “If thou wilt hear the

voice of the Lord thy God . . . He will make thee higher than all the nations," etc.: and these are called "justifications," according as God punishes or rewards certain ones justly.

The things that have to be done do not come under the precept except in so far as they have the character of a duty. Now a duty is twofold: one according to the rule of reason; the other according to the rule of a law which prescribes that duty: thus the Philosopher distinguishes a twofold just—moral and legal (Ethic. v, 7).

Moral duty is twofold: because reason dictates that something must be done, either as being so necessary that without it the order of virtue would be destroyed; or as being useful for the better maintaining of the order of virtue. And in this sense some of the moral precepts are expressed by way of absolute command or prohibition, as "Thou shalt not kill, Thou shalt not steal": and these are properly called "precepts." Other things are prescribed or forbidden, not as an absolute duty, but as something better to be done. These may be called "commandments"; because they are expressed by way of inducement and persuasion: an example whereof is seen in Exodus 22:26: "If thou take of thy neighbor a garment in pledge, thou shalt give it him again before sunset"; and in other like cases. Wherefore Jerome (Praefat. in Comment. super Marc.) says that "justice is in the precepts, charity in the commandments." Duty as fixed by the Law, belongs to the judicial precepts, as regards human affairs; to the "ceremonial" precepts, as regards Divine matters.

Nevertheless those ordinances also which refer to punishments and rewards may be called "testimonies," in so far as they testify to the Divine justice. Again all the precepts of the Law may be styled "justifications," as being executions of legal justice. Furthermore the commandments may be distinguished from the precepts, so that those things be called "precepts" which God Himself prescribed; and those things "commandments" which He enjoined [mandavit] through others, as the very word seems to denote.

From this it is clear that all the precepts of the Law are either moral, ceremonial, or judicial; and that other ordinances have not the character of a precept, but are directed to the observance of the precepts, as stated above.

Reply to Objection 1. Justice alone, of all the virtues, implies the notion of duty. Consequently moral matters are determinable by law in so far as they belong to justice: of which virtue religion is a part, as Tully says (De Invent. ii). Wherefore the legal just cannot be anything foreign to the ceremonial and judicial precepts.

The Replies to the other Objections are clear from what has been said.

Article 6. Whether the Old Law should have induced men to the observance of its precepts, by means of temporal promises and threats?

Objection 1. It would seem that the Old Law should not have induced men to the observance of its precepts, by means of temporal promises and threats. For the purpose of the Divine law is to subject man to God by fear and love: hence it is written (Deuteronomy 10:12): "And now, Israel, what doth the Lord thy God require of thee, but that thou fear the Lord thy God, and walk in His ways, and love Him?" But the desire for temporal goods leads man away from God: for Augustine says (Qq. lxxxiii, qu. 36), that "covetousness is the bane of charity." Therefore temporal promises and threats seem to be contrary to the intention of a lawgiver: and this makes a law worthy of rejection, as the Philosopher declares (Polit. ii, 6).

Objection 2. Further, the Divine law is more excellent than human law. Now, in sciences, we notice that the loftier the science, the higher the means of persuasion that it employs. Therefore, since human law employs temporal threats and promises, as means of persuading man, the Divine

law should have used, not these, but more lofty means.

Objection 3. Further, the reward of righteousness and the punishment of guilt cannot be that which befalls equally the good and the wicked. But as stated in Ecclesiastes 9:2, “all” temporal “things equally happen to the just and to the wicked, to the good and the evil, to the clean and to the unclean, to him that offereth victims, and to him that despiseth sacrifices.” Therefore temporal goods or evils are not suitably set forth as punishments or rewards of the commandments of the Divine law.

On the contrary, It is written (Isaiah 1:19-20): “If you be willing, and will hearken to Me, you shall eat the good things of the land. But if you will not, and will provoke Me to wrath: the sword shall devour you.”

I answer that, As in speculative sciences men are persuaded to assent to the conclusions by means of syllogistic arguments, so too in every law, men are persuaded to observe its precepts by means of punishments and rewards. Now it is to be observed that, in speculative sciences, the means of persuasion are adapted to the conditions of the pupil: wherefore the process of argument in sciences should be ordered becomingly, so that the instruction is based on principles more generally known. And thus also he who would persuade a man to the observance of any precepts, needs to move him at first by things for which he has an affection; just as children are induced to do something, by means of little childish gifts. Now it has been said above (I-II:98:1-3) that the Old Law disposed men to (the coming of) Christ, as the imperfect in comparison disposes to the perfect, wherefore it was given to a people as yet imperfect in comparison to the perfection which was to result from Christ’s coming; and for this reason, that people is compared to a child that is still under a pedagogue (Galatians 3:24). But the perfection of man consists in his despising temporal things and cleaving to things spiritual, as is clear from the words of the Apostle (Philippians 3:13-15): “Forgetting the things that are behind, I stretch [Vulgate: ‘and stretching’] forth myself to those that are before . . . Let us therefore, as many as are perfect, be thus minded.” Those who are yet imperfect desire temporal goods, albeit in subordination to God: whereas the perverse place their end in temporalities. It was therefore fitting that the Old Law should conduct men to God by means of temporal goods for which the imperfect have an affection.

Reply to Objection 1. Covetousness whereby man places his end in temporalities, is the bane of charity. But the attainment of temporal goods which man desires in subordination to God is a road leading the imperfect to the love of God, according to Psalm 48:19: “He will praise Thee, when Thou shalt do well to him.”

Reply to Objection 2. Human law persuades men by means of temporal rewards or punishments to be inflicted by men: whereas the Divine law persuades men by means of rewards or punishments to be received from God. In this respect it employs higher means.

Reply to Objection 3. As any one can see, who reads carefully the story of the Old Testament, the common weal of the people prospered under the Law as long as they obeyed it; and as soon as they departed from the precepts of the Law they were overtaken by many calamities. But certain individuals, although they observed the justice of the Law, met with misfortunes—either because they had already become spiritual (so that misfortune might withdraw them all the more from attachment to temporal things, and that their virtue might be tried)—or because, while outwardly fulfilling the works of the Law, their heart was altogether fixed on temporal goods, and far removed from God, according to Isaiah 29:13 (Matthew 15:8): “This people honoreth Me with their lips; but their hearts is far from Me.”

Question 100. The moral precepts of the old law

1. Do all the moral precepts of the Old Law belong to the law of nature?
2. Are the moral precepts of the Old Law about the acts of all the virtues?
3. Are all the moral precepts of the Old Law reducible to the ten precepts of the decalogue?
4. How are the precepts of the decalogue distinguished from one another?
5. Their number
6. Their order
7. The manner in which they were given
8. Are they dispensable?
9. Does the mode of observing a virtue come under the precept of the Law?
10. Does the mode of charity come under the precept?
11. The distinction of other moral precepts
12. Did the moral precepts of the Old Law justify man?

Article 1. Whether all the moral precepts of the Old Law belong to the law of nature?

Objection 1. It would seem that not all the moral precepts belong to the law of nature. For it is written (Sirach 17:9): “Moreover He gave them instructions, and the law of life for an inheritance.” But instruction is in contradistinction to the law of nature; since the law of nature is not learnt, but instilled by natural instinct. Therefore not all the moral precepts belong to the natural law.

Objection 2. Further, the Divine law is more perfect than human law. But human law adds certain things concerning good morals, to those that belong to the law of nature: as is evidenced by the fact that the natural law is the same in all men, while these moral institutions are various for various people. Much more reason therefore was there why the Divine law should add to the law of nature, ordinances pertaining to good morals.

Objection 3. Further, just as natural reason leads to good morals in certain matters, so does faith: hence it is written (Galatians 5:6) that faith “worketh by charity.” But faith is not included in the law of nature; since that which is of faith is above nature. Therefore not all the moral precepts of the Divine law belong to the law of nature.

On the contrary, The Apostle says (Romans 2:14) that “the Gentiles, who have not the Law, do by nature those things that are of the Law”: which must be understood of things pertaining to good morals. Therefore all the moral precepts of the Law belong to the law of nature.

I answer that, The moral precepts, distinct from the ceremonial and judicial precepts, are about things pertaining to their very nature to good morals. Now since human morals depend on their relation to reason, which is the proper principle of human acts, those morals are called good which accord with reason, and those are called bad which are discordant from reason. And as every judgment of speculative reason proceeds from the natural knowledge of first principles, so every judgment of practical reason proceeds from principles known naturally, as stated above (Question 94, Articles 2 and 4): from which principles one may proceed in various ways to judge of various matters. For some matters connected with human actions are so evident, that after very little consideration one is able at once to approve or disapprove of them by means of these general first principles: while some matters cannot be the subject of judgment without much consideration of

the various circumstances, which all are not competent to do carefully, but only those who are wise: just as it is not possible for all to consider the particular conclusions of sciences, but only for those who are versed in philosophy: and lastly there are some matters of which man cannot judge unless he be helped by Divine instruction; such as the articles of faith.

It is therefore evident that since the moral precepts are about matters which concern good morals; and since good morals are those which are in accord with reason; and since also every judgment of human reason must needs be derived in some way from natural reason; it follows, of necessity, that all the moral precepts belong to the law of nature; but not all in the same way. For there are certain things which the natural reason of every man, of its own accord and at once, judges to be done or not to be done: e.g. "Honor thy father and thy mother," and "Thou shalt not kill, Thou shalt not steal": and these belong to the law of nature absolutely. And there are certain things which, after a more careful consideration, wise men deem obligatory. Such belong to the law of nature, yet so that they need to be inculcated, the wiser teaching the less wise: e.g. "Rise up before the hoary head, and honor the person of the aged man," and the like. And there are some things, to judge of which, human reason needs Divine instruction, whereby we are taught about the things of God: e.g. "Thou shalt not make to thyself a graven thing, nor the likeness of anything; Thou shalt not take the name of the Lord thy God in vain."

This suffices for the Replies to the Objections.

Article 2. Whether the moral precepts of the Law are about all the acts of virtue?

Objection 1. It would seem that the moral precepts of the Law are not about all the acts of virtue. For observance of the precepts of the Old Law is called justification, according to Psalm 118:8: "I will keep Thy justifications." But justification is the execution of justice. Therefore the moral precepts are only about acts of justice.

Objection 2. Further, that which comes under a precept has the character of a duty. But the character of duty belongs to justice alone and to none of the other virtues, for the proper act of justice consists in rendering to each one his due. Therefore the precepts of the moral law are not about the acts of the other virtues, but only about the acts of justice.

Objection 3. Further, every law is made for the common good, as Isidore says (Etym. v, 21). But of all the virtues justice alone regards the common good, as the Philosopher says (Ethic. v, 1). Therefore the moral precepts are only about the acts of justice.

On the contrary, Ambrose says (De Paradiso viii) that "a sin is a transgression of the Divine law, and a disobedience to the commandments of heaven." But there are sins contrary to all the acts of virtue. Therefore it belongs to Divine law to direct all the acts of virtue.

I answer that, Since the precepts of the Law are ordained to the common good, as stated above (I-II:90:2), the precepts of the Law must needs be diversified according to the various kinds of community: hence the Philosopher (Polit. iv, 1) teaches that the laws which are made in a state which is ruled by a king must be different from the laws of a state which is ruled by the people, or by a few powerful men in the state. Now human law is ordained for one kind of community, and the Divine law for another kind. Because human law is ordained for the civil community, implying mutual duties of man and his fellows: and men are ordained to one another by outward acts, whereby men live in communion with one another. This life in common of man with man pertains to justice, whose proper function consists in directing the human community. Wherefore human law makes precepts only about acts of justice; and if it commands acts of other virtues, this is only in so far as they assume the nature of justice, as the Philosopher explains (Ethic. v, 1).

But the community for which the Divine law is ordained, is that of men in relation to God, either in this life or in the life to come. And therefore the Divine law proposes precepts about all those matters whereby men are well ordered in their relations to God. Now man is united to God by his reason or mind, in which is God's image. Wherefore the Divine law proposes precepts about all those matters whereby human reason is well ordered. But this is effected by the acts of all the virtues: since the intellectual virtues set in good order the acts of the reason in themselves: while the moral virtues set in good order the acts of the reason in reference to the interior passions and exterior actions. It is therefore evident that the Divine law fittingly proposes precepts about the acts of all the virtues: yet so that certain matters, without which the order of virtue, which is the order of reason, cannot even exist, come under an obligation of precept; while other matters, which pertain to the well-being of perfect virtue, come under an admonition of counsel.

Reply to Objection 1. The fulfilment of the commandments of the Law, even of those which are about the acts of the other virtues, has the character of justification, inasmuch as it is just that man should obey God: or again, inasmuch as it is just that all that belongs to man should be subject to reason.

Reply to Objection 2. Justice properly so called regards the duty of one man to another: but all the other virtues regard the duty of the lower powers to reason. It is in relation to this latter duty that the Philosopher speaks (*Ethic. v, 11*) of a kind of metaphorical justice.

The Reply to the Third Objection is clear from what has been said about the different kinds of community.

Article 3. Whether all the moral precepts of the Old Law are reducible to the ten precepts of the decalogue?

Objection 1. It would seem that not all the moral precepts of the Old Law are reducible to the ten precepts of the decalogue. For the first and principal precepts of the Law are, "Thou shalt love the Lord thy God," and "Thou shalt love thy neighbor," as stated in Matthew 22:37-39. But these two are not contained in the precepts of the decalogue. Therefore not all the moral precepts are contained in the precepts of the decalogue.

Objection 2. Further, the moral precepts are not reducible to the ceremonial precepts, but rather vice versa. But among the precepts of the decalogue, one is ceremonial, viz. "Remember that thou keep holy the Sabbath-day." Therefore the moral precepts are not reducible to all the precepts of the decalogue.

Objection 3. Further, the moral precepts are about all the acts of virtue. But among the precepts of the decalogue are only such as regard acts of justice; as may be seen by going through them all. Therefore the precepts of the decalogue do not include all the moral precepts.

On the contrary, The gloss on Matthew 5:11: "Blessed are ye when they shall revile you," etc. says that "Moses, after propounding the ten precepts, set them out in detail." Therefore all the precepts of the Law are so many parts of the precepts of the decalogue.

I answer that, The precepts of the decalogue differ from the other precepts of the Law, in the fact that God Himself is said to have given the precepts of the decalogue; whereas He gave the other precepts to the people through Moses. Wherefore the decalogue includes those precepts the knowledge of which man has immediately from God. Such are those which with but slight reflection can be gathered at once from the first general principles: and those also which become known to man immediately through divinely infused faith. Consequently two kinds of precepts are not reckoned among the precepts of the decalogue: viz. first general principles, for they need

no further promulgation after being once imprinted on the natural reason to which they are self-evident; as, for instance, that one should do evil to no man, and other similar principles: and again those which the careful reflection of wise men shows to be in accord with reason; since the people receive these principles from God, through being taught by wise men. Nevertheless both kinds of precepts are contained in the precepts of the decalogue; yet in different ways. For the first general principles are contained in them, as principles in their proximate conclusions; while those which are known through wise men are contained, conversely, as conclusions in their principles.

Reply to Objection 1. Those two principles are the first general principles of the natural law, and are self-evident to human reason, either through nature or through faith. Wherefore all the precepts of the decalogue are referred to these, as conclusions to general principles.

Reply to Objection 2. The precept of the Sabbath observance is moral in one respect, in so far as it commands man to give some time to the things of God, according to Psalm 45:11: "Be still and see that I am God." In this respect it is placed among the precepts of the decalogue: but not as to the fixing of the time, in which respect it is a ceremonial precept.

Reply to Objection 3. The notion of duty is not so patent in the other virtues as it is in justice. Hence the precepts about the acts of the other virtues are not so well known to the people as are the precepts about acts of justice. Wherefore the acts of justice especially come under the precepts of the decalogue, which are the primary elements of the Law.

Article 4. Whether the precepts of the decalogue are suitably distinguished from one another?

Objection 1. It would seem that the precepts of the decalogue are unsuitably distinguished from one another. For worship is a virtue distinct from faith. Now the precepts are about acts of virtue. But that which is said at the beginning of the decalogue, "Thou shalt not have strange gods before Me," belongs to faith: and that which is added, "Thou shalt not make . . . any graven thing," etc. belongs to worship. Therefore these are not one precept, as Augustine asserts (Qq. in Exod. qu. lxxi), but two.

Objection 2. Further, the affirmative precepts in the Law are distinct from the negative precepts; e.g. "Honor thy father and thy mother," and, "Thou shalt not kill." But this, "I am the Lord thy God," is affirmative: and that which follows, "Thou shalt not have strange gods before Me," is negative. Therefore these are two precepts, and do not, as Augustine says (Qq. in Exod. qu. lxxi), make one.

Objection 3. Further, the Apostle says (Romans 7:7): "I had not known concupiscence, if the Law did not say: 'Thou shalt not covet.'" Hence it seems that this precept, "Thou shalt not covet," is one precept; and, therefore, should not be divided into two.

On the contrary, stands the authority of Augustine who, in commenting on Exodus (Qq. in Exod. qu. lxxi) distinguishes three precepts as referring to God, and seven as referring to our neighbor.

I answer that, The precepts of the decalogue are differently divided by different authorities. For Hesychius commenting on Leviticus 26:26, "Ten women shall bake your bread in one oven," says that the precept of the Sabbath-day observance is not one of the ten precepts, because its observance, in the letter, is not binding for all time. But he distinguishes four precepts pertaining to God, the first being, "I am the Lord thy God"; the second, "Thou shalt not have strange gods before Me," (thus also Jerome distinguishes these two precepts, in his commentary on Hosea 10:10, "On thy" [Vulgate: "their"] "two iniquities"); the third precept according to him is, "Thou shalt not make to thyself any graven thing"; and the fourth, "Thou shalt not take the name of the Lord thy

God in vain." He states that there are six precepts pertaining to our neighbor; the first, "Honor thy father and thy mother"; the second, "Thou shalt not kill"; the third, "Thou shalt not commit adultery"; the fourth, "Thou shalt not steal"; the fifth, "Thou shalt not bear false witness"; the sixth, "Thou shalt not covet."

But, in the first place, it seems unbecoming for the precept of the Sabbath-day observance to be put among the precepts of the decalogue, if it nowise belonged to the decalogue. Secondly, because, since it is written (Matthew 6:24), "No man can serve two masters," the two statements, "I am the Lord thy God," and, "Thou shalt not have strange gods before Me" seem to be of the same nature and to form one precept. Hence Origen (Hom. viii in Exod.) who also distinguishes four precepts as referring to God, unites these two under one precept; and reckons in the second place, "Thou shalt not make . . . any graven thing"; as third, "Thou shalt not take the name of the Lord thy God in vain"; and as fourth, "Remember that thou keep holy the Sabbath-day." The other six he reckons in the same way as Hesychius.

Since, however, the making of graven things or the likeness of anything is not forbidden except as to the point of their being worshipped as gods—for God commanded an image of the Seraphim [Vulgate: Cherubim] to be made and placed in the tabernacle, as related in Exodus 25:18—Augustine more fittingly unites these two, "Thou shalt not have strange gods before Me," and, "Thou shalt not make . . . any graven thing," into one precept. Likewise to covet another's wife, for the purpose of carnal knowledge, belongs to the concupiscence of the flesh; whereas, to covet other things, which are desired for the purpose of possession, belongs to the concupiscence of the eyes; wherefore Augustine reckons as distinct precepts, that which forbids the coveting of another's goods, and that which prohibits the coveting of another's wife. Thus he distinguishes three precepts as referring to God, and seven as referring to our neighbor. And this is better.

Reply to Objection 1. Worship is merely a declaration of faith: wherefore the precepts about worship should not be reckoned as distinct from those about faith. Nevertheless precepts should be given about worship rather than about faith, because the precept about faith is presupposed to the precepts of the decalogue, as is also the precept of charity. For just as the first general principles of the natural law are self-evident to a subject having natural reason, and need no promulgation; so also to believe in God is a first and self-evident principle to a subject possessed of faith: "for he that cometh to God, must believe that He is" (Hebrews 11:6). Hence it needs no other promulgation that the infusion of faith.

Reply to Objection 2. The affirmative precepts are distinct from the negative, when one is not comprised in the other: thus that man should honor his parents does not include that he should not kill another man; nor does the latter include the former. But when an affirmative precept is included in a negative, or vice versa, we do not find that two distinct precepts are given: thus there is not one precept saying that "Thou shalt not steal," and another binding one to keep another's property intact, or to give it back to its owner. In the same way there are not different precepts about believing in God, and about not believing in strange gods.

Reply to Objection 3. All covetousness has one common ratio: and therefore the Apostle speaks of the commandment about covetousness as though it were one. But because there are various special kinds of covetousness, therefore Augustine distinguishes different prohibitions against coveting: for covetousness differs specifically in respect of the diversity of actions or things coveted, as the Philosopher says (Ethic. x, 5).

Article 5. Whether the precepts of the decalogue are suitably set forth?

Objection 1. It would seem that the precepts of the decalogue are unsuitably set forth. Because sin, as stated by Ambrose (*De Paradiso viii*), is “a transgression of the Divine law and a disobedience to the commandments of heaven.” But sins are distinguished according as man sins against God, or his neighbor, or himself. Since, then, the decalogue does not include any precepts directing man in his relations to himself, but only such as direct him in his relations to God and himself, it seems that the precepts of the decalogue are insufficiently enumerated.

Objection 2. Further, just as the Sabbath-day observance pertained to the worship of God, so also did the observance of other solemnities, and the offering of sacrifices. But the decalogue contains a precept about the Sabbath-day observance. Therefore it should contain others also, pertaining to the other solemnities, and to the sacrificial rite.

Objection 3. Further, as sins against God include the sin of perjury, so also do they include blasphemy, or other ways of lying against the teaching of God. But there is a precept forbidding perjury, “Thou shalt not take the name of the Lord thy God in vain.” Therefore there should be also a precept of the decalogue forbidding blasphemy and false doctrine.

Objection 4. Further, just as man has a natural affection for his parents, so has he also for his children. Moreover the commandment of charity extends to all our neighbors. Now the precepts of the decalogue are ordained unto charity, according to 1 Timothy 1:5: “The end of the commandment is charity.” Therefore as there is a precept referring to parents, so should there have been some precepts referring to children and other neighbors.

Objection 5. Further, in every kind of sin, it is possible to sin in thought or in deed. But in some kinds of sin, namely in theft and adultery, the prohibition of sins of deed, when it is said, “Thou shalt not commit adultery, Thou shalt not steal,” is distinct from the prohibition of the sin of thought, when it is said, “Thou shalt not covet thy neighbor’s goods,” and, “Thou shalt not covet thy neighbor’s wife.” Therefore the same should have been done in regard to the sins of homicide and false witness.

Objection 6. Further, just as sin happens through disorder of the concupiscible faculty, so does it arise through disorder of the irascible part. But some precepts forbid inordinate concupiscence, when it is said, “Thou shalt not covet.” Therefore the decalogue should have included some precepts forbidding the disorders of the irascible faculty. Therefore it seems that the ten precepts of the decalogue are unfittingly enumerated.

On the contrary, It is written (*Deuteronomy 4:13*): “He shewed you His covenant, which He commanded you to do, and the ten words that He wrote in two tablets of stone.”

I answer that, As stated above (Article 2), just as the precepts of human law direct man in his relations to the human community, so the precepts of the Divine law direct man in his relations to a community or commonwealth of men under God. Now in order that any man may dwell aright in a community, two things are required: the first is that he behave well to the head of the community; the other is that he behave well to those who are his fellows and partners in the community. It is therefore necessary that the Divine law should contain in the first place precepts ordering man in his relations to God; and in the second place, other precepts ordering man in his relations to other men who are his neighbors and live with him under God.

Now man owes three things to the head of the community: first, fidelity; secondly, reverence; thirdly, service. Fidelity to his master consists in his not giving sovereign honor to another: and this is the sense of the first commandment, in the words “Thou shalt not have strange gods.” Reverence to his master requires that he should do nothing injurious to him: and this is conveyed by the

second commandment, "Thou shalt not take the name of the Lord thy God in vain." Service is due to the master in return for the benefits which his subjects receive from him: and to this belongs the third commandment of the sanctification of the Sabbath in memory of the creation of all things.

To his neighbors a man behaves himself well both in particular and in general. In particular, as to those to whom he is indebted, by paying his debts: and in this sense is to be taken the commandment about honoring one's parents. In general, as to all men, by doing harm to none, either by deed, or by word, or by thought. By deed, harm is done to one's neighbor—sometimes in his person, i.e. as to his personal existence; and this is forbidden by the words, "Thou shalt not kill": sometimes in a person united to him, as to the propagation of offspring; and this is prohibited by the words, "Thou shalt not commit adultery": sometimes in his possessions, which are directed to both the aforesaid; and with this regard to this it is said, "Thou shalt not steal." Harm done by word is forbidden when it is said, "Thou shalt not bear false witness against thy neighbor": harm done by thought is forbidden in the words, "Thou shalt not covet."

The three precepts that direct man in his behavior towards God may also be differentiated in this same way. For the first refers to deeds; wherefore it is said, "Thou shalt not make . . . a graven thing": the second, to words; wherefore it is said, "Thou shalt not take the name of the Lord thy God in vain": the third, to thoughts; because the sanctification of the Sabbath, as the subject of a moral precept, requires repose of the heart in God. Or, according to Augustine (In Ps. 32: Conc. 1), by the first commandment we reverence the unity of the First Principle; by the second, the Divine truth; by the third, His goodness whereby we are sanctified, and wherein we rest as in our last end.

Reply to Objection 1. This objection may be answered in two ways. First, because the precepts of the decalogue can be reduced to the precepts of charity. Now there was need for man to receive a precept about loving God and his neighbor, because in this respect the natural law had become obscured on account of sin: but not about the duty of loving oneself, because in this respect the natural law retained its vigor: or again, because love of oneself is contained in the love of God and of one's neighbor: since true self-love consists in directing oneself to God. And for this reason the decalogue includes those precepts only which refer to our neighbor and to God.

Secondly, it may be answered that the precepts of the decalogue are those which the people received from God immediately; wherefore it is written (Deuteronomy 10:4): "He wrote in the tables, according as He had written before, the ten words, which the Lord spoke to you." Hence the precepts of the decalogue need to be such as the people can understand at once. Now a precept implies the notion of duty. But it is easy for a man, especially for a believer, to understand that, of necessity, he owes certain duties to God and to his neighbor. But that, in matters which regard himself and not another, man has, of necessity, certain duties to himself, is not so evident: for, at the first glance, it seems that everyone is free in matters that concern himself. And therefore the precepts which prohibit disorders of a man with regard to himself, reach the people through the instruction of men who are versed through the instruction of men who are versed in such matters; and, consequently, they are not contained in the decalogue.

Reply to Objection 2. All the solemnities of the Old Law were instituted in celebration of some Divine favor, either in memory of past favors, or in sign of some favor to come: in like manner all the sacrifices were offered up with the same purpose. Now of all the Divine favors to be commemorated the chief was that of the Creation, which was called to mind by the sanctification of the Sabbath; wherefore the reason for this precept is given in Exodus 20:11: "In six days the Lord made heaven and earth," etc. And of all future blessings, the chief and final was the repose of the mind in God, either, in the present life, by grace, or, in the future life, by glory; which repose was

also foreshadowed in the Sabbath-day observance: wherefore it is written (Isaiah 58:13): "If thou turn away thy foot from the Sabbath, from doing thy own will in My holy day, and call the Sabbath delightful, and the holy of the Lord glorious." Because these favors first and chiefly are borne in mind by men, especially by the faithful. But other solemnities were celebrated on account of certain particular favors temporal and transitory, such as the celebration of the Passover in memory of the past favor of the delivery from Egypt, and as a sign of the future Passion of Christ, which though temporal and transitory, brought us to the repose of the spiritual Sabbath. Consequently, the Sabbath alone, and none of the other solemnities and sacrifices, is mentioned in the precepts of the decalogue.

Reply to Objection 3. As the Apostle says (Hebrews 6:16), "men swear by one greater than themselves; and an oath for confirmation is the end of all their controversy." Hence, since oaths are common to all, inordinate swearing is the matter of a special prohibition by a precept of the decalogue. According to one interpretation, however, the words, "Thou shalt not take the name of the Lord thy God in vain," are a prohibition of false doctrine, for one gloss expounds them thus: "Thou shalt not say that Christ is a creature."

Reply to Objection 4. That a man should not do harm to anyone is an immediate dictate of his natural reason: and therefore the precepts that forbid the doing of harm are binding on all men. But it is not an immediate dictate of natural reason that a man should do one thing in return for another, unless he happen to be indebted to someone. Now a son's debt to his father is so evident that one cannot get away from it by denying it: since the father is the principle of generation and being, and also of upbringing and teaching. Wherefore the decalogue does not prescribe deeds of kindness or service to be done to anyone except to one's parents. On the other hand parents do not seem to be indebted to their children for any favors received, but rather the reverse is the case. Again, a child is a part of his father; and "parents love their children as being a part of themselves," as the Philosopher states (Ethic. viii, 12). Hence, just as the decalogue contains no ordinance as to man's behavior towards himself, so, for the same reason, it includes no precept about loving one's children.

Reply to Objection 5. The pleasure of adultery and the usefulness of wealth, in so far as they have the character of pleasurable or useful good, are of themselves, objects of appetite: and for this reason they needed to be forbidden not only in the deed but also in the desire. But murder and falsehood are, of themselves, objects of repulsion (since it is natural for man to love his neighbor and the truth): and are desired only for the sake of something else. Consequently with regard to sins of murder and false witness, it was necessary to proscribe, not sins of thought, but only sins of deed.

Reply to Objection 6. As stated above (I-II:25:1), all the passions of the irascible faculty arise from the passions of the concupiscible part. Hence, as the precepts of the decalogue are, as it were, the first elements of the Law, there was no need for mention of the irascible passions, but only of the concupiscible passions.

Article 6. Whether the ten precepts of the decalogue are set in proper order?

Objection 1. It would seem that the ten precepts of the decalogue are not set in proper order. Because love of one's neighbor is seemingly previous to love of God, since our neighbor is better known to us than God is; according to 1 John 4:20: "He that loveth not his brother, whom he seeth, how can he love God, Whom he seeth not?" But the first three precepts belong to the love of God, while the other seven pertain to the love of our neighbor. Therefore the precepts of the decalogue

are not set in proper order.

Objection 2. Further, the acts of virtue are prescribed by the affirmative precepts, and acts of vice are forbidden by the negative precepts. But according to Boethius in his commentary on the Categories [Lib. iv, cap. De Oppos.], vices should be uprooted before virtues are sown. Therefore among the precepts concerning our neighbor, the negative precepts should have preceded the affirmative.

Objection 3. Further, the precepts of the Law are about men's actions. But actions of thought precede actions of word or outward deed. Therefore the precepts about not coveting, which regard our thoughts, are unsuitably placed last in order.

On the contrary, The Apostle says (Romans 13:1): "The things that are of God, are well ordered" [Vulgate: 'Those that are, are ordained of God']. But the precepts of the decalogue were given immediately by God, as stated above (Article 3). Therefore they are arranged in becoming order.

I answer that, As stated above (3,5, ad 1), the precepts of the decalogue are such as the mind of man is ready to grasp at once. Now it is evident that a thing is so much the more easily grasped by the reason, as its contrary is more grievous and repugnant to reason. Moreover, it is clear, since the order of reason begins with the end, that, for a man to be inordinately disposed towards his end, is supremely contrary to reason. Now the end of human life and society is God. Consequently it was necessary for the precepts of the decalogue, first of all, to direct man to God; since the contrary to this is most grievous. Thus also, in an army, which is ordained to the commander as to its end, it is requisite first that the soldier should be subject to the commander, and the opposite of this is most grievous; and secondly it is requisite that he should be in coordination with the other soldiers.

Now among those things whereby we are ordained to God, the first is that man should be subjected to Him faithfully, by having nothing in common with His enemies. The second is that he should show Him reverence: the third that he should offer Him service. Thus, in an army, it is a greater sin for a soldier to act treacherously and make a compact with the foe, than to be insolent to his commander: and this last is more grievous than if he be found wanting in some point of service to him.

As to the precepts that direct man in his behavior towards his neighbor, it is evident that it is more repugnant to reason, and a more grievous sin, if man does not observe the due order as to those persons to whom he is most indebted. Consequently, among those precepts that direct man in his relations to his neighbor, the first place is given to that one which regards his parents. Among the other precepts we again find the order to be according to the gravity of sin. For it is more grave and more repugnant to reason, to sin by deed than by word; and by word than by thought. And among sins of deed, murder which destroys life in one already living is more grievous than adultery, which imperils the life of the unborn child; and adultery is more grave than theft, which regards external goods.

Reply to Objection 1. Although our neighbor is better known than God by the way of the senses, nevertheless the love of God is the reason for the love of our neighbor, as shall be declared later on (II-II:25:1; II-II:26:2). Hence the precepts ordaining man to God demanded precedence of the others.

Reply to Objection 2. Just as God is the universal principle of being in respect of all things, so is a father a principle of being in respect of his son. Therefore the precept regarding parents was fittingly placed after the precepts regarding God. This argument holds in respect of affirmative and negative precepts about the same kind of deed: although even then it is not altogether cogent. For although in the order of execution, vices should be uprooted before virtues are sown, according

to Psalm 33:15: "Turn away from evil, and do good," and Isaiah 1:16-17: "Cease to do perversely; learn to do well"; yet, in the order of knowledge, virtue precedes vice, because "the crooked line is known by the straight" (De Anima i): and "by the law is the knowledge of sin" (Romans 3:20). Wherefore the affirmative precept demanded the first place. However, this is not the reason for the order, but that which is given above. Because in the precepts regarding God, which belongs to the first table, an affirmative precept is placed last, since its transgression implies a less grievous sin.

Reply to Objection 3. Although sin of thought stands first in the order of execution, yet its prohibition holds a later position in the order of reason.

Article 7. Whether the precepts of the decalogue are suitably formulated?

Objection 1. It would seem that the precepts of the decalogue are unsuitably formulated. Because the affirmative precepts direct man to acts of virtue, while the negative precepts withdraw him from acts of vice. But in every matter there are virtues and vices opposed to one another. Therefore in whatever matter there is an ordinance of a precept of the decalogue, there should have been an affirmative and a negative precept. Therefore it was unfitting that affirmative precepts should be framed in some matters, and negative precepts in others.

Objection 2. Further, Isidore says (Etym. ii, 10) that every law is based on reason. But all the precepts of the decalogue belong to the Divine law. Therefore the reason should have been pointed out in each precept, and not only in the first and third.

Objection 3. Further, by observing the precepts man deserves to be rewarded by God. But the Divine promises concern the rewards of the precepts. Therefore the promise should have been included in each precept, and not only in the second and fourth.

Objection 4. Further, the Old Law is called "the law of fear," in so far as it induced men to observe the precepts, by means of the threat of punishments. But all the precepts of the decalogue belong to the Old Law. Therefore a threat of punishment should have been included in each, and not only in the first and second.

Objection 5. Further, all the commandments of God should be retained in the memory: for it is written (Proverbs 3:3): "Write them in the tables of thy heart." Therefore it was not fitting that mention of the memory should be made in the third commandment only. Consequently it seems that the precepts of the decalogue are unsuitably formulated.

On the contrary, It is written (Wisdom 11:21) that "God made all things, in measure, number and weight." Much more therefore did He observe a suitable manner in formulating His Law.

I answer that, The highest wisdom is contained in the precepts of the Divine law: wherefore it is written (Deuteronomy 4:6): "This is your wisdom and understanding in the sight of nations." Now it belongs to wisdom to arrange all things in due manner and order. Therefore it must be evident that the precepts of the Law are suitably set forth.

Reply to Objection 1. Affirmation of one thing always leads to the denial of its opposite: but the denial of one opposite does not always lead to the affirmation of the other. For it follows that if a thing is white, it is not black: but it does not follow that if it is not black, it is white: because negation extends further than affirmation. And hence too, that one ought not to do harm to another, which pertains to the negative precepts, extends to more persons, as a primary dictate of reason, than that one ought to do someone a service or kindness. Nevertheless it is a primary dictate of reason that man is a debtor in the point of rendering a service or kindness to those from whom he has received kindness, if he has not yet repaid the debt. Now there are two whose favors no man can sufficiently repay, viz. God and man's father, as stated in Ethic. viii, 14. Therefore it is that

there are only two affirmative precepts; one about the honor due to parents, the other about the celebration of the Sabbath in memory of the Divine favor.

Reply to Objection 2. The reasons for the purely moral precepts are manifest; hence there was no need to add the reason. But some of the precepts include ceremonial matter, or a determination of a general moral precept; thus the first precept includes the determination, “Thou shalt not make a graven thing”; and in the third precept the Sabbath-day is fixed. Consequently there was need to state the reason in each case.

Reply to Objection 3. Generally speaking, men direct their actions to some point of utility. Consequently in those precepts in which it seemed that there would be no useful result, or that some utility might be hindered, it was necessary to add a promise of reward. And since parents are already on the way to depart from us, no benefit is expected from them: wherefore a promise of reward is added to the precept about honoring one’s parents. The same applies to the precept forbidding idolatry: since thereby it seemed that men were hindered from receiving the apparent benefit which they think they can get by entering into a compact with the demons.

Reply to Objection 4. Punishments are necessary against those who are prone to evil, as stated in Ethic. x, 9. Wherefore a threat of punishment is only affixed to those precepts of the law which forbade evils to which men were prone. Now men were prone to idolatry by reason of the general custom of the nations. Likewise men are prone to perjury on account of the frequent use of oaths. Hence it is that a threat is affixed to the first two precepts.

Reply to Objection 5. The commandment about the Sabbath was made in memory of a past blessing. Wherefore special mention of the memory is made therein. Or again, the commandment about the Sabbath has a determination affixed to it that does not belong to the natural law, wherefore this precept needed a special admonition.

Article 8. Whether the precepts of the decalogue are dispensable?

Objection 1. It would seem that the precepts of the decalogue are dispensable. For the precepts of the decalogue belong to the natural law. But the natural law fails in some cases and is changeable, like human nature, as the Philosopher says (Ethic. v, 7). Now the failure of law to apply in certain particular cases is a reason for dispensation, as stated above (I-II:96:6; I-II:97:4). Therefore a dispensation can be granted in the precepts of the decalogue.

Objection 2. Further, man stands in the same relation to human law as God does to Divine law. But man can dispense with the precepts of a law made by man. Therefore, since the precepts of the decalogue are ordained by God, it seems that God can dispense with them. Now our superiors are God’s viceregents on earth; for the Apostle says (2 Corinthians 2:10): “For what I have pardoned, if I have pardoned anything, for your sakes have I done it in the person of Christ.” Therefore superiors can dispense with the precepts of the decalogue.

Objection 3. Further, among the precepts of the decalogue is one forbidding murder. But it seems that a dispensation is given by men in this precept: for instance, when according to the prescription of human law, such as evil-doers or enemies are lawfully slain. Therefore the precepts of the decalogue are dispensable.

Objection 4. Further, the observance of the Sabbath is ordained by a precept of the decalogue. But a dispensation was granted in this precept; for it is written (1 Maccabees 2:4): “And they determined in that day, saying: Whosoever shall come up to fight against us on the Sabbath-day, we will fight against him.” Therefore the precepts of the decalogue are dispensable.

On the contrary, are the words of Isaiah 24:5, where some are reprovéd for that “they have

changed the ordinance, they have broken the everlasting covenant"; which, seemingly, apply principally to the precepts of the decalogue. Therefore the precepts of the decalogue cannot be changed by dispensation.

I answer that, As stated above (I-II:96:6; I-II:97:4), precepts admit of dispensation, when there occurs a particular case in which, if the letter of the law be observed, the intention of the lawgiver is frustrated. Now the intention of every lawgiver is directed first and chiefly to the common good; secondly, to the order of justice and virtue, whereby the common good is preserved and attained. If therefore there be any precepts which contain the very preservation of the common good, or the very order of justice and virtue, such precepts contain the intention of the lawgiver, and therefore are indispensable. For instance, if in some community a law were enacted, such as this—that no man should work for the destruction of the commonwealth, or betray the state to its enemies, or that no man should do anything unjust or evil, such precepts would not admit of dispensation. But if other precepts were enacted, subordinate to the above, and determining certain special modes of procedure, these latter precepts would admit of dispensation, in so far as the omission of these precepts in certain cases would not be prejudicial to the former precepts which contain the intention of the lawgiver. For instance if, for the safeguarding of the commonwealth, it were enacted in some city that from each ward some men should keep watch as sentries in case of siege, some might be dispensed from this on account of some greater utility.

Now the precepts of the decalogue contain the very intention of the lawgiver, who is God. For the precepts of the first table, which direct us to God, contain the very order to the common and final good, which is God; while the precepts of the second table contain the order of justice to be observed among men, that nothing undue be done to anyone, and that each one be given his due; for it is in this sense that we are to take the precepts of the decalogue. Consequently the precepts of the decalogue admit of no dispensation whatever.

Reply to Objection 1. The Philosopher is not speaking of the natural law which contains the very order of justice: for it is a never-failing principle that "justice should be preserved." But he is speaking in reference to certain fixed modes of observing justice, which fail to apply in certain cases.

Reply to Objection 2. As the Apostle says (2 Timothy 2:13), "God continueth faithful, He cannot deny Himself." But He would deny Himself if He were to do away with the very order of His own justice, since He is justice itself. Wherefore God cannot dispense a man so that it be lawful for him not to direct himself to God, or not to be subject to His justice, even in those matters in which men are directed to one another.

Reply to Objection 3. The slaying of a man is forbidden in the decalogue, in so far as it bears the character of something undue: for in this sense the precept contains the very essence of justice. Human law cannot make it lawful for a man to be slain unduly. But it is not undue for evil-doers or foes of the common weal to be slain: hence this is not contrary to the precept of the decalogue; and such a killing is no murder as forbidden by that precept, as Augustine observes (De Lib. Arb. i, 4). In like manner when a man's property is taken from him, if it be due that he should lose it, this is not theft or robbery as forbidden by the decalogue.

Consequently when the children of Israel, by God's command, took away the spoils of the Egyptians, this was not theft; since it was due to them by the sentence of God. Likewise when Abraham consented to slay his son, he did not consent to murder, because his son was due to be slain by the command of God, Who is Lord of life and death: for He it is Who inflicts the punishment of death on all men, both godly and ungodly, on account of the sin of our first parent,

and if a man be the executor of that sentence by Divine authority, he will be no murderer any more than God would be. Again Osee, by taking unto himself a wife of fornications, or an adulterous woman, was not guilty either of adultery or of fornication: because he took unto himself one who was his by command of God, Who is the Author of the institution of marriage.

Accordingly, therefore, the precepts of the decalogue, as to the essence of justice which they contain, are unchangeable: but as to any determination by application to individual actions—for instance, that this or that be murder, theft or adultery, or not—in this point they admit of change; sometimes by Divine authority alone, namely, in such matters as are exclusively of Divine institution, as marriage and the like; sometimes also by human authority, namely in such matters as are subject to human jurisdiction: for in this respect men stand in the place of God: and yet not in all respects.

Reply to Objection 4. This determination was an interpretation rather than a dispensation. For a man is not taken to break the Sabbath, if he does something necessary for human welfare; as Our Lord proves (Matthew 12:3, seqq.).

Article 9. Whether the mode of virtue falls under the precept of the law?

Objection 1. It would seem that the mode of virtue falls under the precept of the law. For the mode of virtue is that deeds of justice should be done justly, that deeds of fortitude should be done bravely, and in like manner as to the other virtues. But it is commanded (Deuteronomy 26:20) that “thou shalt follow justly after that which is just.” Therefore the mode of virtue falls under the precept.

Objection 2. Further, that which belongs to the intention of the lawgiver comes chiefly under the precept. But the intention of the lawgiver is directed chiefly to make men virtuous, as stated in Ethic. ii: and it belongs to a virtuous man to act virtuously. Therefore the mode of virtue falls under the precept.

Objection 3. Further, the mode of virtue seems to consist properly in working willingly and with pleasure. But this falls under a precept of the Divine law, for it is written (Psalm 99:2): “Serve ye the Lord with gladness”; and (2 Corinthians 9:7): “Not with sadness or necessity: for God loveth a cheerful giver”; whereupon the gloss says: “Whatever ye do, do gladly; and then you will do it well; whereas if you do it sorrowfully, it is done in thee, not by thee.” Therefore the mode of virtue falls under the precept of the law.

On the contrary, No man can act as a virtuous man acts unless he has the habit of virtue, as the Philosopher explains (Ethic. ii, 4; v, 8). Now whoever transgresses a precept of the law, deserves to be punished. Hence it would follow that a man who has not the habit of virtue, would deserve to be punished, whatever he does. But this is contrary to the intention of the law, which aims at leading man to virtue, by habituating him to good works. Therefore the mode of virtue does not fall under the precept.

I answer that, As stated above (I-II:90:3 ad 2), a precept of law has compulsory power. Hence that on which the compulsion of the law is brought to bear, falls directly under the precept of the law. Now the law compels through fear of punishment, as stated in Ethic. x, 9, because that properly falls under the precept of the law, for which the penalty of the law is inflicted. But Divine law and human law are differently situated as to the appointment of penalties; since the penalty of the law is inflicted only for those things which come under the judgment of the lawgiver; for the law punishes in accordance with the verdict given. Now man, the framer of human law, is competent to judge only of outward acts; because “man seeth those things that appear,” according

to 1 Samuel 16:7: while God alone, the framer of the Divine law, is competent to judge of the inward movements of wills, according to Psalm 7:10: "The searcher of hearts and reins is God."

Accordingly, therefore, we must say that the mode of virtue is in some sort regarded both by human and by Divine law; in some respect it is regarded by the Divine, but not by the human law; and in another way, it is regarded neither by the human nor by the Divine law. Now the mode of virtue consists in three things, as the Philosopher states in *Ethic.* ii. The first is that man should act "knowingly": and this is subject to the judgment of both Divine and human law; because what a man does in ignorance, he does accidentally. Hence according to both human and Divine law, certain things are judged in respect of ignorance to be punishable or pardonable.

The second point is that a man should act "deliberately," i.e. "from choice, choosing that particular action for its own sake"; wherein a twofold internal movement is implied, of volition and of intention, about which we have spoken above (Q8, 12): and concerning these two, Divine law alone, and not human law, is competent to judge. For human law does not punish the man who wishes to slay, and slays not: whereas the Divine law does, according to Matthew 5:22: "Whosoever is angry with his brother, shall be in danger of the judgment."

The third point is that he should "act from a firm and immovable principle": which firmness belongs properly to a habit, and implies that the action proceeds from a rooted habit. In this respect, the mode of virtue does not fall under the precept either of Divine or of human law, since neither by man nor by God is he punished as breaking the law, who gives due honor to his parents and yet has not the habit of filial piety.

Reply to Objection 1. The mode of doing acts of justice, which falls under the precept, is that they be done in accordance with right; but not that they be done from the habit of justice.

Reply to Objection 2. The intention of the lawgiver is twofold. His aim, in the first place, is to lead men to something by the precepts of the law: and this is virtue. Secondly, his intention is brought to bear on the matter itself of the precept: and this is something leading or disposing to virtue, viz. an act of virtue. For the end of the precept and the matter of the precept are not the same: just as neither in other things is the end the same as that which conduces to the end.

Reply to Objection 3. That works of virtue should be done without sadness, falls under the precept of the Divine law; for whoever works with sadness works unwillingly. But to work with pleasure, i.e. joyfully or cheerfully, in one respect falls under the precept, viz. in so far as pleasure ensues from the love of God and one's neighbor (which love falls under the precept), and love causes pleasure: and in another respect does not fall under the precept, in so far as pleasure ensues from a habit; for "pleasure taken in a work proves the existence of a habit," as stated in *Ethic.* ii, 3. For an act may give pleasure either on account of its end, or through its proceeding from a becoming habit.

Article 10. Whether the mode of charity falls under the precept of the Divine law?

Objection 1. It would seem that the mode of charity falls under the precept of the Divine law. For it is written (Matthew 19:17): "If thou wilt enter into life, keep the commandments": whence it seems to follow that the observance of the commandments suffices for entrance into life. But good works do not suffice for entrance into life, except they be done from charity: for it is written (1 Corinthians 13:3): "If I should distribute all my goods to feed the poor, and if I should deliver my body to be burned, and have not charity, it profiteth me nothing." Therefore the mode of charity is included in the commandment.

Objection 2. Further, the mode of charity consists properly speaking in doing all things for

God. But this falls under the precept; for the Apostle says (1 Corinthians 10:31): "Do all to the glory of God." Therefore the mode of charity falls under the precept.

Objection 3. Further, if the mode of charity does not fall under the precept, it follows that one can fulfil the precepts of the law without having charity. Now what can be done without charity can be done without grace, which is always united to charity. Therefore one can fulfil the precepts of the law without grace. But this is the error of Pelagius, as Augustine declares (De Haeres. lxxxviii). Therefore the mode of charity is included in the commandment.

On the contrary, Whoever breaks a commandment sins mortally. If therefore the mode of charity falls under the precept, it follows that whoever acts otherwise than from charity sins mortally. But whoever has not charity, acts otherwise than from charity. Therefore it follows that whoever has not charity, sins mortally in whatever he does, however good this may be in itself: which is absurd.

I answer that, Opinions have been contrary on this question. For some have said absolutely that the mode of charity comes under the precept; and yet that it is possible for one not having charity to fulfil this precept: because he can dispose himself to receive charity from God. Nor (say they) does it follow that a man not having charity sins mortally whenever he does something good of its kind: because it is an affirmative precept that binds one to act from charity, and is binding not for all time, but only for such time as one is in a state of charity. On the other hand, some have said that the mode of charity is altogether outside the precept.

Both these opinions are true up to a certain point. Because the act of charity can be considered in two ways. First, as an act by itself: and thus it falls under the precept of the law which specially prescribes it, viz. "Thou shalt love the thy Lord thy God," and "Thou shalt love thy neighbor." In this sense, the first opinion is true. Because it is not impossible to observe this precept which regards the act of charity; since man can dispose himself to possess charity, and when he possesses it, he can use it. Secondly, the act of charity can be considered as being the mode of the acts of the other virtues, i.e. inasmuch as the acts of the other virtues are ordained to charity, which is "the end of the commandment," as stated in 1 Timothy 1:5: for it has been said above (I-II:12:4) that the intention of the end is a formal mode of the act ordained to that end. In this sense the second opinion is true in saying that the mode of charity does not fall under the precept, that is to say that this commandment, "Honor thy father," does not mean that a man must honor his father from charity, but merely that he must honor him. Wherefore he that honors his father, yet has not charity, does not break this precept: although he does break the precept concerning the act of charity, for which reason he deserves to be punished.

Reply to Objection 1. Our Lord did not say, "If thou wilt enter into life, keep one commandment"; but "keep" all "the commandments": among which is included the commandment concerning the love of God and our neighbor.

Reply to Objection 2. The precept of charity contains the injunction that God should be loved from our whole heart, which means that all things would be referred to God. Consequently man cannot fulfil the precept of charity, unless he also refer all things to God. Wherefore he that honors his father and mother, is bound to honor them from charity, not in virtue of the precept, "Honor thy father and mother," but in virtue of the precept, "Thou shalt love the Lord thy God with thy whole heart." And since these are two affirmative precepts, not binding for all times, they can be binding, each one at a different time: so that it may happen that a man fulfils the precept of honoring his father and mother, without at the same time breaking the precept concerning the omission of the mode of charity.

Reply to Objection 3. Man cannot fulfil all the precepts of the law, unless he fulfil the precept of

charity, which is impossible without charity. Consequently it is not possible, as Pelagius maintained, for man to fulfil the law without grace.

Article 11. Whether it is right to distinguish other moral precepts of the law besides the decalogue?

Objection 1. It would seem that it is wrong to distinguish other moral precepts of the law besides the decalogue. Because, as Our Lord declared (Matthew 22:40), “on these two commandments” of charity “dependeth the whole law and the prophets.” But these two commandments are explained by the ten commandments of the decalogue. Therefore there is no need for other moral precepts.

Objection 2. Further, the moral precepts are distinct from the judicial and ceremonial precepts, as stated above (Question 99, Articles 3 and 4). But the determinations of the general moral precepts belong to the judicial and ceremonial precepts: and the general moral precepts are contained in the decalogue, or are even presupposed to the decalogue, as stated above (Article 3). Therefore it was unsuitable to lay down other moral precepts besides the decalogue.

Objection 3. Further, the moral precepts are about the acts of all the virtues, as stated above (Article 2). Therefore, as the Law contains, besides the decalogue, moral precepts pertaining to religion, liberality, mercy, and chastity; so there should have been added some precepts pertaining to the other virtues, for instance, fortitude, sobriety, and so forth. And yet such is not the case. It is therefore unbecoming to distinguish other moral precepts in the Law besides those of the decalogue.

On the contrary, It is written (Psalm 18:8): “The law of the Lord is unspotted, converting souls.” But man is preserved from the stain of sin, and his soul is converted to God by other moral precepts besides those of the decalogue. Therefore it was right for the Law to include other moral precepts.

I answer that, As is evident from what has been stated (Question 99, Articles 3 and 4), the judicial and ceremonial precepts derive their force from their institution alone: since before they were instituted, it seemed of no consequence whether things were done in this or that way. But the moral precepts derive their efficacy from the very dictate of natural reason, even if they were never included in the Law. Now of these there are three grades: for some are most certain, and so evident as to need no promulgation; such as the commandments of the love of God and our neighbor, and others like these, as stated above (Article 3), which are, as it were, the ends of the commandments; wherefore no man can have an erroneous judgment about them. Some precepts are more detailed, the reason of which even an uneducated man can easily grasp; and yet they need to be promulgated, because human judgment, in a few instances, happens to be led astray concerning them: these are the precepts of the decalogue. Again, there are some precepts the reason of which is not so evident to everyone, but only the wise; these are moral precepts added to the decalogue, and given to the people by God through Moses and Aaron.

But since the things that are evident are the principles whereby we know those that are not evident, these other moral precepts added to the decalogue are reducible to the precepts of the decalogue, as so many corollaries. Thus the first commandment of the decalogue forbids the worship of strange gods: and to this are added other precepts forbidding things relating to worship of idols: thus it is written (Deuteronomy 18:10-11): “Neither let there be found among you anyone that shall expiate his son or daughter, making them to pass through the fire: . . . neither let there be any wizard nor charmer, nor anyone that consulteth pythonic spirits, or fortune-tellers, or that seeketh the truth from the dead.” The second commandment forbids perjury. To this is added the prohibition of blasphemy (Leviticus 24:15, seqq) and the prohibition of false doctrine

(Deuteronomy 13). To the third commandment are added all the ceremonial precepts. To the fourth commandment prescribing the honor due to parents, is added the precept about honoring the aged, according to Leviticus 19:32: "Rise up before the hoary head, and honor the person of the aged man"; and likewise all the precepts prescribing the reverence to be observed towards our betters, or kindness towards our equals or inferiors. To the fifth commandment, which forbids murder, is added the prohibition of hatred and of any kind of violence inflicted on our neighbor, according to Leviticus 19:16: "Thou shalt not stand against the blood of thy neighbor": likewise the prohibition against hating one's brother (Leviticus 19:17): "Thou shalt not hate thy brother in thy heart." To the sixth commandment which forbids adultery, is added the prohibition about whoredom, according to Deuteronomy 23:17: "There shall be no whore among the daughters of Israel, nor whoremonger among the sons of Israel"; and the prohibition against unnatural sins, according to Leviticus 18:22-23: "Thou shalt not lie with mankind . . . thou shalt not copulate with any beast." To the seventh commandment which prohibits theft, is added the precept forbidding usury, according to Deuteronomy 23:19: "Thou shalt not lend to thy brother money to usury"; and the prohibition against fraud, according to Deuteronomy 25:13: "Thou shalt not have divers weights in thy bag"; and universally all prohibitions relating to peculations and larceny. To the eighth commandment, forbidding false testimony, is added the prohibition against false judgment, according to Exodus 23:2: "Neither shalt thou yield in judgment, to the opinion of the most part, to stray from the truth"; and the prohibition against lying (Exodus 23:7): "Thou shalt fly lying," and the prohibition against detraction, according to Leviticus 19:16: "Thou shalt not be a detractor, nor a whisperer among the people." To the other two commandments no further precepts are added, because thereby are forbidden all kinds of evil desires.

Reply to Objection 1. The precepts of the decalogue are ordained to the love of God and our neighbor as pertaining evidently to our duty towards them; but the other precepts are so ordained as pertaining thereto less evidently.

Reply to Objection 2. It is in virtue of their institution that the ceremonial and judicial precepts "are determinations of the precepts of the decalogue," not by reason of a natural instinct, as in the case of the superadded moral precepts.

Reply to Objection 3. The precepts of a law are ordained for the common good, as stated above (I-II:90:2). And since those virtues which direct our conduct towards others pertain directly to the common good, as also does the virtue of chastity, in so far as the generative act conduces to the common good of the species; hence precepts bearing directly on these virtues are given, both in the decalogue and in addition thereto. As to the act of fortitude there are the order to be given by the commanders in the war, which is undertaken for the common good: as is clear from Deuteronomy 20:3, where the priest is commanded (to speak thus): "Be not afraid, do not give back." In like manner the prohibition of acts of gluttony is left to paternal admonition, since it is contrary to the good of the household; hence it is said (Deuteronomy 21:20) in the person of parents: "He slighteth hearing our admonitions, he giveth himself to revelling, and to debauchery and banquetings."

Article 12. Whether the moral precepts of the Old Law justified man?

Objection 1. It would seem that the moral precepts of the Old Law justified man. Because the Apostle says (Romans 2:13): "For not the hearers of the Law are justified before God, but the doers of the Law shall be justified." But the doers of the Law are those who fulfil the precepts of the Law. Therefore the fulfilling of the precepts of the Law was a cause of justification.

Objection 2. Further, it is written (Leviticus 18:5): "Keep My laws and My judgments, which

if a man do, he shall live in them.” But the spiritual life of man is through justice. Therefore the fulfilling of the precepts of the Law was a cause of justification.

Objection 3. Further, the Divine law is more efficacious than human law. But human law justifies man; since there is a kind of justice consisting in fulfilling the precepts of law. Therefore the precepts of the Law justified man.

On the contrary, The Apostle says (2 Corinthians 3:6): “The letter killeth”: which, according to Augustine (*De Spir. et Lit.* xiv), refers even to the moral precepts. Therefore the moral precepts did not cause justice.

I answer that, Just as “healthy” is said properly and first of that which is possessed of health, and secondarily of that which is a sign or a safeguard of health; so justification means first and properly the causing of justice; while secondarily and improperly, as it were, it may denote a sign of justice or a disposition thereto. If justice be taken in the last two ways, it is evident that it was conferred by the precepts of the Law; in so far, to wit, as they disposed men to the justifying grace of Christ, which they also signified, because as Augustine says (*Contra Faust.* xxii, 24), “even the life of that people foretold and foreshadowed Christ.”

But if we speak of justification properly so called, then we must notice that it can be considered as in the habit or as in the act: so that accordingly justification may be taken in two ways. First, according as man is made just, by becoming possessed of the habit of justice: secondly, according as he does works of justice, so that in this sense justification is nothing else than the execution of justice. Now justice, like the other virtues, may denote either the acquired or the infused virtue, as is clear from what has been stated (I-II:63:4. The acquired virtue is caused by works; but the infused virtue is caused by God Himself through His grace. The latter is true justice, of which we are speaking now, and in this respect of which a man is said to be just before God, according to Romans 4:2: “If Abraham were justified by works, he hath whereof to glory, but not before God.” Hence this justice could not be caused by moral precepts, which are about human actions: wherefore the moral precepts could not justify man by causing justice.

If, on the other hand, by justification we understand the execution of justice, thus all the precepts of the Law justified man, but in various ways. Because the ceremonial precepts taken as a whole contained something just in itself, in so far as they aimed at offering worship to God; whereas taken individually they contained that which is just, not in itself, but by being a determination of the Divine law. Hence it is said of these precepts that they did not justify man save through the devotion and obedience of those who complied with them. On the other hand the moral and judicial precepts, either in general or also in particular, contained that which is just in itself: but the moral precepts contained that which is just in itself according to that “general justice” which is “every virtue” according to *Ethic.* v, 1: whereas the judicial precepts belonged to “special justice,” which is about contracts connected with the human mode of life, between one man and another.

Reply to Objection 1. The Apostle takes justification for the execution of justice.

Reply to Objection 2. The man who fulfilled the precepts of the Law is said to live in them, because he did not incur the penalty of death, which the Law inflicted on its transgressors: in this sense the Apostle quotes this passage (*Galatians* 3:12).

Reply to Objection 3. The precepts of human law justify man by acquired justice: it is not about this that we are inquiring now, but only about that justice which is before God.

Question 101. The ceremonial precepts in themselves

1. The nature of the ceremonial precepts
2. Are they figurative?
3. Should there have been many of them?
4. Their various kinds

Article 1. Whether the nature of the ceremonial precepts consists in their pertaining to the worship of God?

Objection 1. It would seem that the nature of the ceremonial precepts does not consist in their pertaining to the worship of God. Because, in the Old Law, the Jews were given certain precepts about abstinence from food (Leviticus 11); and about refraining from certain kinds of clothes, e.g. (Leviticus 19:19): “Thou shalt not wear a garment that is woven of two sorts”; and again (Numbers 15:38): “To make to themselves fringes in the corners of their garments.” But these are not moral precepts; since they do not remain in the New Law. Nor are they judicial precepts; since they do not pertain to the pronouncing of judgment between man and man. Therefore they are ceremonial precepts. Yet they seem in no way to pertain to the worship of God. Therefore the nature of the ceremonial precepts does not consist in their pertaining to Divine worship.

Objection 2. Further, some state that the ceremonial precepts are those which pertain to solemnities; as though they were so called from the “cerei” [candles] which are lit up on those occasions. But many other things besides solemnities pertain to the worship of God. Therefore it does not seem that the ceremonial precepts are so called from their pertaining to the Divine worship.

Objection 3. Further, some say that the ceremonial precepts are patterns, i.e. rules, of salvation: because the Greek *chaire* is the same as the Latin “salve.” But all the precepts of the Law are rules of salvation, and not only those that pertain to the worship of God. Therefore not only those precepts which pertain to Divine worship are called ceremonial.

Objection 4. Further, Rabbi Moses says (Doct. Perplex. iii) that the ceremonial precepts are those for which there is no evident reason. But there is evident reason for many things pertaining to the worship of God; such as the observance of the Sabbath, the feasts of the Passover and of the Tabernacles, and many other things, the reason for which is set down in the Law. Therefore the ceremonial precepts are not those which pertain to the worship of God.

On the contrary, It is written (Exodus 18:19-20): “Be thou to the people in those things that pertain to God . . . and . . . shew the people the ceremonies and the manner of worshipping.”

I answer that, As stated above (I-II:99:4), the ceremonial precepts are determinations of the moral precepts whereby man is directed to God, just as the judicial precepts are determinations of the moral precepts whereby he is directed to his neighbor. Now man is directed to God by the worship due to Him. Wherefore those precepts are properly called ceremonial, which pertain to the Divine worship. The reason for their being so called was given above (I-II:99:3), when we established the distinction between the ceremonial and the other precepts.

Reply to Objection 1. The Divine worship includes not only sacrifices and the like, which seem to be directed to God immediately, but also those things whereby His worshippers are duly prepared to worship Him: thus too in other matters, whatever is preparatory to the end comes under the science whose object is the end. Accordingly those precepts of the Law which regard the clothing and food of God’s worshippers, and other such matters, pertain to a certain preparation of

the ministers, with the view of fitting them for the Divine worship: just as those who administer to a king make use of certain special observances. Consequently such are contained under the ceremonial precepts.

Reply to Objection 2. The alleged explanation of the name does not seem very probable: especially as the Law does not contain many instances of the lighting of candles in solemnities; since, even the lamps of the Candlestick were furnished with “oil of olives,” as stated in Leviticus 24:2. Nevertheless we may say that all things pertaining to the Divine worship were more carefully observed on solemn festivals: so that all ceremonial precepts may be included under the observance of solemnities.

Reply to Objection 3. Neither does this explanation of the name appear to be very much to the point, since the word “ceremony” is not Greek but Latin. We may say, however, that, since man’s salvation is from God, those precepts above all seem to be rules of salvation, which direct man to God: and accordingly those which refer to Divine worship are called ceremonial precepts.

Reply to Objection 4. This explanation of the ceremonial precepts has a certain amount of probability: not that they are called ceremonial precisely because there is no evident reason for them; this is a kind of

consequence. For, since the precepts referring to the Divine worship must needs be figurative, as we shall state further on (Article 2), the consequence is that the reason for them is not so very evident.

Article 2. Whether the ceremonial precepts are figurative?

Objection 1. It would seem that the ceremonial precepts are not figurative. For it is the duty of every teacher to express himself in such a way as to be easily understood, as Augustine states (De Doctr. Christ. iv, 4,10) and this seems very necessary in the framing of a law: because precepts of law are proposed to the populace; for which reason a law should be manifest, as Isidore declares (Etym. v, 21). If therefore the precepts of the Law were given as figures of something, it seems unbecoming that Moses should have delivered these precepts without explaining what they signified.

Objection 2. Further, whatever is done for the worship of God, should be entirely free from unfitness. But the performance of actions in representation of others, seems to savor of the theatre or of the drama: because formerly the actions performed in theatres were done to represent the actions of others. Therefore it seems that such things should not be done for the worship of God. But the ceremonial precepts are ordained to the Divine worship, as stated above (Article 1). Therefore they should not be figurative.

Objection 3. Further, Augustine says (Enchiridion iii, iv) that “God is worshipped chiefly by faith, hope, and charity.” But the precepts of faith, hope, and charity are not figurative. Therefore the ceremonial precepts should not be figurative.

Objection 4. Further, Our Lord said (John 4:24): “God is a spirit, and they that adore Him, must adore Him in spirit and in truth.” But a figure is not the very truth: in fact one is condivided with the other. Therefore the ceremonial precepts, which refer to the Divine worship, should not be figurative.

On the contrary, The Apostle says (Colossians 2:16-17): “Let no man . . . judge you in meat or in drink, or in respect of a festival day, or of the new moon, or of the sabbaths, which are a shadow of things to come.”

I answer that, As stated above (Article 1; Question 99, Articles 3 and 4), the ceremonial precepts are those which refer to the worship of God. Now the Divine worship is twofold: internal, and

external. For since man is composed of soul and body, each of these should be applied to the worship of God; the soul by an interior worship; the body by an outward worship: hence it is written (Psalm 83:3): "My heart and my flesh have rejoiced in the living God." And as the body is ordained to God through the soul, so the outward worship is ordained to the internal worship. Now interior worship consists in the soul being united to God by the intellect and affections. Wherefore according to the various ways in which the intellect and affections of the man who worships God are rightly united to God, his external actions are applied in various ways to the Divine worship.

For in the state of future bliss, the human intellect will gaze on the Divine Truth in Itself. Wherefore the external worship will not consist in anything figurative, but solely in the praise of God, proceeding from the inward knowledge and affection, according to Isaiah 51:3: "Joy and gladness shall be found therein, thanksgiving and the voice of praise."

But in the present state of life, we are unable to gaze on the Divine Truth in Itself, and we need the ray of Divine light to shine upon us under the form of certain sensible figures, as Dionysius states (Coel. Hier. i); in various ways, however, according to the various states of human knowledge. For under the Old Law, neither was the Divine Truth manifest in Itself, nor was the way leading to that manifestation as yet opened out, as the Apostle declares (Hebrews 9:8). Hence the external worship of the Old Law needed to be figurative not only of the future truth to be manifested in our heavenly country, but also of Christ, Who is the way leading to that heavenly manifestation. But under the New Law this way is already revealed: and therefore it needs no longer to be foreshadowed as something future, but to be brought to our minds as something past or present: and the truth of the glory to come, which is not yet revealed, alone needs to be foreshadowed. This is what the Apostle says (Hebrews 11:1): "The Law has [Vulgate: 'having'] a shadow of the good things to come, not the very image of the things": for a shadow is less than an image; so that the image belongs to the New Law, but the shadow to the Old.

Reply to Objection 1. The things of God are not to be revealed to man except in proportion to his capacity: else he would be in danger of downfall, were he to despise what he cannot grasp. Hence it was more beneficial that the Divine mysteries should be revealed to uncultured people under a veil of figures, that thus they might know them at least implicitly by using those figures to the honor of God.

Reply to Objection 2. Just as human reason fails to grasp poetical expressions on account of their being lacking in truth, so does it fail to grasp Divine things perfectly, on account of the sublimity of the truth they contain: and therefore in both cases there is need of signs by means of sensible figures.

Reply to Objection 3. Augustine is speaking there of internal worship; to which, however, external worship should be ordained, as stated above.

The same answer applies to the Fourth Objection: because men were taught by Him to practice more perfectly the spiritual worship of God.

Article 3. Whether there should have been many ceremonial precepts?

Objection 1. It would seem that there should not have been many ceremonial precepts. For those things which conduce to an end should be proportionate to that end. But the ceremonial precepts, as stated above (Articles 1 and 2), are ordained to the worship of God, and to the foreshadowing of Christ. Now "there is but one God, of Whom are all things . . . and one Lord Jesus Christ, by Whom are all things" (1 Corinthians 8:6). Therefore there should not have been many ceremonial precepts.

Objection 2. Further, the great number of the ceremonial precepts was an occasion of transgression, according to the words of Peter (Acts 15:10): “Why tempt you God, to put a yoke upon the necks of the disciples, which neither our fathers nor we have been able to bear?” Now the transgression of the Divine precepts is an obstacle to man’s salvation. Since, therefore, every law should conduce to man’s salvation, as Isidore says (Etym. v, 3), it seems that the ceremonial precepts should not have been given in great number.

Objection 3. Further, the ceremonial precepts referred to the outward and bodily worship of God, as stated above (Article 2). But the Law should have lessened this bodily worship: since it directed men to Christ, Who taught them to worship God “in spirit and in truth,” as stated in John 4:23. Therefore there should not have been many ceremonial precepts.

On the contrary, (Hosea 8:12): “I shall write to them [Vulgate: ‘him’] My manifold laws”; and (Job 11:6): “That He might show thee the secrets of His wisdom, and that His Law is manifold.”

I answer that, As stated above (I-II:96:1), every law is given to a people. Now a people contains two kinds of men: some, prone to evil, who have to be coerced by the precepts of the law, as stated above (I-II:95:1); some, inclined to good, either from nature or from custom, or rather from grace; and the like have to be taught and improved by means of the precepts of the law. Accordingly, with regard to both kinds of the law. Accordingly, with regard to both kinds of men it was expedient that the Old Law should contain many ceremonial precepts. For in that people there were many prone to idolatry; wherefore it was necessary to recall them by means of ceremonial precepts from the worship of idols to the worship of God. And since men served idols in many ways, it was necessary on the other hand to devise many means of repressing every single one: and again, to lay many obligations on such like men, in order that being burdened, as it were, by their duties to the Divine worship, they might have no time for the service of idols. As to those who were inclined to good, it was again necessary that there should be many ceremonial precepts; both because thus their mind turned to God in many ways, and more continually; and because the mystery of Christ, which was foreshadowed by these ceremonial precepts, brought many boons to the world, and afforded men many considerations, which needed to be signified by various ceremonies.

Reply to Objection 1. When that which conduces to an end is sufficient to conduce thereto, then one such thing suffices for one end: thus one remedy, if it be efficacious, suffices sometimes to restore men to health, and then the remedy needs not to be repeated. But when that which conduces to an end is weak and imperfect, it needs to be multiplied: thus many remedies are given to a sick man, when one is not enough to heal him. Now the ceremonies of the Old Law were weak and imperfect, both for representing the mystery of Christ, on account of its surpassing excellence; and for subjugating men’s minds to God. Hence the Apostle says (Hebrews 7:18-19): “There is a setting aside of the former commandment because of the weakness and unprofitableness thereof, for the law brought nothing to perfection.” Consequently these ceremonies needed to be in great number.

Reply to Objection 2. A wise lawgiver should suffer lesser transgressions, that the greater may be avoided. And therefore, in order to avoid the sin of idolatry, and the pride which would arise in the hearts of the Jews, were they to fulfil all the precepts of the Law, the fact that they would in consequence find many occasions of disobedience did not prevent God from giving them many ceremonial precepts.

Reply to Objection 3. The Old Law lessened bodily worship in many ways. Thus it forbade sacrifices to be offered in every place and by any person. Many such like things did it enact for the lessening of bodily worship; as Rabbi Moses, the Egyptian testifies (Doct. Perplex. iii). Nevertheless

it behooved not to attenuate the bodily worship of God so much as to allow men to fall away into the worship of idols.

Article 4. Whether the ceremonies of the Old Law are suitably divided into sacrifices, sacred things, sacraments, and observances?

Objection 1. It would seem that the ceremonies of the Old Law are unsuitably divided into “sacrifices, sacred things, sacraments, and observances.” For the ceremonies of the Old Law foreshadowed Christ. But this was done only by the sacrifices, which foreshadowed the sacrifice in which Christ “delivered Himself an oblation and a sacrifice to God” (Ephesians 5:2). Therefore none but the sacrifices were ceremonies.

Objection 2. Further, the Old Law was ordained to the New. But in the New Law the sacrifice is the Sacrament of the Altar. Therefore in the Old Law there should be no distinction between “sacrifices” and “sacraments.”

Objection 3. Further, a “sacred thing” is something dedicated to God: in which sense the tabernacle and its vessels were said to be consecrated. But all the ceremonial precepts were ordained to the worship of God, as stated above (Article 1). Therefore all ceremonies were sacred things. Therefore “sacred things” should not be taken as a part of the ceremonies.

Objection 4. Further, “observances” are so called from having to be observed. But all the precepts of the Law had to be observed: for it is written (Deuteronomy 8:11): “Observe [Douay: ‘Take heed’] and beware lest at any time thou forget the Lord thy God, and neglect His commandments and judgments and ceremonies.” Therefore the “observances” should not be considered as a part of the ceremonies.

Objection 5. Further, the solemn festivals are reckoned as part of the ceremonial: since they were a shadow of things to come (Colossians 2:16-17): and the same may be said of the oblations and gifts, as appears from the words of the Apostle (Hebrews 9:9): and yet these do not seem to be inclined in any of those mentioned above. Therefore the above division of ceremonies is unsuitable.

On the contrary, In the Old Law each of the above is called a ceremony. For the sacrifices are called ceremonies (Numbers 15:24): “They shall offer a calf . . . and the sacrifices and libations thereof, as the ceremonies require.” Of the sacrament of Order it is written (Leviticus 7:35): “This is the anointing of Aaron and his sons in the ceremonies.” Of sacred things also it is written (Exodus 38:21): “These are the instruments of the tabernacle of the testimony . . . in the ceremonies of the Levites.” And again of the observances it is written (1 Kings 9:6): “If you . . . shall turn away from following Me, and will not observe [Douay: ‘keep’] My . . . ceremonies which I have set before you.”

I answer that, As stated above (Articles 1 and 2), the ceremonial precepts are ordained to the Divine worship. Now in this worship we may consider the worship itself, the worshippers, and the instruments of worship. The worship consists specially in “sacrifices,” which are offered up in honor of God. The instruments of worship refer to the “sacred things,” such as the tabernacle, the vessels and so forth. With regard to the worshippers two points may be considered. The first point is their preparation for Divine worship, which is effected by a sort of consecration either of the people or of the ministers; and to this the “sacraments” refer. The second point is their particular mode of life, whereby they are distinguished from those who do not worship God: and to this pertain the “observances,” for instance, in matters of food, clothing, and so forth.

Reply to Objection 1. It was necessary for the sacrifices to be offered both in some certain place and by some certain men: and all this pertained to the worship of God. Wherefore just as their

sacrifices signified Christ the victim, so too their sacraments and sacred things of the New Law; while their observances foreshadowed the mode of life of the people under the New Law: all of which things pertain to Christ.

Reply to Objection 2. The sacrifice of the New Law, viz. the Eucharist, contains Christ Himself, the Author of our Sanctification: for He sanctified “the people by His own blood” (Hebrews 13:12). Hence this Sacrifice is also a sacrament. But the sacrifices of the Old Law did not contain Christ, but foreshadowed Him; hence they are not called sacraments. In order to signify this there were certain sacraments apart from the sacrifices of the Old Law, which sacraments were figures of the sanctification to come. Nevertheless to certain consecrations certain sacrifices were united.

Reply to Objection 3. The sacrifices and sacraments were of course sacred things. But certain things were sacred, through being dedicated to the Divine worship, and yet were not sacrifices or sacraments: wherefore they retained the common designation of sacred things.

Reply to Objection 4. Those things which pertained to the mode of life of the people who worshipped God, retained the common designation of observances, in so far as they fell short of the above. For they were not called sacred things, because they had no immediate connection with the worship of God, such as the tabernacle and its vessels had. But by a sort of consequence they were matters of ceremony, in so far as they affected the fitness of the people who worshipped God.

Reply to Objection 5. Just as the sacrifices were offered in a fixed place, so were they offered at fixed times: for which reason the solemn festivals seem to be reckoned among the sacred things. The oblations and gifts are counted together with the sacrifices; hence the Apostle says (Hebrews 5:1): “Every high-priest taken from among men, is ordained for men in things that appertain to God, that he may offer up gifts and sacrifices.”

Question 102. The causes of the ceremonial precepts

1. Was there any cause for the ceremonial precepts?
2. Was the cause of the ceremonial precepts literal or figurative?
3. The causes of the sacrifices
4. The causes of the holy things
5. The causes of the sacraments of the Old Law
6. The causes of the observances

Article 1. Whether there was any cause for the ceremonial precepts?

Objection 1. It would seem that there was no cause for the ceremonial precepts. Because on Ephesians 2:15, “Making void the law of the commandments,” the gloss says, (i.e.) “making void the Old Law as to the carnal observances, by substituting decrees, i.e. evangelical precepts, which are based on reason.” But if the observances of the Old Law were based on reason, it would have been useless to void them by the reasonable decrees of the New Law. Therefore there was no reason for the ceremonial observances of the Old Law.

Objection 2. Further, the Old Law succeeded the law of nature. But in the law of nature there was a precept for which there was no reason save that man’s obedience might be tested; as Augustine says (Gen. ad lit. viii, 6,13), concerning the prohibition about the tree of life. Therefore in the Old Law there should have been some precepts for the purpose of testing man’s obedience, having no reason in themselves.

Objection 3. Further, man's works are called moral according as they proceed from reason. If therefore there is any reason for the ceremonial precepts, they would not differ from the moral precepts. It seems therefore that there was no cause for the ceremonial precepts: for the reason of a precept is taken from some cause.

On the contrary, It is written (Psalm 18:9): "The commandment of the Lord is lightsome, enlightening the eyes." But the ceremonial precepts are commandments of God. Therefore they are lightsome: and yet they would not be so, if they had no reasonable cause. Therefore the ceremonial precepts have a reasonable cause.

I answer that, Since, according to the Philosopher (Metaph. i, 2), it is the function of a "wise man to do everything in order," those things which proceed from the Divine wisdom must needs be well ordered, as the Apostle states (Romans 13:1). Now there are two conditions required for things to be well ordered. First, that they be ordained to their due end, which is the principle of the whole order in matters of action: since those things that happen by chance outside the intention of the end, or which are not done seriously but for fun, are said to be inordinate. Secondly, that which is done in view of the end should be proportionate to the end. From this it follows that the reason for whatever conduces to the end is taken from the end: thus the reason for the disposition of a saw is taken from cutting, which is its end, as stated in Phys. ii, 9. Now it is evident that the ceremonial precepts, like all the other precepts of the Law, were institutions of Divine wisdom: hence it is written (Deuteronomy 4:6): "This is your wisdom and understanding in the sight of nations." Consequently we must needs say that the ceremonial precepts were ordained to a certain end, wherefrom their reasonable causes can be gathered.

Reply to Objection 1. It may be said there was no reason for the observances of the Old Law, in the sense that there was no reason in the very nature of the thing done: for instance that a garment should not be made of wool and linen. But there could be a reason for them in relation to something else: namely, in so far as something was signified or excluded thereby. On the other hand, the decrees of the New Law, which refer chiefly to faith and the love of God, are reasonable from the very nature of the act.

Reply to Objection 2. The reason for the prohibition concerning the tree of knowledge of good and evil was not that this tree was naturally evil: and yet this prohibition was reasonable in its relation to something else, in as much as it signified something. And so also the ceremonial precepts of the Old Law were reasonable on account of their relation to something else.

Reply to Objection 3. The moral precepts in their very nature have reasonable causes: as for instance, "Thou shalt not kill, Thou shalt not steal." But the ceremonial precepts have a reasonable cause in their relation to something else, as stated above.

Article 2. Whether the ceremonial precepts have a literal cause or merely a figurative cause?

Objection 1. It would seem that the ceremonial precepts have not a literal, but merely a figurative cause. For among the ceremonial precepts, the chief was circumcision and the sacrifice of the paschal lamb. But neither of these had any but a figurative cause: because each was given as a sign. For it is written (Genesis 17:11): "You shall circumcise the flesh of your foreskin, that it may be a sign of the covenant between Me and you": and of the celebration of the Passover it is written (Exodus 13:9): "It shall be as a sign in thy hand, and as a memorial before thy eyes." Therefore much more did the other ceremonial precepts have none but a figurative reason.

Objection 2. Further, an effect is proportionate to its cause. But all the ceremonial precepts are figurative, as stated above (I-II:101:2). Therefore they have no other than a figurative cause.

Objection 3. Further, if it be a matter of indifference whether a certain thing, considered in itself, be done in a particular way or not, it seems that it has not a literal cause. Now there are certain points in the ceremonial precepts, which appear to be a matter of indifference, as to whether they be done in one way or in another: for instance, the number of animals to be offered, and other such particular circumstances. Therefore there is no literal cause for the precepts of the Old Law.

On the contrary, Just as the ceremonial precepts foreshadowed Christ, so did the stories of the Old Testament: for it is written (1 Corinthians 10:11) that “all (these things) happened to them in figure.” Now in the stories of the Old Testament, besides the mystical or figurative, there is the literal sense. Therefore the ceremonial precepts had also literal, besides their figurative causes.

I answer that, As stated above (Article 1), the reason for whatever conduces to an end must be taken from that end. Now the end of the ceremonial precepts was twofold: for they were ordained to the Divine worship, for that particular time, and to the foreshadowing of Christ; just as the words of the prophets regarded the time being in such a way as to be utterances figurative of the time to come, as Jerome says on Hosea 1:3. Accordingly the reasons for the ceremonial precepts of the Old Law can be taken in two ways. First, in respect of the Divine worship which was to be observed for that particular time: and these reasons are literal: whether they refer to the shunning of idolatry; or recall certain Divine benefits; or remind men of the Divine excellence; or point out the disposition of mind which was then required in those who worshipped God. Secondly, their reasons can be gathered from the point of view of their being ordained to foreshadow Christ: and thus their reasons are figurative and mystical: whether they be taken from Christ Himself and the Church, which pertains to the allegorical sense; or to the morals of the Christian people, which pertains to the moral sense; or to the state of future glory, in as much as we are brought thereto by Christ, which refers to the anagogical sense.

Reply to Objection 1. Just as the use of metaphorical expressions in Scripture belongs to the literal sense, because the words are employed in order to convey that particular meaning; so also the meaning of those legal ceremonies which commemorated certain Divine benefits, on account of which they were instituted, and of others similar which belonged to that time, does not go beyond the order of literal causes. Consequently when we assert that the cause of the celebration of the Passover was its signification of the delivery from Egypt, or that circumcision was a sign of God’s covenant with Abraham, we assign the literal cause.

Reply to Objection 2. This argument would avail if the ceremonial precepts had been given merely as figures of things to come, and not for the purpose of worshipping God then and there.

Reply to Objection 3. As we have stated when speaking of human laws (Question 96, Articles 1 and 6), there is a reason for them in the abstract, but not in regard to particular conditions, which depend on the judgment of those who frame them; so also many particular determinations in the ceremonies of the Old Law have no literal cause, but only a figurative cause; whereas in the abstract they have a literal cause.

Article 3. Whether a suitable cause can be assigned for the ceremonies which pertained to sacrifices?

Objection 1. It would seem that no suitable cause can be assigned for the ceremonies pertaining to sacrifices. For those things which were offered in sacrifice, are those which are necessary for sustaining human life: such as certain animals and certain loaves. But God needs no such sustenance; according to Psalm 49:13: “Shall I eat the flesh of bullocks? Or shall I drink the blood of goats?” Therefore such sacrifices were unfittingly offered to God.

Objection 2. Further, only three kinds of quadrupeds were offered in sacrifice to God, viz. oxen, sheep and goats; of birds, generally the turtledove and the dove; but specially, in the cleansing of a leper, an offering was made of sparrows. Now many other animals are more noble than these. Since therefore whatever is best should be offered to God, it seems that not only of these three should sacrifices have been offered to Him.

Objection 3. Further, just as man has received from God the dominion over birds and beasts, so also has he received dominion over fishes. Consequently it was unfitting for fishes to be excluded from the divine sacrifices.

Objection 4. Further, turtledoves and doves indifferently are commanded to be offered up. Since then the young of the dove are commanded to be offered, so also should the young of the turtledove.

Objection 5. Further, God is the Author of life, not only of men, but also of animals, as is clear from Genesis 1:20, seqq. Now death is opposed to life. Therefore it was fitting that living animals rather than slain animals should be offered to God, especially as the Apostle admonishes us (Romans 12:1), to present our bodies “a living sacrifice, holy, pleasing unto God.”

Objection 6. Further, if none but slain animals were offered in sacrifice to God, it seems that it mattered not how they were slain. Therefore it was unfitting that the manner of immolation should be determined, especially as regards birds (Leviticus 1:15, seqq.).

Objection 7. Further, every defect in an animal is a step towards corruption and death. If therefore slain animals were offered to God, it was unreasonable to forbid the offering of an imperfect animal, e.g. a lame, or a blind, or otherwise defective animal.

Objection 8. Further, those who offer victims to God should partake thereof, according to the words of the Apostle (1 Corinthians 10:18): “Are not they that eat of the sacrifices partakers of the altar?” It was therefore unbecoming for the offerers to be denied certain parts of the victims, namely, the blood, the fat, the breastbone and the right shoulder.

Objection 9. Further, just as holocausts were offered up in honor of God, so also were the peace-offerings and sin-offerings. But no female animals was offered up to God as a holocaust, although holocausts were offered of both quadrupeds and birds. Therefore it was inconsistent that female animals should be offered up in peace-offerings and sin-offerings, and that nevertheless birds should not be offered up in peace-offerings.

Objection 10. Further, all the peace-offerings seem to be of one kind. Therefore it was unfitting to make a distinction among them, so that it was forbidden to eat the flesh of certain peace-offerings on the following day, while it was allowed to eat the flesh of other peace-offerings, as laid down in Leviticus 7:15, seqq.

Objection 11. Further, all sins agree in turning us from God. Therefore, in order to reconcile us to God, one kind of sacrifice should have been offered up for all sins.

Objection 12. Further, all animals that were offered up in sacrifice, were offered up in one way, viz. slain. Therefore it does not seem to be suitable that products of the soil should be offered up in various ways; for sometimes an offering was made of ears of corn, sometimes of flour, sometimes of bread, this being baked sometimes in an oven, sometimes in a pan, sometimes on a gridiron.

Objection 13. Further, whatever things are serviceable to us should be recognized as coming from God. It was therefore unbecoming that besides animals, nothing but bread, wine, oil, incense, and salt should be offered to God.

Objection 14. Further, bodily sacrifices denote the inward sacrifice of the heart, whereby man offers his soul to God. But in the inward sacrifice, the sweetness, which is denoted by honey,

surpasses the pungency which salt represents; for it is written (Sirach 24:27): "My spirit is sweet above honey." Therefore it was unbecoming that the use of honey, and of leaven which makes bread savory, should be forbidden in a sacrifice; while the use was prescribed, of salt which is pungent, and of incense which has a bitter taste. Consequently it seems that things pertaining to the ceremonies of the sacrifices have no reasonable cause.

On the contrary, It is written (Leviticus 1:13): "The priest shall offer it all and burn it all upon the altar, for a holocaust, and most sweet savor to the Lord." Now according to Wisdom 7:28, "God loveth none but him that dwelleth with wisdom": whence it seems to follow that whatever is acceptable to God is wisely done. Therefore these ceremonies of the sacrifices were wisely done, as having reasonable causes.

I answer that, As stated above (Article 2), the ceremonies of the Old Law had a twofold cause, viz. a literal cause, according as they were intended for Divine worship; and a figurative or mystical cause, according as they were intended to foreshadow Christ: and on either hand the ceremonies pertaining to the sacrifices can be assigned to a fitting cause.

For, according as the ceremonies of the sacrifices were intended for the divine worship, the causes of the sacrifices can be taken in two ways. First, in so far as the sacrifice represented the directing of the mind to God, to which the offerer of the sacrifice was stimulated. Now in order to direct his mind to God aright, man must recognize that whatever he has is from God as from its first principle, and direct it to God as its last end. This was denoted in the offerings and sacrifices, by the fact that man offered some of his own belongings in honor of God, as though in recognition of his having received them from God, according to the saying of David (1 Chronicles 29:14): "All things are Thine: and we have given Thee what we received of Thy hand." Wherefore in offering up sacrifices man made protestation that God is the first principle of the creation of all things, and their last end, to which all things must be directed. And since, for the human mind to be directed to God aright, it must recognize no first author of things other than God, nor place its end in any other; for this reason it was forbidden in the Law to offer sacrifice to any other but God, according to Exodus 22:20: "He that sacrificeth to gods, shall be put to death, save only to the Lord." Wherefore another reasonable cause may be assigned to the ceremonies of the sacrifices, from the fact that thereby men were withdrawn from offering sacrifices to idols. Hence too it is that the precepts about the sacrifices were not given to the Jewish people until after they had fallen into idolatry, by worshipping the molten calf: as though those sacrifices were instituted, that the people, being ready to offer sacrifices, might offer those sacrifices to God rather than to idols. Thus it is written (Jeremiah 7:22): "I spake not to your fathers and I commanded them not, in the day that I brought them out of the land of Egypt, concerning the matter of burnt-offerings and sacrifices."

Now of all the gifts which God vouchsafed to mankind after they had fallen away by sin, the chief is that He gave His Son; wherefore it is written (John 3:16): "God so loved the world, as to give His only-begotten Son; that whosoever believeth in Him, may not perish, but may have life everlasting." Consequently the chief sacrifice is that whereby Christ Himself "delivered Himself . . . to God for an odor of sweetness" (Ephesians 5:2). And for this reason all the other sacrifices of the Old Law were offered up in order to foreshadow this one individual and paramount sacrifice—the imperfect forecasting the perfect. Hence the Apostle says (Hebrews 10:11) that the priest of the Old Law "often" offered "the same sacrifices, which can never take away sins: but" Christ offered "one sacrifice for sins, for ever." And since the reason of the figure is taken from that which the figure represents, therefore the reasons of the figurative sacrifices of the Old Law should be taken from the true sacrifice of Christ.

Reply to Objection 1. God did not wish these sacrifices to be offered to Him on account of the things themselves that were offered, as though He stood in need of them: wherefore it is written (Isaiah 1:11): "I desire not holocausts of rams, and fat of fatlings, and blood of calves and lambs and buckgoats." But, as stated above, He wished them to be offered to Him, in order to prevent idolatry; in order to signify the right ordering of man's mind to God; and in order to represent the mystery of the Redemption of man by Christ.

Reply to Objection 2. In all the respects mentioned above (Reply to Objection 1), there was a suitable reason for these animals, rather than others, being offered in sacrifice to God. First, in order to prevent idolatry. Because idolaters offered all other animals to their gods, or made use of them in their sorceries: while the Egyptians (among whom the people had been dwelling) considered it abominable to slay these animals, wherefore they used not to offer them in sacrifice to their gods. Hence it is written (Exodus 8:26): "We shall sacrifice the abominations of the Egyptians to the Lord our God." For they worshipped the sheep; they revered the ram (because demons appeared under the form thereof); while they employed oxen for agriculture, which was reckoned by them as something sacred.

Secondly, this was suitable for the aforesaid right ordering of man's mind to God: and in two ways. First, because it is chiefly by means of these animals that human life is sustained: and moreover they are most clean, and partake of a most clean food: whereas other animals are either wild, and not deputed to ordinary use among men: or, if they be tame, they have unclean food, as pigs and geese: and nothing but what is clean should be offered to God. These birds especially were offered in sacrifice because there were plenty of them in the land of promise. Secondly, because the sacrificing of these animals represented purity of heart. Because as the gloss says on Leviticus 1, "We offer a calf, when we overcome the pride of the flesh; a lamb, when we restrain our unreasonable motions; a goat, when we conquer wantonness; a turtledove, when we keep chaste; unleavened bread, when we feast on the unleavened bread of sincerity." And it is evident that the dove denotes charity and simplicity of heart.

Thirdly, it was fitting that these animals should be offered, that they might foreshadow Christ. Because, as the gloss observes, "Christ is offered in the calf, to denote the strength of the cross; in the lamb, to signify His innocence; in the ram, to foreshadow His headship; and in the goat, to signify the likeness of 'sinful flesh' [An allusion to Colossians 2:11 (Textus Receptus)]. The turtledove and dove denoted the union of the two natures"; or else the turtledove signified chastity; while the dove was a figure of charity. "The wheat-flour foreshadowed the sprinkling of believers with the water of Baptism."

Reply to Objection 3. Fish through living in water are further removed from man than other animals, which, like man, live in the air. Again, fish die as soon as they are taken out of water; hence they could not be offered in the temple like other animals.

Reply to Objection 4. Among turtledoves the older ones are better than the young; while with doves the case is the reverse. Wherefore, as Rabbi Moses observes (Doct. Perplex. iii), turtledoves and young doves are commanded to be offered, because nothing should be offered to God but what is best.

Reply to Objection 5. The animals which were offered in sacrifice were slain, because it is by being killed that they become useful to man, forasmuch as God gave them to man for food. Wherefore also they were burnt with fire: because it is by being cooked that they are made fit for human consumption. Moreover the slaying of the animals signified the destruction of sins: and also that man deserved death on account of his sins; as though those animals were slain in man's

stead, in order to betoken the expiation of sins. Again the slaying of these animals signified the slaying of Christ.

Reply to Objection 6. The Law fixed the special manner of slaying the sacrificial animals in order to exclude other ways of killing, whereby idolaters sacrificed animals to idols. Or again, as Rabbi Moses says (Doct. Perplex. iii), "the Law chose that manner of slaying which was least painful to the slain animal." This excluded cruelty on the part of the offerers, and any mangling of the animals slain.

Reply to Objection 7. It is because unclean animals are wont to be held in contempt among men, that it was forbidden to offer them in sacrifice to God: and for this reason too they were forbidden (Deuteronomy 23:18) to offer "the hire of a strumpet or the price of a dog in the house of . . . God." For the same reason they did not offer animals before the seventh day, because such were abortive as it were, the flesh being not yet firm on account of its exceeding softness.

Reply to Objection 8. There were three kinds of sacrifices. There was one in which the victim was entirely consumed by fire: this was called "a holocaust, i.e. all burnt." For this kind of sacrifice was offered to God specially to show reverence to His majesty, and love of His goodness: and typified the state of perfection as regards the fulfilment of the counsels. Wherefore the whole was burnt up: so that as the whole animal by being dissolved into vapor soared aloft, so it might denote that the whole man, and whatever belongs to him, are subject to the authority of God, and should be offered to Him.

Another sacrifice was the "sin-offering," which was offered to God on account of man's need for the forgiveness of sin: and this typifies the state of penitents in satisfying for sins. It was divided into two parts: for one part was burnt; while the other was granted to the use of the priests to signify that remission of sins is granted by God through the ministry of His priests. When, however, this sacrifice was offered for the sins of the whole people, or specially for the sin of the priest, the whole victim was burnt up. For it was not fitting that the priests should have the use of that which was offered for their own sins, to signify that nothing sinful should remain in them. Moreover, this would not be satisfaction for sin: for if the offering were granted to the use of those for whose sins it was offered, it would seem to be the same as if it had not been offered.

The third kind of sacrifice was called the "peace-offering," which was offered to God, either in thanksgiving, or for the welfare and prosperity of the offerers, in acknowledgment of benefits already received or yet to be received: and this typifies the state of those who are proficient in the observance of the commandments. These sacrifices were divided into three parts: for one part was burnt in honor of God; another part was allotted to the use of the priests; and the third part to the use of the offerers; in order to signify that man's salvation is from God, by the direction of God's ministers, and through the cooperation of those who are saved.

But it was the universal rule that the blood and fat were not allotted to the use either of the priests or of the offerers: the blood being poured out at the foot of the altar, in honor of God, while the fat was burnt upon the altar (Leviticus 9:9-10). The reason for this was, first, in order to prevent idolatry: because idolaters used to drink the blood and eat the fat of the victims, according to Deuteronomy 32:38: "Of whose victims they eat the fat, and drank the wine of their drink-offerings." Secondly, in order to form them to a right way of living. For they were forbidden the use of the blood that they might abhor the shedding of human blood; wherefore it is written (Genesis 9:4-5): "Flesh with blood you shall not eat: for I will require the blood of your lives": and they were forbidden to eat the fat, in order to withdraw them from lasciviousness; hence it is written (Ezekiel 34:3): "You have killed that which was fat." Thirdly, on account of the reverence due to

God: because blood is most necessary for life, for which reason “life” is said to be “in the blood” (Leviticus 17:11-14): while fat is a sign of abundant nourishment. Wherefore, in order to show that to God we owe both life and a sufficiency of all good things, the blood was poured out, and the fat burnt up in His honor. Fourthly, in order to foreshadow the shedding of Christ’s blood, and the abundance of His charity, whereby He offered Himself to God for us.

In the peace-offerings, the breast-bone and the right shoulder were allotted to the use of the priest, in order to prevent a certain kind of divination which is known as “*spatulamantia*,” so called because it was customary in divining to use the shoulder-blade [*spatula*], and the breast-bone of the animals offered in sacrifice; wherefore these things were taken away from the offerers. This is also denoted the priest’s need of wisdom in the heart, to instruct the people—this was signified by the breast-bone, which covers the heart; and his need of fortitude, in order to bear with human frailty—and this was signified by the right shoulder.

Reply to Objection 9. Because the holocaust was the most perfect kind of sacrifice, therefore none but a male was offered for a holocaust: because the female is an imperfect animal. The offering of turtledoves and doves was on account of the poverty of the offerers, who were unable to offer bigger animals. And since peace-victims were offered freely, and no one was bound to offer them against his will, hence these birds were offered not among the peace-victims, but among the holocausts and victims for sin, which man was obliged to offer at times. Moreover these birds, on account of their lofty flight, while befitting the perfection of the holocausts: and were suitable for sin-offerings because their song is doleful.

Reply to Objection 10. The holocaust was the chief of all the sacrifices: because all were burnt in honor of God, and nothing of it was eaten. The second place in holiness, belongs to the sacrifice for sins, which was eaten in the court only, and on the very day of the sacrifice (Leviticus 7:6-15). The third place must be given to the peace-offerings of thanksgiving, which were eaten on the same day, but anywhere in Jerusalem. Fourth in order were the “*ex-voto*” peace-offerings, the flesh of which could be eaten even on the morrow. The reason for this order is that man is bound to God, chiefly on account of His majesty; secondly, on account of the sins he has committed; thirdly, because of the benefits he has already received from Him; fourthly, by reason of the benefits he hopes to receive from Him.

Reply to Objection 11. Sins are more grievous by reason of the state of the sinner, as stated above (I-II:73:10): wherefore different victims are commanded to be offered for the sin of a priest, or of a prince, or of some other private individual. “But,” as Rabbi Moses says (Doct. Perplex. iii), “we must take note that the more grievous the sin, the lower the species of animals offered for it. Wherefore the goat, which is a very base animal, was offered for idolatry; while a calf was offered for a priest’s ignorance, and a ram for the negligence of a prince.”

Reply to Objection 12. In the matter of sacrifices the Law had in view the poverty of the offerers; so that those who could not have a four-footed animal at their disposal, might at least offer a bird; and that he who could not have a bird might at least offer bread; and that if a man had not even bread he might offer flour or ears of corn.

The figurative cause is that the bread signifies Christ Who is the “living bread” (John 6:41-51). He was indeed an ear of corn, as it were, during the state of the law of nature, in the faith of the patriarchs; He was like flour in the doctrine of the Law of the prophets; and He was like perfect bread after He had taken human nature; baked in the fire, i.e. formed by the Holy Ghost in the oven of the virginal womb; baked again in a pan by the toils which He suffered in the world; and consumed by fire on the cross as on a gridiron.

Reply to Objection 13. The products of the soil are useful to man, either as food, and of these bread was offered; or as drink, and of these wine was offered; or as seasoning, and of these oil and salt were offered; or as healing, and of these they offered incense, which both smells sweetly and binds easily together.

Now the bread foreshadowed the flesh of Christ; and the wine, His blood, whereby we were redeemed; oil betokens the grace of Christ; salt, His knowledge; incense, His prayer.

Reply to Objection 14. Honey was not offered in the sacrifices to God, both because it was wont to be offered in the sacrifices to idols; and in order to denote the absence of all carnal sweetness and pleasure from those who intend to sacrifice to God. Leaven was not offered, to denote the exclusion of corruption. Perhaps too, it was wont to be offered in the sacrifices to idols.

Salt, however, was offered, because it wards off the corruption of putrefaction: for sacrifices offered to God should be incorrupt. Moreover, salt signifies the discretion of wisdom, or again, mortification of the flesh.

Incense was offered to denote devotion of the heart, which is necessary in the offerer; and again, to signify the odor of a good name: for incense is composed of matter, both rich and fragrant. And since the sacrifice “of jealousy” did not proceed from devotion, but rather from suspicion, therefore incense was not offered therein (Numbers 5:15).

Article 4. Whether sufficient reason can be assigned for the ceremonies pertaining to holy things?

Objection 1. It would seem that no sufficient reason can be assigned for the ceremonies of the Old Law that pertain to holy things. For Paul said (Acts 17:24): “God Who made the world and all things therein; He being Lord of heaven and earth, dwelleth not in temples made by hands.” It was therefore unfitting that in the Old Law a tabernacle or temple should be set up for the worship of God.

Objection 2. Further, the state of the Old Law was not changed except by Christ. But the tabernacle denoted the state of the Old Law. Therefore it should not have been changed by the building of a temple.

Objection 3. Further, the Divine Law, more than any other indeed, should lead man to the worship of God. But an increase of divine worship requires multiplication of altars and temples; as is evident in regard to the New Law. Therefore it seems that also under the Old Law there should have been not only one tabernacle or temple, but many.

Objection 4. Further, the tabernacle or temple was ordained to the worship of God. But in God we should worship above all His unity and simplicity. Therefore it seems unbecoming for the tabernacle or temple to be divided by means of veils.

Objection 5. Further, the power of the First Mover, i.e. God, appears first of all in the east, for it is in that quarter that the first movement begins. But the tabernacle was set up for the worship of God. Therefore it should have been built so as to point to the east rather than the west.

Objection 6. Further, the Lord commanded (Exodus 20:4) that they should “not make . . . a graven thing, nor the likeness of anything.” It was therefore unfitting for graven images of the cherubim to be set up in the tabernacle or temple. In like manner, the ark, the propitiatory, the candlestick, the table, the two altars, seem to have been placed there without reasonable cause.

Objection 7. Further, the Lord commanded (Exodus 20:24): “You shall make an altar of earth unto Me”: and again (Exodus 20:26): “Thou shalt not go up by steps unto My altar.” It was therefore unfitting that subsequently they should be commanded to make an altar of wood laid over with

gold or brass; and of such a height that it was impossible to go up to it except by steps. For it is written (Exodus 27:1-2): "Thou shalt make also an altar of setim wood, which shall be five cubits long, and as many broad . . . and three cubits high . . . and thou shalt cover it with brass": and (Exodus 30:1-3): "Thou shalt make . . . an altar to burn incense, of setim wood . . . and thou shalt overlay it with the purest gold."

Objection 8. Further, in God's works nothing should be superfluous; for not even in the works of nature is anything superfluous to be found. But one cover suffices for one tabernacle or house. Therefore it was unbecoming to furnish the tabernacle with many coverings, viz. curtains, curtains of goats' hair, rams' skins dyed red, and violet-colored skins (Exodus 26).

Objection 9. Further, exterior consecration signifies interior holiness, the subject of which is the soul. It was therefore unsuitable for the tabernacle and its vessels to be consecrated, since they were inanimate things.

Objection 10. Further, it is written (Psalm 33:2): "I will bless the Lord at all times, His praise shall always be in my mouth." But the solemn festivals were instituted for the praise of God. Therefore it was not fitting that certain days should be fixed for keeping solemn festivals; so that it seems that there was no suitable cause for the ceremonies relating to holy things.

On the contrary, The Apostle says (Hebrews 8:4) that those who "offer gifts according to the law . . . serve unto the example and shadow of heavenly things. As it was answered to Moses, when he was to finish the tabernacle: See, says He, that thou make all things according to the pattern which was shown thee on the mount." But that is most reasonable, which presents a likeness to heavenly things. Therefore the ceremonies relating to holy things had a reasonable cause.

I answer that, The chief purpose of the whole external worship is that man may give worship to God. Now man's tendency is to reverence less those things which are common, and indistinct from other things; whereas he admires and reveres those things which are distinct from others in some point of excellence. Hence too it is customary among men for kings and princes, who ought to be revered by their subjects, to be clothed in more precious garments, and to possess vaster and more beautiful abodes. And for this reason it behooved special times, a special abode, special vessels, and special ministers to be appointed for the divine worship, so that thereby the soul of man might be brought to greater reverence for God.

In like manner the state of the Old Law, as observed above (Article 2; I-II:100:12; I-II:101:2), was instituted that it might foreshadow the mystery of Christ. Now that which foreshadows something should be determinate, so that it may present some likeness thereto. Consequently, certain special points had to be observed in matters pertaining to the worship of God.

Reply to Objection 1. The divine worship regards two things: namely, God Who is worshipped; and men, who worship Him. Accordingly God, Who is worshipped, is confined to no bodily place: wherefore there was no need, on His part, for a tabernacle or temple to be set up. But men, who worship Him, are corporeal beings: and for their sake there was need for a special tabernacle or temple to be set up for the worship of God, for two reasons. First, that through coming together with the thought that the place was set aside for the worship of God, they might approach thither with greater reverence. Secondly, that certain things relating to the excellence of Christ's Divine or human nature might be signified by the arrangement of various details in such temple or tabernacle.

To this Solomon refers (1 Kings 8:27) when he says: "If heaven and the heavens of heavens cannot contain Thee, how much less this house which I have built" for Thee? And further on (1 Kings 8:29-30) he adds: "That Thy eyes may be open upon this house . . . of which Thou hast said: My name shall be there; . . . that Thou mayest hearken to the supplication of Thy servant and of

Thy people Israel." From this it is evident that the house of the sanctuary was set up, not in order to contain God, as abiding therein locally, but that God might be made known there by means of things done and said there; and that those who prayed there might, through reverence for the place, pray more devoutly, so as to be heard more readily.

Reply to Objection 2. Before the coming of Christ, the state of the Old Law was not changed as regards the fulfilment of the Law, which was effected in Christ alone: but it was changed as regards the condition of the people that were under the Law. Because, at first, the people were in the desert, having no fixed abode: afterwards they were engaged in various wars with the neighboring nations; and lastly, at the time of David and Solomon, the state of that people was one of great peace. And then for the first time the temple was built in the place which Abraham, instructed by God, had chosen for the purpose of sacrifice. For it is written (Genesis 22:2) that the Lord commanded Abraham to "offer" his son "for a holocaust upon one of the mountains which I will show thee": and it is related further on (Genesis 22:14) that "he calleth the name of that place, The Lord seeth," as though, according to the Divine prevision, that place were chosen for the worship of God. Hence it is written (Deuteronomy 12:5-6): "You shall come to the place which the Lord your God shall choose . . . and you shall offer . . . your holocausts and victims."

Now it was not meet for that place to be pointed out by the building of the temple before the aforesaid time; for three reasons assigned by Rabbi Moses. First, lest the Gentiles might seize hold of that place. Secondly, lest the Gentiles might destroy it. The third reason is lest each tribe might wish that place to fall to their lot, and strifes and quarrels be the result. Hence the temple was not built until they had a king who would be able to quell such quarrels. Until that time a portable tabernacle was employed for divine worship, no place being as yet fixed for the worship of God. This is the literal reason for the distinction between the tabernacle and the temple.

The figurative reason may be assigned to the fact that they signify a twofold state. For the tabernacle, which was changeable, signifies the state of the present changeable life: whereas the temple, which was fixed and stable, signifies the state of future life which is altogether unchangeable. For this reason it is said that in the building of the temple no sound was heard of hammer or saw, to signify that all movements of disturbance will be far removed from the future state. Or else the tabernacle signifies the state of the Old Law; while the temple built by Solomon betokens the state of the New Law. Hence the Jews alone worked at the building of the tabernacle; whereas the temple was built with the cooperation of the Gentiles, viz. the Tyrians and Sidonians.

Reply to Objection 3. The reason for the unity of the temple or tabernacle may be either literal or figurative. The literal reason was the exclusion of idolatry. For the Gentiles put up various times to various gods: and so, to strengthen in the minds of men their belief in the unity of the Godhead, God wished sacrifices to be offered to Him in one place only. Another reason was in order to show that bodily worship is not acceptable of itself: and so they restrained from offering sacrifices anywhere and everywhere. But the worship of the New Law, in the sacrifice whereof spiritual grace is contained, is of itself acceptable to God; and consequently the multiplication of altars and temples is permitted in the New Law.

As to those matters that regarded the spiritual worship of God, consisting in the teaching of the Law and the Prophets, there were, even under the Old Law, various places, called synagogues, appointed for the people to gather together for the praise of God; just as now there are places called churches in which the Christian people gather together for the divine worship. Thus our church takes the place of both temple and synagogue: since the very sacrifice of the Church is spiritual; wherefore with us the place of sacrifice is not distinct from the place of teaching. The figurative

reason may be that hereby is signified the unity of the Church, whether militant or triumphant.

Reply to Objection 4. Just as the unity of the temple or tabernacle betokened the unity of God, or the unity of the Church, so also the division of the tabernacle or temple signified the distinction of those things that are subject to God, and from which we arise to the worship of God. Now the tabernacle was divided into two parts: one was called the “Holy of Holies,” and was placed to the west; the other was called the “Holy Place” [Or ‘Sanctuary’. The Douay version uses both expressions], which was situated to the east. Moreover there was a court facing the tabernacle. Accordingly there are two reasons for this distinction. One is in respect of the tabernacle being ordained to the worship of God. Because the different parts of the world are thus betokened by the division of the tabernacle. For that part which was called the Holy of Holies signified the higher world, which is that of spiritual substances: while that part which is called the Holy Place signified the corporeal world. Hence the Holy Place was separated from the Holy of Holies by a veil, which was of four different colors (denoting the four elements), viz. of linen, signifying earth, because linen, i.e. flax, grows out of the earth; purple, signifying water, because the purple tint was made from certain shells found in the sea; violet, signifying air, because it has the color of the air; and scarlet twice dyed, signifying fire: and this because matter composed of the four elements is a veil between us and incorporeal substances. Hence the high-priest alone, and that once a year, entered into the inner tabernacle, i.e. the Holy of Holies: whereby we are taught that man’s final perfection consists in his entering into that (higher) world: whereas into the outward tabernacle, i.e. the Holy Place, the priests entered every day: whereas the people were only admitted to the court; because the people were able to perceive material things, the inner nature of which only wise men by dint of study are able to discover.

But regard to the figurative reason, the outward tabernacle, which was called the Holy Place, betokened the state of the Old Law, as the Apostle says (Hebrews 9:6, seqq.): because into that tabernacle “the priests always entered accomplishing the offices of sacrifices.” But the inner tabernacle, which was called the Holy of Holies, signified either the glory of heaven or the spiritual state of the New Law to come. To the latter state Christ brought us; and this was signified by the high-priest entering alone, once a year, into the Holy of Holies. The veil betokened the concealing of the spiritual sacrifices under the sacrifices of old. This veil was adorned with four colors: viz. that of linen, to designate purity of the flesh; purple, to denote the sufferings which the saints underwent for God; scarlet twice dyed, signifying the twofold love of God and our neighbor; and violet, in token of heavenly contemplation. With regard to the state of the Old Law the people and the priests were situated differently from one another. For the people saw the mere corporeal sacrifices which were offered in the court: whereas the priests were intent on the inner meaning of the sacrifices, because their faith in the mysteries of Christ was more explicit. Hence they entered into the outer tabernacle. This outer tabernacle was divided from the court by a veil; because some matters relating to the mystery of Christ were hidden from the people, while they were known to the priests: though they were not fully revealed to them, as they were subsequently in the New Testament (cf. Ephesians 3:5).

Reply to Objection 5. Worship towards the west was introduced in the Law to the exclusion of idolatry: because all the Gentiles, in reverence to the sun, worshipped towards the east; hence it is written (Ezekiel 8:16) that certain men “had their backs towards the temple of the Lord, and their faces to the east, and they adored towards the rising of the sun.” Accordingly, in order to prevent this, the tabernacle had the Holy of Holies to westward, that they might adore toward the west. A figurative reason may also be found in the fact that the whole state of the first tabernacle was

ordained to foreshadow the death of Christ, which is signified by the west, according to Psalm 67:5: "Who ascendeth unto the west; the Lord is His name."

Reply to Objection 6. Both literal and figurative reasons may be assigned for the things contained in the tabernacle. The literal reason is in connection with the divine worship. And because, as already observed (Reply to Objection 4), the inner tabernacle, called the Holy of Holies, signified the higher world of spiritual substances, hence that tabernacle contained three things, viz. "the ark of the testament in which was a golden pot that had manna, and the rod of Aaron that had blossomed, and the tables" (Hebrews 9:4) on which were written the ten commandments of the Law. Now the ark stood between two "cherubim" that looked one towards the other: and over the ark was a table, called the "propitiatory," raised above the wings of the cherubim, as though it were held up by them; and appearing, to the imagination, to be the very seat of God. For this reason it was called the "propitiatory," as though the people received propitiation thence at the prayers of the high-priest. And so it was held up, so to speak, by the cherubim, in obedience, as it were, to God: while the ark of the testament was like the foot-stool to Him that sat on the propitiatory. These three things denote three things in that higher world: namely, God Who is above all, and incomprehensible to any creature. Hence no likeness of Him was set up; to denote His invisibility. But there was something to represent his seat; since, to wit, the creature, which is beneath God, as the seat under the sitter, is comprehensible. Again in that higher world there are spiritual substances called angels. These are signified by the two cherubim, looking one towards the other, to show that they are at peace with one another, according to Job 25:2: "Who maketh peace in . . . high places." For this reason, too, there was more than one cherub, to betoken the multitude of heavenly spirits, and to prevent their receiving worship from those who had been commanded to worship but one God. Moreover there are, enclosed as it were in that spiritual world, the intelligible types of whatsoever takes place in this world, just as in every cause are enclosed the types of its effects, and in the craftsman the types of the works of his craft. This was betokened by the ark, which represented, by means of the three things it contained, the three things of greatest import in human affairs. These are wisdom, signified by the tables of the testament; the power of governing, betokened by the rod of Aaron; and life, betokened by the manna which was the means of sustenance. Or else these three things signified the three Divine attributes, viz. wisdom, in the tables; power, in the rod; goodness, in the manna—both by reason of its sweetness, and because it was through the goodness of God that it was granted to man, wherefore it was preserved as a memorial of the Divine mercy. Again, these three things were represented in Isaiah's vision. For he "saw the Lord sitting upon a throne high and elevated"; and the seraphim standing by; and that the house was filled with the glory of the Lord; wherefrom the seraphim cried out: "All the earth is full of His glory" (Isaiah 6:1-3). And so the images of the seraphim were set up, not to be worshipped, for this was forbidden by the first commandment; but as a sign of their function, as stated above.

The outer tabernacle, which denotes this present world, also contained three things, viz. the "altar of incense," which was directly opposite the ark; the "table of proposition," with the twelve loaves of proposition on it, which stood on the northern side; and the "candlestick," which was placed towards the south. These three things seem to correspond to the three which were enclosed in the ark; and they represented the same things as the latter, but more clearly: because, in order that wise men, denoted by the priests entering the temple, might grasp the meaning of these types, it was necessary to express them more manifestly than they are in the Divine or angelic mind. Accordingly the candlestick betokened, as a sensible sign thereof, the wisdom which was expressed

on the tables (of the Law) in intelligible words. The altar of incense signified the office of the priest, whose duty it was to bring the people to God: and this was signified also by the rod: because on that altar the sweet-smelling incense was burnt, signifying the holiness of the people acceptable to God: for it is written (Apocalypse 8:3) that the smoke of the sweet-smelling spices signifies the "justifications of the saints" (cf. Apocalypse 19:8). Moreover it was fitting that the dignity of the priesthood should be denoted, in the ark, by the rod, and, in the outer tabernacle, by the altar of incense: because the priest is the mediator between God and the people, governing the people by Divine power, denoted by the rod; and offering to God the fruit of His government, i.e. the holiness of the people, on the altar of incense, so to speak. The table signified the sustenance of life, just as the manna did: but the former, a more general and a coarser kind of nourishment; the latter, a sweeter and more delicate. Again, the candlestick was fittingly placed on the southern side, while the table was placed to the north: because the south is the right-hand side of the world, while the north is the left-hand side, as stated in *De Coelo et Mundo* ii; and wisdom, like other spiritual goods, belongs to the right hand, while temporal nourishment belongs on the left, according to Proverbs 3:16: "In her left hand (are) riches and glory." And the priestly power is midway between temporal goods and spiritual wisdom; because thereby both spiritual wisdom and temporal goods are dispensed.

Another literal signification may be assigned. For the ark contained the tables of the Law, in order to prevent forgetfulness of the Law, wherefore it is written (Exodus 24:12): "I will give thee two tables of stone, and the Law, and the commandments which I have written: that thou mayest teach them" to the children of Israel. The rod of Aaron was placed there to restrain the people from insubordination to the priesthood of Aaron; wherefore it is written (Numbers 17:10): "Carry back the rod of Aaron into the tabernacle of the testimony, that it may be kept there for a token of the rebellious children of Israel." The manna was kept in the ark to remind them of the benefit conferred by God on the children of Israel in the desert; wherefore it is written (Exodus 16:32): "Fill a gomor of it, and let it be kept unto generations to come hereafter, that they may know the bread wherewith I fed you in the wilderness." The candlestick was set up to enhance the beauty of the temple, for the magnificence of a house depends on its being well lighted. Now the candlestick had seven branches, as Josephus observes (*Antiquit.* iii, 7,8), to signify the seven planets, wherewith the whole world is illuminated. Hence the candlestick was placed towards the south; because for us the course of the planets is from that quarter. The altar of incense was instituted that there might always be in the tabernacle a sweet-smelling smoke; both through respect for the tabernacle, and as a remedy for the stench arising from the shedding of blood and the slaying of animals. For men despise evil-smelling things as being vile, whereas sweet-smelling things are much appreciated. The table was placed there to signify that the priests who served the temple should take their food in the temple: wherefore, as stated in Matthew 12:4, it was lawful for none but the priests to eat the twelve loaves which were put on the table in memory of the twelve tribes. And the table was not placed in the middle directly in front of the propitiatory, in order to exclude an idolatrous rite: for the Gentiles, on the feasts of the moon, set up a table in front of the idol of the moon, wherefore it is written (Jeremiah 7:18): "The women knead the dough, to make cakes to the queen of heaven."

In the court outside the tabernacle was the altar of holocausts, on which sacrifices of those things which the people possessed were offered to God: and consequently the people who offered these sacrifices to God by the hands of the priest could be present in the court. But the priests alone, whose function it was to offer the people to God, could approach the inner altar, whereon the very devotion and holiness of the people was offered to God. And this altar was put up outside the

tabernacle and in the court, to the exclusion of idolatrous worship: for the Gentiles placed altars inside the temples to offer up sacrifices thereon to idols.

The figurative reason for all these things may be taken from the relation of the tabernacle to Christ, who was foreshadowed therein. Now it must be observed that to show the imperfection of the figures of the Law, various figures were instituted in the temple to betoken Christ. For He was foreshadowed by the "propitiatory," since He is "a propitiation for our sins" (1 John 2:2). This propitiatory was fittingly carried by cherubim, since of Him it is written (Hebrews 1:6): "Let all the angels of God adore Him." He is also signified by the ark: because just as the ark was made of setim-wood, so was Christ's body composed of most pure members. More over it was gilded: for Christ was full of wisdom and charity, which are betokened by gold. And in the ark was a golden pot, i.e. His holy soul, having manna, i.e. "all the fulness of the Godhead" (Colossians 2:9). Also there was a rod in the ark, i.e. His priestly power: for "He was made a . . . priest for ever" (Hebrews 6:20). And therein were the tables of the Testament, to denote that Christ Himself is a lawgiver. Again, Christ was signified by the candlestick, for He said Himself (John 8:12): "I am the Light of the world"; while the seven lamps denoted the seven gifts of the Holy Ghost. He is also betokened in the table, because He is our spiritual food, according to John 6:41-51: "I am the living bread": and the twelve loaves signified the twelve apostles, or their teaching. Or again, the candlestick and table may signify the Church's teaching, and faith, which also enlightens and refreshes. Again, Christ is signified by the two altars of holocausts and incense. Because all works of virtue must be offered to us to God through Him; both those whereby we afflict the body, which are offered, as it were, on the altar of holocausts; and those which, with greater perfection of mind, are offered to God in Christ, by the spiritual desires of the perfect, on the altar of incense, as it were, according to Hebrews 13:15: "By Him therefore let us offer the sacrifice of praise always to God."

Reply to Objection 7. The Lord commanded an altar to be made for the offering of sacrifices and gifts, in honor of God, and for the upkeep of the ministers who served the tabernacle. Now concerning the construction of the altar the Lord issued a twofold precept. One was at the beginning of the Law (Exodus 20:24, seqq.) when the Lord commanded them to make "an altar of earth," or at least "not of hewn stones"; and again, not to make the altar high, so as to make it necessary to "go up" to it "by steps." This was in detestation of idolatrous worship: for the Gentiles made their altars ornate and high, thinking that there was something holy and divine in such things. For this reason, too, the Lord commanded (Deuteronomy 16:21): "Thou shalt plant no grove, nor any tree near the altar of the Lord thy God": since idolaters were wont to offer sacrifices beneath trees, on account of the pleasantness and shade afforded by them. There was also a figurative reason for these precepts. Because we must confess that in Christ, Who is our altar, there is the true nature of flesh, as regards His humanity—and this is to make an altar of earth; and again, in regard to His Godhead, we must confess His equality with the Father—and this is "not to go up" to the altar by steps. Moreover we should not couple the doctrine of Christ to that of the Gentiles, which provokes men to lewdness.

But when once the tabernacle had been constructed to the honor of God, there was no longer reason to fear these occasions of idolatry. Wherefore the Lord commanded the altar of holocausts to be made of brass, and to be conspicuous to all the people; and the altar of incense, which was visible to none but the priests. Nor was brass so precious as to give the people an occasion for idolatry.

Since, however, the reason for the precept, "Thou shalt not go up by steps unto My altar" (Exodus 20:26) is stated to have been "lest thy nakedness be discovered," it should be observed

that this too was instituted with the purpose of preventing idolatry, for in the feasts of Priapus the Gentiles uncovered their nakedness before the people. But later on the priests were prescribed the use of loin-cloths for the sake of decency: so that without any danger the altar could be placed so high that the priests when offering sacrifices would go up by steps of wood, not fixed but movable.

Reply to Objection 8. The body of the tabernacle consisted of boards placed on end, and covered on the inside with curtains of four different colors, viz. twisted linen, violet, purple, and scarlet twice dyed. These curtains, however, covered the sides only of the tabernacle; and the roof of the tabernacle was covered with violet-colored skins; and over this there was another covering of rams' skins dyed red; and over this there was a third curtain made of goats' hair, which covered not only the roof of the tabernacle, but also reached to the ground and covered the boards of the tabernacle on the outside. The literal reason of these coverings taken altogether was the adornment and protection of the tabernacle, that it might be an object of respect. Taken singly, according to some, the curtains denoted the starry heaven, which is adorned with various stars; the curtain (of goats' skin) signified the waters which are above the firmament; the skins dyed red denoted the empyrean heaven, where the angels are; the violet skins, the heaven of the Blessed Trinity.

The figurative meaning of these things is that the boards of which the tabernacle was constructed signify the faithful of Christ, who compose the Church. The boards were covered on the inner side by curtains of four colors: because the faithful are inwardly adorned with the four virtues: for "the twisted linen," as the gloss observes, "signifies the flesh refulgent with purity; violet signifies the mind desirous of heavenly things; purple denotes the flesh subject to passions; the twice dyed scarlet betokens the mind in the midst of the passions enlightened by the love of God and our neighbor." The coverings of the building designate prelates and doctors, who ought to be conspicuous for their heavenly manner of life, signified by the violet colored skins: and who should also be ready to suffer martyrdom, denoted by the skins dyed red; and austere of life and patient in adversity, betokened by the curtains of goats' hair, which were exposed to wind and rain, as the gloss observes.

Reply to Objection 9. The literal reason for the sanctification of the tabernacle and vessels was that they might be treated with greater reverence, being deputed, as it were, to the divine worship by this consecration. The figurative reason is that this sanctification signified the sanctification of the living tabernacle, i.e. the faithful of whom the Church of Christ is composed.

Reply to Objection 10. Under the Old Law there were seven temporal solemnities, and one continual solemnity, as may be gathered from Numbers 28 and 29. There was a continual feast, since the lamb was sacrificed every day, morning and evening: and this continual feast of an abiding sacrifice signified the perpetuity of Divine bliss. Of the temporal feasts the first was that which was repeated every week. This was the solemnity of the "Sabbath," celebrated in memory of the work of the creation of the universe. Another solemnity, viz. the "New Moon," was repeated every month, and was observed in memory of the work of the Divine government. For the things of this lower world owe their variety chiefly to the movement of the moon; wherefore this feast was kept at the new moon: and not at the full moon, to avoid the worship of idolaters who used to offer sacrifices to the moon at that particular time. And these two blessings are bestowed in common on the whole human race; and hence they were repeated more frequently.

The other five feasts were celebrated once a year: and they commemorated the benefits which had been conferred especially on that people. For there was the feast of the "Passover" in the first month to commemorate the blessing of being delivered out of Egypt. The feast of "Pentecost" was celebrated fifty days later, to recall the blessing of the giving of the Law. The other three feasts

were kept in the seventh month, nearly the whole of which was solemnized by them, just as the seventh day. For on the first of the seventh month was the feast of “Trumpets,” in memory of the delivery of Isaac, when Abraham found the ram caught by its horns, which they represented by the horns which they blew. The feast of Trumpets was a kind of invitation whereby they prepared themselves to keep the following feast which was kept on the tenth day. This was the feast of “Expiation,” in memory of the blessing whereby, at the prayer of Moses, God forgave the people’s sin of worshipping the calf. After this was the feast of “Scenopegia” or of “Tents,” which was kept for seven days, to commemorate the blessing of being protected and led by God through the desert, where they lived in tents. Hence during this feast they had to take “the fruits of the fairest tree,” i.e. the citron, “and the trees of dense foliage” [Douay and A.V. and R.V. read: ‘Boughs of thick trees’], i.e. the myrtle, which is fragrant, “and the branches of palm-trees, and willows of the brook,” which retain their greenness a long time; and these are to be found in the Land of promise; to signify that God had brought them through the arid land of the wilderness to a land of delights. On the eighth day another feast was observed, of “Assembly and Congregation,” on which the people collected the expenses necessary for the divine worship: and it signified the uniting of the people and the peace granted to them in the Land of promise.

The figurative reason for these feasts was that the continual sacrifice of the lamb foreshadowed the perpetuity of Christ, Who is the “Lamb of God,” according to Hebrews 13:8: “Jesus Christ yesterday and today, and the same for ever.” The Sabbath signified the spiritual rest bestowed by Christ, as stated in Hebrews 4. The Neomenia, which is the beginning of the new moon, signified the enlightening of the primitive Church by Christ’s preaching and miracles. The feast of Pentecost signified the Descent of the Holy Ghost on the apostles. The feast of Trumpets signified the preaching of the apostles. The feast of Expiation signified the cleansing of the Christian people from sins: and the feast of Tabernacles signified their pilgrimage in this world, wherein they walk by advancing in virtue. The feast of Assembly or Congregation foreshadowed the assembly of the faithful in the kingdom of heaven: wherefore this feast is described as “most holy” (Leviticus 23:36). These three feasts followed immediately on one another, because those who expiate their vices should advance in virtue, until they come to see God, as stated in Psalm 83:8.

Article 5. Whether there can be any suitable cause for the sacraments of the Old Law?

Objection 1. It would seem that there can be no suitable cause for the sacraments of the Old Law. Because those things that are done for the purpose of divine worship should not be like the observances of idolaters: since it is written (Deuteronomy 12:31): “Thou shalt not do in like manner to the Lord thy God: for they have done to their gods all the abominations which the Lord abhorreth.” Now worshippers of idols used to knife themselves to the shedding of blood: for it is related (1 Kings 18:28) that they “cut themselves after their manner with knives and lancets, till they were all covered with blood.” For this reason the Lord commanded (Deuteronomy 14:1): “You shall not cut yourselves nor make any baldness for the dead.” Therefore it was unfitting for circumcision to be prescribed by the Law (Leviticus 12:3).

Objection 2. Further, those things which are done for the worship of God should be marked with decorum and gravity; according to Psalm 34:18: “I will praise Thee in a grave [Douay: ‘strong’] people.” But it seems to savor of levity for a man to eat with haste. Therefore it was unfittingly commanded (Exodus 12:11) that they should eat the Paschal lamb “in haste.” Other things too relative to the eating of the lamb were prescribed, which seem altogether unreasonable.

Objection 3. Further, the sacraments of the Old Law were figures of the sacraments of the New

Law. Now the Paschal lamb signified the sacrament of the Eucharist, according to 1 Corinthians 5:7: "Christ our Pasch is sacrificed." Therefore there should also have been some sacraments of the Old Law to foreshadow the other sacraments of the New Law, such as Confirmation, Extreme Unction, and Matrimony, and so forth.

Objection 4. Further, purification can scarcely be done except by removing something impure. But as far as God is concerned, no bodily thing is reputed impure, because all bodies are God's creatures; and "every creature of God is good, and nothing to be rejected that is received with thanksgiving" (1 Timothy 4:4). It was therefore unfitting for them to be purified after contact with a corpse, or any similar corporeal infection.

Objection 5. Further, it is written (Sirach 34:4): "What can be made clean by the unclean?" But the ashes of the red heifer [Cf. Hebrews 9:13 which was burnt, were unclean, since they made a man unclean: for it is stated (Numbers 19:7, seqq.) that the priest who immolated her was rendered unclean "until the evening"; likewise he that burnt her; and he that gathered up her ashes. Therefore it was unfittingly prescribed there that the unclean should be purified by being sprinkled with those cinders.

Objection 6. Further, sins are not something corporeal that can be carried from one place to another: nor can man be cleansed from sin by means of something unclean. It was therefore unfitting for the purpose of expiating the sins of the people that the priest should confess the sins of the children of Israel on one of the buck-goats, that it might carry them away into the wilderness: while they were rendered unclean by the other, which they used for the purpose of purification, by burning it together with the calf outside the camp; so that they had to wash their clothes and their bodies with water (Leviticus 16).

Objection 7. Further, what is already cleansed should not be cleansed again. It was therefore unfitting to apply a second purification to a man cleansed from leprosy, or to a house; as laid down in Leviticus 14.

Objection 8. Further, spiritual uncleanness cannot be cleansed by material water or by shaving the hair. Therefore it seems unreasonable that the Lord ordered (Exodus 30:18, seqq.) the making of a brazen laver with its foot, that the priests might wash their hands and feet before entering the temple; and that He commanded (Numbers 8:7) the Levites to be sprinkled with the water of purification, and to shave all the hairs of their flesh.

Objection 9. Further, that which is greater cannot be cleansed by that which is less. Therefore it was unfitting that, in the Law, the higher and lower priests, as stated in Leviticus 8 [Cf. Exodus 29], and the Levites, according to Numbers 8, should be consecrated with any bodily anointing, bodily sacrifices, and bodily oblations.

Objection 10. Further, as stated in 1 Samuel 16:7, "Man seeth those things that appear, but the Lord beholdeth the heart." But those things that appear outwardly in man are the dispositions of his body and his clothes. Therefore it was unfitting for certain special garments to be appointed to the higher and lower priests, as related in Exodus 28 [Cf. Leviticus 8:7, seqq.]. It seems, moreover, unreasonable that anyone should be debarred from the priesthood on account of defects in the body, as stated in Leviticus 21:17, seqq.: "Whosoever of thy seed throughout their families, hath a blemish, he shall not offer bread to his God . . . if he be blind, if he be lame," etc. It seems, therefore, that the sacraments of the Old Law were unreasonable.

On the contrary, It is written (Leviticus 20:8): "I am the Lord that sanctify you." But nothing unreasonable is done by God, for it is written (Psalm 103:24): "Thou hast made all things in wisdom." Therefore there was nothing without a reasonable cause in the sacraments of the Old

Law, which were ordained to the sanctification of man.

I answer that, As stated above (I-II:101:4), the sacraments are, properly speaking, things applied to the worshippers of God for their consecration so as, in some way, to depute them to the worship of God. Now the worship of God belonged in a general way to the whole people; but in a special way, it belonged to the priests and Levites, who were the ministers of divine worship. Consequently, in these sacraments of the Old Law, certain things concerned the whole people in general; while others belonged to the ministers.

In regard to both, three things were necessary. The first was to be established in the state of worshipping God: and this institution was brought about—for all in general, by circumcision, without which no one was admitted to any of the legal observances—and for the priests, by their consecration. The second thing required was the use of those things that pertain to divine worship. And thus, as to the people, there was the partaking of the paschal banquet, to which no uncircumcised man was admitted, as is clear from Exodus 12:43, seqq.: and, as to the priests, the offering of the victims, and the eating of the loaves of proposition and of other things that were allotted to the use of the priests. The third thing required was the removal of all impediments to divine worship, viz. of uncleannesses. And then, as to the people, certain purifications were instituted for the removal of certain external uncleannesses; and also expiations from sins; while, as to the priests and Levites, the washing of hands and feet and the shaving of the hair were instituted.

And all these things had reasonable causes, both literal, in so far as they were ordained to the worship of God for the time being, and figurative, in so far as they were ordained to foreshadow Christ: as we shall see by taking them one by one.

Reply to Objection 1. The chief literal reason for circumcision was in order that man might profess his belief in one God. And because Abraham was the first to sever himself from the infidels, by going out from his house and kindred, for this reason he was the first to receive circumcision. This reason is set forth by the Apostle (Romans 4:9, seqq.) thus: “He received the sign of circumcision, a seal of the justice of the faith which he had, being uncircumcised”; because, to wit, we are told that “unto Abraham faith was reputed to justice,” for the reason that “against hope he believed in hope,” i.e. against the hope that is of nature he believed in the hope that is of grace, “that he might be made the father of many nations,” when he was an old man, and his wife an old and barren woman. And in order that this declaration, and imitation of Abraham’s faith, might be fixed firmly in the hearts of the Jews, they received in their flesh such a sign as they could not forget, wherefore it is written (Genesis 17:13): “My covenant shall be in your flesh for a perpetual covenant.” This was done on the eighth day, because until then a child is very tender, and so might be seriously injured; and is considered as something not yet consolidated: wherefore neither are animals offered before the eighth day. And it was not delayed after that time, lest some might refuse the sign of circumcision on account of the pain: and also lest the parents, whose love for their children increases as they become used to their presence and as they grow older, should withdraw their children from circumcision. A second reason may have been the weakening of concupiscence in that member. A third motive may have been to revile the worship of Venus and Priapus, which gave honor to that part of the body. The Lord’s prohibition extended only to the cutting of oneself in honor of idols: and such was not the circumcision of which we have been speaking.

The figurative reason for circumcision was that it foreshadowed the removal of corruption, which was to be brought about by Christ, and will be perfectly fulfilled in the eighth age, which is the age of those who rise from the dead. And since all corruption of guilt and punishment comes to us through our carnal origin, from the sin of our first parent, therefore circumcision was applied to

the generative member. Hence the Apostle says (Colossians 2:11): "You are circumcised" in Christ "with circumcision not made by hand in despoiling of the body of the flesh, but in the circumcision of" Our Lord Jesus "Christ."

Reply to Objection 2. The literal reason of the paschal banquet was to commemorate the blessing of being led by God out of Egypt. Hence by celebrating this banquet they declared that they belonged to that people which God had taken to Himself out of Egypt. For when they were delivered from Egypt, they were commanded to sprinkle the lamb's blood on the transoms of their house doors, as though declaring that they were averse to the rites of the Egyptians who worshipped the ram. Wherefore they were delivered by the sprinkling or rubbing of the blood of the lamb on the door-posts, from the danger of extermination which threatened the Egyptians.

Now two things are to be observed in their departure from Egypt: namely, their haste in going, for the Egyptians pressed them to go forth speedily, as related in Exodus 12:33; and there was danger that anyone who did not hasten to go with the crowd might be slain by the Egyptians. Their haste was shown in two ways. First by what they ate. For they were commanded to eat unleavened bread, as a sign "that it could not be leavened, the Egyptians pressing them to depart"; and to eat roast meat, for this took less time to prepare; and that they should not break a bone thereof, because in their haste there was no time to break bones. Secondly, as to the manner of eating. For it is written: "You shall gird your reins, and you shall have shoes on your feet, holding staves in your hands, and you shall eat in haste": which clearly designates men at the point of starting on a journey. To this also is to be referred the command: "In one house shall it be eaten, neither shall you carry forth of the flesh thereof out of the house": because, to wit, on account of their haste, they could not send any gifts of it.

The stress they suffered while in Egypt was denoted by the wild lettuces. The figurative reason is evident, because the sacrifice of the paschal lamb signified the sacrifice of Christ according to 1 Corinthians 5:7: "Christ our pasch is sacrificed." The blood of the lamb, which ensured deliverance from the destroyer, by being sprinkled on the transoms, signified faith in Christ's Passion, in the hearts and on the lips of the faithful, by which same Passion we are delivered from sin and death, according to 1 Peter 1:18: "You were . . . redeemed . . . with the precious blood . . . of a lamb unspotted." The partaking of its flesh signified the eating of Christ's body in the Sacrament; and the flesh was roasted at the fire to signify Christ's Passion or charity. And it was eaten with unleavened bread to signify the blameless life of the faithful who partake of Christ's body, according to 1 Corinthians 5:8: "Let us feast . . . with the unleavened bread of sincerity and truth." The wild lettuces were added to denote repentance for sins, which is required of those who receive the body of Christ. Their loins were girt in sign of chastity: and the shoes of their feet are the examples of our dead ancestors. The staves they were to hold in their hands denoted pastoral authority: and it was commanded that the paschal lamb should be eaten in one house, i.e. in a catholic church, and not in the conventicles of heretics.

Reply to Objection 3. Some of the sacraments of the New Law had corresponding figurative sacraments in the Old Law. For Baptism, which is the sacrament of Faith, corresponds to circumcision. Hence it is written (Colossians 2:11-12): "You are circumcised . . . in the circumcision of" Our Lord Jesus "Christ: buried with Him in Baptism." In the New Law the sacrament of the Eucharist corresponds to the banquet of the paschal lamb. The sacrament of Penance in the New Law corresponds to all the purifications of the Old Law. The sacrament of Orders corresponds to the consecration of the pontiff and of the priests. To the sacrament of Confirmation, which is the sacrament of the fulness of grace, there would be no corresponding sacrament of the Old Law,

because the time of fulness had not yet come, since “the Law brought no man [Vulgate: ‘nothing’] to perfection” (Hebrews 7:19). The same applies to the sacrament of Extreme Unction, which is an immediate preparation for entrance into glory, to which the way was not yet opened out in the Old Law, since the price had not yet been paid. Matrimony did indeed exist under the Old Law, as a function of nature, but not as the sacrament of the union of Christ with the Church, for that union was not as yet brought about. Hence under the Old Law it was allowable to give a bill of divorce, which is contrary to the nature of the sacrament.

Reply to Objection 4. As already stated, the purifications of the Old Law were ordained for the removal of impediments to the divine worship: which worship is twofold; viz. spiritual, consisting in devotion of the mind to God; and corporal, consisting in sacrifices, oblations, and so forth. Now men are hindered in the spiritual worship by sins, whereby men were said to be polluted, for instance, by idolatry, murder, adultery, or incest. From such pollutions men were purified by certain sacrifices, offered either for the whole community in general, or also for the sins of individuals; not that those carnal sacrifices had of themselves the power of expiating sin; but that they signified that expiation of sins which was to be effected by Christ, and of which those of old became partakers by protesting their faith in the Redeemer, while taking part in the figurative sacrifices.

The impediments to external worship consisted in certain bodily uncleannesses; which were considered in the first place as existing in man, and consequently in other animals also, and in man’s clothes, dwelling-place, and vessels. In man himself uncleanness was considered as arising partly from himself and partly from contact with unclean things. Anything proceeding from man was reputed unclean that was already subject to corruption, or exposed thereto: and consequently since death is a kind of corruption, the human corpse was considered unclean. In like manner, since leprosy arises from corruption of the humors, which break out externally and infect other persons, therefore were lepers also considered unclean; and, again, women suffering from a flow of blood, whether from weakness, or from nature (either at the monthly course or at the time of conception); and, for the same reason, men were reputed unclean if they suffered from a flow of seed, whether due to weakness, to nocturnal pollution, or to sexual intercourse. Because every humor issuing from man in the aforesaid ways involves some unclean infection. Again, man contracted uncleanness by touching any unclean thing whatever.

Now there was both a literal and a figurative reason for these uncleannesses. The literal reason was taken from the reverence due to those things that belong to the divine worship: both because men are not wont, when unclean, to touch precious things: and in order that by rarely approaching sacred things they might have greater respect for them. For since man could seldom avoid all the aforesaid uncleannesses, the result was that men could seldom approach to touch things belonging to the worship of God, so that when they did approach, they did so with greater reverence and humility. Moreover, in some of these the literal reason was that men should not be kept away from worshipping God through fear of coming in contact with lepers and others similarly afflicted with loathsome and contagious diseases. In others, again, the reason was to avoid idolatrous worship: because in their sacrificial rites the Gentiles sometimes employed human blood and seed. All these bodily uncleannesses were purified either by the mere sprinkling of water, or, in the case of those which were more grievous, by some sacrifice of expiation for the sin which was the occasion of the uncleanness in question.

The figurative reason for these uncleannesses was that they were figures of various sins. For the uncleanness of any corpse signifies the uncleanness of sin, which is the death of the soul. The uncleanness of leprosy betokened the uncleanness of heretical doctrine: both because heretical

doctrine is contagious just as leprosy is, and because no doctrine is so false as not to have some truth mingled with error, just as on the surface of a leprous body one may distinguish the healthy parts from those that are infected. The uncleanness of a woman suffering from a flow of blood denotes the uncleanness of idolatry, on account of the blood which is offered up. The uncleanness of the man who has suffered seminal loss signifies the uncleanness of empty words, for "the seed is the word of God." The uncleanness of sexual intercourse and of the woman in child-birth signifies the uncleanness of original sin. The uncleanness of the woman in her periods signifies the uncleanness of a mind that is sensualized by pleasure. Speaking generally, the uncleanness contracted by touching an unclean thing denotes the uncleanness arising from consent in another's sin, according to 2 Corinthians 6:17: "Go out from among them, and be ye separate . . . and touch not the unclean thing."

Moreover, this uncleanness arising from the touch was contracted even by inanimate objects; for whatever was touched in any way by an unclean man, became itself unclean. Wherein the Law attenuated the superstition of the Gentiles, who held that uncleanness was contracted not only by touch, but also by speech or looks, as Rabbi Moses states (Doct. Perplex. iii) of a woman in her periods. The mystical sense of this was that "to God the wicked and his wickedness are hateful alike" (Wisdom 14:9).

There was also an uncleanness of inanimate things considered in themselves, such as the uncleanness of leprosy in a house or in clothes. For just as leprosy occurs in men through a corrupt humor causing putrefaction and corruption in the flesh; so, too, through some corruption and excess of humidity or dryness, there arises sometimes a kind of corruption in the stones with which a house is built, or in clothes. Hence the Law called this corruption by the name of leprosy, whereby a house or a garment was deemed to be unclean: both because all corruption savored of uncleanness, as stated above, and because the Gentiles worshipped their household gods as a preservative against this corruption. Hence the Law prescribed such houses, where this kind of corruption was of a lasting nature, to be destroyed; and such garments to be burnt, in order to avoid all occasion of idolatry. There was also an uncleanness of vessels, of which it is written (Numbers 19:15): "The vessel that hath no cover, and binding over it, shall be unclean." The cause of this uncleanness was that anything unclean might easily drop into such vessels, so as to render them unclean. Moreover, this command aimed at the prevention of idolatry. For idolaters believed that if mice, lizards, or the like, which they used to sacrifice to the idols, fell into the vessels or into the water, these became more pleasing to the gods. Even now some women let down uncovered vessels in honor of the nocturnal deities which they call "Janae."

The figurative reason of these uncleannesses is that the leprosy of a house signified the uncleanness of the assembly of heretics; the leprosy of a linen garment signified an evil life arising from bitterness of mind; the leprosy of a woolen garment denoted the wickedness of flatterers; leprosy in the warp signified the vices of the soul; leprosy on the woof denoted sins of the flesh, for as the warp is in the woof, so is the soul in the body. The vessel that has neither cover nor binding, betokens a man who lacks the veil of taciturnity, and who is unrestrained by any severity of discipline.

Reply to Objection 5. As stated above (Reply to Objection 4), there was a twofold uncleanness in the Law; one by way of corruption in the mind or in the body; and this was the graver uncleanness; the other was by mere contact with an unclean thing, and this was less grave, and was more easily expiated. Because the former uncleanness was expiated by sacrifices for sins, since all corruption is due to sin, and signifies sin: whereas the latter uncleanness was expiated by the mere sprinkling of

a certain water, of which water we read in Numbers 19. For there God commanded them to take a red cow in memory of the sin they had committed in worshipping a calf. And a cow is mentioned rather than a calf, because it was thus that the Lord was wont to designate the synagogue, according to Hosea 4:16: "Israel hath gone astray like a wanton heifer": and this was, perhaps, because they worshipped heifers after the custom of Egypt, according to Hosea 10:5: "(They) have worshipped the kine of Bethaven." And in detestation of the sin of idolatry it was sacrificed outside the camp; in fact, whenever sacrifice was offered up in expiation of the multitude of sins, it was all burnt outside the camp. Moreover, in order to show that this sacrifice cleansed the people from all their sins, "the priest" dipped "his finger in her blood," and sprinkled "it over against the door of the tabernacle seven times"; for the number seven signified universality. Further, the very sprinkling of blood pertained to the detestation of idolatry, in which the blood that was offered up was not poured out, but was collected together, and men gathered round it to eat in honor of the idols. Likewise it was burnt by fire, either because God appeared to Moses in a fire, and the Law was given from the midst of fire; or to denote that idolatry, together with all that was connected therewith, was to be extirpated altogether; just as the cow was burnt "with her skin and her flesh, her blood and dung being delivered to the flames." To this burning were added "cedar-wood, and hyssop, and scarlet twice dyed," to signify that just as cedar-wood is not liable to putrefaction, and scarlet twice dyed does not easily lose its color, and hyssop retains its odor after it has been dried; so also was this sacrifice for the preservation of the whole people, and for their good behavior and devotion. Hence it is said of the ashes of the cow: "That they may be reserved for the multitude of the children of Israel." Or, according to Josephus (Antiq. iii, 8,9,10), the four elements are indicated here: for "cedar-wood" was added to the fire, to signify the earth, on account of its earthiness; "hyssop," to signify the air, on account of its smell; "scarlet twice dyed," to signify water, for the same reason as purple, on account of the dyes which are taken out of the water: thus denoting the fact that this sacrifice was offered to the Creator of the four elements. And since this sacrifice was offered for the sin of idolatry, both "he that burned her," and "he that gathered up the ashes," and "he that sprinkled the water" in which the ashes were placed, were deemed unclean in detestation of that sin, in order to show that whatever was in any way connected with idolatry should be cast aside as being unclean. From this uncleanness they were purified by the mere washing of their clothes; nor did they need to be sprinkled with the water on account of this kind of uncleanness, because otherwise the process would have been unending, since he that sprinkled the water became unclean, so that if he were to sprinkle himself he would remain unclean; and if another were to sprinkle him, that one would have become unclean, and in like manner, whoever might sprinkle him, and so on indefinitely.

The figurative reason of this sacrifice was that the red cow signified Christ in respect his assumed weakness, denoted by the female sex; while the color of the cow designated the blood of His Passion. And the "red cow was of full age," because all Christ's works are perfect, "in which there" was "no blemish"; "and which" had "not carried the yoke," because Christ was innocent, nor did He carry the yoke of sin. It was commanded to be taken to Moses, because they blamed Him for transgressing the law of Moses by breaking the Sabbath. And it was commanded to be delivered "to Eleazar the priest," because Christ was delivered into the hands of the priests to be slain. It was immolated "without the camp," because Christ "suffered outside the gate" (Hebrews 13:12). And the priest dipped "his finger in her blood," because the mystery of Christ's Passion should be considered and imitated.

It was sprinkled "over against . . . the tabernacle," which denotes the synagogue, to signify

either the condemnation of the unbelieving Jews, or the purification of believers; and this “seven times,” in token either of the seven gifts of the Holy Ghost, or of the seven days wherein all time is comprised. Again, all things that pertain to the Incarnation of Christ should be burnt with fire, i.e. they should be understood spiritually; for the “skin” and “flesh” signified Christ’s outward works; the “blood” denoted the subtle inward force which quickened His external deeds; the “dung” betokened His weariness, His thirst, and all such like things pertaining to His weakness. Three things were added, viz. “cedar-wood,” which denotes the height of hope or contemplation; “hyssop,” in token of humility or faith; “scarlet twice dyed,” which denotes twofold charity; for it is by these three that we should cling to Christ suffering. The ashes of this burning were gathered by “a man that is clean,” because the relics of the Passion came into the possession of the Gentiles, who were not guilty of Christ’s death. The ashes were put into water for the purpose of expiation, because Baptism receives from Christ’s Passion the power of washing away sins. The priest who immolated and burned the cow, and he who burned, and he who gathered together the ashes, were unclean, as also he that sprinkled the water: either because the Jews became unclean through putting Christ to death, whereby our sins are expiated; and this, until the evening, i.e. until the end of the world, when the remnants of Israel will be converted; or else because they who handle sacred things with a view to the cleansing of others contract certain uncleannesses, as Gregory says (Pastor. ii, 5); and this until the evening, i.e. until the end of this life.

Reply to Objection 6. As stated above (Reply to Objection 5), an uncleanness which was caused by corruption either of mind or of body was expiated by sin-offerings. Now special sacrifices were wont to be offered for the sins of individuals: but since some were neglectful about expiating such sins and uncleannesses; or, through ignorance, failed to offer this expiation; it was laid down that once a year, on the tenth day of the seventh month, a sacrifice of expiation should be offered for the whole people. And because, as the Apostle says (Hebrews 7:28), “the Law maketh men priests, who have infirmity,” it behooved the priest first of all to offer a calf for his own sins, in memory of Aaron’s sin in fashioning the molten calf; and besides, to offer a ram for a holocaust, which signified that the priestly sovereignty denoted by the ram, who is the head of the flock, was to be ordained to the glory of God. Then he offered two he-goats for the people: one of which was offered in expiation of the sins of the multitude. For the he-goat is an evil-smelling animal; and from its skin clothes are made having a pungent odor; to signify the stench, uncleanness and the sting of sin. After this he-goat had been immolated, its blood was taken, together with the blood of the calf, into the Holy of Holies, and the entire sanctuary was sprinkled with it; to signify that the tabernacle was cleansed from the uncleanness of the children of Israel. But the corpses of the he-goat and calf which had been offered up for sin had to be burnt, to denote the destruction of sins. They were not, however, burnt on the altar: since none but holocausts were burnt thereon; but it was prescribed that they should be burnt without the camp, in detestation of sin: for this was done whenever sacrifice was offered for a grievous sin, or for the multitude of sins. The other goat was let loose into the wilderness: not indeed to offer it to the demons, whom the Gentiles worshipped in desert places, because it was unlawful to offer aught to them; but in order to point out the effect of the sacrifice which had been offered up. Hence the priest put his hand on its head, while confessing the sins of the children of Israel: as though that goat were to carry them away into the wilderness, where it would be devoured by wild beasts, because it bore the punishment of the people’s sins. And it was said to bear the sins of the people, either because the forgiveness of the people’s sins was signified by its being let loose, or because on its head written lists of sins were fastened.

The figurative reason of these things was that Christ was foreshadowed both by the calf, on account of His power; and by the ram, because He is the Head of the faithful; and by the he-goat, on account of "the likeness of sinful flesh" (Romans 8:3). Moreover, Christ was sacrificed for the sins of both priests and people: since both those of high and those of low degree are cleansed from sin by His Passion. The blood of the calf and of the goat was brought into the Holies by the priest, because the entrance to the kingdom of heaven was opened to us by the blood of Christ's Passion. Their bodies were burnt without the camp, because "Christ suffered without the gate," as the Apostle declares (Hebrews 13:12). The scape-goat may denote either Christ's Godhead Which went away into solitude when the Man Christ suffered, not by going to another place, but by restraining His power: or it may signify the base concupiscence which we ought to cast away from ourselves, while we offer up to Our Lord acts of virtue.

With regard to the uncleanness contracted by those who burnt these sacrifices, the reason is the same as that which we assigned (Reply to Objection 5) to the sacrifice of the red heifer.

Reply to Objection 7. The legal rite did not cleanse the leper of his deformity, but declared him to be cleansed. This is shown by the words of Leviticus 14:3, seqq., where it was said that the priest, "when he shall find that the leprosy is cleansed," shall command "him that is to be purified": consequently, the leper was already healed: but he was said to be purified in so far as the verdict of the priest restored him to the society of men and to the worship of God. It happened sometimes, however, that bodily leprosy was miraculously cured by the legal rite, when the priest erred in his judgment.

Now this purification of a leper was twofold: for, in the first place, he was declared to be clean; and, secondly, he was restored, as clean, to the society of men and to the worship of God, to wit, after seven days. At the first purification the leper who sought to be cleansed offered for himself "two living sparrows . . . cedar-wood, and scarlet, and hyssop," in such wise that a sparrow and the hyssop should be tied to the cedar-wood with a scarlet thread, so that the cedar-wood was like the handle of an aspersory: while the hyssop and sparrow were that part of the aspersory which was dipped into the blood of the other sparrow which was "immolated . . . over living waters." These things he offered as an antidote to the four defects of leprosy: for cedar-wood, which is not subject to putrefaction, was offered against the putrefaction; hyssop, which is a sweet-smelling herb, was offered up against the stench; a living sparrow was offered up against numbness; and scarlet, which has a vivid color, was offered up against the repulsive color of leprosy. The living sparrow was let loose to fly away into the plain, because the leper was restored to his former liberty.

On the eighth day he was admitted to divine worship, and was restored to the society of men; but only after having shaved all the hair of his body, and washed his clothes, because leprosy rots the hair, infects the clothes, and gives them an evil smell. Afterwards a sacrifice was offered for his sin, since leprosy was frequently a result of sin: and some of the blood of the sacrifice was put on the tip of the ear of the man that was to be cleansed, "and on the thumb of his right hand, and the great toe of his right foot"; because it is in these parts that leprosy is first diagnosed and felt. In this rite, moreover, three liquids were employed: viz. blood, against the corruption of the blood; oil, to denote the healing of the disease; and living waters, to wash away the filth.

The figurative reason was that the Divine and human natures in Christ were denoted by the two sparrows, one of which, in likeness of His human nature, was offered up in an earthen vessel over living waters, because the waters of Baptism are sanctified by Christ's Passion. The other sparrow, in token of His impassible Godhead, remained living, because the Godhead cannot die: hence it flew away, for the Godhead could not be encompassed by the Passion. Now this living sparrow,

together with the cedar-wood and scarlet or cochineal, and hyssop, i.e. faith, hope and charity, as stated above (Reply to Objection 5), was put into the water for the purpose of sprinkling, because we are baptized in the faith of the God-Man. By the waters of Baptism or of his tears man washes his clothes, i.e. his works, and all his hair, i.e. his thoughts. The tip of the right ear of the man to be cleansed is moistened with some the blood and oil, in order to strengthen his hearing against harmful words; and the thumb and toe of his right hand and foot are moistened that his deeds may be holy. Other matters pertaining to this purification, or to that also of any other uncleannesses, call for no special remark, beyond what applies to other sacrifices, whether for sins or for trespasses.

Reply to Objections 8 and 9. Just as the people were initiated by circumcision to the divine worship, so were the ministers by some special purification or consecration: wherefore they are commanded to be separated from other men, as being specially deputed, rather than others, to the ministry of the divine worship. And all that was done touching them in their consecration or institution, was with a view to show that they were in possession of a prerogative of purity, power and dignity. Hence three things were done in the institution of ministers: for first, they were purified; secondly, they were adorned [*Ornabantur*. Some editions have *'ordinabantur'*—'were ordained': the former reading is a reference to Leviticus 8:7-9 and consecrated; thirdly, they were employed in the ministry. All in general used to be purified by washing in water, and by certain sacrifices; but the Levites in particular shaved all the hair of their bodies, as stated in Leviticus 8 (cf. Numbers 8).

With regard to the high-priests and priests the consecration was performed as follows. First, when they had been washed, they were clothed with certain special garments in designation of their dignity. In particular, the high-priest was anointed on the head with the oil of unction: to denote that the power of consecration was poured forth by him on to others, just as oil flows from the head on to the lower parts of the body; according to Psalm 132:2: "Like the precious ointment on the head that ran down upon the beard, the beard of Aaron." But the Levites received no other consecration besides being offered to the Lord by the children of Israel through the hands of the high-priest, who prayed for them. The lesser priests were consecrated on the hands only, which were to be employed in the sacrifices. The tip of their right ear and the thumb of their right hand, and the great toe of their right foot were tinged with the blood of the sacrificial animal, to denote that they should be obedient to God's law in offering the sacrifices (this is denoted by touching their right ear); and that they should be careful and ready in performing the sacrifices (this is signified by the moistening of the right foot and hand). They themselves and their garments were sprinkled with the blood of the animal that had been sacrificed, in memory of the blood of the lamb by which they had been delivered in Egypt. At their consecration the following sacrifices were offered: a calf, for sin, in memory of Aaron's sin in fashioning the molten calf; a ram, for a holocaust, in memory of the sacrifice of Abraham, whose obedience it behooved the high-priest to imitate; again, a ram of consecration, which was a peace-offering, in memory of the delivery from Egypt through the blood of the lamb; and a basket of bread, in memory of the manna vouchsafed to the people.

In reference to their being destined to the ministry, the fat of the ram, one roll of bread, and the right shoulder were placed on their hands, to show that they received the power of offering these things to the Lord: while the Levites were initiated to the ministry by being brought into the tabernacle of the covenant, as being destined to the ministry touching the vessels of the sanctuary.

The figurative reason of these things was that those who are to be consecrated to the spiritual ministry of Christ, should be first of all purified by the waters of Baptism, and by the waters of tears, in their faith in Christ's Passion, which is a sacrifice both of expiation and of purification.

They have also to shave all the hair of their body, i.e. all evil thoughts. They should, moreover, be decked with virtues, and be consecrated with the oil of the Holy Ghost, and with the sprinkling of Christ's blood. And thus they should be intent on the fulfilment of their spiritual ministry.

Reply to Objection 10. As already stated (Article 4), the purpose of the Law was to induce men to have reverence for the divine worship: and this in two ways; first, by excluding from the worship of God whatever might be an object of contempt; secondly, by introducing into the divine worship all that seemed to savor of reverence. And, indeed, if this was observed in regard to the tabernacle and its vessels, and in the animals to be sacrificed, much more was it to be observed in the very ministers. Wherefore, in order to obviate contempt for the ministers, it was prescribed that they should have no bodily stain or defect: since men so deformed are wont to be despised by others. For the same reason it was also commanded that the choice of those who were to be destined to the service of God was not to be made in a broadcast manner from any family, but according to their descent from one particular stock, thus giving them distinction and nobility.

In order that they might be revered, special ornate vestments were appointed for their use, and a special form of consecration. This indeed is the general reason of ornate garments. But the high-priest in particular had eight vestments.

- First, he had a linen tunic.
- Secondly, he had a purple tunic; round the bottom of which were placed "little bells" and "pomegranates of violet, and purple, and scarlet twice dyed."
- Thirdly, he had the ephod, which covered his shoulders and his breast down to the girdle; and it was made of gold, and violet and purple, and scarlet twice dyed and twisted linen: and on his shoulders he bore two onyx stones, on which were graven the names of the children of Israel.
- Fourthly, he had the rational, made of the same material; it was square in shape, and was worn on the breast, and was fastened to the ephod. On this rational there were twelve precious stones set in four rows, on which also were graven the names of the children of Israel, in token that the priest bore the burden of the whole people, since he bore their names on his shoulders; and that it was his duty ever to think of their welfare, since he wore them on his breast, bearing them in his heart, so to speak. And the Lord commanded the "Doctrine and Truth" to be put in the rational: for certain matters regarding moral and dogmatic truth were written on it. The Jews indeed pretend that on the rational was placed a stone which changed color according to the various things which were about to happen to the children of Israel: and this they call the "Truth and Doctrine."
- Fifthly, he wore a belt or girdle made of the four colors mentioned above.
- Sixthly, there was the tiara or mitre which was made of linen.
- Seventhly, there was the golden plate which hung over his forehead; on it was inscribed the Lord's name.
- Eighthly, there were "the linen breeches to cover the flesh of their nakedness," when they went up to the sanctuary or altar. Of these eight vestments the lesser priests had four, viz. the linen tunic and breeches, the belt and the tiara.

According to some, the literal reason for these vestments was that they denoted the disposition of the terrestrial globe; as though the high-priest confessed himself to be the minister of the Creator of the world, wherefore it is written (Wisdom 18:24): "In the robe" of Aaron "was the whole world" described. For the linen breeches signified the earth out of which the flax grows. The surrounding

belt signified the ocean which surrounds the earth. The violet tunic denoted the air by its color: its little bells betoken the thunder; the pomegranates, the lightning. The ephod, by its many colors, signified the starry heaven; the two onyx stones denoted the two hemispheres, or the sun and moon. The twelve precious stones on the breast are the twelve signs of the zodiac: and they are said to have been placed on the rational because in heaven, are the types [rationes] of earthly things, according to Job 38:33: "Dost thou know the order of heaven, and canst thou set down the reason [rationem] thereof on the earth?" The turban or tiara signified the empyrean: the golden plate was a token of God, the governor of the universe.

The figurative reason is evident. Because bodily stains or defects wherefrom the priests had to be immune, signify the various vices and sins from which they should be free. Thus it is forbidden that he should be blind, i.e. he ought not to be ignorant: he must not be lame, i.e. vacillating and uncertain of purpose: that he must have "a little, or a great, or a crooked nose," i.e. that he should not, from lack of discretion, exceed in one direction or in another, or even exercise some base occupation: for the nose signifies discretion, because it discerns odors. It is forbidden that he should have "a broken foot" or "hand," i.e. he should not lose the power of doing good works or of advancing in virtue. He is rejected, too, if he have a swelling either in front or behind [Vulgate: 'if he be crook-backed']: by which is signified too much love of earthly things: if he be blear-eyed, i.e. if his mind is darkened by carnal affections: for running of the eyes is caused by a flow of matter. He is also rejected if he had "a pearl in his eye," i.e. if he presumes in his own estimation that he is clothed in the white robe of righteousness. Again, he is rejected "if he have a continued scab," i.e. lustfulness of the flesh: also, if he have "a dry scurf," which covers the body without giving pain, and is a blemish on the comeliness of the members; which denotes avarice. Lastly, he is rejected "if he have a rupture" or hernia; through baseness rending his heart, though it appear not in his deeds.

The vestments denote the virtues of God's ministers. Now there are four things that are necessary to all His ministers, viz. chastity denoted by the breeches; a pure life, signified by the linen tunic; the moderation of discretion, betokened by the girdle; and rectitude of purpose, denoted by the mitre covering the head. But the high-priests needed four other things in addition to these. First, a continual recollection of God in their thoughts; and this was signified by the golden plate worn over the forehead, with the name of God engraved thereon. Secondly, they had to bear with the shortcomings of the people: this was denoted by the ephod which they bore on their shoulders. Thirdly, they had to carry the people in their mind and heart by the solicitude of charity, in token of which they wore the rational. Fourthly, they had to lead a godly life by performing works of perfection; and this was signified by the violet tunic. Hence little golden bells were fixed to the bottom of the violet tunic, which bells signified the teaching of divine things united in the high-priest to his godly mode of life. In addition to these were the pomegranates, signifying unity of faith and concord in good morals: because his doctrine should hold together in such a way that it should not rend asunder the unity of faith and peace.

Article 6. Whether there was any reasonable cause for the ceremonial observances?

Objection 1. It would seem that there was no reasonable cause for the ceremonial observances. Because, as the Apostle says (1 Timothy 4:4), "every creature of God is good, and nothing to be rejected that is received with thanksgiving." It was therefore unfitting that they should be forbidden to eat certain foods, as being unclean according to Leviticus 11 [Cf. Deuteronomy 14].

Objection 2. Further, just as animals are given to man for food, so also are herbs: wherefore it is written (Genesis 9:3): "As the green herbs have I delivered all" flesh "to you." But the Law did not

distinguish any herbs from the rest as being unclean, although some are most harmful, for instance, those that are poisonous. Therefore it seems that neither should any animals have been prohibited as being unclean.

Objection 3. Further, if the matter from which a thing is generated be unclean, it seems that likewise the thing generated therefrom is unclean. But flesh is generated from blood. Since therefore all flesh was not prohibited as unclean, it seems that in like manner neither should blood have been forbidden as unclean; nor the fat which is engendered from blood.

Objection 4. Further, Our Lord said (Matthew 10:28; cf. Luke 12:4), that those should not be feared “that kill the body,” since after death they “have no more that they can do”: which would not be true if after death harm might come to man through anything done with his body. Much less therefore does it matter to an animal already dead how its flesh be cooked. Consequently there seems to be no reason in what is said, Exodus 23:19: “Thou shalt not boil a kid in the milk of its dam.”

Objection 5. Further, all that is first brought forth of man and beast, as being most perfect, is commanded to be offered to the Lord (Exodus 13). Therefore it is an unfitting command that is set forth in Leviticus 19:23: “when you shall be come into the land, and shall have planted in it fruit trees, you shall take away the uncircumcision [‘Praeputia,’ which Douay version renders ‘first fruits’] of them,” i.e. the first crops, and they “shall be unclean to you, neither shall you eat of them.”

Objection 6. Further, clothing is something extraneous to man’s body. Therefore certain kinds of garments should not have been forbidden to the Jews: for instance (Leviticus 19:19): “Thou shalt not wear a garment that is woven of two sorts”: and (Deuteronomy 22:5): “A woman shall not be clothed with man’s apparel, neither shall a man use woman’s apparel”: and further on (Deuteronomy 22:11): “Thou shalt not wear a garment that is woven of woollen and linen together.”

Objection 7. Further, to be mindful of God’s commandments concerns not the body but the heart. Therefore it is unsuitably prescribed (Deuteronomy 6:8, seqq.) that they should “bind” the commandments of God “as a sign” on their hands; and that they should “write them in the entry”; and (Numbers 15:38, seqq.) that they should “make to themselves fringes in the corners of their garments, putting in them ribands of blue . . . they may remember . . . the commandments of the Lord.”

Objection 8. Further, the Apostle says (1 Corinthians 9:9) that God does not “take care for oxen,” and, therefore, neither of other irrational animals. Therefore without reason is it commanded (Deuteronomy 22:6): “If thou find, as thou walkest by the way, a bird’s nest in a tree . . . thou shalt not take the dam with her young”; and (Deuteronomy 25:4): “Thou shalt not muzzle the ox that treadeth out thy corn”; and (Leviticus 19:19): “Thou shalt not make thy cattle to gender with beasts of any other kind.”

Objection 9. Further, no distinction was made between clean and unclean plants. Much less therefore should any distinction have been made about the cultivation of plants. Therefore it was unfittingly prescribed (Leviticus 19:19): “Thou shalt not sow thy field with different seeds”; and (Deuteronomy 22:9, seqq.): “Thou shalt sow thy vineyard with divers seeds”; and: “Thou shalt not plough with an ox and an ass together.”

Objection 10. Further, it is apparent that inanimate things are most of all subject to the power of man. Therefore it was unfitting to debar man from taking silver and gold of which idols were made, or anything they found in the houses of idols, as expressed in the commandment of the Law (Deuteronomy 7:25, seqq.). It also seems an absurd commandment set forth in Deuteronomy 23:13,

that they should “dig round about and . . . cover with earth that which they were eased of.”

Objection 11. Further, piety is required especially in priests. But it seems to be an act of piety to assist at the burial of one’s friends: wherefore Tobias is commended for so doing (Tobit 1:20, seqq.). In like manner it is sometimes an act of piety to marry a loose woman, because she is thereby delivered from sin and infamy. Therefore it seems inconsistent for these things to be forbidden to priests (Leviticus 21).

On the contrary, It is written (Deuteronomy 18:14): “But thou art otherwise instructed by the Lord thy God”: from which words we may gather that these observances were instituted by God to be a special prerogative of that people. Therefore they are not without reason or cause.

I answer that, The Jewish people, as stated above (Article 5), were specially chosen for the worship of God, and among them the priests themselves were specially set apart for that purpose. And just as other things that are applied to the divine worship, need to be marked in some particular way so that they be worthy of the worship of God; so too in that people’s, and especially the priests’, mode of life, there needed to be certain special things befitting the divine worship, whether spiritual or corporal. Now the worship prescribed by the Law foreshadowed the mystery of Christ: so that whatever they did was a figure of things pertaining to Christ, according to 1 Corinthians 10:11: “All these things happened to them in figures.” Consequently the reasons for these observances may be taken in two ways, first according to their fittingness to the worship of God; secondly, according as they foreshadow something touching the Christian mode of life.

Reply to Objection 1. As stated above (Article 5, Replies to 4 and 5), the Law distinguished a twofold pollution or uncleanness; one, that of sin, whereby the soul was defiled; and another consisting in some kind of corruption, whereby the body was in some way infected. Speaking then of the first-mentioned uncleanness, no kind of food is unclean, or can defile a man, by reason of its nature; wherefore we read (Matthew 15:11): “Not that which goeth into the mouth defileth a man; but what cometh out of the mouth, this defileth a man”: which words are explained (Matthew 15:17) as referring to sins. Yet certain foods can defile the soul accidentally; in so far as man partakes of them against obedience or a vow, or from excessive concupiscence; or through their being an incentive to lust, for which reason some refrain from wine and flesh-meat.

If, however, we speak of bodily uncleanness, consisting in some kind of corruption, the flesh of certain animals is unclean, either because like the pig they feed on unclean things; or because their life is among unclean surroundings: thus certain animals, like moles and mice and such like, live underground, whence they contract a certain unpleasant smell; or because their flesh, through being too moist or too dry, engenders corrupt humors in the human body. Hence they were forbidden to eat the flesh of flat-footed animals, i.e. animals having an uncloven hoof, on account of their earthiness; and in like manner they were forbidden to eat the flesh of animals that have many clefts in their feet, because such are very fierce and their flesh is very dry, such as the flesh of lions and the like. For the same reason they were forbidden to eat certain birds of prey the flesh of which is very dry, and certain water-fowl on account of their exceeding humidity. In like manner certain fish lacking fins and scales were prohibited on account of their excessive moisture; such as eels and the like. They were, however, allowed to eat ruminants and animals with a divided hoof, because in such animals the humors are well absorbed, and their nature well balanced: for neither are they too moist, as is indicated by the hoof; nor are they too earthly, which is shown by their having not a flat but a cloven hoof. Of fishes they were allowed to partake of the drier kinds, of which the fins and scales are an indication, because thereby the moist nature of the fish is tempered. Of birds they were allowed to eat the tamer kinds, such as hens, partridges, and the like. Another

reason was detestation of idolatry: because the Gentiles, and especially the Egyptians, among whom they had grown up, offered up these forbidden animals to their idols, or employed them for the purpose of sorcery: whereas they did not eat those animals which the Jews were allowed to eat, but worshipped them as gods, or abstained, for some other motive, from eating them, as stated above (Article 3, Reply to Objection 2). The third reason was to prevent excessive care about food: wherefore they were allowed to eat those animals which could be procured easily and promptly.

With regard to blood and fat, they were forbidden to partake of those of any animals whatever without exception. Blood was forbidden, both in order to avoid cruelty, that they might abhor the shedding of human blood, as stated above (Article 3, Reply to Objection 8); and in order to shun idolatrous rite whereby it was customary for men to collect the blood and to gather together around it for a banquet in honor of the idols, to whom they held the blood to be most acceptable. Hence the Lord commanded the blood to be poured out and to be covered with earth (Leviticus 17:13). For the same reason they were forbidden to eat animals that had been suffocated or strangled: because the blood of these animals would not be separated from the body: or because this form of death is very painful to the victim; and the Lord wished to withdraw them from cruelty even in regard to irrational animals, so as to be less inclined to be cruel to other men, through being used to be kind to beasts. They were forbidden to eat the fat: both because idolaters ate it in honor of their gods; and because it used to be burnt in honor of God; and, again, because blood and fat are not nutritious, which is the cause assigned by Rabbi Moses (Doct. Perplex. iii). The reason why they were forbidden to eat the sinews is given in Genesis 32:32, where it is stated that "the children of Israel . . . eat not the sinew . . . because he touched the sinew of" Jacob's "thing and it shrank."

The figurative reason for these things is that all these animals signified certain sins, in token of which those animals were prohibited. Hence Augustine says (*Contra Faustum* iv, 7): "If the swine and lamb be called in question, both are clean by nature, because all God's creatures are good: yet the lamb is clean, and the pig is unclean in a certain signification. Thus if you speak of a foolish, and of a wise man, each of these expressions is clean considered in the nature of the sound, letters and syllables of which it is composed: but in signification, the one is clean, the other unclean." The animal that chews the cud and has a divided hoof, is clean in signification. Because division of the hoof is a figure of the two Testaments: or of the Father and Son: or of the two natures in Christ: of the distinction of good and evil. While chewing the cud signifies meditation on the Scriptures and a sound understanding thereof; and whoever lacks either of these is spiritually unclean. In like manner those fish that have scales and fins are clean in signification. Because fins signify the heavenly or contemplative life; while scales signify a life of trials, each of which is required for spiritual cleanness. Of birds certain kinds were forbidden. In the eagle which flies at a great height, pride is forbidden: in the griffon which is hostile to horses and men, cruelty of powerful men is prohibited. The osprey, which feeds on very small birds, signifies those who oppress the poor. The kite, which is full of cunning, denotes those who are fraudulent in their dealings. The vulture, which follows an army, expecting to feed on the carcasses of the slain, signifies those who like others to die or to fight among themselves that they may gain thereby. Birds of the raven kind signify those who are blackened by their lusts; or those who lack kindly feelings, for the raven did not return when once it had been let loose from the ark. The ostrich which, though a bird, cannot fly, and is always on the ground, signifies those who fight God's cause, and at the same time are taken up with worldly business. The owl, which sees clearly at night, but cannot see in the daytime, denotes those who are clever in temporal affairs, but dull in spiritual matters. The gull, which flies both in the air and swims in the water, signifies those who are partial both to Circumcision and to Baptism:

or else it denotes those who would fly by contemplation, yet dwell in the waters of sensual delights. The hawk, which helps men to seize the prey, is a figure of those who assist the strong to prey on the poor. The screech-owl, which seeks its food by night but hides by day, signifies the lustful man who seeks to lie hidden in his deeds of darkness. The cormorant, so constituted that it can stay a long time under water, denotes the glutton who plunges into the waters of pleasure. The ibis is an African bird with a long beak, and feeds on snakes; and perhaps it is the same as the stork: it signifies the envious man, who refreshes himself with the ills of others, as with snakes. The swan is bright in color, and by the aid of its long neck extracts its food from deep places on land or water: it may denote those who seek earthly profit though an external brightness of virtue. The bittern is a bird of the East: it has a long beak, and its jaws are furnished with follicles, wherein it stores its food at first, after a time proceeding to digest it: it is a figure of the miser, who is excessively careful in hoarding up the necessities of life. The coot [Douay: 'porphyryon.' St. Thomas' description tallies with the coot or moorhen: though of course he is mistaken about the feet differing from one another.] has this peculiarity apart from other birds, that it has a webbed foot for swimming, and a cloven foot for walking: for it swims like a duck in the water, and walks like a partridge on land: it drinks only when it bites, since it dips all its food in water: it is a figure of a man who will not take advice, and does nothing but what is soaked in the water of his own will. The heron [Vulgate: 'herodionem'], commonly called a falcon, signifies those whose "feet are swift to shed blood" (Psalm 13:3). The plover [Here, again, the Douay translators transcribed from the Vulgate: 'charadrius'; 'charadrius' is the generic name for all plovers.], which is a garrulous bird, signifies the gossip. The hoopoe, which builds its nest on dung, feeds on foetid ordure, and whose song is like a groan, denotes worldly grief which works death in those who are unclean. The bat, which flies near the ground, signifies those who being gifted with worldly knowledge, seek none but earthly things. Of fowls and quadrupeds those alone were permitted which have the hind-legs longer than the forelegs, so that they can leap: whereas those were forbidden which cling rather to the earth: because those who abuse the doctrine of the four Evangelists, so that they are not lifted up thereby, are reputed unclean. By the prohibition of blood, fat and nerves, we are to understand the forbidding of cruelty, lust, and bravery in committing sin.

Reply to Objection 2. Men were wont to eat plants and other products of the soil even before the deluge: but the eating of flesh seems to have been introduced after the deluge; for it is written (Genesis 9:3): "Even as the green herbs have I delivered . . . all" flesh "to you." The reason for this was that the eating of the products of the soil savors rather of a simple life; whereas the eating of flesh savors of delicate and over-careful living. For the soil gives birth to the herb of its own accord; and such like products of the earth may be had in great quantities with very little effort: whereas no small trouble is necessary either to rear or to catch an animal. Consequently God being wishful to bring His people back to a more simple way of living, forbade them to eat many kinds of animals, but not those things that are produced by the soil. Another reason may be that animals were offered to idols, while the products of the soil were not.

The Reply to the Third Objection is clear from what has been said (Reply to Objection 1).

Reply to Objection 4. Although the kid that is slain has no perception of the manner in which its flesh is cooked, yet it would seem to savor of heartlessness if the dam's milk, which was intended for the nourishment of her offspring, were served up on the same dish. It might also be said that the Gentiles in celebrating the feasts of their idols prepared the flesh of kids in this manner, for the purpose of sacrifice or banquet: hence (Exodus 23) after the solemnities to be celebrated under the Law had been foretold, it is added: "Thou shalt not boil a kid in the milk of its dam." The

figurative reason for this prohibition is this: the kid, signifying Christ, on account of “the likeness of sinful flesh” (Romans 8:3), was not to be seethed, i.e. slain, by the Jews, “in the milk of its dam,” i.e. during His infancy. Or else it signifies that the kid, i.e. the sinner, should not be boiled in the milk of its dam, i.e. should not be cajoled by flattery.

Reply to Objection 5. The Gentiles offered their gods the first-fruits, which they held to bring them good luck: or they burnt them for the purpose of secrecy. Consequently (the Israelites) were commanded to look upon the fruits of the first three years as unclean: for in that country nearly all the trees bear fruit in three years’ time; those trees, to wit, that are cultivated either from seed, or from a graft, or from a cutting: but it seldom happens that the fruit-stones or seeds encased in a pod are sown: since it would take a longer time for these to bear fruit: and the Law considered what happened most frequently. The fruits, however, of the fourth year, as being the firstlings of clean fruits, were offered to God: and from the fifth year onward they were eaten.

The figurative reason was that this foreshadowed the fact that after the three states of the Law (the first lasting from Abraham to David, the second, until they were carried away to Babylon, the third until the time of Christ), the Fruit of the Law, i.e. Christ, was to be offered to God. Or again, that we must mistrust our first efforts, on account of their imperfection.

Reply to Objection 6. It is said of a man in Sirach 19:27, that “the attire of the body . . .” shows “what he is.” Hence the Lord wished His people to be distinguished from other nations, not only by the sign of the circumcision, which was in the flesh, but also by a certain difference of attire. Wherefore they were forbidden to wear garments woven of woolen and linen together, and for a woman to be clothed with man’s apparel, or vice versa, for two reasons. First, to avoid idolatrous worship. Because the Gentiles, in their religious rites, used garments of this sort, made of various materials. Moreover in the worship of Mars, women put on men’s armor; while, conversely, in the worship of Venus men donned women’s attire. The second reason was to preserve them from lust: because the employment of various materials in the making of garments signified inordinate union of sexes, while the use of male attire by a woman, or vice versa, has an incentive to evil desires, and offers an occasion of lust. The figurative reason is that the prohibition of wearing a garment woven of woolen and linen signified that it was forbidden to unite the simplicity of innocence, denoted by wool, with the duplicity of malice, betokened by linen. It also signifies that woman is forbidden to presume to teach, or perform other duties of men: or that man should not adopt the effeminate manners of a woman.

Reply to Objection 7. As Jerome says on Matthew 23:6, “the Lord commanded them to make violet-colored fringes in the four corners of their garments, so that the Israelites might be distinguished from other nations.” Hence, in this way, they professed to be Jews: and consequently the very sight of this sign reminded them of their law.

When we read: “Thou shalt bind them on thy hand, and they shall be ever before thy eyes [Vulgate: ‘they shall be and shall move between thy eyes’], the Pharisees gave a false interpretation to these words, and wrote the decalogue of Moses on a parchment, and tied it on their foreheads like a wreath, so that it moved in front of their eyes”: whereas the intention of the Lord in giving this commandment was that they should be bound in their hands, i.e. in their works; and that they should be before their eyes, i.e. in their thoughts. The violet-colored fillets which were inserted in their cloaks signify the godly intention which should accompany our every deed. It may, however, be said that, because they were a carnal-minded and stiff-necked people, it was necessary for them to be stirred by these sensible things to the observance of the Law.

Reply to Objection 8. Affection in man is twofold: it may be an affection of reason, or it may be

an affection of passion. If a man's affection be one of reason, it matters not how man behaves to animals, because God has subjected all things to man's power, according to Psalm 8:8: "Thou hast subjected all things under his feet": and it is in this sense that the Apostle says that "God has no care for oxen"; because God does not ask of man what he does with oxen or other animals.

But if man's affection be one of passion, then it is moved also in regard to other animals: for since the passion of pity is caused by the afflictions of others; and since it happens that even irrational animals are sensible to pain, it is possible for the affection of pity to arise in a man with regard to the sufferings of animals. Now it is evident that if a man practice a pitiful affection for animals, he is all the more disposed to take pity on his fellow-men: wherefore it is written (Proverbs 11:10): "The just regardeth the lives of his beasts: but the bowels of the wicked are cruel." Consequently the Lord, in order to inculcate pity to the Jewish people, who were prone to cruelty, wished them to practice pity even with regard to dumb animals, and forbade them to do certain things savoring of cruelty to animals. Hence He prohibited them to "boil a kid in the milk of its dam"; and to "muzzle the ox that treadeth out the corn"; and to slay "the dam with her young." It may, nevertheless, be also said that these prohibitions were made in hatred of idolatry. For the Egyptians held it to be wicked to allow the ox to eat of the grain while threshing the corn. Moreover certain sorcerers were wont to ensnare the mother bird with her young during incubation, and to employ them for the purpose of securing fruitfulness and good luck in bringing up children: also because it was held to be a good omen to find the mother sitting on her young.

As to the mingling of animals of divers species, the literal reason may have been threefold. The first was to show detestation for the idolatry of the Egyptians, who employed various mixtures in worshipping the planets, which produce various effects, and on various kinds of things according to their various conjunctions. The second reason was in condemnation of unnatural sins. The third reason was the entire removal of all occasions of concupiscence. Because animals of different species do not easily breed, unless this be brought about by man; and movements of lust are aroused by seeing such things. Wherefore in the Jewish traditions we find it prescribed as stated by Rabbi Moses that men shall turn away their eyes from such sights.

The figurative reason for these things is that the necessities of life should not be withdrawn from the ox that treadeth the corn, i.e. from the preacher bearing the sheaves of doctrine, as the Apostle states (1 Corinthians 9:4, seqq.). Again, we should not take the dam with her young: because in certain things we have to keep the spiritual senses, i.e. the offspring, and set aside the observance of the letter, i.e. the mother, for instance, in all the ceremonies of the Law. It is also forbidden that beast of burden, i.e. any of the common people, should be allowed to engender, i.e. to have any connection, with animals of another kind, i.e. with Gentiles or Jews.

Reply to Objection 9. All these minglings were forbidden in agriculture; literally, in detestation of idolatry. For the Egyptians in worshipping the stars employed various combinations of seeds, animals and garments, in order to represent the various connections of the stars. Or else all these minglings were forbidden in detestation of the unnatural vice.

They have, however, a figurative reason. For the prohibition: "Thou shalt not sow thy field with different seeds," is to be understood, in the spiritual sense, of the prohibition to sow strange doctrine in the Church, which is a spiritual vineyard. Likewise "the field," i.e. the Church, must not be sown "with different seeds," i.e. with Catholic and heretical doctrines. Neither is it allowed to plough "with an ox and an ass together"; thus a fool should not accompany a wise man in preaching, for one would hinder the other.

Reply to Objection 10. [The Reply to the Tenth Objection is lacking in the codices. The solution

given here is found in some editions, and was supplied by Nicolai.] Silver and gold were reasonably forbidden (Deuteronomy 7) not as though they were not subject to the power of man, but because, like the idols themselves, all materials out of which idols were made, were anathematized as hateful in God's sight. This is clear from the same chapter, where we read further on (Deuteronomy 7:26): "Neither shalt thou bring anything of the idol into thy house, lest thou become an anathema like it." Another reason was lest, by taking silver and gold, they should be led by avarice into idolatry to which the Jews were inclined. The other precept (Deuteronomy 23) about covering up excretions, was just and becoming, both for the sake of bodily cleanliness; and in order to keep the air wholesome; and by reason of the respect due to the tabernacle of the covenant which stood in the midst of the camp, wherein the Lord was said to dwell; as is clearly set forth in the same passage, where after expressing the command, the reason thereof is at once added, to wit: "For the Lord thy God walketh in the midst of thy camp, to deliver thee, and to give up thy enemies to thee, and let thy camp be holy [i.e. clean], and let no uncleanness appear therein." The figurative reason for this precept, according to Gregory (Moral. xxxi), is that sins which are the fetid excretions of the mind should be covered over by repentance, that we may become acceptable to God, according to Psalm 31:1: "Blessed are they whose iniquities are forgiven, and whose sins are covered." Or else according to a gloss, that we should recognize the unhappy condition of human nature, and humbly cover and purify the stains of a puffed-up and proud spirit in the deep furrow of self-examination.

Reply to Objection 11. Sorcerers and idolatrous priests made use, in their rites, of the bones and flesh of dead men. Wherefore, in order to extirpate the customs of idolatrous worship, the Lord commanded that the priests of inferior degree, who at fixed times served in the temple, should not "incur an uncleanness at the death" of anyone except of those who were closely related to them, viz. their father or mother, and others thus near of kin to them. But the high-priest had always to be ready for the service of the sanctuary; wherefore he was absolutely forbidden to approach the dead, however nearly related to him. They were also forbidden to marry a "harlot" or "one that has been put away," or any other than a virgin: both on account of the reverence due to the priesthood, the honor of which would seem to be tarnished by such a marriage: and for the sake of the children who would be disgraced by the mother's shame: which was most of all to be avoided when the priestly dignity was passed on from father to son. Again, they were commanded to shave neither head nor beard, and not to make incisions in their flesh, in order to exclude the rites of idolatry. For the priests of the Gentiles shaved both head and beard, wherefore it is written (Baruch 6:30): "Priests sit in their temples having their garments rent, and their heads and beards shaven." Moreover, in worshipping their idols "they cut themselves with knives and lancets" (1 Kings 18:28). For this reason the priests of the Old Law were commanded to do the contrary.

The spiritual reason for these things is that priests should be entirely free from dead works, i.e. sins. And they should not shave their heads, i.e. set wisdom aside; nor should they shave their beards, i.e. set aside the perfection of wisdom; nor rend their garments or cut their flesh, i.e. they should not incur the sin of schism.

Question 103. The duration of the ceremonial precepts

1. Were the ceremonial precepts in existence before the Law?
2. At the time of the Law, did the ceremonies of the Old Law have any power of justification?
3. Did they cease at the coming of Christ?
4. Is it a mortal sin to observe them after the coming of Christ?

Article 1. Whether the ceremonies of the Law were in existence before the Law?

Objection 1. It would seem that the ceremonies of the Law were in existence before the Law. For sacrifices and holocausts were ceremonies of the Old Law, as stated above (I-II:101:4). But sacrifices and holocausts preceded the Law: for it is written (Genesis 4:3-4) that “Cain offered, of the fruits of the earth, gifts to the Lord,” and that “Abel offered of the firstlings of his flock, and of their fat.” Noah also “offered holocausts” to the Lord (Genesis 18:20), and Abraham did in like manner (Genesis 22:13). Therefore the ceremonies of the Old Law preceded the Law.

Objection 2. Further, the erecting and consecrating of the altar were part of the ceremonies relating to holy things. But these preceded the Law. For we read (Genesis 13:18) that “Abraham . . . built . . . an altar to the Lord”; and (Genesis 28:18) that “Jacob . . . took the stone . . . and set it up for a title, pouring oil upon the top of it.” Therefore the legal ceremonies preceded the Law.

Objection 3. Further, the first of the legal sacraments seems to have been circumcision. But circumcision preceded the Law, as appears from Genesis 17. In like manner the priesthood preceded the Law; for it is written (Genesis 14:18) that “Melchisedech . . . was the priest of the most high God.” Therefore the sacramental ceremonies preceded the Law.

Objection 4. Further, the distinction of clean from unclean animals belongs to the ceremonies of observances, as stated above (I-II:100:2, 6, ad 1). But this distinction preceded the Law; for it is written (Genesis 7:2-3): “Of all clean beasts take seven and seven . . . but of the beasts that are unclean, two and two.” Therefore the legal ceremonies preceded the Law.

On the contrary, It is written (Deuteronomy 6:1): “These are the precepts and ceremonies . . . which the Lord your God commanded that I should teach you.” But they would not have needed to be taught about these things, if the aforesaid ceremonies had been already in existence. Therefore the legal ceremonies did not precede the Law.

I answer that, As is clear from what has been said (I-II:101:2; I-II:102:2), the legal ceremonies were ordained for a double purpose; the worship of God, and the foreshadowing of Christ. Now whoever worships God must needs worship Him by means of certain fixed things pertaining to external worship. But the fixing of the divine worship belongs to the ceremonies; just as the determining of our relations with our neighbor is a matter determined by the judicial precepts, as stated above (I-II:99:4). Consequently, as among men in general there were certain judicial precepts, not indeed established by Divine authority, but ordained by human reason; so also there were some ceremonies fixed, not by the authority of any law, but according to the will and devotion of those that worship God. Since, however, even before the Law some of the leading men were gifted with the spirit of prophecy, it is to be believed that a heavenly instinct, like a private law, prompted them to worship God in a certain definite way, which would be both in keeping with the interior worship, and a suitable token of Christ’s mysteries, which were foreshadowed also by other things that they did, according to 1 Corinthians 10:11: “All . . . things happened to them in figure.” Therefore there were some ceremonies before the Law, but they were not legal ceremonies, because they were not as yet established by legislation.

Reply to Objection 1. The patriarchs offered up these oblations, sacrifices and holocausts previously to the Law, out of a certain devotion of their own will, according as it seemed proper to them to offer up in honor of God those things which they had received from Him, and thus to testify that they worshipped God Who is the beginning and end of all.

Reply to Objection 2. They also established certain sacred things, because they thought that the honor due to God demanded that certain places should be set apart from others for the purpose of divine worship.

Reply to Objection 3. The sacrament of circumcision was established by command of God before the Law. Hence it cannot be called a sacrament of the Law as though it were an institution of the Law, but only as an observance included in the Law. Hence Our Lord said (John 7:20) that circumcision was “not of Moses, but of his fathers.” Again, among those who worshipped God, the priesthood was in existence before the Law by human appointment, for the Law allotted the priestly dignity to the firstborn.

Reply to Objection 4. The distinction of clean from unclean animals was in vogue before the Law, not with regard to eating them, since it is written (Genesis 9:3): “Everything that moveth and liveth shall be meat for you”: but only as to the offering of sacrifices because they used only certain animals for that purpose. If, however, they did make any distinction in regard to eating; it was not that it was considered illegal to eat such animals, since this was not forbidden by any law, but from dislike or custom: thus even now we see that certain foods are looked upon with disgust in some countries, while people partake of them in others.

Article 2. Whether, at the time of the Law, the ceremonies of the Old Law had any power of justification?

Objection 1. It would seem that the ceremonies of the Old Law had the power of justification at the time of the Law. Because expiation from sin and consecration pertains to justification. But it is written (Exodus 39:21) that the priests and their apparel were consecrated by the sprinkling of blood and the anointing of oil; and (Leviticus 16:16) that, by sprinkling the blood of the calf, the priest expiated “the sanctuary from the uncleanness of the children of Israel, and from their transgressions and . . . their sins.” Therefore the ceremonies of the Old Law had the power of justification.

Objection 2. Further, that by which man pleases God pertains to justification, according to Psalm 10:8: “The Lord is just and hath loved justice.” But some pleased God by means of ceremonies, according to Leviticus 10:19: “How could I . . . please the Lord in the ceremonies, having a sorrowful heart?” Therefore the ceremonies of the Old Law had the power of justification.

Objection 3. Further, things relating to the divine worship regard the soul rather than the body, according to Psalm 18:8: “The Law of the Lord is unspotted, converting souls.” But the leper was cleansed by means of the ceremonies of the Old Law, as stated in Leviticus 14. Much more therefore could the ceremonies of the Old Law cleanse the soul by justifying it.

On the contrary, The Apostle says (Galatians 2) [The first words of the quotation are from 3:21: St. Thomas probably quoting from memory, substituted them for 2:21, which runs thus: ‘If justice be by the Law, then Christ died in vain.’]: “If there had been a law given which could justify [Vulgate: ‘give life’], Christ died in vain,” i.e. without cause. But this is inadmissible. Therefore the ceremonies of the Old Law did not confer justice.

I answer that, As stated above (I-II:102:5 ad 4), a twofold uncleanness was distinguished in the Old Law. One was spiritual and is the uncleanness of sin. The other was corporal, which rendered

a man unfit for divine worship; thus a leper, or anyone that touched carrion, was said to be unclean: and thus uncleanness was nothing but a kind of irregularity. From this uncleanness, then, the ceremonies of the Old Law had the power to cleanse: because they were ordered by the Law to be employed as remedies for the removal of the aforesaid uncleannesses which were contracted in consequence of the prescription of the Law. Hence the Apostle says (Hebrews 9:13) that “the blood of goats and of oxen, and the ashes of a heifer, being sprinkled, sanctify such as are defiled, to the cleansing of the flesh.” And just as this uncleanness which was washed away by such like ceremonies, affected the flesh rather than the soul, so also the ceremonies themselves are called by the Apostle shortly before (Hebrews 9:10) justices of the flesh: “justices of the flesh,” says he, “being laid on them until the time of correction.”

On the other hand, they had no power of cleansing from uncleanness of the soul, i.e. from the uncleanness of sin. The reason of this was that at no time could there be expiation from sin, except through Christ, “Who taketh away the sins [Vulgate: ‘sin’] of the world” (John 1:29). And since the mystery of Christ’s Incarnation and Passion had not yet really taken place, those ceremonies of the Old Law could not really contain in themselves a power flowing from Christ already incarnate and crucified, such as the sacraments of the New Law contain. Consequently they could not cleanse from sin: thus the Apostle says (Hebrews 10:4) that “it is impossible that with the blood of oxen and goats sin should be taken away”; and for this reason he calls them (Galatians 4:9) “weak and needy elements”: weak indeed, because they cannot take away sin; but this weakness results from their being needy, i.e. from the fact that they do not contain grace within themselves.

However, it was possible at the time of the Law, for the minds of the faithful, to be united by faith to Christ incarnate and crucified; so that they were justified by faith in Christ: of which faith the observance of these ceremonies was a sort of profession, inasmuch as they foreshadowed Christ. Hence in the Old Law certain sacrifices were offered up for sins, not as though the sacrifices themselves washed sins away, but because they were professions of faith which cleansed from sin. In fact, the Law itself implies this in the terms employed: for it is written (Leviticus 4:26; 5:16) that in offering the sacrifice for sin “the priest shall pray for him . . . and it shall be forgiven him,” as though the sin were forgiven, not in virtue of the sacrifices, but through the faith and devotion of those who offered them. It must be observed, however, that the very fact that the ceremonies of the Old Law washed away uncleanness of the body, was a figure of that expiation from sins which was effected by Christ.

It is therefore evident that under the state of the Old Law the ceremonies had no power of justification.

Reply to Objection 1. That sanctification of priests and their sons, and of their apparel or of anything else belonging to them, by sprinkling them with blood, had no other effect but to appoint them to the divine worship, and to remove impediments from them, “to the cleansing of the flesh,” as the Apostle states (Hebrews 9:13) in token of that sanctification whereby “Jesus” sanctified “the people by His own blood” (Hebrews 13:12). Moreover, the expiation must be understood as referring to the removal of these bodily uncleannesses, not to the forgiveness of sin. Hence even the sanctuary which could not be the subject of sin is stated to be expiated.

Reply to Objection 2. The priests pleased God in the ceremonies by their obedience and devotion, and by their faith in the reality foreshadowed; not by reason of the things considered in themselves.

Reply to Objection 3. Those ceremonies which were prescribed in the cleansing of a leper, were not ordained for the purpose of taking away the defilement of leprosy. This is clear from the fact

that these ceremonies were not applied to a man until he was already healed: hence it is written (Leviticus 14:3-4) that the priest, “going out of the camp, when he shall find that the leprosy is cleansed, shall command him that is to be purified to offer,” etc.; whence it is evident that the priest was appointed the judge of leprosy, not before, but after cleansing. But these ceremonies were employed for the purpose of taking away the uncleanness of irregularity. They do say, however, that if a priest were to err in his judgment, the leper would be cleansed miraculously by the power of God, but not in virtue of the sacrifice. Thus also it was by miracle that the thigh of the adulterous woman rotted, when she had drunk the water “on which” the priest had “heaped curses,” as stated in Numbers 5:19-27.

Article 3. Whether the ceremonies of the Old Law ceased at the coming of Christ?

Objection 1. It would seem that the ceremonies of the Old Law did not cease at the coming of Christ. For it is written (Baruch 4:1): “This is the book of the commandments of God, and the law that is for ever.” But the legal ceremonies were part of the Law. Therefore the legal ceremonies were to last for ever.

Objection 2. Further, the offering made by a leper after being cleansed was a ceremony of the Law. But the Gospel commands the leper, who has been cleansed, to make this offering (Matthew 8:4). Therefore the ceremonies of the Old Law did not cease at Christ’s coming.

Objection 3. Further, as long as the cause remains, the effect remains. But the ceremonies of the Old Law had certain reasonable causes, inasmuch as they were ordained to the worship of God, besides the fact that they were intended to be figures of Christ. Therefore the ceremonies of the Old Law should not have ceased.

Objection 4. Further, circumcision was instituted as a sign of Abraham’s faith: the observance of the sabbath, to recall the blessing of creation: and other solemnities, in memory of other Divine favors, as state above (I-II:102:4 ad 10; Article 5, Reply to Objection 1). But Abraham’s faith is ever to be imitated even by us: and the blessing of creation and other Divine favors should never be forgotten. Therefore at least circumcision and the other legal solemnities should not have ceased.

On the contrary, The Apostle says (Colossians 2:16-17): “Let no man . . . judge you in meat or in drink, or in respect of a festival day, or of the new moon, or of the sabbaths, which are a shadow of things to come”: and (Hebrews 8:13): “In saying a new (testament), he hath made the former old: and that which decayeth and groweth old, is near its end.”

I answer that, All the ceremonial precepts of the Old Law were ordained to the worship of God as stated above (I-II:101:1-2). Now external worship should be in proportion to the internal worship, which consists in faith, hope and charity. Consequently exterior worship had to be subject to variations according to the variations in the internal worship, in which a threefold state may be distinguished. One state was in respect of faith and hope, both in heavenly goods, and in the means of obtaining them—in both of these considered as things to come. Such was the state of faith and hope in the Old Law. Another state of interior worship is that in which we have faith and hope in heavenly goods as things to come; but in the means of obtaining heavenly goods, as in things present or past. Such is the state of the New Law. The third state is that in which both are possessed as present; wherein nothing is believed in as lacking, nothing hoped for as being yet to come. Such is the state of the Blessed.

In this state of the Blessed, then, nothing in regard to worship of God will be figurative; there will be naught but “thanksgiving and voice of praise” (Isaiah 51:3). Hence it is written concerning the city of the Blessed (Apocalypse 21:22): “I saw no temple therein: for the Lord God Almighty is

the temple thereof, and the Lamb." Proportionately, therefore, the ceremonies of the first-mentioned state which foreshadowed the second and third states, had need to cease at the advent of the second state; and other ceremonies had to be introduced which would be in keeping with the state of divine worship for that particular time, wherein heavenly goods are a thing of the future, but the Divine favors whereby we obtain the heavenly boons are a thing of the present.

Reply to Objection 1. The Old Law is said to be "for ever" simply and absolutely, as regards its moral precepts; but as regards the ceremonial precepts it lasts for even in respect of the reality which those ceremonies foreshadowed.

Reply to Objection 2. The mystery of the redemption of the human race was fulfilled in Christ's Passion: hence Our Lord said then: "It is consummated" (John 19:30). Consequently the prescriptions of the Law must have ceased then altogether through their reality being fulfilled. As a sign of this, we read that at the Passion of Christ "the veil of the temple was rent" (Matthew 27:51). Hence, before Christ's Passion, while Christ was preaching and working miracles, the Law and the Gospel were concurrent, since the mystery of Christ had already begun, but was not as yet consummated. And for this reason Our Lord, before His Passion, commanded the leper to observe the legal ceremonies.

Reply to Objection 3. The literal reasons already given (I-II:102) for the ceremonies refer to the divine worship, which was founded on faith in that which was to come. Hence, at the advent of Him Who was to come, both that worship ceased, and all the reasons referring thereto.

Reply to Objection 4. The faith of Abraham was commended in that he believed in God's promise concerning his seed to come, in which all nations were to be blessed. Wherefore, as long as this seed was yet to come, it was necessary to make profession of Abraham's faith by means of circumcision. But now that it is consummated, the same thing needs to be declared by means of another sign, viz. Baptism, which, in this respect, took the place of circumcision, according to the saying of the Apostle (Colossians 2:11-12): "You are circumcised with circumcision not made by hand, in despoiling of the body of the flesh, but in the circumcision of Christ, buried with Him in Baptism."

As to the sabbath, which was a sign recalling the first creation, its place is taken by the "Lord's Day," which recalls the beginning of the new creature in the Resurrection of Christ. In like manner other solemnities of the Old Law are supplanted by new solemnities: because the blessings vouchsafed to that people, foreshadowed the favors granted us by Christ. Hence the feast of the Passover gave place to the feast of Christ's Passion and Resurrection: the feast of Pentecost when the Old Law was given, to the feast of Pentecost on which was given the Law of the living spirit: the feast of the New Moon, to Lady Day, when appeared the first rays of the sun, i.e. Christ, by the fulness of grace: the feast of Trumpets, to the feasts of the Apostles: the feast of Expiation, to the feasts of Martyrs and Confessors: the feast of Tabernacles, to the feast of the Church Dedication: the feast of the Assembly and Collection, to feast of the Angels, or else to the feast of All Hallows.

Article 4. Whether since Christ's Passion the legal ceremonies can be observed without committing mortal sin?

Objection 1. It would seem that since Christ's Passion the legal ceremonies can be observed without committing mortal sin. For we must not believe that the apostles committed mortal sin after receiving the Holy Ghost: since by His fulness they were "endued with power from on high" (Luke 24:49). But the apostles observed the legal ceremonies after the coming of the Holy Ghost: for it is stated (Acts 16:3) that Paul circumcised Timothy: and (Acts 21:26) that Paul, at the advice of

James, "took the men, and . . . being purified with them, entered into the temple, giving notice of the accomplishment of the days of purification, until an oblation should be offered for every one of them." Therefore the legal ceremonies can be observed since the Passion of Christ without mortal sin.

Objection 2. Further, one of the legal ceremonies consisted in shunning the fellowship of Gentiles. But the first Pastor of the Church complied with this observance; for it is stated (Galatians 2:12) that, "when" certain men "had come" to Antioch, Peter "withdrew and separated himself" from the Gentiles. Therefore the legal ceremonies can be observed since Christ's Passion without committing mortal sin.

Objection 3. Further, the commands of the apostles did not lead men into sin. But it was commanded by apostolic decree that the Gentiles should observe certain ceremonies of the Law: for it is written (Acts 15:28-29): "It hath seemed good to the Holy Ghost and to us, to lay no further burden upon you than these necessary things: that you abstain from things sacrificed to idols, and from blood, and from things strangled, and from fornication." Therefore the legal ceremonies can be observed since Christ's Passion without committing mortal sin.

On the contrary, The Apostle says (Galatians 5:2): "If you be circumcised, Christ shall profit you nothing." But nothing save mortal sin hinders us from receiving Christ's fruit. Therefore since Christ's Passion it is a mortal sin to be circumcised, or to observe the other legal ceremonies.

I answer that, All ceremonies are professions of faith, in which the interior worship of God consists. Now man can make profession of his inward faith, by deeds as well as by words: and in either profession, if he make a false declaration, he sins mortally. Now, though our faith in Christ is the same as that of the fathers of old; yet, since they came before Christ, whereas we come after Him, the same faith is expressed in different words, by us and by them. For by them was it said: "Behold a virgin shall conceive and bear a son," where the verbs are in the future tense: whereas we express the same by means of verbs in the past tense, and say that she "conceived and bore." In like manner the ceremonies of the Old Law betokened Christ as having yet to be born and to suffer: whereas our sacraments signify Him as already born and having suffered. Consequently, just as it would be a mortal sin now for anyone, in making a profession of faith, to say that Christ is yet to be born, which the fathers of old said devoutly and truthfully; so too it would be a mortal sin now to observe those ceremonies which the fathers of old fulfilled with devotion and fidelity. Such is the teaching Augustine (*Contra Faust.* xix, 16), who says: "It is no longer promised that He shall be born, shall suffer and rise again, truths of which their sacraments were a kind of image: but it is declared that He is already born, has suffered and risen again; of which our sacraments, in which Christians share, are the actual representation."

Reply to Objection 1. On this point there seems to have been a difference of opinion between Jerome and Augustine. For Jerome (*Super Galat.* ii, 11, seqq.) distinguished two periods of time. One was the time previous to Christ's Passion, during which the legal ceremonies were neither dead, since they were obligatory, and did expiate in their own fashion; nor deadly, because it was not sinful to observe them. But immediately after Christ's Passion they began to be not only dead, so as no longer to be either effectual or binding; but also deadly, so that whoever observed them was guilty of mortal sin. Hence he maintained that after the Passion the apostles never observed the legal ceremonies in real earnest; but only by a kind of pious pretense, lest, to wit, they should scandalize the Jews and hinder their conversion. This pretense, however, is to be understood, not as though they did not in reality perform those actions, but in the sense that they performed them without the mind to observe the ceremonies of the Law: thus a man might cut away his foreskin for

health's sake, not with the intention of observing legal circumcision.

But since it seems unbecoming that the apostles, in order to avoid scandal, should have hidden things pertaining to the truth of life and doctrine, and that they should have made use of pretense, in things pertaining to the salvation of the faithful; therefore Augustine (Epist. lxxxii) more fittingly distinguished three periods of time. One was the time that preceded the Passion of Christ, during which the legal ceremonies were neither deadly nor dead: another period was after the publication of the Gospel, during which the legal ceremonies are both dead and deadly. The third is a middle period, viz. from the Passion of Christ until the publication of the Gospel, during which the legal ceremonies were dead indeed, because they had neither effect nor binding force; but were not deadly, because it was lawful for the Jewish converts to Christianity to observe them, provided they did not put their trust in them so as to hold them to be necessary unto salvation, as though faith in Christ could not justify without the legal observances. On the other hand, there was no reason why those who were converted from heathendom to Christianity should observe them. Hence Paul circumcised Timothy, who was born of a Jewish mother; but was unwilling to circumcise Titus, who was of heathen nationality.

The reason why the Holy Ghost did not wish the converted Jews to be debarred at once from observing the legal ceremonies, while converted heathens were forbidden to observe the rites of heathendom, was in order to show that there is a difference between these rites. For heathenish ceremonial was rejected as absolutely unlawful, and as prohibited by God for all time; whereas the legal ceremonial ceased as being fulfilled through Christ's Passion, being instituted by God as a figure of Christ.

Reply to Objection 2. According to Jerome, Peter withdrew himself from the Gentiles by pretense, in order to avoid giving scandal to the Jews, of whom he was the Apostle. Hence he did not sin at all in acting thus. On the other hand, Paul in like manner made a pretense of blaming him, in order to avoid scandalizing the Gentiles, whose Apostle he was. But Augustine disapproves of this solution: because in the canonical Scripture (viz. Galatians 2:11), wherein we must not hold anything to be false, Paul says that Peter "was to be blamed." Consequently it is true that Peter was at fault: and Paul blamed him in very truth and not with pretense. Peter, however, did not sin, by observing the legal ceremonial for the time being; because this was lawful for him who was a converted Jew. But he did sin by excessive minuteness in the observance of the legal rites lest he should scandalize the Jews, the result being that he gave scandal to the Gentiles.

Reply to Objection 3. Some have held that this prohibition of the apostles is not to be taken literally, but spiritually: namely, that the prohibition of blood signifies the prohibition of murder; the prohibition of things strangled, that of violence and rapine; the prohibition of things offered to idols, that of idolatry; while fornication is forbidden as being evil in itself: which opinion they gathered from certain glosses, which expound these prohibitions in a mystical sense. Since, however, murder and rapine were held to be unlawful even by the Gentiles, there would have been no need to give this special commandment to those who were converted to Christ from heathendom. Hence others maintain that those foods were forbidden literally, not to prevent the observance of legal ceremonies, but in order to prevent gluttony. Thus Jerome says on Ezekiel 44:31 ("The priest shall not eat of anything that is dead"): "He condemns those priests who from gluttony did not keep these precepts."

But since certain foods are more delicate than these and more conducive to gluttony, there seems no reason why these should have been forbidden more than the others.

We must therefore follow the third opinion, and hold that these foods were forbidden literally,

not with the purpose of enforcing compliance with the legal ceremonies, but in order to further the union of Gentiles and Jews living side by side. Because blood and things strangled were loathsome to the Jews by ancient custom; while the Jews might have suspected the Gentiles of relapse into idolatry if the latter had partaken of things offered to idols. Hence these things were prohibited for the time being, during which the Gentiles and Jews were to become united together. But as time went on, with the lapse of the cause, the effect lapsed also, when the truth of the Gospel teaching was divulged, wherein Our Lord taught that “not that which entereth into the mouth defileth a man” (Matthew 15:11); and that “nothing is to be rejected that is received with thanksgiving” (1 Timothy 4:4). With regard to fornication a special prohibition was made, because the Gentiles did not hold it to be sinful.

Question 104. The judicial precepts

1. What is meant by the judicial precepts?
2. Are they figurative?
3. Their duration
4. Their division

Article 1. Whether the judicial precepts were those which directed man in relation to his neighbor?

Objection 1. It would seem that the judicial precepts were not those which directed man in his relations to his neighbor. For judicial precepts take their name from “judgment.” But there are many things that direct man as to his neighbor, which are not subordinate to judgment. Therefore the judicial precepts were not those which directed man in his relations to his neighbor.

Objection 2. Further, the judicial precepts are distinct from the moral precepts, as stated above (I-II:99:4). But there are many moral precepts which direct man as to his neighbor: as is evidently the case with the seven precepts of the second table. Therefore the judicial precepts are not so called from directing man as to his neighbor.

Objection 3. Further, as the ceremonial precepts relate to God, so do the judicial precepts relate to one’s neighbor, as stated above (I-II:99:4; I-II:101:1). But among the ceremonial precepts there are some which concern man himself, such as observances in matter of food and apparel, of which we have already spoken (I-II:102:6, ad 1,6). Therefore the judicial precepts are not so called from directing man as to his neighbor.

On the contrary, It is reckoned (Ezekiel 18:8) among other works of a good and just man, that “he hath executed true judgment between man and man.” But judicial precepts are so called from “judgment.” Therefore it seems that the judicial precepts were those which directed the relations between man and man.

I answer that, As is evident from what we have stated above (I-II:95:2; I-II:99:4), in every law, some precepts derive their binding force from the dictate of reason itself, because natural reason dictates that something ought to be done or to be avoided. These are called “moral” precepts: since human morals are based on reason. At the same time there are other precepts which derive their binding force, not from the very dictate of reason (because, considered in themselves, they do not imply an obligation of something due or undue); but from some institution, Divine or human: and such are certain determinations of the moral precepts. When therefore the moral precepts are fixed

by Divine institution in matters relating to man's subordination to God, they are called "ceremonial" precepts: but when they refer to man's relations to other men, they are called "judicial" precepts. Hence there are two conditions attached to the judicial precepts: viz. first, that they refer to man's relations to other men; secondly, that they derive their binding force not from reason alone, but in virtue of their institution.

Reply to Objection 1. Judgments emanate through the official pronouncement of certain men who are at the head of affairs, and in whom the judicial power is vested. Now it belongs to those who are at the head of affairs to regulate not only litigious matters, but also voluntary contracts which are concluded between man and man, and whatever matters concern the community at large and the government thereof. Consequently the judicial precepts are not only those which concern actions at law; but also all those that are directed to the ordering of one man in relation to another, which ordering is subject to the direction of the sovereign as supreme judge.

Reply to Objection 2. This argument holds in respect of those precepts which direct man in his relations to his neighbor, and derive their binding force from the mere dictate of reason.

Reply to Objection 3. Even in those precepts which direct us to God, some are moral precepts, which the reason itself dictates when it is quickened by faith; such as that God is to be loved and worshipped. There are also ceremonial precepts, which have no binding force except in virtue of their Divine institution. Now God is concerned not only with the sacrifices that are offered to Him, but also with whatever relates to the fitness of those who offer sacrifices to Him and worship Him. Because men are ordained to God as to their end; wherefore it concerns God and, consequently, is a matter of ceremonial precept, that man should show some fitness for the divine worship. On the other hand, man is not ordained to his neighbor as to his end, so as to need to be disposed in himself with regard to his neighbor, for such is the relationship of a slave to his master, since a slave "is his master's in all that he is," as the Philosopher says (Polit. i, 2). Hence there are no judicial precepts ordaining man in himself; all such precepts are moral: because the reason, which is the principal in moral matters, holds the same position, in man, with regard to things that concern him, as a prince or judge holds in the state. Nevertheless we must take note that, since the relations of man to his neighbor are more subject to reason than the relations of man to God, there are more precepts whereby man is directed in his relations to his neighbor, than whereby he is directed to God. For the same reason there had to be more ceremonial than judicial precepts in the Law.

Article 2. Whether the judicial precepts were figurative?

Objection 1. It would seem that the judicial precepts were not figurative. Because it seems proper to the ceremonial precepts to be instituted as figures of something else. Therefore, if the judicial precepts are figurative, there will be no difference between the judicial and ceremonial precepts.

Objection 2. Further, just as certain judicial precepts were given to the Jewish people, so also were some given to other heathen peoples. But the judicial precepts given to other peoples were not figurative, but stated what had to be done. Therefore it seems that neither were the judicial precepts of the Old Law figures of anything.

Objection 3. Further, those things which relate to the divine worship had to be taught under certain figures, because the things of God are above our reason, as stated above (I-II:101:2 ad 2). But things concerning our neighbor are not above our reason. Therefore the judicial precepts which direct us in relation to our neighbor should not have been figurative.

On the contrary, The judicial precepts are expounded both in the allegorical and in the moral

sense (Exodus 21).

I answer that, A precept may be figurative in two ways. First, primarily and in itself: because, to wit, it is instituted principally that it may be the figure of something. In this way the ceremonial precepts are figurative; since they were instituted for the very purpose that they might foreshadow something relating to the worship of God and the mystery of Christ. But some precepts are figurative, not primarily and in themselves, but consequently. In this way the judicial precepts of the Old Law are figurative. For they were not instituted for the purpose of being figurative, but in order that they might regulate the state of that people according to justice and equity. Nevertheless they did foreshadow something consequently: since, to wit, the entire state of that people, who were directed by these precepts, was figurative, according to 1 Corinthians 10:11: "All . . . things happened to them in figure."

Reply to Objection 1. The ceremonial precepts are not figurative in the same way as the judicial precepts, as explained above.

Reply to Objection 2. The Jewish people were chosen by God that Christ might be born of them. Consequently the entire state of that people had to be prophetic and figurative, as Augustine states (*Contra Faust.* xxii, 24). For this reason even the judicial precepts that were given to this people were more figurative than those which were given to other nations. Thus, too, the wars and deeds of this people are expounded in the mystical sense: but not the wars and deeds of the Assyrians or Romans, although the latter are more famous in the eyes of men.

Reply to Objection 3. In this people the direction of man in regard to his neighbor, considered in itself, was subject to reason. But in so far as it was referred to the worship of God, it was above reason: and in this respect it was figurative.

Article 3. Whether the judicial precepts of the Old Law bind for ever?

Objection 1. It would seem that the judicial precepts of the Old Law bind for ever. Because the judicial precepts relate to the virtue of justice: since a judgment is an execution of the virtue of justice. Now "justice is perpetual and immortal" (*Wisdom* 1:15). Therefore the judicial precepts bind for ever.

Objection 2. Further, divine institutions are more enduring than human institutions. But the judicial precepts of human laws bind for ever. Therefore much more do the judicial precepts of the Divine Law.

Objection 3. Further, the Apostle says (*Hebrews* 7:18) that "there is a setting aside of the former commandment, because of the weakness and unprofitableness thereof." Now this is true of the ceremonial precept, which "could [Vulgate: 'can'] not, as to the conscience, make him perfect that serveth only in meats and in drinks, and divers washings and justices of the flesh," as the Apostle declares (*Hebrews* 9:9-10). On the other hand, the judicial precepts were useful and efficacious in respect of the purpose for which they were instituted, viz. to establish justice and equity among men. Therefore the judicial precepts of the Old Law are not set aside, but still retain their efficacy.

On the contrary, The Apostle says (*Hebrews* 7:12) that "the priesthood being translated it is necessary that a translation also be made of the Law." But the priesthood was transferred from Aaron to Christ. Therefore the entire Law was also transferred. Therefore the judicial precepts are no longer in force.

I answer that, The judicial precepts did not bind for ever, but were annulled by the coming of Christ: yet not in the same way as the ceremonial precepts. For the ceremonial precepts were annulled so far as to be not only "dead," but also deadly to those who observe them since the

coming of Christ, especially since the promulgation of the Gospel. On the other hand, the judicial precepts are dead indeed, because they have no binding force: but they are not deadly. For if a sovereign were to order these judicial precepts to be observed in his kingdom, he would not sin: unless perchance they were observed, or ordered to be observed, as though they derived their binding force through being institutions of the Old Law: for it would be a deadly sin to intend to observe them thus.

The reason for this difference may be gathered from what has been said above (Article 2). For it has been stated that the ceremonial precepts are figurative primarily and in themselves, as being instituted chiefly for the purpose of foreshadowing the mysteries of Christ to come. On the other hand, the judicial precepts were not instituted that they might be figures, but that they might shape the state of that people who were directed to Christ. Consequently, when the state of that people changed with the coming of Christ, the judicial precepts lost their binding force: for the Law was a pedagogue, leading men to Christ, as stated in Galatians 3:24. Since, however, these judicial precepts are instituted, not for the purpose of being figures, but for the performance of certain deeds, the observance thereof is not prejudicial to the truth of faith. But the intention of observing them, as though one were bound by the Law, is prejudicial to the truth of faith: because it would follow that the former state of the people still lasts, and that Christ has not yet come.

Reply to Objection 1. The obligation of observing justice is indeed perpetual. But the determination of those things that are just, according to human or Divine institution, must needs be different, according to the different states of mankind.

Reply to Objection 2. The judicial precepts established by men retain their binding force for ever, so long as the state of government remains the same. But if the state or nation pass to another form of government, the laws must needs be changed. For democracy, which is government by the people, demands different laws from those of oligarchy, which is government by the rich, as the Philosopher shows (Polit. iv, 1). Consequently when the state of that people changed, the judicial precepts had to be changed also.

Reply to Objection 3. Those judicial precepts directed the people to justice and equity, in keeping with the demands of that state. But after the coming of Christ, there had to be a change in the state of that people, so that in Christ there was no distinction between Gentile and Jew, as there had been before. For this reason the judicial precepts needed to be changed also.

Article 4. Whether it is possible to assign a distinct division of the judicial precepts?

Objection 1. It would seem that it is impossible to assign a distinct division of the judicial precepts. Because the judicial precepts direct men in their relations to one another. But those things which need to be directed, as pertaining to the relationship between man and man, and which are made use of by men, are not subject to division, since they are infinite in number. Therefore it is not possible to assign a distinct division of the judicial precepts.

Objection 2. Further, the judicial precepts are decisions on moral matters. But moral precepts do not seem to be capable of division, except in so far as they are reducible to the precepts of the decalogue. Therefore there is no distinct division of the judicial precepts.

Objection 3. Further, because there is a distinct division of the ceremonial precepts, the Law alludes to this division, by describing some as “sacrifices,” others as “observances.” But the Law contains no allusion to a division of the judicial precepts. Therefore it seems that they have no distinct division.

On the contrary, Wherever there is order there must needs be division. But the notion of order

is chiefly applicable to the judicial precepts, since thereby that people was ordained. Therefore it is most necessary that they should have a distinct division.

I answer that, Since law is the art, as it were, of directing or ordering the life of man, as in every art there is a distinct division in the rules of art, so, in every law, there must be a distinct division of precepts: else the law would be rendered useless by confusion. We must therefore say that the judicial precepts of the Old Law, whereby men were directed in their relations to one another, are subject to division according to the divers ways in which man is directed.

Now in every people a fourfold order is to be found: one, of the people's sovereign to his subjects; a second of the subjects among themselves; a third, of the citizens to foreigners; a fourth, of members of the same household, such as the order of the father to his son; of the wife to her husband; of the master to his servant: and according to these four orders we may distinguish different kinds of judicial precepts in the Old Law. For certain precepts are laid down concerning the institution of the sovereign and relating to his office, and about the respect due to him: this is one part of the judicial precepts. Again, certain precepts are given in respect of a man to his fellow citizens: for instance, about buying and selling, judgments and penalties: this is the second part of the judicial precepts. Again, certain precepts are enjoined with regard to foreigners: for instance, about wars waged against their foes, and about the way to receive travelers and strangers: this is the third part of the judicial precepts. Lastly, certain precepts are given relating to home life: for instance, about servants, wives and children: this is the fourth part of the judicial precepts.

Reply to Objection 1. Things pertaining to the ordering of relations between one man and another are indeed infinite in number: yet they are reducible to certain distinct heads, according to the different relations in which one man stands to another, as stated above.

Reply to Objection 2. The precepts of the decalogue held the first place in the moral order, as stated above (I-II:100:3): and consequently it is fitting that other moral precepts should be distinguished in relation to them. But the judicial and ceremonial precepts have a different binding force, derived, not from natural reason, but from their institution alone. Hence there is a distinct reason for distinguishing them.

Reply to Objection 3. The Law alludes to the division of the judicial precepts in the very things themselves which are prescribed by the judicial precepts of the Law.

Question 105. The reason for the judicial precepts

1. The reason for the judicial precepts relating to the rulers
2. The fellowship of one man with another
3. Matters relating to foreigners
4. Things relating to domestic matters

Article 1. Whether the Old Law enjoined fitting precepts concerning rulers?

Objection 1. It would seem that the Old Law made unfitting precepts concerning rulers. Because, as the Philosopher says (Polit. iii, 4), "the ordering of the people depends mostly on the chief ruler." But the Law contains no precept relating to the institution of the chief ruler; and yet we find therein prescriptions concerning the inferior rulers: firstly (Exodus 18:21): "Provide out of all the people wise [Vulgate: 'able'] men," etc.; again (Numbers 11:16): "Gather unto Me seventy men of the ancients of Israel"; and again (Deuteronomy 1:13): "Let Me have from among you wise

and understanding men," etc. Therefore the Law provided insufficiently in regard to the rulers of the people.

Objection 2. Further, "The best gives of the best," as Plato states (Tim. ii). Now the best ordering of a state or of any nation is to be ruled by a king: because this kind of government approaches nearest in resemblance to the Divine government, whereby God rules the world from the beginning. Therefore the Law should have set a king over the people, and they should not have been allowed a choice in the matter, as indeed they were allowed (Deuteronomy 17:14-15): "When thou . . . shalt say: I will set a king over me . . . thou shalt set him," etc.

Objection 3. Further, according to Matthew 12:25: "Every kingdom divided against itself shall be made desolate": a saying which was verified in the Jewish people, whose destruction was brought about by the division of the kingdom. But the Law should aim chiefly at things pertaining to the general well-being of the people. Therefore it should have forbidden the kingdom to be divided under two kings: nor should this have been introduced even by Divine authority; as we read of its being introduced by the authority of the prophet Ahias the Silonite (1 Kings 11:29, seqq.).

Objection 4. Further, just as priests are instituted for the benefit of the people in things concerning God, as stated in Hebrews 5:1; so are rulers set up for the benefit of the people in human affairs. But certain things were allotted as a means of livelihood for the priests and Levites of the Law: such as the tithes and first-fruits, and many like things. Therefore in like manner certain things should have been determined for the livelihood of the rulers of the people: the more that they were forbidden to accept presents, as is clearly stated in Exodus 23:8: "You shall not [Vulgate: 'Neither shalt thou'] take bribes, which even blind the wise, and pervert the words of the just."

Objection 5. Further, as a kingdom is the best form of government, so is tyranny the most corrupt. But when the Lord appointed the king, He established a tyrannical law; for it is written (1 Samuel 8:11): "This will be the right of the king, that shall reign over you: He will take your sons," etc. Therefore the Law made unfitting provision with regard to the institution of rulers.

On the contrary, The people of Israel is commended for the beauty of its order (Numbers 24:5): "How beautiful are thy tabernacles, O Jacob, and thy tents." But the beautiful ordering of a people depends on the right establishment of its rulers. Therefore the Law made right provision for the people with regard to its rulers.

I answer that, Two points are to be observed concerning the right ordering of rulers in a state or nation. One is that all should take some share in the government: for this form of constitution ensures peace among the people, commends itself to all, and is most enduring, as stated in Polit. ii, 6. The other point is to be observed in respect of the kinds of government, or the different ways in which the constitutions are established. For whereas these differ in kind, as the Philosopher states (Polit. iii, 5), nevertheless the first place is held by the "kingdom," where the power of government is vested in one; and "aristocracy," which signifies government by the best, where the power of government is vested in a few. Accordingly, the best form of government is in a state or kingdom, where one is given the power to preside over all; while under him are others having governing powers: and yet a government of this kind is shared by all, both because all are eligible to govern, and because the rules are chosen by all. For this is the best form of polity, being partly kingdom, since there is one at the head of all; partly aristocracy, in so far as a number of persons are set in authority; partly democracy, i.e. government by the people, in so far as the rulers can be chosen from the people, and the people have the right to choose their rulers.

Such was the form of government established by the Divine Law. For Moses and his successors governed the people in such a way that each of them was ruler over all; so that there was a kind of

kingdom. Moreover, seventy-two men were chosen, who were elders in virtue: for it is written (Deuteronomy 1:15): "I took out of your tribes wise and honorable, and appointed them rulers": so that there was an element of aristocracy. But it was a democratical government in so far as the rulers were chosen from all the people; for it is written (Exodus 18:21): "Provide out of all the people wise [Vulgate: 'able'] men," etc.; and, again, in so far as they were chosen by the people; wherefore it is written (Deuteronomy 1:13): "Let me have from among you wise [Vulgate: 'able'] men," etc. Consequently it is evident that the ordering of the rulers was well provided for by the Law.

Reply to Objection 1. This people was governed under the special care of God: wherefore it is written (Deuteronomy 7:6): "The Lord thy God hath chosen thee to be His peculiar people": and this is why the Lord reserved to Himself the institution of the chief ruler. For this too did Moses pray (Numbers 27:16): "May the Lord the God of the spirits of all the flesh provide a man, that may be over this multitude." Thus by God's orders Josue was set at the head in place of Moses; and we read about each of the judges who succeeded Josue that God "raised . . . up a saviour" for the people, and that "the spirit of the Lord was" in them (Judges 3:9-15). Hence the Lord did not leave the choice of a king to the people; but reserved this to Himself, as appears from Deuteronomy 17:15: "Thou shalt set him whom the Lord thy God shall choose."

Reply to Objection 2. A kingdom is the best form of government of the people, so long as it is not corrupt. But since the power granted to a king is so great, it easily degenerates into tyranny, unless he to whom this power is given be a very virtuous man: for it is only the virtuous man that conducts himself well in the midst of prosperity, as the Philosopher observes (*Ethic. iv, 3*). Now perfect virtue is to be found in few: and especially were the Jews inclined to cruelty and avarice, which vices above all turn men into tyrants. Hence from the very first the Lord did not set up the kingly authority with full power, but gave them judges and governors to rule them. But afterwards when the people asked Him to do so, being indignant with them, so to speak, He granted them a king, as is clear from His words to Samuel (1 Samuel 8:7): "They have not rejected thee, but Me, that I should not reign over them."

Nevertheless, as regards the appointment of a king, He did establish the manner of election from the very beginning (Deuteronomy 17:14, seqq.): and then He determined two points: first, that in choosing a king they should wait for the Lord's decision; and that they should not make a man of another nation king, because such kings are wont to take little interest in the people they are set over, and consequently to have no care for their welfare: secondly, He prescribed how the king after his appointment should behave, in regard to himself; namely, that he should not accumulate chariots and horses, nor wives, nor immense wealth: because through craving for such things princes become tyrants and forsake justice. He also appointed the manner in which they were to conduct themselves towards God: namely, that they should continually read and ponder on God's Law, and should ever fear and obey God. Moreover, He decided how they should behave towards their subjects: namely, that they should not proudly despise them, or ill-treat them, and that they should not depart from the paths of justice.

Reply to Objection 3. The division of the kingdom, and a number of kings, was rather a punishment inflicted on that people for their many dissensions, specially against the just rule of David, than a benefit conferred on them for their profit. Hence it is written (Hosea 13:11): "I will give thee a king in My wrath"; and (Hosea 8:4): "They have reigned, but not by Me: they have been princes, and I knew not."

Reply to Objection 4. The priestly office was bequeathed by succession from father to son:

and this, in order that it might be held in greater respect, if not any man from the people could become a priest: since honor was given to them out of reverence for the divine worship. Hence it was necessary to put aside certain things for them both as to tithes and as to first-fruits, and, again, as to oblations and sacrifices, that they might be afforded a means of livelihood. On the other hand, the rulers, as stated above, were chosen from the whole people; wherefore they had their own possessions, from which to derive a living: and so much the more, since the Lord forbade even a king to have superabundant wealth to make too much show of magnificence: both because he could scarcely avoid the excesses of pride and tyranny, arising from such things, and because, if the rulers were not very rich, and if their office involved much work and anxiety, it would not tempt the ambition of the common people; and would not become an occasion of sedition.

Reply to Objection 5. That right was not given to the king by Divine institution: rather was it foretold that kings would usurp that right, by framing unjust laws, and by degenerating into tyrants who preyed on their subjects. This is clear from the context that follows: "And you shall be his slaves [Douay: 'servants']": which is significative of tyranny, since a tyrant rules his subjects as though they were his slaves. Hence Samuel spoke these words to deter them from asking for a king; since the narrative continues: "But the people would not hear the voice of Samuel." It may happen, however, that even a good king, without being a tyrant, may take away the sons, and make them tribunes and centurions; and may take many things from his subjects in order to secure the common weal.

Article 2. Whether the judicial precepts were suitably framed as to the relations of one man with another?

Objection 1. It would seem that the judicial precepts were not suitably framed as regards the relations of one man with another. Because men cannot live together in peace, if one man takes what belongs to another. But this seems to have been approved by the Law: since it is written (Deuteronomy 23:24): "Going into thy neighbor's vineyard, thou mayest eat as many grapes as thou pleasest." Therefore the Old Law did not make suitable provisions for man's peace.

Objection 2. Further, one of the chief causes of the downfall of states has been the holding of property by women, as the Philosopher says (Polit. ii, 6). But this was introduced by the Old Law; for it is written (Numbers 27:8): "When a man dieth without a son, his inheritance shall pass to his daughter." Therefore the Law made unsuitable provision for the welfare of the people.

Objection 3. Further, it is most conducive to the preservation of human society that men may provide themselves with necessities by buying and selling, as stated in Polit. i. But the Old Law took away the force of sales; since it prescribes that in the 50th year of the jubilee all that is sold shall return to the vendor (Leviticus 25:28). Therefore in this matter the Law gave the people an unfitting command.

Objection 4. Further, man's needs require that men should be ready to lend: which readiness ceases if the creditors do not return the pledges: hence it is written (Sirach 29:10): "Many have refused to lend, not out of wickedness, but they were afraid to be defrauded without cause." And yet this was encouraged by the Law. First, because it prescribed (Deuteronomy 15:2): "He to whom any thing is owing from his friend or neighbor or brother, cannot demand it again, because it is the year of remission of the Lord"; and (Exodus 22:15) it is stated that if a borrowed animal should die while the owner is present, the borrower is not bound to make restitution. Secondly, because the security acquired through the pledge is lost: for it is written (Deuteronomy 24:10): "When thou shalt demand of thy neighbor any thing that he oweth thee, thou shalt not go into his house to take

away a pledge"; and again (Deuteronomy 24:12-13): "The pledge shall not lodge with thee that night, but thou shalt restore it to him presently." Therefore the Law made insufficient provision in the matter of loans.

Objection 5. Further, considerable risk attaches to goods deposited with a fraudulent depositary: wherefore great caution should be observed in such matters: hence it is stated in 2 Maccabees 3:15 that "the priests . . . called upon Him from heaven, Who made the law concerning things given to be kept, that He would preserve them safe, for them that had deposited them." But the precepts of the Old Law observed little caution in regard to deposits: since it is prescribed (Exodus 22:10-11) that when goods deposited are lost, the owner is to stand by the oath of the depositary. Therefore the Law made unsuitable provision in this matter.

Objection 6. Further, just as a workman offers his work for hire, so do men let houses and so forth. But there is no need for the tenant to pay his rent as soon as he takes a house. Therefore it seems an unnecessarily hard prescription (Leviticus 19:13) that "the wages of him that hath been hired by thee shall not abide with thee until morning."

Objection 7. Further, since there is often pressing need for a judge, it should be easy to gain access to one. It was therefore unfitting that the Law (Deuteronomy 17:8-9) should command them to go to a fixed place to ask for judgment on doubtful matters.

Objection 8. Further, it is possible that not only two, but three or more, should agree to tell a lie. Therefore it is unreasonably stated (Deuteronomy 19:15) that "in the mouth of two or three witnesses every word shall stand."

Objection 9. Further, punishment should be fixed according to the gravity of the fault: for which reason also it is written (Deuteronomy 25:2): "According to the measure of the sin, shall the measure also of the stripes be." Yet the Law fixed unequal punishments for certain faults: for it is written (Exodus 22:1) that the thief "shall restore five oxen for one ox, and four sheep for one sheep." Moreover, certain slight offenses are severely punished: thus (Numbers 15:32, seqq.) a man is stoned for gathering sticks on the sabbath day: and (Deuteronomy 21:18, seqq.) the unruly son is commanded to be stoned on account of certain small transgressions, viz. because "he gave himself to revelling . . . and banquetings." Therefore the Law prescribed punishments in an unreasonable manner.

Objection 10. Further, as Augustine says (De Civ. Dei xxi, 11), "Tully writes that the laws recognize eight forms of punishment, indemnity, prison, stripes, retaliation, public disgrace, exile, death, slavery." Now some of these were prescribed by the Law. "Indemnity," as when a thief was condemned to make restitution fivefold or fourfold. "Prison," as when (Numbers 15:34) a certain man is ordered to be imprisoned. "Stripes"; thus (Deuteronomy 25:2), "if they see that the offender be worthy of stripes; they shall lay him down, and shall cause him to be beaten before them." "Public disgrace" was brought on to him who refused to take to himself the wife of his deceased brother, for she took "off his shoe from his foot, and" did "spit in his face" (Deuteronomy 25:9). It prescribed the "death" penalty, as is clear from (Leviticus 20:9): "He that curseth his father, or mother, dying let him die." The Law also recognized the "lex talionis," by prescribing (Exodus 21:24): "Eye for eye, tooth for tooth." Therefore it seems unreasonable that the Law should not have inflicted the two other punishments, viz. "exile" and "slavery."

Objection 11. Further, no punishment is due except for a fault. But dumb animals cannot commit a fault. Therefore the Law is unreasonable in punishing them (Exodus 21:29): "If the ox . . . shall kill a man or a woman," it "shall be stoned": and (Leviticus 20:16): "The woman that shall lie under any beast, shall be killed together with the same." Therefore it seems that matters pertaining

to the relations of one man with another were unsuitably regulated by the Law.

Objection 12. Further, the Lord commanded (Exodus 21:12) a murderer to be punished with death. But the death of a dumb animal is reckoned of much less account than the slaying of a man. Hence murder cannot be sufficiently punished by the slaying of a dumb animal. Therefore it is unfittingly prescribed (Deuteronomy 21:1-4) that “when there shall be found . . . the corpse of a man slain, and it is not known who is guilty of the murder . . . the ancients” of the nearest city “shall take a heifer of the herd, that hath not drawn in the yoke, nor ploughed the ground, and they shall bring her into a rough and stony valley, that never was ploughed, nor sown; and there they shall strike off the head of the heifer.”

On the contrary, It is recalled as a special blessing (Psalm 147:20) that “He hath not done in like manner to every nation; and His judgments He hath not made manifest to them.”

I answer that, As Augustine says (De Civ. Dei ii, 21), quoting Tully, “a nation is a body of men united together by consent to the law and by community of welfare.” Consequently it is of the essence of a nation that the mutual relations of the citizens be ordered by just laws. Now the relations of one man with another are twofold: some are effected under the guidance of those in authority: others are effected by the will of private individuals. And since whatever is subject to the power of an individual can be disposed of according to his will, hence it is that the decision of matters between one man and another, and the punishment of evildoers, depend on the direction of those in authority, to whom men are subject. On the other hand, the power of private persons is exercised over the things they possess: and consequently their dealings with one another, as regards such things, depend on their own will, for instance in buying, selling, giving, and so forth. Now the Law provided sufficiently in respect of each of these relations between one man and another. For it established judges, as is clearly indicated in Deuteronomy 16:18: “Thou shalt appoint judges and magistrates in all its [Vulgate: ‘thy’] gates . . . that they may judge the people with just judgment.” It is also directed the manner of pronouncing just judgments, according to Deuteronomy 1:16-17: “Judge that which is just, whether he be one of your own country or a stranger: there shall be no difference of persons.” It also removed an occasion of pronouncing unjust judgment, by forbidding judges to accept bribes (Exodus 23:8; Deuteronomy 16:19). It prescribed the number of witnesses, viz. two or three: and it appointed certain punishments to certain crimes, as we shall state farther on (Reply to Objection 10).

But with regard to possessions, it is a very good thing, says the Philosopher (Polit. ii, 2) that the things possessed should be distinct, and the use thereof should be partly common, and partly granted to others by the will of the possessors. These three points were provided for by the Law. Because, in the first place, the possessions themselves were divided among individuals: for it is written (Numbers 33:53-54): “I have given you” the land “for a possession: and you shall divide it among you by lot.” And since many states have been ruined through want of regulations in the matter of possessions, as the Philosopher observes (Polit. ii, 6); therefore the Law provided a threefold remedy against the irregularity of possessions. The first was that they should be divided equally, wherefore it is written (Numbers 33:54): “To the more you shall give a larger part, and to the fewer, a lesser.” A second remedy was that possessions could not be alienated for ever, but after a certain lapse of time should return to their former owner, so as to avoid confusion of possessions (cf. ad 3). The third remedy aimed at the removal of this confusion, and provided that the dead should be succeeded by their next of kin: in the first place, the son; secondly, the daughter; thirdly, the brother; fourthly, the father’s brother; fifthly, any other next of kin. Furthermore, in order to preserve the distinction of property, the Law enacted that heiresses should marry within their own

tribe, as recorded in Numbers 36:6.

Secondly, the Law commanded that, in some respects, the use of things should belong to all in common. Firstly, as regards the care of them; for it was prescribed (Deuteronomy 22:1-4): "Thou shalt not pass by, if thou seest thy brother's ox or his sheep go astray; but thou shalt bring them back to thy brother," and in like manner as to other things. Secondly, as regards fruits. For all alike were allowed on entering a friend's vineyard to eat of the fruit, but not to take any away. And, specially, with respect to the poor, it was prescribed that the forgotten sheaves, and the bunches of grapes and fruit, should be left behind for them (Leviticus 19:9; Deuteronomy 24:19). Moreover, whatever grew in the seventh year was common property, as stated in Exodus 23:11 and Leviticus 25:4.

Thirdly, the law recognized the transference of goods by the owner. There was a purely gratuitous transfer: thus it is written (Deuteronomy 14:28-29): "The third day thou shalt separate another tithe . . . and the Levite . . . and the stranger, and the fatherless, and the widow . . . shall come and shall eat and be filled." And there was a transfer for a consideration, for instance, by selling and buying, by letting out and hiring, by loan and also by deposit, concerning all of which we find that the Law made ample provision. Consequently it is clear that the Old Law provided sufficiently concerning the mutual relations of one man with another.

Reply to Objection 1. As the Apostle says (Romans 13:8), "he that loveth his neighbor hath fulfilled the Law": because, to wit, all the precepts of the Law, chiefly those concerning our neighbor, seem to aim at the end that men should love one another. Now it is an effect of love that men give their own goods to others: because, as stated in 1 John 3:17: "He that . . . shall see his brother in need, and shall shut up his bowels from him: how doth the charity of God abide in him?" Hence the purpose of the Law was to accustom men to give of their own to others readily: thus the Apostle (1 Timothy 6:18) commands the rich "to give easily and to communicate to others." Now a man does not give easily to others if he will not suffer another man to take some little thing from him without any great injury to him. And so the Law laid down that it should be lawful for a man, on entering his neighbor's vineyard, to eat of the fruit there: but not to carry any away, lest this should lead to the infliction of a grievous harm, and cause a disturbance of the peace: for among well-behaved people, the taking of a little does not disturb the peace; in fact, it rather strengthens friendship and accustoms men to give things to one another.

Reply to Objection 2. The Law did not prescribe that women should succeed to their father's estate except in default of male issue: failing which it was necessary that succession should be granted to the female line in order to comfort the father, who would have been sad to think that his estate would pass to strangers. Nevertheless the Law observed due caution in the matter, by providing that those women who succeeded to their father's estate, should marry within their own tribe, in order to avoid confusion of tribal possessions, as stated in Numbers 36:7-8.

Reply to Objection 3. As the Philosopher says (Polit. ii, 4), the regulation of possessions conduces much to the preservation of a state or nation. Consequently, as he himself observes, it was forbidden by the law in some of the heathen states, "that anyone should sell his possessions, except to avoid a manifest loss." For if possessions were to be sold indiscriminately, they might happen to come into the hands of a few: so that it might become necessary for a state or country to become void of inhabitants. Hence the Old Law, in order to remove this danger, ordered things in such a way that while provision was made for men's needs, by allowing the sale of possessions to avail for a certain period, at the same time the said danger was removed, by prescribing the return of those possessions after that period had elapsed. The reason for this law was to prevent

confusion of possessions, and to ensure the continuance of a definite distinction among the tribes.

But as the town houses were not allotted to distinct estates, therefore the Law allowed them to be sold in perpetuity, like movable goods. Because the number of houses in a town was not fixed, whereas there was a fixed limit to the amount of estates, which could not be exceeded, while the number of houses in a town could be increased. On the other hand, houses situated not in a town, but "in a village that hath no walls," could not be sold in perpetuity: because such houses are built merely with a view to the cultivation and care of possessions; wherefore the Law rightly made the same prescription in regard to both (Leviticus 25).

Reply to Objection 4. As stated above (Reply to Objection 1), the purpose of the Law was to accustom men to its precepts, so as to be ready to come to one another's assistance: because this is a very great incentive to friendship. The Law granted these facilities for helping others in the matter not only of gratuitous and absolute donations, but also of mutual transfers: because the latter kind of succor is more frequent and benefits the greater number: and it granted facilities for this purpose in many ways. First of all by prescribing that men should be ready to lend, and that they should not be less inclined to do so as the year of remission drew nigh, as stated in Deuteronomy 15:7, seqq. Secondly, by forbidding them to burden a man to whom they might grant a loan, either by exacting usury, or by accepting necessities of life in security; and by prescribing that when this had been done they should be restored at once. For it is written (Deuteronomy 23:19): "Thou shalt not lend to thy brother money to usury": and (Deuteronomy 24:6): "Thou shalt not take the nether nor the upper millstone to pledge; for he hath pledged his life to thee": and (Exodus 22:26): "If thou take of thy neighbor a garment in pledge, thou shalt give it him again before sunset." Thirdly, by forbidding them to be importunate in exacting payment. Hence it is written (Exodus 22:25): "If thou lend money to any of my people that is poor that dwelleth with thee, thou shalt not be hard upon them as an extortioner." For this reason, too, it is enacted (Deuteronomy 24:10-11): "When thou shalt demand of thy neighbor anything that he oweth thee, thou shalt not go into his house to take away a pledge, but thou shalt stand without, and he shall bring out to thee what he hath": both because a man's house is his surest refuge, wherefore it is offensive to a man to be set upon in his own house; and because the Law does not allow the creditor to take away whatever he likes in security, but rather permits the debtor to give what he needs least. Fourthly, the Law prescribed that debts should cease together after the lapse of seven years. For it was probable that those who could conveniently pay their debts, would do so before the seventh year, and would not defraud the lender without cause. But if they were altogether insolvent, there was the same reason for remitting the debt from love for them, as there was for renewing the loan on account of their need.

As regards animals granted in loan, the Law enacted that if, through the neglect of the person to whom they were lent, they perished or deteriorated in his absence, he was bound to make restitution. But if they perished or deteriorated while he was present and taking proper care of them, he was not bound to make restitution, especially if they were hired for a consideration: because they might have died or deteriorated in the same way if they had remained in possession of the lender, so that if the animal had been saved through being lent, the lender would have gained something by the loan which would no longer have been gratuitous. And especially was this to be observed when animals were hired for a consideration: because then the owner received a certain price for the use of the animals; wherefore he had no right to any profit, by receiving indemnity for the animal, unless the person who had charge of it were negligent. In the case, however, of animals not hired for a consideration, equity demanded that he should receive something by way of restitution at least to the value of the hire of the animal that had perished or deteriorated.

Reply to Objection 5. The difference between a loan and a deposit is that a loan is in respect of goods transferred for the use of the person to whom they are transferred, whereas a deposit is for the benefit of the depositor. Hence in certain cases there was a stricter obligation of returning a loan than of restoring goods held in deposit. Because the latter might be lost in two ways. First, unavoidably: i.e. either through a natural cause, for instance if an animal held in deposit were to die or depreciate in value; or through an extrinsic cause, for instance, if it were taken by an enemy, or devoured by a beast (in which case, however, a man was bound to restore to the owner what was left of the animal thus slain): whereas in the other cases mentioned above, he was not bound to make restitution; but only to take an oath in order to clear himself of suspicion. Secondly, the goods deposited might be lost through an avoidable cause, for instance by theft: and then the depositary was bound to restitution on account of his neglect. But, as stated above (Reply to Objection 4), he who held an animal on loan, was bound to restitution, even if he were absent when it depreciated or died: because he was held responsible for less negligence than a depositary, who was only held responsible in case of theft.

Reply to Objection 6. Workmen who offer their labor for hire, are poor men who toil for their daily bread: and therefore the Law commanded wisely that they should be paid at once, lest they should lack food. But they who offer other commodities for hire, are wont to be rich: nor are they in such need of their price in order to gain a livelihood: and consequently the comparison does not hold.

Reply to Objection 7. The purpose for which judges are appointed among men, is that they may decide doubtful points in matters of justice. Now a matter may be doubtful in two ways. First, among simple-minded people: and in order to remove doubts of this kind, it was prescribed (Deuteronomy 16:18) that “judges and magistrates” should be appointed in each tribe, “to judge the people with just judgment.” Secondly, a matter may be doubtful even among experts: and therefore, in order to remove doubts of this kind, the Law prescribed that all should foregather in some chief place chosen by God, where there would be both the high-priest, who would decide doubtful matters relating to the ceremonies of divine worship; and the chief judge of the people, who would decide matters relating to the judgments of men: just as even now cases are taken from a lower to a higher court either by appeal or by consultation. Hence it is written (Deuteronomy 17:8-9): “If thou perceive that there be among you a hard and doubtful matter in judgment . . . and thou see that the words of the judges within thy gates do vary; arise and go up to the place, which the Lord thy God shall choose; and thou shalt come to the priests of the Levitical race, and to the judge that shall be at that time.” But such like doubtful matters did not often occur for judgment: wherefore the people were not burdened on this account.

Reply to Objection 8. In the business affairs of men, there is no such thing as demonstrative and infallible proof, and we must be content with a certain conjectural probability, such as that which an orator employs to persuade. Consequently, although it is quite possible for two or three witnesses to agree to a falsehood, yet it is neither easy nor probable that they succeed in so doing: wherefore their testimony is taken as being true, especially if they do not waver in giving it, or are not otherwise suspect. Moreover, in order that witnesses might not easily depart from the truth, the Law commanded that they should be most carefully examined, and that those who were found untruthful should be severely punished, as stated in Deuteronomy 19:16, seqq.

There was, however, a reason for fixing on this particular number, in token of the unerring truth of the Divine Persons, Who are sometimes mentioned as two, because the Holy Ghost is the bond of the other two Persons; and sometimes as three: as Augustine observes on John 8:17: “In your

law it is written that the testimony of two men is true.”

Reply to Objection 9. A severe punishment is inflicted not only on account of the gravity of a fault, but also for other reasons. First, on account of the greatness of the sin, because a greater sin, other things being equal, deserves a greater punishment. Secondly, on account of a habitual sin, since men are not easily cured of habitual sin except by severe punishments. Thirdly, on account of a great desire for or a great pleasure in the sin: for men are not easily deterred from such sins unless they be severely punished. Fourthly, on account of the facility of committing a sin and of concealing it: for such like sins, when discovered, should be more severely punished in order to deter others from committing them.

Again, with regard to the greatness of a sin, four degrees may be observed, even in respect of one single deed. The first is when a sin is committed unwillingly; because then, if the sin be altogether involuntary, man is altogether excused from punishment; for it is written (Deuteronomy 22:25, seqq.) that a damsel who suffers violence in a field is not guilty of death, because “she cried, and there was no man to help her.” But if a man sinned in any way voluntarily, and yet through weakness, as for instance when a man sins from passion, the sin is diminished: and the punishment, according to true judgment, should be diminished also; unless perchance the common weal requires that the sin be severely punished in order to deter others from committing such sins, as stated above. The second degree is when a man sins through ignorance: and then he was held to be guilty to a certain extent, on account of his negligence in acquiring knowledge: yet he was not punished by the judges but expiated his sin by sacrifices. Hence it is written (Leviticus 4:2): “The soul that sinneth through ignorance,” etc. This is, however, to be taken as applying to ignorance of fact; and not to ignorance of the Divine precept, which all were bound to know. The third degree was when a man sinned from pride, i.e. through deliberate choice or malice: and then he was punished according to the greatness of the sin [Cf. Deuteronomy 25:2. The fourth degree was when a man sinned from stubbornness or obstinacy: and then he was to be utterly cut off as a rebel and a destroyer of the commandment of the Law [Cf. Numbers 15:30-31.

Accordingly we must say that, in appointing the punishment for theft, the Law considered what would be likely to happen most frequently (Exodus 22:1-9): wherefore, as regards theft of other things which can easily be safeguarded from a thief, the thief restored only twice their value. But sheep cannot be easily safeguarded from a thief, because they graze in the fields: wherefore it happened more frequently that sheep were stolen in the fields. Consequently the Law inflicted a heavier penalty, by ordering four sheep to be restored for the theft of one. As to cattle, they were yet more difficult to safeguard, because they are kept in the fields, and do not graze in flocks as sheep do; wherefore a yet more heavy penalty was inflicted in their regard, so that five oxen were to be restored for one ox. And this I say, unless perchance the animal itself were discovered in the thief’s possession: because in that case he had to restore only twice the number, as in the case of other thefts: for there was reason to presume that he intended to restore the animal, since he kept it alive. Again, we might say, according to a gloss, that “a cow is useful in five ways: it may be used for sacrifice, for ploughing, for food, for milk, and its hide is employed for various purposes”: and therefore for one cow five had to be restored. But the sheep was useful in four ways: “for sacrifice, for meat, for milk, and for its wool.” The unruly son was slain, not because he ate and drank: but on account of his stubbornness and rebellion, which was always punished by death, as stated above. As to the man who gathered sticks on the sabbath, he was stoned as a breaker of the Law, which commanded the sabbath to be observed, to testify the belief in the newness of the world, as stated above (I-II:100:5): wherefore he was slain as an unbeliever.

Reply to Objection 10. The Old Law inflicted the death penalty for the more grievous crimes, viz. for those which are committed against God, and for murder, for stealing a man, irreverence towards one's parents, adultery and incest. In the case of thief of other things it inflicted punishment by indemnification: while in the case of blows and mutilation it authorized punishment by retaliation; and likewise for the sin of bearing false witness. In other faults of less degree it prescribed the punishment of stripes or of public disgrace.

The punishment of slavery was prescribed by the Law in two cases. First, in the case of a slave who was unwilling to avail himself of the privilege granted by the Law, whereby he was free to depart in the seventh year of remission: wherefore he was punished by remaining a slave for ever. Secondly, in the case of a thief, who had not wherewith to make restitution, as stated in Exodus 22:3.

The punishment of absolute exile was not prescribed by the Law: because God was worshipped by that people alone, whereas all other nations were given to idolatry: wherefore if any man were exiled from that people absolutely, he would be in danger of falling into idolatry. For this reason it is related (1 Samuel 26:19) that David said to Saul: "They are cursed in the sight of the Lord, who have cast me out this day, that I should not dwell in the inheritance of the Lord, saying: Go, serve strange gods." There was, however, a restricted sort of exile: for it is written in Deuteronomy 19:4 [Cf. Numbers 35:25 that "he that striketh [Vulgate: 'killeth'] his neighbor ignorantly, and is proved to have had no hatred against him, shall flee to one of the cities" of refuge and "abide there until the death of the high-priest." For then it became lawful for him to return home, because when the whole people thus suffered a loss they forgot their private quarrels, so that the next of kin of the slain were not so eager to kill the slayer.

Reply to Objection 11. Dumb animals were ordered to be slain, not on account of any fault of theirs; but as a punishment to their owners, who had not safeguarded their beasts from these offenses. Hence the owner was more severely punished if his ox had butted anyone "yesterday or the day before" (in which case steps might have been taken to butting suddenly). Or again, the animal was slain in detestation of the sin; and lest men should be horrified at the sight thereof.

Reply to Objection 12. The literal reason for this commandment, as Rabbi Moses declares (Doct. Perplex. iii), was because the slayer was frequently from the nearest city: wherefore the slaying of the calf was a means of investigating the hidden murder. This was brought about in three ways. In the first place the elders of the city swore that they had taken every measure for safeguarding the roads. Secondly, the owner of the heifer was indemnified for the slaying of his beast, and if the murder was previously discovered, the beast was not slain. Thirdly, the place, where the heifer was slain, remained uncultivated. Wherefore, in order to avoid this twofold loss, the men of the city would readily make known the murderer, if they knew who he was: and it would seldom happen but that some word or sign would escape about the matter. Or again, this was done in order to frighten people, in detestation of murder. Because the slaying of a heifer, which is a useful animal and full of strength, especially before it has been put under the yoke, signified that whoever committed murder, however useful and strong he might be, was to forfeit his life; and that, by a cruel death, which was implied by the striking off of its head; and that the murderer, as vile and abject, was to be cut off from the fellowship of men, which was betokened by the fact that the heifer after being slain was left to rot in a rough and uncultivated place.

Mystically, the heifer taken from the herd signifies the flesh of Christ; which had not drawn a yoke, since it had done no sin; nor did it plough the ground, i.e. it never knew the stain of revolt. The fact of the heifer being killed in an uncultivated valley signified the despised death of Christ,

whereby all sins are washed away, and the devil is shown to be the arch-murderer.

Article 3. Whether the judicial precepts regarding foreigners were framed in a suitable manner?

Objection 1. It would seem that the judicial precepts regarding foreigners were not suitably framed. For Peter said (Acts 10:34-35): "In very deed I perceive that God is not a respecter of persons, but in every nation, he that feareth Him and worketh justice is acceptable to Him." But those who are acceptable to God should not be excluded from the Church of God. Therefore it is unsuitably commanded (Deuteronomy 23:3) that "the Ammonite and the Moabite, even after the tenth generation, shall not enter into the church of the Lord for ever": whereas, on the other hand, it is prescribed (Deuteronomy 23:7) to be observed with regard to certain other nations: "Thou shalt not abhor the Edomite, because he is thy brother; nor the Egyptian because thou wast a stranger in his land."

Objection 2. Further, we do not deserve to be punished for those things which are not in our power. But it is not in man's power to be an eunuch, or born of a prostitute. Therefore it is unsuitably commanded (Deuteronomy 23:1-2) that "an eunuch and one born of a prostitute shalt not enter into the church of the Lord."

Objection 3. Further, the Old Law mercifully forbade strangers to be molested: for it is written (Exodus 22:21): "Thou shalt not molest a stranger, nor afflict him; for yourselves also were strangers in the land of Egypt": and (Exodus 23:9): "Thou shalt not molest a stranger, for you know the hearts of strangers, for you also were strangers in the land of Egypt." But it is an affliction to be burdened with usury. Therefore the Law unsuitably permitted them (Deuteronomy 23:19-20) to lend money to the stranger for usury.

Objection 4. Further, men are much more akin to us than trees. But we should show greater care and love for these things that are nearest to us, according to Sirach 13:19: "Every beast loveth its like: so also every man him that is nearest to himself." Therefore the Lord unsuitably commanded (Deuteronomy 20:13-19) that all the inhabitants of a captured hostile city were to be slain, but that the fruit-trees should not be cut down.

Objection 5. Further, every one should prefer the common good of virtue to the good of the individual. But the common good is sought in a war which men fight against their enemies. Therefore it is unsuitably commanded (Deuteronomy 20:5-7) that certain men should be sent home, for instance a man that had built a new house, or who had planted a vineyard, or who had married a wife.

Objection 6. Further, no man should profit by his own fault. But it is a man's fault if he be timid or faint-hearted: since this is contrary to the virtue of fortitude. Therefore the timid and faint-hearted are unfittingly excused from the toil of battle (Deuteronomy 20:8).

On the contrary, Divine Wisdom declares (Proverbs 8:8): "All my words are just, there is nothing wicked nor perverse in them."

I answer that, Man's relations with foreigners are twofold: peaceful, and hostile: and in directing both kinds of relation the Law contained suitable precepts. For the Jews were offered three opportunities of peaceful relations with foreigners. First, when foreigners passed through their land as travelers. Secondly, when they came to dwell in their land as newcomers. And in both these respects the Law made kind provision in its precepts: for it is written (Exodus 22:21): "Thou shalt not molest a stranger [advenam]"; and again (Exodus 22:9): "Thou shalt not molest a stranger [peregrino]." Thirdly, when any foreigners wished to be admitted entirely to their fellowship and mode of worship. With regard to these a certain order was observed. For they were not at once

admitted to citizenship: just as it was law with some nations that no one was deemed a citizen except after two or three generations, as the Philosopher says (Polit. iii, 1). The reason for this was that if foreigners were allowed to meddle with the affairs of a nation as soon as they settled down in its midst, many dangers might occur, since the foreigners not yet having the common good firmly at heart might attempt something hurtful to the people. Hence it was that the Law prescribed in respect of certain nations that had close relations with the Jews (viz., the Egyptians among whom they were born and educated, and the Idumeans, the children of Esau, Jacob's brother), that they should be admitted to the fellowship of the people after the third generation; whereas others (with whom their relations had been hostile, such as the Ammonites and Moabites) were never to be admitted to citizenship; while the Amalekites, who were yet more hostile to them, and had no fellowship of kindred with them, were to be held as foes in perpetuity: for it is written (Exodus 17:16): "The war of the Lord shall be against Amalec from generation to generation."

In like manner with regard to hostile relations with foreigners, the Law contained suitable precepts. For, in the first place, it commanded that war should be declared for a just cause: thus it is commanded (Deuteronomy 20:10) that when they advanced to besiege a city, they should at first make an offer of peace. Secondly, it enjoined that when once they had entered on a war they should undauntedly persevere in it, putting their trust in God. And in order that they might be the more heedful of this command, it ordered that on the approach of battle the priest should hearten them by promising them God's aid. Thirdly, it prescribed the removal of whatever might prove an obstacle to the fight, and that certain men, who might be in the way, should be sent home. Fourthly, it enjoined that they should use moderation in pursuing the advantage of victory, by sparing women and children, and by not cutting down fruit-trees of that country.

Reply to Objection 1. The Law excluded the men of no nation from the worship of God and from things pertaining to the welfare of the soul: for it is written (Exodus 12:48): "If any stranger be willing to dwell among you, and to keep the Phase of the Lord; all his males shall first be circumcised, and then shall he celebrate it according to the manner, and he shall be as that which is born in the land." But in temporal matters concerning the public life of the people, admission was not granted to everyone at once, for the reason given above: but to some, i.e. the Egyptians and Idumeans, in the third generation; while others were excluded in perpetuity, in detestation of their past offense, i.e. the peoples of Moab, Ammon, and Amalec. For just as one man is punished for a sin committed by him, in order that others seeing this may be deterred and refrain from sinning; so too may one nation or city be punished for a crime, that others may refrain from similar crimes.

Nevertheless it was possible by dispensation for a man to be admitted to citizenship on account of some act of virtue: thus it is related (Judith 14:6) that Achior, the captain of the children of Ammon, "was joined to the people of Israel, with all the succession of his kindred." The same applies to Ruth the Moabite who was "a virtuous woman" (Ruth 3:11): although it may be said that this prohibition regarded men and not women, who are not competent to be citizens absolutely speaking.

Reply to Objection 2. As the Philosopher says (Polit. iii, 3), a man is said to be a citizen in two ways: first, simply; secondly, in a restricted sense. A man is a citizen simply if he has all the rights of citizenship, for instance, the right of debating or voting in the popular assembly. On the other hand, any man may be called citizen, only in a restricted sense, if he dwells within the state, even common people or children or old men, who are not fit to enjoy power in matters pertaining to the common weal. For this reason bastards, by reason of their base origin, were excluded from the "ecclesia," i.e. from the popular assembly, down to the tenth generation. The same applies to

eunuchs, who were not competent to receive the honor due to a father, especially among the Jews, where the divine worship was continued through carnal generation: for even among the heathens, those who had many children were marked with special honor, as the Philosopher remarks (Polit. ii, 6). Nevertheless, in matters pertaining to the grace of God, eunuchs were not discriminated from others, as neither were strangers, as already stated: for it is written (Isaiah 56:3): "Let not the son of the stranger that adhereth to the Lord speak, saying: The Lord will divide and separate me from His people. And let not the eunuch say: Behold I am a dry tree."

Reply to Objection 3. It was not the intention of the Law to sanction the acceptance of usury from strangers, but only to tolerate it on account of the proneness of the Jews to avarice; and in order to promote an amicable feeling towards those out of whom they made a profit.

Reply to Objection 4. A distinction was observed with regard to hostile cities. For some of them were far distant, and were not among those which had been promised to them. When they had taken these cities, they killed all the men who had fought against God's people; whereas the women and children were spared. But in the neighboring cities which had been promised to them, all were ordered to be slain, on account of their former crimes, to punish which God sent the Israelites as executor of Divine justice: for it is written (Deuteronomy 9:5) "because they have done wickedly, they are destroyed at thy coming in." The fruit-trees were commanded to be left untouched, for the use of the people themselves, to whom the city with its territory was destined to be subjected.

Reply to Objection 5. The builder of a new house, the planter of a vineyard, the newly married husband, were excluded from fighting, for two reasons. First, because man is wont to give all his affection to those things which he has lately acquired, or is on the point of having, and consequently he is apt to dread the loss of these above other things. Wherefore it was likely enough that on account of this affection they would fear death all the more, and be so much the less brave in battle. Secondly, because, as the Philosopher says (Phys. ii, 5), "it is a misfortune for a man if he is prevented from obtaining something good when it is within his grasp." And so lest the surviving relations should be the more grieved at the death of these men who had not entered into the possession of the good things prepared for them; and also lest the people should be horror-stricken at the sight of their misfortune: these men were taken away from the danger of death by being removed from the battle.

Reply to Objection 6. The timid were sent back home, not that they might be the gainers thereby; but lest the people might be the losers by their presence, since their timidity and flight might cause others to be afraid and run away.

Article 4. Whether the Old Law set forth suitable precepts about the members of the household?

Objection 1. It would seem that the Old Law set forth unsuitable precepts about the members of the household. For a slave "is in every respect his master's property," as the Philosopher states (Polit. i, 2). But that which is a man's property should be his always. Therefore it was unfitting for the Law to command (Exodus 21:2) that slaves should "go out free" in the seventh year.

Objection 2. Further, a slave is his master's property, just as an animal, e.g. an ass or an ox. But it is commanded (Deuteronomy 22:1-3) with regard to animals, that they should be brought back to the owner if they be found going astray. Therefore it was unsuitably commanded (Deuteronomy 23:15): "Thou shalt not deliver to his master the servant that is fled to thee."

Objection 3. Further, the Divine Law should encourage mercy more even than the human law. But according to human laws those who ill-treat their servants and maidservants are severely

punished: and the worse treatment of all seems to be that which results in death. Therefore it is unfittingly commanded (Exodus 21:20-21) that “he that striketh his bondman or bondwoman with a rod, and they die under his hands . . . if the party remain alive a day . . . he shall not be subject to the punishment, because it is his money.”

Objection 4. Further, the dominion of a master over his slave differs from that of the father over his son (Polit. i, 3). But the dominion of master over slave gives the former the right to sell his servant or maidservant. Therefore it was unfitting for the Law to allow a man to sell his daughter to be a servant or handmaid (Exodus 21:7).

Objection 5. Further, a father has power over his son. But he who has power over the sinner has the right to punish him for his offenses. Therefore it is unfittingly commanded (Deuteronomy 21:18, seqq.) that a father should bring his son to the ancients of the city for punishment.

Objection 6. Further, the Lord forbade them (Deuteronomy 7:3, seqq.) to make marriages with strange nations; and commanded the dissolution of such as had been contracted (Ezra 10). Therefore it was unfitting to allow them to marry captive women from strange nations (Deuteronomy 21:10, seqq.).

Objection 7. Further, the Lord forbade them to marry within certain degrees of consanguinity and affinity, according to Leviticus 18. Therefore it was unsuitably commanded (Deuteronomy 25:5) that if any man died without issue, his brother should marry his wife.

Objection 8. Further, as there is the greatest familiarity between man and wife, so should there be the staunchest fidelity. But this is impossible if the marriage bond can be sundered. Therefore it was unfitting for the Lord to allow (Deuteronomy 24:1-4) a man to put his wife away, by writing a bill of divorce; and besides, that he could not take her again to wife.

Objection 9. Further, just as a wife can be faithless to her husband, so can a slave be to his master, and a son to his father. But the Law did not command any sacrifice to be offered in order to investigate the injury done by a servant to his master, or by a son to his father. Therefore it seems to have been superfluous for the Law to prescribe the “sacrifice of jealousy” in order to investigate a wife’s adultery (Numbers 5:12, seqq.). Consequently it seems that the Law put forth unsuitable judicial precepts about the members of the household.

On the contrary, It is written (Psalm 18:10): “The judgments of the Lord are true, justified in themselves.”

I answer that, The mutual relations of the members of a household regard everyday actions directed to the necessities of life, as the Philosopher states (Polit. i, 1). Now the preservation of man’s life may be considered from two points of view. First, from the point of view of the individual, i.e. in so far as man preserves his individuality: and for the purpose of the preservation of life, considered from this standpoint, man has at his service external goods, by means of which he provides himself with food and clothing and other such necessities of life: in the handling of which he has need of servants. Secondly man’s life is preserved from the point of view of the species, by means of generation, for which purpose man needs a wife, that she may bear him children. Accordingly the mutual relations of the members of a household admit of a threefold combination: viz. those of master and servant, those of husband and wife, and those of father and son: and in respect of all these relationships the Old Law contained fitting precepts. Thus, with regard to servants, it commanded them to be treated with moderation—both as to their work, lest, to wit, they should be burdened with excessive labor, wherefore the Lord commanded (Deuteronomy 5:14) that on the Sabbath day “thy manservant and thy maidservant” should “rest even as thyself”—and also as to the infliction of punishment, for it ordered those who maimed their servants, to set them

free (Exodus 21:26-27). Similar provision was made in favor of a maidservant when married to anyone (Exodus 21:7, seqq.). Moreover, with regard to those servants in particular who were taken from among the people, the Law prescribed that they should go out free in the seventh year taking whatever they brought with them, even their clothes (Exodus 21:2, seqq.): and furthermore it was commanded (Deuteronomy 15:13) that they should be given provision for the journey.

With regard to wives the Law made certain prescriptions as to those who were to be taken in marriage: for instance, that they should marry a wife from their own tribe (Numbers 36:6): and this lest confusion should ensue in the property of various tribes. Also that a man should marry the wife of his deceased brother when the latter died without issue, as prescribed in Deuteronomy 25:5-6: and this in order that he who could not have successors according to carnal origin, might at least have them by a kind of adoption, and that thus the deceased might not be entirely forgotten. It also forbade them to marry certain women; to wit, women of strange nations, through fear of their losing their faith; and those of their near kindred, on account of the natural respect due to them. Furthermore it prescribed in what way wives were to be treated after marriage. To wit, that they should not be slandered without grave reason: wherefore it ordered punishment to be inflicted on the man who falsely accused his wife of a crime (Deuteronomy 22:13, seqq.). Also that a man's hatred of his wife should not be detrimental to his son (Deuteronomy 21:15, seqq.). Again, that a man should not ill-use his wife through hatred of her, but rather that he should write a bill of divorce and send her away (Deuteronomy 24:1). Furthermore, in order to foster conjugal love from the very outset, it was prescribed that no public duties should be laid on a recently married man, so that he might be free to rejoice with his wife.

With regard to children, the Law commanded parents to educate them by instructing them in the faith: hence it is written (Exodus 12:26, seqq.): "When your children shall say to you: What is the meaning of this service? You shall say to them: It is the victim of the passage of the Lord." Moreover, they are commanded to teach them the rules of right conduct: wherefore it is written (Deuteronomy 21:20) that the parents had to say: "He slighteth hearing our admonitions, he giveth himself to revelling and to debauchery."

Reply to Objection 1. As the children of Israel had been delivered by the Lord from slavery, and for this reason were bound to the service of God, He did not wish them to be slaves in perpetuity. Hence it is written (Leviticus 25:39, seqq.): "If thy brother, constrained by poverty, sell himself to thee, thou shalt not oppress him with the service of bondservants: but he shall be as a hireling and a sojourner . . . for they are My servants, and I brought them out of the land of Egypt: let them not be sold as bondmen": and consequently, since they were slaves, not absolutely but in a restricted sense, after a lapse of time they were set free.

Reply to Objection 2. This commandment is to be understood as referring to a servant whom his master seeks to kill, or to help him in committing some sin.

Reply to Objection 3. With regard to the ill-treatment of servants, the Law seems to have taken into consideration whether it was certain or not: since if it were certain, the Law fixed a penalty: for maiming, the penalty was forfeiture of the servant, who was ordered to be given his liberty: while for slaying, the punishment was that of a murderer, when the slave died under the blow of his master. If, however, the hurt was not certain, but only probable, the Law did not impose any penalty as regards a man's own servant: for instance if the servant did not die at once after being struck, but after some days: for it would be uncertain whether he died as a result of the blows he received. For when a man struck a free man, yet so that he did not die at once, but "walked abroad again upon his staff," he that struck him was quit of murder, even though afterwards he

died. Nevertheless he was bound to pay the doctor's fees incurred by the victim of his assault. But this was not the case if a man killed his own servant: because whatever the servant had, even his very person, was the property of his master. Hence the reason for his not being subject to a pecuniary penalty is set down as being "because it is his money."

Reply to Objection 4. As stated above (Reply to Objection 1), no Jew could own a Jew as a slave absolutely: but only in a restricted sense, as a hireling for a fixed time. And in this way the Law permitted that through stress of poverty a man might sell his son or daughter. This is shown by the very words of the Law, where we read: "If any man sell his daughter to be a servant, she shall not go out as bondwomen are wont to go out." Moreover, in this way a man might sell not only his son, but even himself, rather as a hireling than as a slave, according to Leviticus 25:39-40: "If thy brother, constrained by poverty, sell himself to thee, thou shalt not oppress him with the service of bondservants: but he shall be as a hireling and a sojourner."

Reply to Objection 5. As the Philosopher says (Ethic. x, 9), the paternal authority has the power only of admonition; but not that of coercion, whereby rebellious and headstrong persons can be compelled. Hence in this case the Lord commanded the stubborn son to be punished by the rulers of the city.

Reply to Objection 6. The Lord forbade them to marry strange women on account of the danger of seduction, lest they should be led astray into idolatry. And specially did this prohibition apply with respect to those nations who dwelt near them, because it was more probable that they would adopt their religious practices. When, however, the woman was willing to renounce idolatry, and become an adherent of the Law, it was lawful to take her in marriage: as was the case with Ruth whom Booz married. Wherefore she said to her mother-in-law (Ruth 1:16): "Thy people shall be my people, and thy God my God." Accordingly it was not permitted to marry a captive woman unless she first shaved her hair, and pared her nails, and put off the raiment wherein she was taken, and mourned for her father and mother, in token that she renounced idolatry for ever.

Reply to Objection 7. As Chrysostom says (Hom. xlviii super Matth.), "because death was an unmitigated evil for the Jews, who did everything with a view to the present life, it was ordained that children should be born to the dead man through his brother: thus affording a certain mitigation to his death. It was not, however, ordained that any other than his brother or one next of kin should marry the wife of the deceased, because" the offspring of this union "would not be looked upon as that of the deceased: and moreover, a stranger would not be under the obligation to support the household of the deceased, as his brother would be bound to do from motives of justice on account of his relationship." Hence it is evident that in marrying the wife of his dead brother, he took his dead brother's place.

Reply to Objection 8. The Law permitted a wife to be divorced, not as though it were just absolutely speaking, but on account of the Jews' hardness of heart, as Our Lord declared (Matthew 19:8). Of this, however, we must speak more fully in the treatise on Matrimony (SP, 67).

Reply to Objection 9. Wives break their conjugal faith by adultery, both easily, for motives of pleasure, and hiddenly, since "the eye of the adulterer observeth darkness" (Job 24:15). But this does not apply to a son in respect of his father, or to a servant in respect of his master: because the latter infidelity is not the result of the lust of pleasure, but rather of malice: nor can it remain hidden like the infidelity of an adulterous woman.

The New Law

The law of the Gospel (106) or new law and its comparison with the old (107). What (108) the new law contains.

Question 106. The law of the Gospel, called the New Law, considered in itself

1. What kind of law is it? i.e. is it a written law or is it instilled in the heart?
2. Its efficacy, i.e. does it justify?
3. Its beginning: should it have been given at the beginning of the world?
4. Its end: i.e. will it last until the end, or will another law take its place?

Article 1. Whether the New Law is a written law?

Objection 1. It would seem that the New Law is a written law. For the New Law is just the same as the Gospel. But the Gospel is set forth in writing, according to John 20:31: "But these are written that you may believe." Therefore the New Law is a written law.

Objection 2. Further, the law that is instilled in the heart is the natural law, according to Romans 2:14-15: "(The Gentiles) do by nature those things that are of the law . . . who have [Vulgate: 'show'] the work of the law written in their hearts." If therefore the law of the Gospel were instilled in our hearts, it would not be distinct from the law of nature.

Objection 3. Further, the law of the Gospel is proper to those who are in the state of the New Testament. But the law that is instilled in the heart is common to those who are in the New Testament and to those who are in the Old Testament: for it is written (Wisdom 7:27) that Divine Wisdom "through nations conveyeth herself into holy souls, she maketh the friends of God and prophets." Therefore the New Law is not instilled in our hearts.

On the contrary, The New Law is the law of the New Testament. But the law of the New Testament is instilled in our hearts. For the Apostle, quoting the authority of Jeremiah 31:31-33: "Behold the days shall come, saith the Lord; and I will perfect unto the house of Israel, and unto the house of Judah, a new testament," says, explaining what this statement is (Hebrews 8:8-10): "For this is the testament which I will make to the house of Israel . . . by giving [Vulgate: 'I will give'] My laws into their mind, and in their heart will I write them." Therefore the New Law is instilled in our hearts.

I answer that, "Each thing appears to be that which preponderates in it," as the Philosopher states (Ethic. ix, 8). Now that which is preponderant in the law of the New Testament, and whereon all its efficacy is based, is the grace of the Holy Ghost, which is given through faith in Christ. Consequently the New Law is chiefly the grace itself of the Holy Ghost, which is given to those who believe in Christ. This is manifestly stated by the Apostle who says (Romans 3:27): "Where is . . . thy boasting? It is excluded. By what law? Of works? No, but by the law of faith": for he calls the grace itself of faith "a law." And still more clearly it is written (Romans 8:2): "The law of the spirit of life, in Christ Jesus, hath delivered me from the law of sin and of death." Hence Augustine says (De Spir. et Lit. xxiv) that "as the law of deeds was written on tables of stone, so is the law of faith inscribed on the hearts of the faithful": and elsewhere, in the same book (xxi): "What else are the Divine laws written by God Himself on our hearts, but the very presence of His Holy Spirit?"

Nevertheless the New Law contains certain things that dispose us to receive the grace of the Holy Ghost, and pertaining to the use of that grace: such things are of secondary importance, so to

speak, in the New Law; and the faithful need to be instructed concerning them, both by word and writing, both as to what they should believe and as to what they should do. Consequently we must say that the New Law is in the first place a law that is inscribed on our hearts, but that secondarily it is a written law.

Reply to Objection 1. The Gospel writings contain only such things as pertain to the grace of the Holy Ghost, either by disposing us thereto, or by directing us to the use thereof. Thus with regard to the intellect, the Gospel contains certain matters pertaining to the manifestation of Christ's Godhead or humanity, which dispose us by means of faith through which we receive the grace of the Holy Ghost: and with regard to the affections, it contains matters touching the contempt of the world, whereby man is rendered fit to receive the grace of the Holy Ghost: for "the world," i.e. worldly men, "cannot receive" the Holy Ghost (John 14:17). As to the use of spiritual grace, this consists in works of virtue to which the writings of the New Testament exhort men in divers ways.

Reply to Objection 2. There are two ways in which a thing may be instilled into man. First, through being part of his nature, and thus the natural law is instilled into man. Secondly, a thing is instilled into man by being, as it were, added on to his nature by a gift of grace. In this way the New Law is instilled into man, not only by indicating to him what he should do, but also by helping him to accomplish it.

Reply to Objection 3. No man ever had the grace of the Holy Ghost except through faith in Christ either explicit or implicit: and by faith in Christ man belongs to the New Testament. Consequently whoever had the law of grace instilled into them belonged to the New Testament.

Article 2. Whether the New Law justifies?

Objection 1. It would seem that the New Law does not justify. For no man is justified unless he obeys God's law, according to Hebrews 5:9: "He," i.e. Christ, "became to all that obey Him the cause of eternal salvation." But the Gospel does not always cause men to believe in it: for it is written (Romans 10:16): "All do not obey the Gospel." Therefore the New Law does not justify.

Objection 2. Further, the Apostle proves in his epistle to the Romans that the Old Law did not justify, because transgression increased at its advent: for it is stated (Romans 4:15): "The Law worketh wrath: for where there is no law, neither is there transgression." But much more did the New Law increase transgression: since he who sins after the giving of the New Law deserves greater punishment, according to Hebrews 10:28-29: "A man making void the Law of Moses dieth without any mercy under two or three witnesses. How much more, do you think, he deserveth worse punishments, who hath trodden underfoot the Son of God," etc.? Therefore the New Law, like the Old Law, does not justify.

Objection 3. Further, justification is an effect proper to God, according to Romans 8:33: "God that justifieth." But the Old Law was from God just as the New Law. Therefore the New Law does not justify any more than the Old Law.

On the contrary, The Apostle says (Romans 1:16): "I am not ashamed of the Gospel: for it is in the power of God unto salvation to everyone that believeth." But there is no salvation but to those who are justified. Therefore the Law of the Gospel justifies.

I answer that, As stated above (Article 1), there is a twofold element in the Law of the Gospel. There is the chief element, viz. the grace of the Holy Ghost bestowed inwardly. And as to this, the New Law justifies. Hence Augustine says (De Spir. et Lit. xvii): "There," i.e. in the Old Testament, "the Law was set forth in an outward fashion, that the ungodly might be afraid"; "here," i.e. in the New Testament, "it is given in an inward manner, that they may be justified." The other element of

the Evangelical Law is secondary: namely, the teachings of faith, and those commandments which direct human affections and human actions. And as to this, the New Law does not justify. Hence the Apostle says (2 Corinthians 3:6) "The letter killeth, but the spirit quickeneth": and Augustine explains this (De Spir. et Lit. xiv, xvii) by saying that the letter denotes any writing external to man, even that of the moral precepts such as are contained in the Gospel. Wherefore the letter, even of the Gospel would kill, unless there were the inward presence of the healing grace of faith.

Reply to Objection 1. This argument holds true of the New Law, not as to its principal, but as to its secondary element: i.e. as to the dogmas and precepts outwardly put before man either in words or in writing.

Reply to Objection 2. Although the grace of the New Testament helps man to avoid sin, yet it does not so confirm man in good that he cannot sin: for this belongs to the state of glory. Hence if a man sin after receiving the grace of the New Testament, he deserves greater punishment, as being ungrateful for greater benefits, and as not using the help given to him. And this is why the New Law is not said to "work wrath": because as far as it is concerned it gives man sufficient help to avoid sin.

Reply to Objection 3. The same God gave both the New and the Old Law, but in different ways. For He gave the Old Law written on tables of stone: whereas He gave the New Law written "in the fleshly tables of the heart," as the Apostle expresses it (2 Corinthians 3:3). Wherefore, as Augustine says (De Spir. et Lit. xviii), "the Apostle calls this letter which is written outside man, a ministration of death and a ministration of condemnation: whereas he calls the other letter, i.e. the Law of the New Testament, the ministration of the spirit and the ministration of justice: because through the gift of the Spirit we work justice, and are delivered from the condemnation due to transgression."

Article 3. Whether the New Law should have been given from the beginning of the world?

Objection 1. It would seem that the New Law should have been given from the beginning of the world. "For there is no respect of persons with God" (Romans 2:11). But "all" men "have sinned and do need the glory of God" (Romans 3:23). Therefore the Law of the Gospel should have been given from the beginning of the world, in order that it might bring succor to all.

Objection 2. Further, as men dwell in various places, so do they live in various times. But God, "Who will have all men to be saved" (1 Timothy 2:4), commanded the Gospel to be preached in all places, as may be seen in the last chapters of Matthew and Mark. Therefore the Law of the Gospel should have been at hand for all times, so as to be given from the beginning of the world.

Objection 3. Further, man needs to save his soul, which is for all eternity, more than to save his body, which is a temporal matter. But God provided man from the beginning of the world with things that are necessary for the health of his body, by subjecting to his power whatever was created for the sake of man (Genesis 1:26-29). Therefore the New Law also, which is very necessary for the health of the soul, should have been given to man from the beginning of the world.

On the contrary, The Apostle says (1 Corinthians 15:46): "That was not first which is spiritual, but that which is natural." But the New Law is highly spiritual. Therefore it was not fitting for it to be given from the beginning of the world.

I answer that, Three reasons may be assigned why it was not fitting for the New Law to be given from the beginning of the world. The first is because the New Law, as stated above (Article 1), consists chiefly in the grace of the Holy Ghost: which it behoved not to be given abundantly until sin, which is an obstacle to grace, had been cast out of man through the accomplishment of his redemption by Christ: wherefore it is written (John 7:39): "As yet the Spirit was not given, because

Jesus was not yet glorified." This reason the Apostle states clearly (Romans 8:2, seqq.) where, after speaking of "the Law of the Spirit of life," he adds: "God sending His own Son, in the likeness of sinful flesh, of sin hath condemned sin in the flesh, that the justification of the Law might be fulfilled in us." St. Thomas, quoting perhaps from memory, omits the "et" (and), after "sinful flesh." The text quoted should read thus: "in the likeness of sinful flesh, and a sin offering (*peri hamartias*), hath," etc.

A second reason may be taken from the perfection of the New Law. Because a thing is not brought to perfection at once from the outset, but through an orderly succession of time; thus one is at first a boy, and then a man. And this reason is stated by the Apostle (Galatians 3:24-25): "The Law was our pedagogue in Christ that we might be justified by faith. But after the faith is come, we are no longer under a pedagogue."

The third reason is found in the fact that the New Law is the law of grace: wherefore it behoved man first of all to be left to himself under the state of the Old Law, so that through falling into sin, he might realize his weakness, and acknowledge his need of grace. This reason is set down by the Apostle (Romans 5:20): "The Law entered in, that sin might abound: and when sin abounded grace did more abound."

Reply to Objection 1. Mankind on account of the sin of our first parents deserved to be deprived of the aid of grace: and so "from whom it is withheld it is justly withheld, and to whom it is given, it is mercifully given," as Augustine states (*De Perfect. Justit.* iv) [Cf. *Ep.* ccvii; *De Pecc. Mer. et Rem.* ii, 19. Consequently it does not follow that there is respect of persons with God, from the fact that He did not offer the Law of grace to all from the beginning of the world, which Law was to be published in due course of time, as stated above.

Reply to Objection 2. The state of mankind does not vary according to diversity of place, but according to succession of time. Hence the New Law avails for all places, but not for all times: although at all times there have been some persons belonging to the New Testament, as stated above (Article 1, Reply to Objection 3).

Reply to Objection 3. Things pertaining to the health of the body are of service to man as regards his nature, which sin does not destroy: whereas things pertaining to the health of the soul are ordained to grace, which is forfeit through sin. Consequently the comparison will not hold.

Article 4. Whether the New Law will last till the end of the world?

Objection 1. It would seem that the New Law will not last until the end of the world. Because, as the Apostle says (1 Corinthians 13:10), "when that which is perfect is come, that which is in part shall be done away." But the New Law is "in part," since the Apostle says (1 Corinthians 13:9): "We know in part and we prophesy in part." Therefore the New Law is to be done away, and will be succeeded by a more perfect state.

Objection 2. Further, Our Lord (John 16:13) promised His disciples the knowledge of all truth when the Holy Ghost, the Comforter, should come. But the Church knows not yet all truth in the state of the New Testament. Therefore we must look forward to another state, wherein all truth will be revealed by the Holy Ghost.

Objection 3. Further, just as the Father is distinct from the Son and the Son from the Father, so is the Holy Ghost distinct from the Father and the Son. But there was a state corresponding with the Person of the Father, viz. the state of the Old Law, wherein men were intent on begetting children: and likewise there is a state corresponding to the Person of the Son: viz. the state of the New Law, wherein the clergy who are intent on wisdom (which is appropriated to the Son) hold a

prominent place. Therefore there will be a third state corresponding to the Holy Ghost, wherein spiritual men will hold the first place.

Objection 4. Further, Our Lord said (Matthew 24:14): "This Gospel of the kingdom shall be preached in the whole world . . . and then shall the consummation come." But the Gospel of Christ is already preached throughout the whole world: and yet the consummation has not yet come. Therefore the Gospel of Christ is not the Gospel of the kingdom, but another Gospel, that of the Holy Ghost, is to come yet, like unto another Law.

On the contrary, Our Lord said (Matthew 24:34): "I say to you that this generation shall not pass till all (these) things be done": which passage Chrysostom (Hom. lxxvii) explains as referring to "the generation of those that believe in Christ." Therefore the state of those who believe in Christ will last until the consummation of the world.

I answer that, The state of the world may change in two ways. In one way, according to a change of law: and thus no other state will succeed this state of the New Law. Because the state of the New Law succeeded the state of the Old Law, as a more perfect law a less perfect one. Now no state of the present life can be more perfect than the state of the New Law: since nothing can approach nearer to the last end than that which is the immediate cause of our being brought to the last end. But the New Law does this: wherefore the Apostle says (Hebrews 10:19-22): "Having therefore, brethren, a confidence in the entering into the Holies by the blood of Christ, a new . . . way which He hath dedicated for us . . . let us draw near." Therefore no state of the present life can be more perfect than that of the New Law, since the nearer a thing is to the last end the more perfect it is.

In another way the state of mankind may change according as man stands in relation to one and the same law more or less perfectly. And thus the state of the Old Law underwent frequent changes, since at times the laws were very well kept, and at other times were altogether unheeded. Thus, too, the state of the New Law is subject to change with regard to various places, times, and persons, according as the grace of the Holy Ghost dwells in man more or less perfectly. Nevertheless we are not to look forward to a state wherein man is to possess the grace of the Holy Ghost more perfectly than he has possessed it hitherto, especially the apostles who "received the firstfruits of the Spirit, i.e. sooner and more abundantly than others," as a gloss expounds on Romans 8:23.

Reply to Objection 1. As Dionysius says (Eccl. Hier. v), there is a threefold state of mankind; the first was under the Old Law; the second is that of the New Law; the third will take place not in this life, but in heaven. But as the first state is figurative and imperfect in comparison with the state of the Gospel; so is the present state figurative and imperfect in comparison with the heavenly state, with the advent of which the present state will be done away as expressed in that very passage (1 Corinthians 13:12): "We see now through a glass in a dark manner; but then face to face."

Reply to Objection 2. As Augustine says (Contra Faust. xix, 31), Montanus and Priscilla pretended that Our Lord's promise to give the Holy Ghost was fulfilled, not in the apostles, but in themselves. In like manner the Manicheans maintained that it was fulfilled in Manes whom they held to be the Paraclete. Hence none of the above received the Acts of the Apostles, where it is clearly shown that the aforesaid promise was fulfilled in the apostles: just as Our Lord promised them a second time (Acts 1:5): "You shall be baptized with the Holy Ghost, not many days hence": which we read as having been fulfilled in Acts 2. However, these foolish notions are refuted by the statement (John 7:39) that "as yet the Spirit was not given, because Jesus was not yet glorified"; from which we gather that the Holy Ghost was given as soon as Christ was glorified in His Resurrection and Ascension. Moreover, this puts out of court the senseless idea that the Holy Ghost is to be

expected to come at some other time.

Now the Holy Ghost taught the apostles all truth in respect of matters necessary for salvation; those things, to wit, that we are bound to believe and to do. But He did not teach them about all future events: for this did not regard them according to Acts 1:7: "It is not for you to know the times or moments which the Father hath put in His own power."

Reply to Objection 3. The Old Law corresponded not only to the Father, but also to the Son: because Christ was foreshadowed in the Old Law. Hence Our Lord said (John 5:46): "If you did believe Moses, you would perhaps believe me also; for he wrote of Me." In like manner the New Law corresponds not only to Christ, but also to the Holy Ghost; according to Romans 8:2: "The Law of the Spirit of life in Christ Jesus," etc. Hence we are not to look forward to another law corresponding to the Holy Ghost.

Reply to Objection 4. Since Christ said at the very outset of the preaching of the Gospel: "The kingdom of heaven is at hand" (Matthew 4:17), it is most absurd to say that the Gospel of Christ is not the Gospel of the kingdom. But the preaching of the Gospel of Christ may be understood in two ways. First, as denoting the spreading abroad of the knowledge of Christ: and thus the Gospel was preached throughout the world even at the time of the apostles, as Chrysostom states (Hom. lxxv in Matth.). And in this sense the words that follow—"and then shall the consummation come," refer to the destruction of Jerusalem, of which He was speaking literally. Secondly, the preaching of the Gospel may be understood as extending throughout the world and producing its full effect, so that, to wit, the Church would be founded in every nation. And in these sense, as Augustine writes to Hesychius (Epist. cxcix), the Gospel is not preached to the whole world yet, but, when it is, the consummation of the world will come.

Question 107. The new law as compared with the old

1. Is the New Law distinct from the Old Law?
2. Does the New Law fulfil the Old?
3. Is the New Law contained in the Old?
4. Which is the more burdensome, the New or the Old Law?

Article 1. Whether the New Law is distinct from the Old Law?

Objection 1. It would seem that the New Law is not distinct from the Old. Because both these laws were given to those who believe in God: since "without faith it is impossible to please God," according to Hebrews 11:6. But the faith of olden times and of nowadays is the same, as the gloss says on Matthew 21:9. Therefore the law is the same also.

Objection 2. Further, Augustine says (Contra Adamant. Manich. discip. xvii) that "there is little difference between the Law and Gospel" [The 'little difference' refers to the Latin words 'timor' and 'amor']—"fear and love." But the New and Old Laws cannot be differentiated in respect of these two things: since even the Old Law comprised precepts of charity: "Thou shalt love thy neighbor" (Leviticus 19:18), and: "Thou shalt love the Lord thy God" (Deuteronomy 6:5). In like manner neither can they differ according to the other difference which Augustine assigns (Contra Faust. iv, 2), viz. that "the Old Testament contained temporal promises, whereas the New Testament contains spiritual and eternal promises": since even the New Testament contains temporal promises, according to Mark 10:30: He shall receive "a hundred times as much . . . in

this time, houses and brethren," etc.: while in the Old Testament they hoped in promises spiritual and eternal, according to Hebrews 11:16: "But now they desire a better, that is to say, a heavenly country," which is said of the patriarchs. Therefore it seems that the New Law is not distinct from the Old.

Objection 3. Further, the Apostle seems to distinguish both laws by calling the Old Law "a law of works," and the New Law "a law of faith" (Romans 3:27). But the Old Law was also a law of faith, according to Hebrews 11:39: "All were [Vulgate: 'All these being'] approved by the testimony of faith," which he says of the fathers of the Old Testament. In like manner the New Law is a law of works: since it is written (Matthew 5:44): "Do good to them that hate you"; and (Luke 22:19): "Do this for a commemoration of Me." Therefore the New Law is not distinct from the Old.

On the contrary, the Apostle says (Hebrews 7:12): "The priesthood being translated it is necessary that a translation also be made of the Law." But the priesthood of the New Testament is distinct from that of the Old, as the Apostle shows in the same place. Therefore the Law is also distinct.

I answer that, As stated above (I-II:90:2; I-II:91:4), every law ordains human conduct to some end. Now things ordained to an end may be divided in two ways, considered from the point of view of the end. First, through being ordained to different ends: and this difference will be specific, especially if such ends are proximate. Secondly, by reason of being closely or remotely connected with the end. Thus it is clear that movements differ in species through being directed to different terms: while according as one part of a movement is nearer to the term than another part, the difference of perfect and imperfect movement is assessed.

Accordingly then two laws may be distinguished from one another in two ways. First, through being altogether diverse, from the fact that they are ordained to diverse ends: thus a state-law ordained to democratic government, would differ specifically from a law ordained to government by the aristocracy. Secondly, two laws may be distinguished from one another, through one of them being more closely connected with the end, and the other more remotely: thus in one and the same state there is one law enjoined on men of mature age, who can forthwith accomplish that which pertains to the common good; and another law regulating the education of children who need to be taught how they are to achieve manly deeds later on.

We must therefore say that, according to the first way, the New Law is not distinct from the Old Law: because they both have the same end, namely, man's subjection to God; and there is but one God of the New and of the Old Testament, according to Romans 3:30: "It is one God that justifieth circumcision by faith, and uncircumcision through faith." According to the second way, the New Law is distinct from the Old Law: because the Old Law is like a pedagogue of children, as the Apostle says (Galatians 3:24), whereas the New Law is the law of perfection, since it is the law of charity, of which the Apostle says (Colossians 3:14) that it is "the bond of perfection."

Reply to Objection 1. The unity of faith under both Testaments witnesses to the unity of end: for it has been stated above (I-II:62:2) that the object of the theological virtues, among which is faith, is the last end. Yet faith had a different state in the Old and in the New Law: since what they believed as future, we believe as fact.

Reply to Objection 2. All the differences assigned between the Old and New Laws are gathered from their relative perfection and imperfection. For the precepts of every law prescribe acts of virtue. Now the imperfect, who as yet are not possessed of a virtuous habit, are directed in one way to perform virtuous acts, while those who are perfected by the possession of virtuous habits are directed in another way. For those who as yet are not endowed with virtuous habits, are directed to

the performance of virtuous acts by reason of some outward cause: for instance, by the threat of punishment, or the promise of some extrinsic rewards, such as honor, riches, or the like. Hence the Old Law, which was given to men who were imperfect, that is, who had not yet received spiritual grace, was called the “law of fear,” inasmuch as it induced men to observe its commandments by threatening them with penalties; and is spoken of as containing temporal promises. On the other hand, those who are possessed of virtue, are inclined to do virtuous deeds through love of virtue, not on account of some extrinsic punishment or reward. Hence the New Law which derives its pre-eminence from the spiritual grace instilled into our hearts, is called the “Law of love”: and it is described as containing spiritual and eternal promises, which are objects of the virtues, chiefly of charity. Accordingly such persons are inclined of themselves to those objects, not as to something foreign but as to something of their own. For this reason, too, the Old Law is described as “restraining the hand, not the will” [Peter Lombard, Sent. iii, D, 40; since when a man refrains from some sins through fear of being punished, his will does not shrink simply from sin, as does the will of a man who refrains from sin through love of righteousness: and hence the New Law, which is the Law of love, is said to restrain the will.

Nevertheless there were some in the state of the Old Testament who, having charity and the grace of the Holy Ghost, looked chiefly to spiritual and eternal promises: and in this respect they belonged to the New Law. In like manner in the New Testament there are some carnal men who have not yet attained to the perfection of the New Law; and these it was necessary, even under the New Testament, to lead to virtuous action by the fear of punishment and by temporal promises.

But although the Old Law contained precepts of charity, nevertheless it did not confer the Holy Ghost by Whom “charity . . . is spread abroad in our hearts” (Romans 5:5).

Reply to Objection 3. As stated above (I-II:106:1-2), the New Law is called the law of faith, in so far as its pre-eminence is derived from that very grace which is given inwardly to believers, and for this reason is called the grace of faith. Nevertheless it consists secondarily in certain deeds, moral and sacramental: but the New Law does not consist chiefly in these latter things, as did the Old Law. As to those under the Old Testament who through faith were acceptable to God, in this respect they belonged to the New Testament: for they were not justified except through faith in Christ, Who is the Author of the New Testament. Hence of Moses the Apostle says (Hebrews 11:26) that he esteemed “the reproach of Christ greater riches than the treasure of the Egyptians.”

Article 2. Whether the New Law fulfils the Old?

Objection 1. It would seem that the New Law does not fulfil the Old. Because to fulfil and to void are contrary. But the New Law voids or excludes the observances of the Old Law: for the Apostle says (Galatians 5:2): “If you be circumcised, Christ shall profit you nothing.” Therefore the New Law is not a fulfilment of the Old.

Objection 2. Further, one contrary is not the fulfilment of another. But Our Lord propounded in the New Law precepts that were contrary to precepts of the Old Law. For we read (Matthew 5:27-32): You have heard that it was said to them of old: . . . “Whosoever shall put away his wife, let him give her a bill of divorce. But I say to you that whosoever shall put away his wife . . . maketh her to commit adultery.” Furthermore, the same evidently applies to the prohibition against swearing, against retaliation, and against hating one’s enemies. In like manner Our Lord seems to have done away with the precepts of the Old Law relating to the different kinds of foods (Matthew 15:11): “Not that which goeth into the mouth defileth the man: but what cometh out of the mouth, this defileth a man.” Therefore the New Law is not a fulfilment of the Old.

Objection 3. Further, whoever acts against a law does not fulfil the law. But Christ in certain cases acted against the Law. For He touched the leper (Matthew 8:3), which was contrary to the Law. Likewise He seems to have frequently broken the sabbath; since the Jews used to say of Him (John 9:16): "This man is not of God, who keepeth not the sabbath." Therefore Christ did not fulfil the Law: and so the New Law given by Christ is not a fulfilment of the Old.

Objection 4. Further, the Old Law contained precepts, moral, ceremonial, and judicial, as stated above (I-II:99:4). But Our Lord (Matthew 5) fulfilled the Law in some respects, but without mentioning the judicial and ceremonial precepts. Therefore it seems that the New Law is not a complete fulfilment of the Old.

On the contrary, Our Lord said (Matthew 5:17): "I am not come to destroy, but to fulfil": and went on to say (Matthew 5:18): "One jot or one tittle shall not pass of the Law till all be fulfilled."

I answer that, As stated above (Article 1), the New Law is compared to the Old as the perfect to the imperfect. Now everything perfect fulfils that which is lacking in the imperfect. And accordingly the New Law fulfils the Old by supplying that which was lacking in the Old Law.

Now two things in the Old Law offer themselves to our consideration: viz., the end, and the precepts contained in the Law.

Now the end of every law is to make men righteous and virtuous, as was stated above (I-II:92:1): and consequently the end of the Old Law was the justification of men. The Law, however, could not accomplish this: but foreshadowed it by certain ceremonial actions, and promised it in words. And in this respect, the New Law fulfils the Old by justifying men through the power of Christ's Passion. This is what the Apostle says (Romans 8:3-4): "What the Law could not do . . . God sending His own Son in the likeness of sinful flesh . . . hath condemned sin in the flesh, that the justification of the Law might be fulfilled in us." And in this respect, the New Law gives what the Old Law promised, according to 2 Corinthians 1:20: "Whatever are the promises of God, in Him," i.e. in Christ, "they are 'Yea'." [The Douay version reads thus: "All the promises of God are in Him, 'It is'."] Again, in this respect, it also fulfils what the Old Law foreshadowed. Hence it is written (Colossians 2:17) concerning the ceremonial precepts that they were "a shadow of things to come, but the body is of Christ"; in other words, the reality is found in Christ. Wherefore the New Law is called the law of reality; whereas the Old Law is called the law of shadow or of figure.

Now Christ fulfilled the precepts of the Old Law both in His works and in His doctrine. In His works, because He was willing to be circumcised and to fulfil the other legal observances, which were binding for the time being; according to Galatians 4:4: "Made under the Law." In His doctrine He fulfilled the precepts of the Law in three ways. First, by explaining the true sense of the Law. This is clear in the case of murder and adultery, the prohibition of which the Scribes and Pharisees thought to refer only to the exterior act: wherefore Our Lord fulfilled the Law by showing that the prohibition extended also to the interior acts of sins. Secondly, Our Lord fulfilled the precepts of the Law by prescribing the safest way of complying with the statutes of the Old Law. Thus the Old Law forbade perjury: and this is more safely avoided, by abstaining altogether from swearing, save in cases of urgency. Thirdly, Our Lord fulfilled the precepts of the Law, by adding some counsels of perfection: this is clearly seen in Matthew 19:21, where Our Lord said to the man who affirmed that he had kept all the precepts of the Old Law: "One thing is wanting to thee: If thou wilt be perfect, go, sell whatsoever thou hast," etc. [St. Thomas combines Matthew 19:21 with Mark 10:21.

Reply to Objection 1. The New Law does not void observance of the Old Law except in the point of ceremonial precepts, as stated above (I-II:13:3 and I-II:13:4). Now the latter were figurative of something to come. Wherefore from the very fact that the ceremonial precepts were fulfilled

when those things were accomplished which they foreshadowed, it follows that they are no longer to be observed: for it they were to be observed, this would mean that something is still to be accomplished and is not yet fulfilled. Thus the promise of a future gift holds no longer when it has been fulfilled by the presentation of the gift. In this way the legal ceremonies are abolished by being fulfilled.

Reply to Objection 2. As Augustine says (*Contra Faust.* xix, 26), those precepts of Our Lord are not contrary to the precepts of the Old Law. For what Our Lord commanded about a man not putting away his wife, is not contrary to what the Law prescribed. "For the Law did not say: 'Let him that wills, put his wife away': the contrary of which would be not to put her away. On the contrary, the Law was unwilling that a man should put away his wife, since it prescribed a delay, so that excessive eagerness for divorce might cease through being weakened during the writing of the bill. Hence Our Lord, in order to impress the fact that a wife ought not easily to be put away, allowed no exception save in the case of fornication." The same applies to the prohibition about swearing, as stated above. The same is also clear with respect to the prohibition of retaliation. For the Law fixed a limit to revenge, by forbidding men to seek vengeance unreasonably: whereas Our Lord deprived them of vengeance more completely by commanding them to abstain from it altogether. With regard to the hatred of one's enemies, He dispelled the false interpretation of the Pharisees, by admonishing us to hate, not the person, but his sin. As to discriminating between various foods, which was a ceremonial matter, Our Lord did not forbid this to be observed: but He showed that no foods are naturally unclean, but only in token of something else, as stated above (I-II:102:6 ad 1).

Reply to Objection 3. It was forbidden by the Law to touch a leper; because by doing so, man incurred a certain uncleanness of irregularity, as also by touching the dead, as stated above (I-II:102:5 ad 4). But Our Lord, Who healed the leper, could not contract an uncleanness. By those things which He did on the sabbath, He did not break the sabbath in reality, as the Master Himself shows in the Gospel: both because He worked miracles by His Divine power, which is ever active among things; and because He worked miracles by His Divine power, which is ever active among things; and because His works were concerned with the salvation of man, while the Pharisees were concerned for the well-being of animals even on the sabbath; and again because on account of urgency He excused His disciples for gathering the ears of corn on the sabbath. But He did seem to break the sabbath according to the superstitious interpretation of the Pharisees, who thought that man ought to abstain from doing even works of kindness on the sabbath; which was contrary to the intention of the Law.

Reply to Objection 4. The reason why the ceremonial precepts of the Law are not mentioned in Matthew 5 is because, as stated above (Reply to Objection 1), their observance was abolished by their fulfilment. But of the judicial precepts He mentioned that of retaliation: so that what He said about it should refer to all the others. With regard to this precept, He taught that the intention of the Law was that retaliation should be sought out of love of justice, and not as a punishment out of revengeful spite, which He forbade, admonishing man to be ready to suffer yet greater insults; and this remains still in the New Law.

Article 3. Whether the New Law is contained in the Old?

Objection 1. It would seem that the New Law is not contained in the Old. Because the New Law consists chiefly in faith: wherefore it is called the “law of faith” (Romans 3:27). But many points of faith are set forth in the New Law, which are not contained in the Old. Therefore the New Law is not contained in the Old.

Objection 2. Further, a gloss says on Matthew 5:19, “He that shall break one of these least commandments,” that the lesser commandments are those of the Law, and the greater commandments, those contained in the Gospel. Now the greater cannot be contained in the lesser. Therefore the New Law is not contained in the Old.

Objection 3. Further, who holds the container holds the contents. If, therefore, the New Law is contained in the Old, it follows that whoever had the Old Law had the New: so that it was superfluous to give men a New Law when once they had the Old. Therefore the New Law is not contained in the Old.

On the contrary, As expressed in Ezekiel 1:16, there was “a wheel in the midst of a wheel,” i.e. “the New Testament within the Old,” according to Gregory’s exposition.

I answer that, One thing may be contained in another in two ways. First, actually; as a located thing is in a place. Secondly, virtually; as an effect in its cause, or as the complement in that which is incomplete; thus a genus contains its species, and a seed contains the whole tree, virtually. It is in this way that the New Law is contained in the Old: for it has been stated (Article 1) that the New Law is compared to the Old as perfect to imperfect. Hence Chrysostom, expounding Mark 4:28, “The earth of itself bringeth forth fruit, first the blade, then the ear, afterwards the full corn in the ear,” expresses himself as follows: “He brought forth first the blade, i.e. the Law of Nature; then the ear, i.e. the Law of Moses; lastly, the full corn, i.e. the Law of the Gospel.” Hence then the New Law is in the Old as the corn in the ear.

Reply to Objection 1. Whatsoever is set down in the New Testament explicitly and openly as a point of faith, is contained in the Old Testament as a matter of belief, but implicitly, under a figure. And accordingly, even as to those things which we are bound to believe, the New Law is contained in the Old.

Reply to Objection 2. The precepts of the New Law are said to be greater than those of the Old Law, in the point of their being set forth explicitly. But as to the substance itself of the precepts of the New Testament, they are all contained in the Old. Hence Augustine says (Contra Faust. xix, 23,28) that “nearly all Our Lord’s admonitions or precepts, where He expressed Himself by saying: ‘But I say unto you,’ are to be found also in those ancient books. Yet, since they thought that murder was only the slaying of the human body, Our Lord declared to them that every wicked impulse to hurt our brother is to be looked on as a kind of murder.” And it is in the point of declarations of this kind that the precepts of the New Law are said to be greater than those of the Old. Nothing, however, prevents the greater from being contained in the lesser virtually; just as a tree is contained in the seed.

Reply to Objection 3. What is set forth implicitly needs to be declared explicitly. Hence after the publishing of the Old Law, a New Law also had to be given.

Article 4. Whether the New Law is more burdensome than the Old?

Objection 1. It would seem that the New Law is more burdensome than the Old. For Chrysostom (Opus Imp. in Matth., Hom. x [The work of an unknown author]) say: “The commandments given to Moses are easy to obey: Thou shalt not kill; Thou shalt not commit adultery: but the

commandments of Christ are difficult to accomplish, for instance: Thou shalt not give way to anger, or to lust." Therefore the New Law is more burdensome than the Old.

Objection 2. Further, it is easier to make use of earthly prosperity than to suffer tribulations. But in the Old Testament observance of the Law was followed by temporal prosperity, as may be gathered from Deuteronomy 28:1-14; whereas many kinds of trouble ensue to those who observe the New Law, as stated in 2 Corinthians 6:4-10: "Let us exhibit ourselves as the ministers of God, in much patience, in tribulation, in necessities, in distresses," etc. Therefore the New Law is more burdensome than the Old.

Objection 3. The more one has to do, the more difficult it is. But the New Law is something added to the Old. For the Old Law forbade perjury, while the New Law proscribed even swearing; the Old Law forbade a man to cast off his wife without a bill of divorce, while the New Law forbade divorce altogether; as is clearly stated in Matthew 5:31, seqq., according to Augustine's expounding. Therefore the New Law is more burdensome than the Old.

On the contrary, It is written (Matthew 11:28): "Come to Me, all you that labor and are burdened": which words are expounded by Hilary thus: "He calls to Himself all those that labor under the difficulty of observing the Law, and are burdened with the sins of this world." And further on He says of the yoke of the Gospel: "For My yoke is sweet and My burden light." Therefore the New Law is a lighter burden than the Old.

I answer that, A twofold difficulty may attach to works of virtue with which the precepts of the Law are concerned. One is on the part of the outward works, which of themselves are, in a way, difficult and burdensome. And in this respect the Old Law is a much heavier burden than the New: since the Old Law by its numerous ceremonies prescribed many more outward acts than the New Law, which, in the teaching of Christ and the apostles, added very few precepts to those of the natural law; although afterwards some were added, through being instituted by the holy Fathers. Even in these Augustine says that moderation should be observed, lest good conduct should become a burden to the faithful. For he says in reply to the queries of Januarius (Ep. lv) that, "whereas God in His mercy wished religion to be a free service rendered by the public solemnization of a small number of most manifest sacraments, certain persons make it a slave's burden; so much so that the state of the Jews who were subject to the sacraments of the Law, and not to the presumptuous devices of man, was more tolerable."

The other difficulty attaches to works of virtue as to interior acts: for instance, that a virtuous deed be done with promptitude and pleasure. It is this difficulty that virtue solves: because to act thus is difficult for a man without virtue: but through virtue it becomes easy for him. In this respect the precepts of the New Law are more burdensome than those of the Old; because the New Law prohibits certain interior movements of the soul, which were not expressly forbidden in the Old Law in all cases, although they were forbidden in some, without, however, any punishment being attached to the prohibition. Now this is very difficult to a man without virtue: thus even the Philosopher states (Ethic. v, 9) that it is easy to do what a righteous man does; but that to do it in the same way, viz. with pleasure and promptitude, is difficult to a man who is not righteous. Accordingly we read also (1 John 5:3) that "His commandments are not heavy": which words Augustine expounds by saying that "they are not heavy to the man that loveth; whereas they are a burden to him that loveth not."

Reply to Objection 1. The passage quoted speaks expressly of the difficulty of the New Law as to the deliberate curbing of interior movements.

Reply to Objection 2. The tribulations suffered by those who observe the New Law are not

imposed by the Law itself. Moreover they are easily borne, on account of the love in which the same Law consists: since, as Augustine says (*De Verb. Dom.*, *Serm. lxx*), “love makes light and nothing of things that seem arduous and beyond our power.”

Reply to Objection 3. The object of these additions to the precepts of the Old Law was to render it easier to do what it prescribed, as Augustine states [*De Serm. Dom. in Monte i*, 17,21; xix, 23,26. Accordingly this does not prove that the New Law is more burdensome, but rather that it is a lighter burden.

Question 108. Things that are contained in the New Law

1. Should the New Law prescribe or forbid any outward works?
2. Does the New Law make sufficient provision in prescribing and forbidding external acts?
3. Does it direct man sufficiently in the matter of internal acts?
4. Does it fittingly add counsels to precepts?

Article 1. Whether the New Law ought to prescribe or prohibit any external acts?

Objection 1. It would seem that the New Law should not prescribe or prohibit any external acts. For the New Law is the Gospel of the kingdom, according to Matthew 24:14: “This Gospel of the kingdom shall be preached in the whole world.” But the kingdom of God consists not in exterior, but only in interior acts, according to Luke 17:21: “The kingdom of God is within you”; and Romans 14:17: “The kingdom of God is not meat and drink; but justice and peace and joy in the Holy Ghost.” Therefore the New Law should not prescribe or forbid any external acts.

Objection 2. Further, the New Law is “the law of the Spirit” (Romans 8:2). But “where the Spirit of the Lord is, there is liberty” (2 Corinthians 3:17). Now there is no liberty when man is bound to do or avoid certain external acts. Therefore the New Law does not prescribe or forbid any external acts.

Objection 3. Further, all external acts are understood as referable to the hand, just as interior acts belong to the mind. But this is assigned as the difference between the New and Old Laws that the “Old Law restrains the hand, whereas the New Law curbs the will” [Peter Lombard, *Sent. iii*, D, 40. Therefore the New Law should not contain prohibitions and commands about exterior deeds, but only about interior acts.

On the contrary, Through the New Law, men are made “children of light”: wherefore it is written (John 12:36): “Believe in the light that you may be the children of light.” Now it is becoming that children of the light should do deeds of light and cast aside deeds of darkness, according to Ephesians 5:8: “You were heretofore darkness, but now light in the Lord. Walk . . . as children of the light.” Therefore the New Law had to forbid certain external acts and prescribe others.

I answer that, As stated above (I-II:106:1 and I-II:106:2), the New Law consists chiefly in the grace of the Holy Ghost, which is shown forth by faith that worketh through love. Now men become receivers of this grace through God’s Son made man, Whose humanity grace filled first, and thence flowed forth to us. Hence it is written (John 1:14): “The Word was made flesh,” and afterwards: “full of grace and truth”; and further on: “Of His fulness we all have received, and grace for grace.” Hence it is added that “grace and truth came by Jesus Christ.” Consequently it was becoming that the grace flows from the incarnate Word should be given to us by means of certain external sensible objects; and that from this inward grace, whereby the flesh is subjected to the Spirit, certain external works should ensue.

Accordingly external acts may have a twofold connection with grace. In the first place, as leading in some way to grace. Such are the sacramental acts which are instituted in the New Law, e.g. Baptism, the Eucharist, and the like.

In the second place there are those external acts which ensue from the promptings of grace: and herein we must observe a difference. For there are some which are necessarily in keeping with, or in opposition to inward grace consisting in faith that worketh through love. Such external works are prescribed or forbidden in the New Law; thus confession of faith is prescribed, and denial of faith is forbidden; for it is written (Matthew 10:32-33) "(Every one) that shall confess Me before men, I will also confess him before My Father . . . But he that shall deny Me before men, I will also deny him before My Father." On the other hand, there are works which are not necessarily opposed to, or in keeping with faith that worketh through love. Such works are not prescribed or forbidden in the New Law, by virtue of its primitive institution; but have been left by the Lawgiver, i.e. Christ, to the discretion of each individual. And so to each one it is free to decide what he should do or avoid; and to each superior, to direct his subjects in such matters as regards what they must do or avoid. Wherefore also in this respect the Gospel is called the "law of liberty" [Cf. Reply to Objection 2]: since the Old Law decided many points and left few to man to decide as he chose.

Reply to Objection 1. The kingdom of God consists chiefly in internal acts: but as a consequence all things that are essential to internal acts belong also to the kingdom of God. Thus if the kingdom of God is internal righteousness, peace, and spiritual joy, all external acts that are incompatible with righteousness, peace, and spiritual joy, are in opposition to the kingdom of God; and consequently should be forbidden in the Gospel of the kingdom. On the other hand, those things that are indifferent as regards the aforesaid, for instance, to eat of this or that food, are not part of the kingdom of God; wherefore the Apostle says before the words quoted: "The kingdom of God is not meat and drink."

Reply to Objection 2. According to the Philosopher (Metaph. i, 2), what is "free is cause of itself." Therefore he acts freely, who acts of his own accord. Now man does of his own accord that which he does from a habit that is suitable to his nature: since a habit inclines one as a second nature. If, however, a habit be in opposition to nature, man would not act according to his nature, but according to some corruption affecting that nature. Since then the grace of the Holy Ghost is like an interior habit bestowed on us and inclining us to act aright, it makes us do freely those things that are becoming to grace, and shun what is opposed to it.

Accordingly the New Law is called the law of liberty in two respects. First, because it does not bind us to do or avoid certain things, except such as are of themselves necessary or opposed to salvation, and come under the prescription or prohibition of the law. Secondly, because it also makes us comply freely with these precepts and prohibitions, inasmuch as we do so through the promptings of grace. It is for these two reasons that the New Law is called "the law of perfect liberty" (James 1:25).

Reply to Objection 3. The New Law, by restraining the mind from inordinate movements, must needs also restrain the hand from inordinate acts, which ensue from inward movements.

Article 2. Whether the New Law made sufficient ordinations about external acts?

Objection 1. It would seem that the New Law made insufficient ordinations about external acts. Because faith that worketh through charity seems chiefly to belong to the New Law, according to Galatians 5:6: "In Christ Jesus neither circumcision availeth anything, nor uncircumcision: but faith that worketh through charity." But the New Law declared explicitly certain points of faith which

were not set forth explicitly in the Old Law; for instance, belief in the Trinity. Therefore it should also have added certain outward moral deeds, which were not fixed in the Old Law.

Objection 2. Further, in the Old Law not only were sacraments instituted, but also certain sacred things, as stated above (I-II:101:4; I-II:102:4). But in the New Law, although certain sacraments are instituted by Our Lord; for instance, pertaining either to the sanctification of a temple or of the vessels, or to the celebration of some particular feast. Therefore the New Law made insufficient ordinations about external matters.

Objection 3. Further, in the Old Law, just as there were certain observances pertaining to God's ministers, so also were there certain observances pertaining to the people: as was stated above when we were treating of the ceremonial of the Old Law (I-II:101:4; I-II:102:6). Now in the New Law certain observances seem to have been prescribed to the ministers of God; as may be gathered from Matthew 10:9: "Do not possess gold, nor silver, nor money in your purses," nor other things which are mentioned here and Luke 9 and 10. Therefore certain observances pertaining to the faithful should also have been instituted in the New Law.

Objection 4. Further, in the Old Law, besides moral and ceremonial precepts, there were certain judicial precepts. But in the New Law there are no judicial precepts. Therefore the New Law made insufficient ordinations about external works.

On the contrary, Our Lord said (Matthew 7:24): "Every one . . . that heareth these My words, and doth them, shall be likened to a wise man that built his house upon a rock." But a wise builder leaves out nothing that is necessary to the building. Therefore Christ's words contain all things necessary for man's salvation.

I answer that, as stated above (Article 1), the New Law had to make such prescriptions or prohibitions alone as are essential for the reception or right use of grace. And since we cannot of ourselves obtain grace, but through Christ alone, hence Christ of Himself instituted the sacraments whereby we obtain grace: viz. Baptism, Eucharist, Orders of the ministers of the New Law, by the institution of the apostles and seventy-two disciples, Penance, and indissoluble Matrimony. He promised Confirmation through the sending of the Holy Ghost: and we read that by His institution the apostles healed the sick by anointing them with oil (Mark 6:13). These are the sacraments of the New Law.

The right use of grace is by means of works of charity. These, in so far as they are essential to virtue, pertain to the moral precepts, which also formed part of the Old Law. Hence, in this respect, the New Law had nothing to add as regards external action. The determination of these works in their relation to the divine worship, belongs to the ceremonial precepts of the Law; and, in relation to our neighbor, to the judicial precepts, as stated above (I-II:99:4). And therefore, since these determinations are not in themselves necessarily connected with inward grace wherein the Law consists, they do not come under a precept of the New Law, but are left to the decision of man; some relating to inferiors—as when a precept is given to an individual; others, relating to superiors, temporal or spiritual, referring, namely, to the common good.

Accordingly the New Law had no other external works to determine, by prescribing or forbidding, except the sacraments, and those moral precepts which have a necessary connection with virtue, for instance, that one must not kill, or steal, and so forth.

Reply to Objection 1. Matters of faith are above human reason, and so we cannot attain to them except through grace. Consequently, when grace came to be bestowed more abundantly, the result was an increase in the number of explicit points of faith. On the other hand, it is through human reason that we are directed to works of virtue, for it is the rule of human action, as stated

above (I-II:19:3; I-II:63:2). Wherefore in such matters as these there was no need for any precepts to be given besides the moral precepts of the Law, which proceed from the dictate of reason.

Reply to Objection 2. In the sacraments of the New Law grace is bestowed, which cannot be received except through Christ: consequently they had to be instituted by Him. But in the sacred things no grace is given: for instance, in the consecration of a temple, an altar or the like, or, again, in the celebration of feasts. Wherefore Our Lord left the institution of such things to the discretion of the faithful, since they have not of themselves any necessary connection with inward grace.

Reply to Objection 3. Our Lord gave the apostles those precepts not as ceremonial observances, but as moral statutes: and they can be understood in two ways. First, following Augustine (De Consensu Evang. 30), as being not commands but permissions. For He permitted them to set forth to preach without scrip or stick, and so on, since they were empowered to accept their livelihood from those to whom they preached: wherefore He goes on to say: "For the laborer is worthy of his hire." Nor is it a sin, but a work of supererogation for a preacher to take means of livelihood with him, without accepting supplies from those to whom he preaches; as Paul did (1 Corinthians 9:4, seqq.).

Secondly, according to the explanation of other holy men, they may be considered as temporal commands laid upon the apostles for the time during which they were sent to preach in Judea before Christ's Passion. For the disciples, being yet as little children under Christ's care, needed to receive some special commands from Christ, such as all subjects receive from their superiors: and especially so, since they were to be accustomed little by little to renounce the care of temporalities, so as to become fitted for the preaching of the Gospel throughout the whole world. Nor must we wonder if He established certain fixed modes of life, as long as the state of the Old Law endured and the people had not as yet achieved the perfect liberty of the Spirit. These statutes He abolished shortly before His Passion, as though the disciples had by their means become sufficiently practiced. Hence He said (Luke 22:35-36) "When I sent you without purse and scrip and shoes, did you want anything? But they said: Nothing. Then said He unto them: But now, he that hath a purse, let him take it, and likewise a scrip." Because the time of perfect liberty was already at hand, when they would be left entirely to their own judgment in matters not necessarily connected with virtue.

Reply to Objection 4. Judicial precepts also, are not essential to virtue in respect of any particular determination, but only in regard to the common notion of justice. Consequently Our Lord left the judicial precepts to the discretion of those who were to have spiritual or temporal charge of others. But as regards the judicial precepts of the Old Law, some of them He explained, because they were misunderstood by the Pharisees, as we shall state later on (Article 3, Reply to Objection 2).

Article 3. Whether the New Law directed man sufficiently as regards interior actions?

Objection 1. It would seem that the New Law directed man insufficiently as regards interior actions. For there are ten commandments of the decalogue directing man to God and his neighbor. But Our Lord partly fulfilled only three of them: as regards, namely, the prohibition of murder, of adultery, and of perjury. Therefore it seems that, by omitting to fulfil the other precepts, He directed man insufficiently.

Objection 2. Further, as regards the judicial precepts, Our Lord ordained nothing in the Gospel, except in the matter of divorcing of wife, of punishment by retaliation, and of persecuting one's enemies. But there are many other judicial precepts of the Old Law, as stated above (I-II:104:4; I-II:105). Therefore, in this respect, He directed human life insufficiently.

Objection 3. Further, in the Old Law, besides moral and judicial, there were ceremonial precepts about which Our Lord made no ordination. Therefore it seems that He ordained insufficiently.

Objection 4. Further, in order that the mind be inwardly well disposed, man should do no good deed for any temporal whatever. But there are many other temporal goods besides the favor of man: and there are many other good works besides fasting, alms-deeds, and prayer. Therefore Our Lord unbecomingly taught that only in respect of these three works, and of no other earthly goods ought we to shun the glory of human favor.

Objection 5. Further, solicitude for the necessary means of livelihood is by nature instilled into man, and this solicitude even other animals share with man: wherefore it is written (Proverbs 6:6-8): "Go to the ant, O sluggard, and consider her ways . . . she provideth her meat for herself in the summer, and gathereth her food in the harvest." But every command issued against the inclination of nature is an unjust command, forasmuch as it is contrary to the law of nature. Therefore it seems that Our Lord unbecomingly forbade solicitude about food and raiment.

Objection 6. Further, no act of virtue should be the subject of a prohibition. Now judgment is an act of justice, according to Psalm 18:15: "Until justice be turned into judgment." Therefore it seems that Our Lord unbecomingly forbade judgment: and consequently that the New Law directed man insufficiently in the matter of interior acts.

On the contrary, Augustine says (De Serm. Dom. in Monte i, 1): We should take note that, when He said: "'He that heareth these My words,' He indicates clearly that this sermon of the Lord is replete with all the precepts whereby a Christian's life is formed."

I answer that, As is evident from Augustine's words just quoted, the sermon, contains the whole process of forming the life of a Christian. Therein man's interior movements are ordered. Because after declaring that his end is Beatitude; and after commending the authority of the apostles, through whom the teaching of the Gospel was to be promulgated, He orders man's interior movements, first in regard to man himself, secondly in regard to his neighbor.

This he does in regard to man himself, in two ways, corresponding to man's two interior movements in respect of any prospective action, viz. volition of what has to be done, and intention of the end. Wherefore, in the first place, He directs man's will in respect of the various precepts of the Law: by prescribing that man should refrain not merely from those external works that are evil in themselves, but also from internal acts, and from the occasions of evil deeds. In the second place He directs man's intention, by teaching that in our good works, we should seek neither human praise, nor worldly riches, which is to lay up treasures on earth.

Afterwards He directs man's interior movement in respect of his neighbor, by forbidding us, on the one hand, to judge him rashly, unjustly, or presumptuously; and, on the other, to entrust him too readily with sacred things if he be unworthy.

Lastly, He teaches us how to fulfil the teaching of the Gospel; viz. by imploring the help of God; by striving to enter by the narrow door of perfect virtue; and by being wary lest we be led astray by evil influences. Moreover, He declares that we must observe His commandments, and that it is not enough to make profession of faith, or to work miracles, or merely to hear His words.

Reply to Objection 1. Our Lord explained the manner of fulfilling those precepts which the Scribes and Pharisees did not rightly understand: and this affected chiefly those precepts of the decalogue. For they thought that the prohibition of adultery and murder covered the external act only, and not the internal desire. And they held this opinion about murder and adultery rather than about theft and false witness, because the movement of anger tending to murder, and the movement of desire tending to adultery, seem to be in us from nature somewhat, but not the desire

of stealing or bearing false witness. They held a false opinion about perjury, for they thought that perjury indeed was a sin; but that oaths were of themselves to be desired and to be taken frequently, since they seem to proceed from reverence to God. Hence Our Lord shows that an oath is not desirable as a good thing; and that it is better to speak without oaths, unless necessity forces us to have recourse to them.

Reply to Objection 2. The Scribes and Pharisees erred about the judicial precepts in two ways. First, because they considered certain matters contained in the Law of Moses by way of permission, to be right in themselves: namely, divorce of a wife, and the taking of usury from strangers. Wherefore Our Lord forbade a man to divorce his wife (Matthew 5:32); and to receive usury (Luke 6:35), when He said: "Lend, hoping for nothing thereby."

In another way they erred by thinking that certain things which the Old Law commanded to be done for justice's sake, should be done out of desire for revenge, or out of lust for temporal goods, or out of hatred of one's enemies; and this in respect of three precepts. For they thought that desire for revenge was lawful, on account of the precept concerning punishment by retaliation: whereas this precept was given that justice might be safeguarded, not that man might seek revenge. Wherefore, in order to do away with this, Our Lord teaches that man should be prepared in his mind to suffer yet more if necessary. They thought that movements of covetousness were lawful on account of those judicial precepts which prescribed restitution of what had been purloined, together with something added thereto, as stated above (I-II:105:2 ad 9); whereas the Law commanded this to be done in order to safeguard justice, not to encourage covetousness. Wherefore Our Lord teaches that we should not demand our goods from motives of cupidity, and that we should be ready to give yet more if necessary. They thought that the movement of hatred was lawful, on account of the commandments of the Law about the slaying of one's enemies: whereas the Law ordered this for the fulfilment of justice, as stated above (I-II:105:3 ad 4), not to satisfy hatred. Wherefore Our Lord teaches us that we ought to love our enemies, and to be ready to do good to them if necessary. For these precepts are to be taken as binding "the mind to be prepared to fulfil them," as Augustine says (De Serm. Dom. in Monte i, 19).

Reply to Objection 3. The moral precepts necessarily retained their force under the New Law, because they are of themselves essential to virtue: whereas the judicial precepts did not necessarily continue to bind in exactly the same way as had been fixed by the Law: this was left to man to decide in one way or another. Hence Our Lord directed us becomingly with regard to these two kinds of precepts. On the other hand, the observance of the ceremonial precepts was totally abolished by the advent of the reality; wherefore in regard to these precepts He commanded nothing on this occasion when He was giving the general points of His doctrine. Elsewhere, however, He makes it clear that the entire bodily worship which was fixed by the Law, was to be changed into spiritual worship: as is evident from John 4:21-23, where He says: "The hour cometh when you shall neither on this mountain, nor in Jerusalem adore the Father . . . but . . . the true adorers shall adore the Father in spirit and in truth."

Reply to Objection 4. All worldly goods may be reduced to three—honors, riches, and pleasures; according to 1 John 2:16: "All that is in the world is the concupiscence of the flesh," which refers to pleasures of the flesh, "and the concupiscence of the eyes," which refers to riches, "and the pride of life," which refers to ambition for renown and honor. Now the Law did not promise an abundance of carnal pleasures; on the contrary, it forbade them. But it did promise exalted honors and abundant riches; for it is written in reference to the former (Deuteronomy 28:1): "If thou wilt hear the voice of the Lord thy God . . . He will make thee higher than all the nations";

and in reference to the latter, we read a little further on (Deuteronomy 28:11): "He will make thee abound with all goods." But the Jews so distorted the true meaning of these promises, as to think that we ought to serve God, with these things as the end in view. Wherefore Our Lord set this aside by teaching, first of all, that works of virtue should not be done for human glory. And He mentions three works, to which all others may be reduced: since whatever a man does in order to curb his desires, comes under the head of fasting; and whatever a man does for the love of his neighbor, comes under the head of alms-deeds; and whatever a man does for the worship of God, comes under the head of prayer. And He mentions these three specifically, as they hold the principal place, and are most often used by men in order to gain glory. In the second place He taught us that we must not place our end in riches, when He said: "Lay not up to yourselves treasures on earth" (Matthew 6:19).

Reply to Objection 5. Our Lord forbade, not necessary, but inordinate solicitude. Now there is a fourfold solicitude to be avoided in temporal matters. First, we must not place our end in them, nor serve God for the sake of the necessities of food and raiment. Wherefore He says: "Lay not up for yourselves," etc. Secondly, we must not be so anxious about temporal things, as to despair of God's help: wherefore Our Lord says (Matthew 6:32): "Your Father knoweth that you have need of all these things." Thirdly, we must not add presumption to our solicitude; in other words, we must not be confident of getting the necessities of life by our own efforts without God's help: such solicitude Our Lord sets aside by saying that a man cannot add anything to his stature (Matthew 6:27). We must not anticipate the time for anxiety; namely, by being solicitous now, for the needs, not of the present, but of a future time: wherefore He says (Matthew 6:34): "Be not . . . solicitous for tomorrow."

Reply to Objection 6. Our Lord did not forbid the judgment of justice, without which holy things could not be withdrawn from the unworthy. But he forbade inordinate judgment, as stated above.

Article 4. Whether certain definite counsels are fittingly proposed in the New Law?

Objection 1. It would seem that certain definite counsels are not fittingly proposed in the New Law. For counsels are given about that which is expedient for an end, as we stated above, when treating of counsel (I-II:14:2. But the same things are not expedient for all. Therefore certain definite counsels should not be proposed to all.

Objection 2. Further, counsels regard a greater good. But there are no definite degrees to the greater good. Therefore definite counsels should not be given.

Objection 3. Further, counsels pertain to the life of perfection. But obedience pertains to the life of perfection. Therefore it was unfitting that no counsel of obedience should be contained in the Gospel.

Objection 4. Further, many matters pertaining to the life of perfection are found among the commandments, as, for instance, "Love your enemies" (Matthew 5:44), and those precepts which Our Lord gave His apostles (Matthew 10). Therefore the counsels are unfittingly given in the New Law: both because they are not all mentioned; and because they are not distinguished from the commandments.

On the contrary, The counsels of a wise friend are of great use, according to Proverbs 27:9: "Ointment and perfumes rejoice the heart: and the good counsels of a friend rejoice the soul." But Christ is our wisest and greatest friend. Therefore His counsels are supremely useful and becoming.

I answer that, The difference between a counsel and a commandment is that a commandment

implies obligation, whereas a counsel is left to the option of the one to whom it is given. Consequently in the New Law, which is the law of liberty, counsels are added to the commandments, and not in the Old Law, which is the law of bondage. We must therefore understand the commandments of the New Law to have been given about matters that are necessary to gain the end of eternal bliss, to which end the New Law brings us forthwith: but that the counsels are about matters that render the gaining of this end more assured and expeditious.

Now man is placed between the things of this world, and spiritual goods wherein eternal happiness consists: so that the more he cleaves to the one, the more he withdraws from the other, and conversely. Wherefore he that cleaves wholly to the things of this world, so as to make them his end, and to look upon them as the reason and rule of all he does, falls away altogether from spiritual goods. Hence this disorder is removed by the commandments. Nevertheless, for man to gain the end aforesaid, he does not need to renounce the things of the world altogether: since he can, while using the things of this world, attain to eternal happiness, provided he does not place his end in them: but he will attain more speedily thereto by giving up the goods of this world entirely: wherefore the evangelical counsels are given for this purpose.

Now the goods of this world which come into use in human life, consist in three things: viz. in external wealth pertaining to the "concupiscence of the eyes"; carnal pleasures pertaining to the "concupiscence of the flesh"; and honors, which pertain to the "pride of life," according to 1 John 2:16: and it is in renouncing these altogether, as far as possible, that the evangelical counsels consist. Moreover, every form of the religious life that professes the state of perfection is based on these three: since riches are renounced by poverty; carnal pleasures by perpetual chastity; and the pride of life by the bondage of obedience.

Now if a man observe these absolutely, this is in accordance with the counsels as they stand. But if a man observe any one of them in a particular case, this is taking that counsel in a restricted sense, namely, as applying to that particular case. For instance, when anyone gives an alms to a poor man, not being bound so to do, he follows the counsels in that particular case. In like manner, when a man for some fixed time refrains from carnal pleasures that he may give himself to prayer, he follows the counsel for that particular time. And again, when a man follows not his will as to some deed which he might do lawfully, he follows the counsel in that particular case: for instance, if he do good to his enemies when he is not bound to, or if he forgive an injury of which he might justly seek to be avenged. In this way, too, all particular counsels may be reduced to these three general and perfect counsels.

Reply to Objection 1. The aforesaid counsels, considered in themselves, are expedient to all; but owing to some people being ill-disposed, it happens that some of them are inexpedient, because their disposition is not inclined to such things. Hence Our Lord, in proposing the evangelical counsels, always makes mention of man's fitness for observing the counsels. For in giving the counsel of perpetual poverty (Matthew 19:21), He begins with the words: "If thou wilt be perfect," and then He adds: "Go, sell all [Vulgate: 'what'] thou hast." In like manner when He gave the counsel of perpetual chastity, saying (Matthew 19:12): "There are eunuchs who have made themselves eunuchs for the kingdom of heaven," He adds straightway: "He that can take, let him take it." And again, the Apostle (1 Corinthians 7:35), after giving the counsel of virginity, says: "And this I speak for your profit; not to cast a snare upon you."

Reply to Objection 2. The greater goods are not definitely fixed in the individual; but those which are simply and absolutely the greater good in general are fixed: and to these all the above particular goods may be reduced, as stated above.

Reply to Objection 3. Even the counsel of obedience is understood to have been given by Our Lord in the words: “And [let him] follow Me.” For we follow Him not only by imitating His works, but also by obeying His commandments, according to John 10:27: “My sheep hear My voice . . . and they follow Me.”

Reply to Objection 4. Those things which Our Lord prescribed about the true love of our enemies, and other similar sayings (Matthew 5; Luke 6), may be referred to the preparation of the mind, and then they are necessary for salvation; for instance, that man be prepared to do good to his enemies, and other similar actions, when there is need. Hence these things are placed among the precepts. But that anyone should actually and promptly behave thus towards an enemy when there is no special need, is to be referred to the particular counsels, as stated above. As to those matters which are set down in Matthew 10 and Luke 9 and 10, they were either disciplinary commands for that particular time, or concessions, as stated above (Article 2, Reply to Objection 3). Hence they are not set down among the counsels.